

THE HISTORY
OF THE
LONDON BURKERS;
CONTAINING A
FAITHFUL AND AUTHENTIC ACCOUNT
OF THE
Horrid Acts of the Noted Resurrectionists,
BISHOP, WILLIAMS, MAY,
&c., &c.
AND THEIR
TRIAL AND CONDEMNATION
At the Old Bailey,
FOR THE WILFUL MURDER OF CARLO FERRARI;
WITH
THE CRIMINALS' CONFESSIONS AFTER TRIAL.
INCLUDING ALSO THE LIFE, CHARACTER,
AND BEHAVIOUR OF THE
ATROCIOUS ELIZA ROSS,
THE MURDERER OF Mrs. WALSH,
&c., &c.

Embellished with appropriate Engravings.

LONDON:
PRINTED FOR THE PROPRIETORS.
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Transcriber's Note:

Obvious typographic errors have been corrected.



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HISTORY
OF THE
NOTED RESURRECTIONISTS,
BISHOP, WILLIAMS, MAY,
&c. &c.

Whatever may be said of the great advantages arising to the community at large from the march of intellect, which has almost become a bye-word for derision, it cannot be disputed that daily experience teaches us, that in regard to the atrocity of crime, in its most appalling nature, instances have of late occurred of the most unexampled extent and magnitude, and which cover us with confusion and dismay. It would appear, in fact, that with the growth of the illumination of the mind, the degeneracy of the heart has increased, and that fresh sources of guilt have opened themselves, in proportion as the endeavours of the schoolmaster have been directed to their extinction. It is true, indeed, that murder is a crime which has been committed in all ages, and in all countries. It was, in fact, the first crime by which the human race exhibited their natural depravity. But the idea of reducing murder to a system was reserved as the distinguishing feature of the present century; indeed, blots more deep and foul appear to be attached to this era, than to any that have preceded it; and although we may boast, with some degree of justice, that in some instances it has its brighter spots, yet it is nevertheless a truth too melancholy to be questioned, that it has also its darker shades and its more appalling obscurations.

It is a trite axiom in politics, that private benefit must yield to public good; but it is not therefore a natural corollary, that private feelings are to be outraged, and the entire happiness of the social circle to be destroyed by the

desperate acts of a gang of miscreants, who make a trade of human life, and murder the defenceless and unprotected, on the mere ground that it is contributory and indispensable to the interests and advancement of a particular science. Weak and imbecile must that government be, which, with the knowledge of the laws and customs of other countries in regard to the procuring of an adequate supply of human corpses for the purpose of instruction to the anatomical student, conjoined with the advice and experience of native talent, cannot devise some effectual measures for the remedy of an evil, which has of late years grown to such an alarming magnitude, as actually to alter the relations of society, and to establish a system of terror, at once inconsistent with individual happiness. The meritorious endeavours of Mr. Warburton during the last session of parliament were directed to this subject; but, with a most contradictory spirit of opposition, it was urged that the feelings of the inmates of a work-house, having no relations nor friends belonging to them, and who, at their death, would be huddled into a grave like so many dogs, were not to be harassed nor wounded; whilst, at the same time, the sanctity of the grave was to be violated,—the unprotected stranger in our land, perambulating our streets to earn his sorry pittance,—the wretched prostitute, discarded from her parents' house,—and, finally, the helpless decrepitude of age, were to be sacrificed by the inhuman butchery of the systematic murderers; and the legislature of the most enlightened nation of the earth (that is, which is boasted to be such) was to look dispassionately on, and wink at the enormity of the crime, on the plea that the interests of science demanded it. The detection of the atrocities of Burke, confessing, as he did, to nineteen murders, ought to have been sufficient to arouse the vigilance of an enlightened legislature to the enactment of those laws which would have put an effectual stop to a repetition of such a horrid system of murder, and have rescued the country from the *onus* of that disgrace which now lies so heavily upon it. On this point, however, the supineness of the government has been culpable in the highest degree; for to question its knowledge of the existence of the evil, were to suppose that it possesses no information of the dangerous acts of certain individuals, or that it was utterly bereft of the means of detecting them, and of bringing them to justice for the enormity of their crimes. We do not hesitate to declare that an organised system of murder has been and is still carrying on in the metropolis, which makes humanity shudder, which cannot be paralleled in any other civilized country

of the globe, and which, unless the legislature will rouse itself, and inflict *the same punishment upon the receiver of the stolen property* as upon the thief, will, in a short time, go to undermine all the happiness of social life. It has always appeared to us a strange anomaly in the distribution of the laws of this country, why the purchaser or receiver of a dead body, which, from its very nature and character, must be stolen property, should not be subject to the same punishment as the individual who purchases a stolen handkerchief or a watch. It is possible, and very probable, that the purchaser of the latter articles does not know that it is stolen property; but if a resurrectionist presents himself at the door of the King's College, or any of the private dissecting rooms, bearing on his head a hamper containing the corpse of a human being, the purchaser then knows that the subject must be either murdered or stolen. If, then, according to the spirit of the laws of England, the receiver is equally guilty with the thief, where is the law that exempts the receiver of a stolen body from the full penalty of its infliction? We acknowledge that a difficulty may be here started, that it would not, perhaps, be practicable to establish a right of property in a corpse, and that, of course, it would not be possible for any individual to prosecute for the felony. But if such difficulty does actually exist, and we speak advisedly upon the subject, the legislature has it in its power to obviate it altogether by making the mortal contents of our cemeteries the property of the crown. Any person, therefore, abstracting any part of that property might be indictable for felony, and the receiver or purchaser of such property prosecuted as an accessory. The anatomical student will then undoubtedly exclaim against the government, and accuse it of having closed up the sources by which he is to perfect himself in the knowledge of the science. It will then become the aim of the legislature to discover other sources, which may yield to the student the necessary materials for his tuition, without inflicting so severe and incurable a wound upon the tenderest feelings of our nature, and giving support and encouragement to the horrid crime of murder.

It is to the foreign travellers in this country that we are principally indebted for a true and impartial history of our public and domestic polity. The proverbial partiality of an Englishman to his own country naturally renders him blind to its defects; but what must be the opinion of a foreigner of the civilization of this country, when he is informed that there are regularly

established houses in this metropolis^[1], sanctioned by a licence from the magistrates as public-houses, which are known as houses of call for the different gangs of resurrectionists, and where, if a human corpse be wanted by any of the colleges, hospitals, or private dissecting rooms, an application is sure to meet with success. The offer of a good price is held out—the chance is not to be lost—success is dubious, and perhaps hopeless, by the regular process of exhumation; and then the first wandering outcast, who appears to have nothing in the world nor on the world belonging to him, is decoyed away to some obscure habitation, where, as in the cases of Bishop and Williams, the darkness of night is expected to cover the horrid crime of murder.

Melancholy, however, and deplorable is the truth, that there is a set of earthly fiends, bearing the human shape of women, who are the secret panders of the resurrectionists, and who, for a trifling share of the booty, will co-operate with them in their murderous practices. We allude to the female keepers of the low brothels in the different parts of the town, and especially in the immediate neighbourhood of Wentworth Street, Spitalfields, the resort of the lowest class of prostitutes, where, if one of them be suddenly missed from her accustomed haunts, it is but the gossip of the moment; and, in certain cases, it is apparently so satisfactorily accounted for, that no further inquiry is deemed necessary; the practice adopted by the female wretch is generally upon the following plan:—Having selected her victim from the wretched horde, who appears to be the most destitute, or who will not tell that she has, or who, in reality, perhaps, has not any relations in the world, the information is given to the resurrectionist, who, under pretence of purchasing her favours, entices her away to some obscure place, where the work of murder is accomplished. She is missed by her companions, and the keeper of the brothel is questioned as to her knowledge of what has become of her. Ah! replies the wretch, it is a very bad business—she robbed a sailor of two sovereigns, and hearing that the police-officers were after her, she has thought it best for her to go out of the neighbourhood. It appears to all the inquirers that it is a very likely case, that the theft was committed; and it is equally natural that she should run away after it. The unfortunate creature is never seen again, and, in a very short time, it is forgotten that such a being existed upon the earth.

In the progress of this work we shall be able to expose many circumstances connected with this horrid traffic in human flesh, at which the human heart revolts, and which are of so hideous a character, that, were not our authority incontestable, we should treat them as fictions almost impossible to be realized in actual life; but when we state, that we know of the existence of human shambles, where the leg, or the arm, or the head of a human being, can be purchased with the same facility as a leg of mutton or a sirloin of beef, we may then with shame ask ourselves the question—Can this be England—the most enlightened, the most civilized country of the globe? We wish to speak with respect of the established authorities of the land, and we will continue to do so, as long as those authorities act with a due regard to the interests of the people, and to the preservation of general and individual happiness; but when we see such alarming evils carried on under the immediate observation, and, we will go further and say, with the knowledge and tacit concurrence of an efficient and powerful magistracy, we consider that we are only performing a part of that duty which we owe to our country, to excite the legislature, by all the means in our power, and all the information we possess, to a serious and solemn investigation of the whole case, and, by the enactment of some strong and penal laws, bring down the merited degree of punishment on the heads of the offenders, and thereby rescue the country from the odium and the disgrace which are at present attached to it.

With this preliminary matter, we shall enter upon the immediate subject of our history, reserving to ourselves the privilege of interposing our own comments on those particular parts of it, which appear to us as possessing the greatest interest and importance.

It was on Saturday night, the 5th of November, that four men were brought in custody to Bow Street Office, guarded by a strong body of police, charged upon suspicion with the murder of a boy, whose name was unknown. From the appearance of the body of the deceased, and from the fact that two of the prisoners were well known resurrectionists, the rumour almost instantly spread, that the unfortunate boy was burked by the prisoners; and the crowds which surrounded the office, and pressed forward to hear the examination, were far greater than were ever remembered on any former occasion. Several gentlemen belonging to the King's College were present.

As soon as the sitting magistrate, Mr. Minshull, had taken his place, the prisoners were placed at the bar, and answered to their names as follows:—JAMES MAY, MICHAEL SHIELDS, THOMAS WILLIAMS, and JOHN BISHOP.

Mr. THOMAS, the Superintendent of the Police, then came forward, and having been sworn, said, that he charged the prisoners at the bar with the suspicion of having been concerned in the murder of a boy, aged about fourteen years, whose name he was unable to state. It was not in his power, at that time, to offer any direct evidence against the prisoners, but a gentleman, connected with the surgical department of the King's College, to whom the body had been offered for sale, was then present, and would state the circumstances which caused his suspicions, and induced him to cause the apprehension of the prisoners.

Mr. RICHARD PARTRIDGE, of Lancaster Place, was then sworn, and stated, that he was demonstrator of anatomy at the King's College, and had seen the body in question, which the prisoners had brought that day to the College. The body was that of a boy, apparently about fourteen years of age; and from the suspicious appearances which it presented, he was induced to believe that death had been produced by violence.

Mr. MINSHULL.—Be good enough to state upon what grounds you came to that resolution.

Mr. PARTRIDGE.—The body appeared to me to be unusually fresh, much more so than bodies generally are, that are used for dissection; the face was much discoloured, and blood appeared to have been forced through the lips and eyes; the upper part of the breast-bone had the appearance as if it had been driven in, and there was a wound on the left temple, about an inch in length. The teeth were all extracted, and blood was flowing from the mouth.

Mr. MINSHULL.—Had the body, in your opinion, ever been buried?

Mr. PARTRIDGE.—I should say not; and I judge so from the rigidity of the limbs and muscles.

Mr. MINSHULL.—From all that you have observed, can you undertake to say, that the several marks of violence on the body, or any one injury in particular, occasioned death?

Mr. PARTRIDGE.—I have not as yet sufficiently examined the body, and am, therefore, not prepared to answer that question. The pressure on the breast-bone might have occasioned death, but I cannot, at present, say that it did, as I do not know the extent of the injury.

Mr. MINSHULL.—Do I understand you to mean, that, to the best of your belief, the body of the deceased had never been buried, and that, as far as you have as yet been able to form a judgment, the boy did not die a natural death?

Mr. PARTRIDGE replied, that such was his present opinion.

Mr. THOMAS here observed, that a medical gentleman, of the name of Edwards, who had seen the body, stated his belief that death had taken place within the last twelve hours. That gentleman was not present, but he (Mr. Thomas) could send for him.

Mr. MINSHULL said, that he would probably require his attendance, but it was not necessary at present. The magistrate then asked what evidence there was to connect the prisoners with the possession of the body.

Mr. THOMAS replied, that the person was present who received the body when it was brought to the College.

A person named HILL then came forward, and having been sworn, said, that he held the situation of porter to the dissecting room at the King's College. Between two and three o'clock that day (Nov. 5) the body was brought to the dissecting room, by the four men at the bar; the prisoner Shields carried the body in a hamper on his head, and he, witness, observed to him, that he had not seen him lately. Shields then placed the hamper on the floor, and the prisoners, Bishop and May, assisted in unpacking it, and the body, which appeared to be that of a boy between fourteen and sixteen years of age, was then taken out.

We request particular attention to the evidence here given, as it is our intention to offer some serious comments on it, when comparing it with the evidence given during the trial. We were in court during the whole of it, and although the murderer is generally convicted on circumstantial evidence, yet, if the confessions of the criminals are to be relied on, which they voluntarily gave after their condemnation; perhaps, in no case of murder

which ever came before a tribunal of this country, was a more erroneous evidence given as to the causes which were supposed to lead to the death of the murdered boy. It would be premature in this early stage of the business, to make any comment on the high eulogium which the Duke of Sussex was pleased to pass, on the manner in which the prosecution was conducted, and the consequent pride which inflated his breast, at the thought that he was a prince of the country in which such consummate ability was displayed—if his Royal Highness had been most graciously pleased to add, that he was ashamed of being the prince of a country, in which such horrid crimes could be committed, so as to render such a prosecution necessary, we should have considered it as far more becoming his character, and smacking less of that fulsome panegyric flummery, which the great are apt to use towards the great, in order to make themselves appear still greater in their own eyes than they really are.

We return to the examination.

Mr. MINSHULL.—Did anything particular strike you on seeing the body?

HILL.—Yes; I thought it looked unusually fresh, and I asked May what it had died of? He replied, that he neither knew nor cared, that it was no business of his, or words to that effect. I then made an observation respecting the cut which I saw upon the forehead, and Bishop accounted for it by saying that it was done in getting the body out of the hamper.

Mr. MINSHULL.—Was there anything on the floor when the body was taken from the hamper, which could have caused such a wound?

HILL.—Certainly not.

Mr. THOMAS here observed, that the cut on the forehead had all the appearance of having been recently inflicted. The blood flowed from it in streams.

The prisoner MAY here said, Did not that blood proceed from the mouth, and was it not caused by the teeth having been drawn out?

The witness, HILL, replied, that it certainly might be so.

MAY.—Oh it might, might it!

Mr. MINSHULL asked the witness if he perceived any blood flow from the wound on the forehead.

HILL replied in the affirmative, but said, that the greater flow of blood was from the mouth. It streamed from thence on the breast. He then resumed his statement, and said, that on perceiving the state in which the body appeared, he observed to the prisoners, that he did not like the appearance of the subject. It was too fresh. The prisoners did not appear to pay any attention to this, and May, pointing to the body, said, Is it not a fresh one? He, (witness,) replied, yes; and then the prisoners asked him for the money.

Mr. MINSHULL.—Do you mean the price which they were to receive for the body?

HILL.—Yes; but I wished to see Mr. Partridge before I should pay them, and I told the prisoners to come outside, as I could not pay them there. The witness then went on to say, that he went to Mr. Partridge, who on seeing the body, said he did not like to have anything to do with it; that it was too fresh, and had a very suspicious appearance; and he told witness to tell the prisoners to wait until change of a note was procured, which was done for the purpose of keeping them where they were until the police should arrive.

Mr. MINSHULL asked what sum had been agreed upon for the purchase of the body?

The witness said, that the men came to the dissecting-room in the morning, between eleven and twelve o'clock, saying, that they had a subject to sell, and to know if one was wanted. Witness communicated the offer to Mr. Partridge, who came into the room where the prisoners were. They then told him they had a subject to sell, and described it, saying that the price was twelve guineas. Mr. Partridge replied, that he did not particularly want a subject then, and soon after he left the room; but instructed him (the witness) to offer the prisoners nine guineas for the body. The prisoners consented to take that sum, and said, they would go and fetch the body.

Mr. MINSHULL.—Was no inquiry made as to how the prisoners became possessed of the body, particularly after they had described it as being so fresh?

HILL.—I did not ask that question—we are not in the habit of doing so.

Mr. MINSHULL.—Was it by direction of the persons in the College under whom you act, that the prisoners were taken into custody?

HILL.—Certainly; Mr. Partridge, and the gentlemen who belong to his class, agreed, that the appearance of the body was so suspicious, that information should be given to the police.

Mr. MINSHULL.—In so doing they acted very properly.

The magistrate then asked whether the prisoners had in any way accounted for the possession of the body.

Mr. THOMAS replied, that the prisoner Bishop told him he got the body at Guy's Hospital, and employed the prisoner Shields to carry it from thence to the King's College. As this declaration on the part of Bishop appeared to be very important, he (Mr. Thomas) sent a message to Guy's Hospital, to request to know whether a boy answering the description of the deceased, had died there lately. He received for answer, a slip of paper stating that, since the 28th ultimo, three persons had died there; that one was a woman, and the other two were males, aged thirty-three and thirty-seven, so that the statement of Bishop as to where he obtained the body could not be true.

Mr. MINSHULL asked if any person had been to claim the body?

Mr. THOMAS replied, that a gentleman was present, whose son, a boy, aged fourteen, was missing since Tuesday; he had been to see the body, but found it was not his son.

Mr. HART, a respectable tradesman, residing at No. 356, Oxford-street, then came forward, evidently in great distress of mind, and in answer to questions by the magistrate, said, that his boy left home in the afternoon of Tuesday last, and was never seen since, although he had been advertised in the newspapers, and every possible means had been used for his recovery. The poor man wept bitterly, while he deplored his loss, and seemed to think that his son had been made away with by some abominable means, and disposed of to the surgeons; a circumstance which he considered not at all unlikely, from the facility with which bodies appeared to be disposed of at dissecting-rooms, as proved by the evidence of the witness Hill.

Mr. MINSHULL, addressing the prisoners, told them that he was ready to hear anything which they wished to state, but at the same time he felt it his duty to caution them as to what they should say, because it would be taken down in writing by the clerk, and, whether favourable or otherwise, it would be produced as evidence at their trial, if he should decide to commit them.

The prisoner BISHOP said, that he had nothing to add to what he had already stated. He got the body at Guy's Hospital, and employed Shields to convey it to the King's College.

WILLIAMS and SHIELDS declared their innocence, and the latter said, that he merely acted in the matter, as porter to Bishop.

The prisoner MAY, who was dressed in a countryman's frock, and who appeared perfectly careless during the examination, in answer to the question, if he wished to say anything, replied, that he knew nothing at all about the matter, and said that he merely came to the College to get some money that was due to him. It was not my subject, he added, and I know nothing about it.

Here two or three constables, who were in the body of the office, exclaimed, that they knew May to be a noted resurrectionist; and one of them said, he had him in custody at Worship-street Office for stealing a dead body.

The prisoner turned furiously round to the quarter from which the voice proceeded, and dared the constable to produce his proof.

Mr. THOMAS said that May's left hand was tied up, and it might be of importance to know whether it was owing to a cut.

Mr. MINSHULL requested Mr. Partridge to examine the wound; and having done so, he said that the top of the fore-finger of the left hand was slightly injured, either from a cut or a bite. It had been poulticed, and the wound might have been inflicted two or three days ago.

Mr. MINSHULL said that he should remand the prisoners until the following Tuesday, and in the mean time, he requested Mr. Partridge and some other professional gentlemen would closely examine the body of the deceased, so as to be enabled to come to a positive conclusion as to the cause of his

death. He then directed that the prisoners should be confined in separate cells, and that no communication should be allowed to take place between them.

Mr. THOMAS said that it would be necessary to watch them very closely, as they were all desperate characters, and made a violent resistance before they were secured.

The prisoners were then removed to the cells at the back of the office; and as they passed from the bar, they were groaned and hissed at by some persons in the office.

Mr. BERCONI, an Italian image-maker, residing in Great Russell Street, came to the office just as the prisoners were removed, and said he had seen the body of the boy, and from what he could judge of its appearance, he was induced to believe that the deceased was a Genoese by birth, and had obtained his livelihood by selling images in the streets.

The sequel will show, that in this opinion Mr. Berconi was decidedly in an error; but it is very probable that this opinion, expressed by Mr. Berconi, led to the idea, that the deceased was one of those itinerant Italians who perambulate our streets with their monkeys; and as one of them had been lately missing, it was immediately concluded that the deceased was the missing boy. It is not the least remarkable part of this extraordinary business, that the body of the deceased was never fully identified; on the contrary, Berin, the person who brought the boy from his native country, when called upon to identify the body as being that of CARLO FERRARI, unequivocally declared, that he could not positively speak to the identity of it, on account of the change which the countenance exhibited, arising from the violence that had been used. Mrs. Paragalli, it is true, swore to the body, as being that of the Italian boy, whose name she did not know, but whom she remembered perambulating the streets with a tortoise and some white mice. It will be proved in the sequel, from the confession of the murderers themselves, that the deceased was not an Italian at all, but a boy who had come from Lincolnshire with a drove of cattle; and thus we have an instance, hitherto unexampled in the annals of our criminal tribunals, of three persons being indicted for the murder of a boy of the name of Carlo Ferrari, found guilty, and hanged for the crime, when the fact subsequently

transpires, that the murdered boy was not Carlo Ferrari at all. We shall reserve any further comments on this most extraordinary affair, till we come to the confession of the murderers, when, unless their veracity be impugned, and the facts as stated by them altogether invalidated, we shall not hesitate to express our opinion, that, although the criminals have richly deserved the punishment which has been meted out to them, yet that they were convicted upon circumstantial evidence only, and that such evidence was in itself decidedly false.

It was not, however, Mr. Berconi himself who identified the body; but in the course of the following day (Sunday), several applications were made at the station-house to see the unfortunate boy, and then it was that two or three persons recognised him as the poor little fellow who used to go about the streets, hugging a live tortoise, and soliciting, with a smiling countenance, in broken English and Italian, a few coppers for the use of himself and his dumb friend.

Here then lies the origin of the mistake of the identity of the body; but it excites our surprise in no small degree, that any individuals should take upon themselves to identify a body, the features of which were wholly disfigured by a violent death, which features were only known to them, by a passing glance at the individual when alive, as an itinerant beggar upon the streets, and the impression of which might be wholly effaced from their memory a few minutes afterwards. There have been instances in which the countenance has been so altered, even by a natural death, as not to be identified by those who have been the daily associates of the individual whilst in life—how much more liable then to doubt and suspicion must the identity of a body be, which has come to its death by violent means, and the acquaintance with which during life was nothing more than the casual passing glance in the public streets! The manifest error into which those persons fell, cannot fail to operate as a salutary warning to others, not to express their opinion so dogmatically and decisively, unless the fullest conviction is impressed on their minds of the truth of their depositions.

The deceased appeared to be about four feet six inches high, and had light hair and grey eyes. The former itself is a very unusual feature of an Italian boy. He had a scar on his left hand, and it was then supposed that the teeth had been removed for the double purpose of selling them to a dentist and

preventing the identity of the body. The appearance of the corpse was that of perfect health. The face was covered with clotted blood, and the arms, back, and chest had evidently been rubbed with clay to give the body the appearance of its having been disinterred. The cut on the forehead, although small in size, appeared to have been inflicted with some deadly instrument, which had beaten in about half an inch of the temple, without, however, fracturing any part of the bone. There were some black spots on the left wrist, which appeared to have been occasioned by the death grasp of a powerful hand. The breast-bone, as described by the witnesses, appeared as if it had been forced in by violent pressure. The countenance of the boy did not exhibit the least distortion, but, on the contrary, it wore the repose of sleep, and the same open and good humoured expression, which must have marked the features in life, was still discernible. The eyes, however, were bloodshot, and there was a suffusion on the countenance, which in some degree indicated strangulation. It was intended to have proceeded immediately to an examination by the surgeons, but this proceeding was obliged to be suspended until the arrival of the coroner's warrant, which was expected on Sunday night, the 26th.

The sensation which the murder of the boy excited in the metropolis may be said to be almost unprecedented; it was not regarded as one of those murders which stain our criminal annals; but when the fact transpired, that it had been committed by a gang of resurrectionists, the alarm spread into the bosom of every family. The dreadful deeds of Burke and his associates arose to the memory in all their appalling horrors, and if a child or a husband was absent a longer time from home than usual, the maternal fear immediately arose that the burkers had been at work. Thus, as we have stated in a former page, Mr. Hart, of Oxford-street, suspected that his son had been burked, but he was found drowned in the Regent's Canal. The following circumstance will, however, sufficiently show how much disposed the people were at this time to construe every act, having the least grounds of suspicion attached to it, as having an immediate reference to the acts of the burkers.

In the *Times* newspaper appeared a paragraph from Lambeth street office, telling a mysterious story of a drunken man having been taken from the middle of the street, and placed against the door of a house, which was shortly after opened, and the drunken man dragged in, while, in a short time

afterwards, a cart was seen to drive up to the door, into which a coffin was put, after which the cart drove off at a furious rate. It was added, that the inhabitants of the house, although respectable, were not known in the neighbourhood, and the tenor of the article went to prove that it was a nest of body-snatchers. On the Wednesday following, the case was fully explained at Lambeth street, when Mr. Wyatt, the occupant of the house referred to, stated that he had remained at home the last two or three days, being unwell, and while sitting in his parlour had observed persons stop and walk before the house; some made remarks on a hole in the wall, made to allow some fowls which he kept to pass in and out of the cellar, and others looked over the blinds into the room. All this he considered very singular, but could not account for it, until a neighbour called, and directed his attention to the statement which had appeared in the papers. He then went out to inquire into the origin of the rumour; and during his absence, on Tuesday evening, a mob collected round the house, making the most discordant yells and noises, and calling out 'Burkers!' and 'Body-snatchers!' to the great terror of his aged mother and sister, the only persons at home. He knew nothing of the drunken man having been placed against his door; but with respect to the other transaction, he explained, that the mother of Mr. Nutt had resided with his mother, and died in the house last week. The cart was sent by Mr. Nutt's undertaker to remove the body, she having expressed an earnest wish to be buried in Bermondsey, where she lived formerly. Mr. Nutt, in support of this explanation, produced a certificate of the burial of his mother on the 16th of November, signed by the Rev. J. E. Gibson, the Rector of St. John's, Bermondsey.

Mr. Hardwicke observed that the whole story was most absurd, and expressed himself in warm terms at the folly of giving it publicity. A case of mere suspicion ought, on no account, to be made public; and if it were not safe to hear such cases in the office, it would be necessary in future to hear them in a private room.

We do not mention these circumstances to repress proper precautions or due vigilance, but to show the weakness of giving way too freely to feelings of alarm groundlessly excited.

It was at three o'clock on Tuesday, the 8th of November, that the inquest was holden at the Unicorn public-house, corner of Henrietta-street, Covent-

garden, before Mr. Gell, the coroner, with the view to ascertain the circumstances which led to the death of the Italian boy, whose name is unknown, and with the murder of whom four men, namely, Bishop, May, Williams, and Shields then stood charged. The room in which the inquest took place was crowded almost to suffocation. The prisoners were conveyed to Bow-street in the afternoon, under a strong escort of police, but the inquest having been adjourned, their presence was not required before the coroner.

We solicit particular attention to the evidence here given before the coroner, as facts are there sworn to, on which the conviction of the accused parties took place, but which have now been determined to be totally false.

WILLIAM HILL was the first witness sworn. He resides at No. 7, Craven-buildings, Drury-lane. His evidence was to the following effect:—I am dissecting porter at King's College, Strand. The deceased was brought to the college on Saturday last, the 5th, between two and three o'clock in the afternoon; my bell was rung by one of the four men in custody, and, in consequence, I went to the door of the dissecting room; I there saw the four men, May, Bishop, Shields, and Williams. I had seen May and Bishop between eleven and twelve that morning, who asked me if I wanted any thing? I replied, not particularly; but I asked them what they had got? May replied, that he had got a male subject. I asked him what age? he replied, fourteen. I then asked him the price of it? he answered, twelve guineas. I told him we would not give that price: but that I would speak to Mr. Partridge, the Demonstrator of Anatomy to the College. I then went to Mr. Partridge, and we both joined May and Bishop. The former was much in liquor; after some conversation with the men, Mr. Partridge went away; the men remained, and I followed Mr. Partridge, who desired me to offer them nine guineas. May said he would not take less than ten; but nine guineas were ultimately agreed to. The men then went away, and returned again between two and three o'clock, accompanied by Shields and Williams, who brought the body of the deceased in a hamper. I admitted May and Bishop only, and they deposited the body in a room of the College, and then they proceeded to unpack the hamper, and took out a sack containing the body of the deceased, and laid it on the floor. I observed to them, that the body was particularly fresh, and said, at the same time, I wonder what it could have died of. I made an observation respecting a cut in the forehead, when

Bishop said, that cut had been done by May in taking the body out of the sack; adding, that he (May) was drunk. The body was stiffer than usual; the eyes appeared very fresh, although blood-shot, and the lips full of blood. I saw a quantity of blood on the chest, part of which seemed as if recently wiped off. They then asked for the nine guineas; and I went to Mr. Partridge, and stated to him, that I thought all was not right. Mr. Partridge then came and viewed the body. May and Bishop were not then present. Mr. Partridge, after viewing the body, went away; and, in the mean time, some of our pupils having seen the body, conceived it was that of a boy who had been advertised: they also said, that there appeared to be marks of violence on the body; and a communication having taken place between Mr. Partridge and some of the gentlemen of his class, the police were sent for, and the four men were given into custody.

By the CORONER, at the suggestion of Mr. THOMAS.—I did not ask them how they got the body, because I never ask such a question. It is not likely they would have answered me truly, if I had.

Mr. GEORGE BEAMAN, of 28, James-street, Covent-garden, examined. I am a surgeon, and was called upon by Mr. Thomas, Superintendent of Police, on Saturday last, to inspect the body of the deceased. I did so about twelve o'clock on the same night; the body appeared to me to have very recently died, and I should think not more than from twenty-four to thirty-six hours. The body was stiff, the face appeared swollen, the eyes full, prominent, and very fresh; the external coat of the eyes was much bloodshot, and there was a wound in the forehead, over the left brow, nearly an inch in length, and of the depth of about one-eighth of an inch; blood was flowing from this wound, and, upon my using pressure, to detect invisible fracture, a small additional quantity of blood then oozed out. All the front teeth had been drawn, the tongue was swollen, but I did not then perceive any more marks of violence on the body. I examined the neck, throat, and chest, very particularly: there were no marks of pressure on these parts, and I was induced to examine them more particularly, the face and tongue, and the eyes being so full and bloodshot. On the following evening (Sunday), with the assistance of Mr. Mayo, Mr. Partridge, and others, I commenced the dissection of the body. I then very particularly observed the external appearance of the neck, throat, and chest, and I used a sponge and warm water to cleanse them thoroughly. There were not the slightest marks of

violence. I then examined the head, and, upon turning back the skin, which covers the upper part of the skull, I detected a patch of extravasated blood directly beneath the skin. This patch must be the effect of accident or violence. The bone underneath was not injured. The skull-cap was then removed. The membrane investing the brain appeared rather more florid than usual. The substance of the brain was perfectly healthy throughout. The spine was next examined, and on the skin being removed from the lower part of the head, extending to the shoulders below, a good deal of blood was extravasated. This I have no doubt was the effect of great violence. There was no fracture of the spine; but on removing the arch, with the view of observing the spinal marrow, a quantity of coagulated blood was found within the spinal canal, pressing upon the marrow, and I have no doubt, in the present instance, that what I have just described was the cause of death, namely, the extravasation of blood into the upper part of the spinal canal.

CORONER.—Do you suppose that the death of the deceased would have been occasioned by the appearance you have described, without producing any external wound?

WITNESS.—I do. The wound on the forehead could not of itself produce death.

The witness then proceeded to state that, in his opinion, some blows must have been given to the deceased with a blunt stick, bludgeon, or other blunt instrument, or even by the fist of a strong man. It was impossible that the indigestion could have produced such effects. The body, in every other respect, was perfectly healthy. A fall, to occasion death, would have left some more serious external appearances. The heart and lungs were perfectly healthy, and upon removing the contents of the stomach, and pouring them into a basin, for the purpose of being analyzed, he observed that it was of a perfectly healthy structure; digestion was going on at the time of death. He did not believe that the body had ever been interred. The stomach contained a tolerably full meal, and smelt slightly of rum (this circumstance is accounted for in the confession of Bishop). Unquestionably the deceased *did not die from suffocation* or strangulation.

Mr. THOMAS here intimated to the coroner, that the Rev. Mr. Bernasconi had just seen the body, and recognized the boy as one of his flock, but could not tell his name.

Mr. RICHARD PARTRIDGE, of No. 8, Lancaster-place, Surgeon, sworn. I am Demonstrator of Anatomy at the King's College. I know nothing of the men now in custody; but on Saturday last, I saw two men, Bishop and May, as I have since understood their names to be, at the College, and I agreed to purchase of them the dead body of a youth aged about fourteen years. The body of the deceased was brought to the College that same afternoon, and in consequence of a message brought to me by the witness Hill, I went and examined the body, and on a second examination, the suspicious appearances which it presented struck me forcibly. I then went to the secretary's office, and having strong suspicions that all was not right, I procured some police-officers, who in my presence apprehended May and Bishop, and the other two men who were waiting outside. I delayed May and Bishop until the officers arrived, by showing them a fifty-pound note, which I told them I wanted the change of in order to pay them for the body.

The evidence of Mr. Beaman was here read over by the coroner, who asked Mr. Partridge if he coincided with the testimony given by that gentleman, with regard to the appearances of the body.

Mr. PARTRIDGE observed, that he perfectly agreed with all that Mr. Beaman had said, with regard to the appearances described by him, and considered that the cause of death had probably arisen from the injuries described to have taken place at the back of the neck. Those injuries might have occasioned death, certainly, but all the other appearances, as described by Mr. Beaman, might have resulted from a natural death.

THOMAS DAVIS examined.—I am porter at the dissecting-rooms, Guy's Hospital. On Friday evening last, May and Bishop brought to the hospital a sack, containing, as they said, a dead body, which they offered to sell. I told them that it was not wanted, as the gentlemen were already supplied. They then asked permission to leave it that night in the hospital, which I allowed. The next morning (Saturday), between, I think, eleven and twelve o'clock, I saw May and Bishop about the hospital. I went out, and on my return found that the body had been taken away, and that it had been removed at half-

past twelve or one o'clock. My assistant, James Wix, delivered the sack containing the body to some persons, but to whom I cannot say.

By the CORONER.—I am persuaded that the body was never taken out of the sack whilst in the hospital.

Mr. CHARLES STARBUCK, Stockbroker, of No. 10, Broad-street Buildings, City, one of the Society of Friends, on his solemn affirmation, deposed as follows:—In consequence of the report which I read in the *Times* newspaper of Monday last, I went to see the body of the deceased, and have no doubt that it is the body of an Italian boy, whom I have frequently seen at the Bank. On last Thursday evening, the 3d instant, between half-past six and eight, I saw an Italian lad, whom I *suppose* to be the deceased, sitting near the Bank, with his face almost in his lap. He attracted attention from his position, having a mouse-trap under his arm. A youth told him to get up, as the police were coming, or words to that effect. I remarked to my brother, I think he is unwell; and my brother replied, I think he is a humbug, for I have frequently seen him in that position. There were several men and women around him. I have seen the body yesterday and to-day, and have little doubt but it is that of the Italian boy so described. I have not seen the boy since alive.

MARGARET PERRIGALLI, of No. 11, Parker-street, Drury-lane, sworn.—On Sunday morning last I saw the body of the deceased. I do not know the name of the boy; he was an Italian. I have known him for the whole of last summer, *and I am quite certain* the dead body is that of the boy I have known so long. On Tuesday the 1st instant, I saw him alive in Oxford-street, carrying a mouse-trap.

Mr. GEORGE DUCHOZ, surgeon, of 34, Golden-square, was then sworn and examined. I attended the *post mortem* examination of the boy on Sunday evening last, and my opinion is, that he died suddenly, from external violence, and that the injuries at the back of the neck were quite sufficient to have caused death. I have seen similar appearances, however, in the body of a man, who died from having fallen down stairs. There is no doubt but that death, in this instance, must have been instantaneous, and might certainly have been produced by a blow from a bludgeon on the back of the neck. I observed a mark on the right wrist, apparently produced by pressure.

Mr. Duchoz *stated his firm opinion that the boy had first been stunned by a blow on the head, and afterwards that his neck had been dislocated, in the same manner as it was usual to wring the neck of a duck.*

We have given the latter part of this opinion in Italics, as, when we come to contrast it with the confession of Bishop, it will be found that just as much value ought to be attached to it, and that it was just as consistent with the real truth, as if Mr. Duchoz had declared that the boy had died by natural means. We speak it not personally, but it is sometimes deplorable to hear the opinion of professional men touching certain points connected with life and death, and which are afterwards to be made the groundwork of a criminal prosecution. We see no reason to dispute the veracity of Bishop or Williams' confessions; for in the awful situation in which they stood, falsehood could not avail them anything, nor can any ostensible motive be discovered for their leaving behind them an erroneous statement, which went to exonerate no one from any imputed charge, nor which subtracted in the least degree from their own criminality. They confess not only to one but to other murders; but they declare that the boy, whose corpse they attempted to sell at King's College, and on which they were apprehended, was not Carlo Ferrari, but a Lincolnshire youth, who had brought a drove of cattle from that county. What then becomes of the identity of Bernasconi, Starbuck, and Perrigalli? What becomes of the evidence of the professional men as to the cause of the death of the presumed Carlo Ferrari, when it is found, by the confession of the murderers themselves, to have been effected by wholly different means? And, lastly, we may ask, (and we shall have occasion, at a future period, to dilate more fully on the subject,) what sort of a character does the prosecution itself exhibit to the country, when three individuals can be arraigned at the bar for the murder of a certain boy by a blow or blows on the back of the neck with an instrument, according to the jargon of the law, *of no value whatever*; that these same individuals shall be convicted of the crime, according to the declaration of the Recorder, on the most *conclusive* and *incontrovertible* evidence; and then, in less than twenty-four hours afterwards, it shall transpire, that the boy so murdered was not the boy for whose murder the parties were arraigned—that his death was not occasioned by any blow, but actually by suffocation, and consequently that the conviction took place on evidence which, throughout, was decidedly false.

We are willing to bestow on Mr. Thomas all the credit which he deserves for his meritorious exertions in bringing the miscreants to the bar of their country to answer for their crimes; but we cannot refrain from observing, that in collecting the evidence for the prosecution, recourse has been had to some measures which appear highly overstrained, and which, in fact, could never be received as evidence in any English court of justice. We will select the following as an instance.

Mr. Duchoz having informed the jury that the neck of the boy appeared to be dislocated in the same manner *as it is usual to wring the neck of a duck*, Mr. Thomas proceeded to state, that in consequence of a communication which he received on Saturday afternoon from the King's College, he sent officers to that place to take the four men into custody, which was done, after a desperate resistance had been made by the prisoners. Witness sent for the body, and asked Bishop what he was. He replied, "A b——y body-snatcher." He had seen the four prisoners within the last fifteen minutes, and asked them if they had any wish to see the jury. May replied, "Not I—I have nothing to say about it." Bishop said, "The body is mine; and if you want to know how I got it, you may find it out if you can." Shields' answer was, that he was employed by Bishop to carry the body from Guy's Hospital to the King's College. The prisoner Williams said, that he knew nothing at all about the matter, and that he merely went with the prisoners to see the King's College. Mr. Thomas added, that he received a letter that afternoon, stating that a tortoise, similar to the one which it is supposed the deceased was in the habit of carrying about, was exhibited for sale in a shop in Middle Row, Holborn. He immediately went to the shop, and took possession of the tortoise now produced, (for which act Mr. Thomas rendered himself liable to an action for felony). He asked the woman of the shop how she became possessed of it; and she answered, that her husband had purchased it in Leadenhall Market, of a person whom she did not know; adding, that such things were usually bought and sold there.

Joseph Perrigalli, husband of the woman already examined, was then sworn, and stated, that he had known the deceased boy for nearly twelve months, and well recollected his having carried a tortoise with him. The tortoise, which he was in the habit of carrying, was *very like the one* now produced; and he, witness, saw it in the possession of the deceased about a month ago. The deceased used to carry mice as well. He examined the body

last Sunday morning, and *was quite certain* it was the boy whom he knew so well.

Now, would the evidence of the tortoise have been admitted in any court of justice whatever? It was well known that the Italian boy carried a tortoise; Mr. Thomas hears of a tortoise being in Middle Row, Holborn—hurries to take possession of it—produces it before the jury—and calls a Frenchman to depose that it is *very like* the tortoise which the Italian boy carried about with him. We believe that all tortoises are alike, and that it would not be so easy to prove the identity of any individual of the species, as has been evinced in the proof of the identity of Carlo Ferrari. If Mr. Thomas had received a letter, stating that a tortoise was in either of the two great Zoological Gardens, and it is just as probable that the tortoise of Carlo Ferrari should have fallen into the possession of the proprietors of those establishments, as into that of the woman in Middle Row,—would Mr. Thomas have so far committed himself, as to repair to the Gardens, and bring the animal away with him? It is by no means an uncommon thing to see a tortoise exposed for sale in Leadenhall Market, and Mr. Thomas had it not in his power to produce an iota of proof, that the tortoise which the woman purchased in that market, was the identical one of Carlo Ferrari, but simply that *it was very like it*. It is true, that the configurations of the shell of the tortoise are not always similar; but on that point no proof is produced that the tortoise of Carlo Ferrari, and of the woman in Middle Row, resembled each other; and, therefore, we cannot forbear expressing our regret, that any recourse should have been had to such a flimsy evidence, and which would have been immediately rejected by the judge appointed to try the criminals.

Mr. Thomas, in continuation of the statement, said, that since the deceased had been brought to the Station House, he had had no less than eight applications to see the body by parents, who had, within a very short space of time, lost their sons, who were generally described as boys about the age of thirteen or fourteen. The parents could in no way account for their absence, and they all appeared in the greatest distress of mind. One of the boys so lost was deaf and dumb.

The coroner and the jury expressed their greatest surprise at the statement, and Mr. Cribb, the foreman of the jury, observed, that he had no doubt

whatever of the fact, for he had himself seen the parents of two boys who had disappeared, call at the Station House on Sunday morning, in order to see the body of the deceased.

A juryman said, that the fact stated by Mr. Thomas afforded the strongest possible reason for pursuing the present inquiry to the utmost.

After some further conversation, the jury wished the room to be cleared, in order, we believe, to discuss the propriety, either of adjourning the inquest, with a view to obtain further evidence, or to call the parties charged before them, in order to hear any further explanation touching their possession of the body, which they might feel inclined to give.

The room was accordingly cleared at seven o'clock, and after remaining together about twenty minutes, it was announced that the inquest was adjourned until five o'clock on Thursday evening next.

Mr. Corder, the vestry clerk of St. Paul's, Covent Garden, was present, and took notes of the proceedings on behalf of the parish, who, in the event of the case being sent for trial to the Old Bailey, will become the prosecutors.

Pursuant to the adjournment, the jury again met on Thursday evening, the 10th of November, at the same house, and the room, as before, was crowded in every part, and a crowd of persons were outside, anxious to hear the verdict.

After the jury had been sworn, Mr. Cribb, the foreman, produced a letter, which he said he had received from Mr. Starbuck, the stock-broker in the city. The letter was handed to the coroner, who read it to the jury. It stated that Mr. Starbuck *had been mistaken* with regard to the identity of the boy whom he supposed to be an Italian lad, and whom he had seen near the Bank on the night of Thursday. He had since seen that boy alive.

Here then, we find one individual retracting his opinion of the identity of the boy; and it therefore now solely rests on the testimony of Mr. and Mrs. Parragalli, who are just as likely to have been mistaken as the worthy Quaker.

The evidence of the witnesses was then resumed.

JOSEPH HIGGINS, constable of the F division of police, sworn.—I live at No. 8, Newton Street, Holborn. Yesterday, about four o'clock, I went to a public-house in Giltspur Street, called the Fortune of War. I there saw Mrs. Bishop, and Mrs. Williams her daughter, coming out, and I told them I must take them to the Station House. Mrs. Bishop begged of me to let her go home for her child, which I consented to do, but I said I must go with her. I then went with them to No. 3, Nova Scotia Gardens, Crabtree Row, Hackney Road. I proceeded to search the house, and found the implements I now produce. I said, "I know what those are for;" and she replied, "I dare say you do, but do not speak before the children." I found two crooked chisels, which Mrs. Bishop admitted were for opening coffins. I also found a brad-awl with dry blood upon it; I said, "this is for punching out teeth." She replied, "her husband had used it for mending shoes." I also found a file. I then searched Mrs. Bishop, and found upon her the petition which I now produce. She told me it was from her husband, and three other persons for pecuniary assistance, saying that they were resurrectionists, and they had no means of defending themselves from the offence for which they were charged. The petition, which was as follows, was then read:—

The humble Petition of JOHN BISHOP, and three others,

Most humbly sheweth,

'That your petitioners have supplied many subjects on various occasions to the several hospitals; and being now in custody, they are conscious in their own minds that they have done nothing more *than they have been in the constant habit of doing* as resurrectionists, but, being unable to prove their innocence without professional advice, they humbly crave the commiseration of gentlemen who may feel inclined to give some trifling assistance, in order to afford them the opportunity of clearing away the imputation alleged against them. The most trifling sum will be gratefully acknowledged; and your petitioners, as in duty bound, will ever pray.'

This petition was not signed.

She admitted, that Williams was not her son-in-law's right name, but said, he did not wish it to be known, as he had been out with her husband not

more than two or three times. She added, that her husband went out the night before he was taken into custody, accompanied by her son-in-law, Williams, and that he came home the next morning, and washed his hands in a basin, at the bottom of which she saw a great deal of mud.

JAMES WEEKS, examined.—I am assistant to Mr. Davis, porter at the dissecting-room, Guy's Hospital. I know May and Bishop; and on Friday the 4th instant, about five minutes past seven, I went to the hospital and saw them there. They left a sack at the hospital, containing something, and I saw projecting through a hole in the sack a portion of a knee of a human being. I heard May say to Mr. Davis, 'The fact is, the subject don't belong to me, but to Bishop.' Mr. Davis on this request allowed them to leave the sack with its contents in the hospital. They then went away, and came to the hospital the next morning about one o'clock, with two other persons, and I delivered the sack, with its contents to May and Bishop. The sack was locked up in a room the whole of the night, and it was delivered just as it was received the night before. The body could not have been changed. I do not think the subject was a full-grown person. The parties brought a hamper with them, into which they put the sack.

JAMES APPLETON, of No. 4, St. George's-road, near New Kent-road, procurator to Mr. Grainger, Surgeon, sworn.—On Friday evening, about half-past seven, May and Bishop came to Mr. Grainger's Theatre of Anatomy, Webb-street, Southwark, where I was, and they asked if I wanted a subject. I inquired the age and sex, and the reply was, a boy about fourteen years old. I declined to purchase it. They told me it was a very fresh subject. They then went away, and came again to me at the theatre next morning (Saturday) about eleven o'clock, and inquired again if I would purchase the body, but I again declined it.

Mr. THOMAS here produced a letter, in which it was stated that Mr. Appleton had declared to a postman, that the body was warm when offered for sale to him, and that he declined the purchase for that reason.

The CORONER asked if the fact were so?

The witness declared he never saw the body, and positively declared that he never spoke a word to a postman on the subject.

Mr. CRIBB, the foreman of the jury, asked the witness whether he had any particular reason for declining to purchase the body.

The witness replied that he had no other reason than that of not wanting it, as the theatre was already supplied.

A JUROR.—What was your motive for asking the sex of the subject?

WITNESS.—Because many of the pupils prefer a male to a female subject.

After a long desultory conversation as to whether the inquiry should proceed further,

Mr. CORDER said, that he really did not think there was any further evidence to produce at present, tending to throw any additional light upon the inquiry. If, however, the jury should return a verdict of wilful murder against some person or persons unknown, the inquiry would be pursued at Bow-street Office, where the four men were now in custody. He (Mr. Corder) had reason to believe that his Majesty's Government, struck with the importance of the inquiry, would lend every facility tending to bring the affair into a proper train, in order that public justice might not be defeated. He then suggested that the accused should be sent for, with a view to see whether or not they felt inclined to account for the possession of the body.

A JUROR observed, that they were as yet proceeding in the dark, inasmuch as they had not yet ascertained the name of the deceased or to whom he belonged.

Mr. CORDER replied, that he understood, from inquiries that he had made, that the name of the murdered boy was Giovanni Montero, and that he was brought to this country, from Italy, about a year ago, by a native of that country, named Peter Massa.

JOSEPH PARRAGALLI here said, that from inquiries he had made at the Alien Office, and from the description given of Massa's boy in his passport, he was quite sure that he could not be the same boy, whose death was now the subject of inquiry.

It was here determined by the Jury to have the prisoners before them.

The Prisoner MICHAEL SHIELDS was then brought forth strongly guarded, and the Coroner addressing him said, 'You are not obliged to answer any questions that may be put to you unless you please, but I tell you fairly, that we have sufficient evidence before us to prove, that the deceased boy came to his death by unfair means; and having traced the body into your custody, we wish to know whether you are inclined to give any explanation touching your possession of the body in question. Should you feel inclined to state what you know, I am anxious to caution you to speak the truth.' The prisoner said, he was willing to speak the truth, and having been sworn, he deposed as follows:-

My name is Michael Shields. I live at No. 6, Eagle Street, Red Lion Square. I am a porter; and on Saturday last, the 5th instant, about ten o'clock in the morning, I was hired by Bishop, whom I met in Covent Garden. Bishop said, he had a little job to do, to go over London Bridge. I said I would go. I then went with him to a public-house, right opposite Guy's Hospital, where he left me, and returned in about an hour, in company with May and Williams. We then went together into Guy's Hospital, and, after waiting there half an hour, I saw a man in a flannel jacket; that man and Bishop had a hamper, directed to —— Hill, Esq., King's College. They then put the hamper on my knot, telling me to be careful not to fall down. I went off with the hamper over London Bridge, accompanied by May, Bishop, and Williams. Had never been to the King's College before. They went first, and I followed into the College. The door was opened by a man, and they (Bishop, May, and Williams) took the hamper from me, leaving me outside. About three-quarters of an hour after this I was apprehended by the police, previously to which Bishop, Williams, and May, were apprehended also.

CORONER.—Is that all you have to say?

PRISONER.—That is all, your honour; if I was to speak my last words I did not know what the hamper contained. I sometimes assist the grave-digger of St. Giles's parish in digging graves, whenever he is overrun.

CORONER.—How long have you known Bishop?

PRISONER.—About eight or nine months, I should think. I don't know, in particular, how he got his livelihood. I don't know as he dealt in dead bodies before now; I was never employed 'in this way' by Bishop before. I was to

be paid half-a-crown for this job. I can swear that May and Williams never employed me to carry dead bodies. I can't say that I never worked for a resurrectionist before. I had no reason to suspect, prior to this event, that Bishop, May, and Williams were resurrectionists. I do not know where they lived. It was on London Bridge that I met Williams, who had an empty hamper, which I took from him, and carried it to Guy's Hospital, and some person there took it from me and brought it in, and I then went to the public-house. I have carried hampers and boxes before to hospitals and dissecting-rooms.

Mr. CORDER.—Were you at the Fortune of War public-house on Friday last?

PRISONER.—I might have been.

Mr. CORDER.—Did you not see Bishop and May there?

PRISONER.—They might be there. (The prisoner, on being further pressed, admitted that they were there; and said, that Bishop told him he should want him the next morning to do a job for him.) I very often go to the Fortune of War. I remained there for about half an hour, and I met Bishop and May there by accident. They went away before I left. When I said that I met Bishop and May in Covent Garden at ten o'clock on Friday morning, I did not speak the truth. I now state that I met him at the Fortune of War, on the Friday morning, at eight o'clock.

Mr. CORDER.—I suppose that you know that the Fortune of War is a sort of house of call for resurrectionists?

PRISONER.—It may be. I have seen several respectable persons there.

Mr. CRIBB.—Now, Shields, answer this question truly. Do you know anything relating to the death of the deceased?

PRISONER.—Bishop said, while coming to Bow-street, in the van, that the body was got from the ground, and that he knew where it was got from. He smiled as he said so, adding, that if he was brought before the Jury he would give them ease about it.

The examination of Shields having been concluded, the prisoner Bishop was brought before the Jury; and the Coroner cautioned him as to the

awkward situation in which he stood, there being no doubt but that the boy had been unfairly dealt by.

BISHOP.—I dug the body out of the grave: the reason why I decline to say the grave I took it out of is, that there were two watchmen on the ground, and they intrusted me, and being men of family, I don't wish to 'deceive' them. I don't think I can say anything more. I took it for sale to Guy's Hospital, and, as they did not want it, I left it there all night and part of the next day, and then I removed it to the King's College. That is all I can say about it. I mean to say that this is the truth. I shall certainly keep it a secret where I got the body. I know nothing as to how it died.

CORONER.—You have a right not to implicate yourself; and certainly I must say, that the account which you have given is by no means satisfactory.

Bishop was then removed, and the prisoner May was brought forward, and cautioned in the same way as the other prisoners. He was told that the result of the inquiry might affect his life, and if he said anything, it would be produced as evidence against him.

The prisoner said he wished to say what he knew, and would speak the truth. He then said, that his name was James May, and that he lived in Dorset-street, Newington. He went into the country on Sunday week, and returned on the evening of Wednesday, and went to Mr. Grainger's, in Webb-street, with a couple of subjects. On the following morning (Thursday) he removed them to Mr. Davis's, at Guy's; and, after receiving the money, he went away to the Fortune of War, in Smithfield, and stayed there about two or three hours. Between four and five o'clock, to the best of his recollection, he went to Nag's-head-court, Golden-lane, and there he stopped with a female until between eleven and twelve o'clock the next day (Friday). From Golden-lane he went to the Fortune of War again, and stopped drinking there until six o'clock, or half-past. Williams and Bishop both came in there, and asked him, if he would stand anything to drink? which he did. Bishop then called him out, and asked him, where he could get the best price for 'things?' he told him where he had sold two (meaning Guy's); and he (Bishop) then told him, that he had got a good subject, and had been offered eight guineas for it. He (May) replied, that he could get more for it; and then Bishop said, all that he could get over nine guineas he

might have for himself. He agreed to it; and they went from thence to the Old Bailey, and had some tea at the Watering-house there, leaving Williams at the Fortune of War. After tea they called a chariot off the stand, and drove to Bishop's house. When there, Bishop showed him the lad in a box or trunk. He (May) then put it into a sack, and brought it to the chariot, and conveyed it to Mr. Davis, at Guy's. Mr. Davis said, you know, John, I can't take it, because I took two of you yesterday, and I have not got names enough down for one, or I would take it. He (May) then asked him if he could leave the body there that night? and he said he might. Bishop then desired Mr. Davis not to let any person have it, as it was his subject, but to deliver it to his own self. He (May) also told Davis not to let the body go without him, or he should be money out of pocket. May then went on to state, that he went to his own house, and slept there that night, and the next morning he went to Guy's, and Bishop and Shields came in with a hamper, which was taken to King's College, where he was taken into custody. The prisoner said that he had spoken the truth, and nothing else. He was then removed, and the other prisoner,

JOHN WILLIAMS, was brought in; and being cautioned not to say anything to criminate himself, he stated that, in the first place, he met Bishop on last Saturday morning, in Long-lane, Smithfield, and asked him where he was going? He said he was going to the King's College. They then went into the Fortune of War public-house, and after that Bishop went to Guy's Hospital, and then to the King's College. May and the porter met them against the gate. Bishop went in, and he (Williams) asked him to let him go in with him. That was all he had got to say, except that a porter took a basket from the Fortune of War to Guy's Hospital, and he (Williams) helped him a part of the way with it.



The prisoner was then removed.

JAMES SEAGROVE, a cabriolet driver, swore positively, that a quarter before six o'clock on Friday evening he was sitting in a public-house in the Old Bailey, when two men (May and Bishop) came in, and the taller of the two told him that they wanted him to do a job. Witness answered that there were a great many jobs, long and short ones. May then said, that he wanted him to carry a 'stiff un.' Witness asked what he meant to pay him for it. The witness then went on to state, that he declined the offer of May and Bishop, and afterwards saw them trying to make a bargain with a coachman on the stand. May had previously offered witness a guinea for the job. The witness added that he meant to do them, and appeared to consent at first merely for the purpose of hearing a little of the tricks of body-snatchers.

The room was about to be cleared, when

WILLIAM HILL, the porter at the dissecting-rooms, King's College, begged to add to his former evidence, that when there was a delay in paying Bishop and May for the body, the former said to Mr. Partridge, Give me what money you have got in your purse, and I will call for the remainder on

Monday. It was very unusual for persons selling dead bodies to go away with part payment only, unless something was wrong; they generally wait for their money.

The room was then cleared, and at half-past ten o'clock the Jury came to the following verdict:—

We find a verdict of WILFUL MURDER against some person or persons unknown; and the Jury beg to add to the above verdict, that the evidence produced before them has excited very strong suspicions in their minds against the prisoners Bishop and Williams, and they trust that a strict inquiry will be made into the case by the Police Magistrates.

We understand that Mr. Corder received directions from the Home Office to forward the result of the examination before the Coroner to the Secretary of State, as soon as it should be made known; and it was further stated, that a reward would be forthwith offered for such evidence as might tend to fix the crime upon the guilty parties. The prisoners still remained in custody on the charge, namely, suspicion of murder, for which they were brought to Bow-street on the previous Saturday night; and Mr. Minshull, before whom the examination then took place, expressed his determination to pursue the inquiry to the utmost.

Previously to entering into any further statement of the measures adopted for obtaining the necessary evidence to bring the commission of the crime home to the accused parties, we may be allowed to offer a few reflections on the indelible disgrace which is attached to this country, by the tacit encouragement which is given to the horrid vocation of the resurrectionists, and which has now become such a settled system, that not only the sanctuary of the grave is violated, but human life is sported with as if the laws had no restraining hand upon the criminals, and they were to be allowed, in the open face of day, to carry on their murderous trade, in defiance of humanity, religion, and the laws. Would it be credited, were it not obviously true, that after the discovery of such till then unheard-of depravity as that exhibited in the crimes of Burke and Hare, two years should elapse without any measure being adopted by the Legislature to amend the system which tempts to such horrors, and that the subject should

be forgotten until similar atrocities are repeated in the metropolis of the kingdom, at the very source of legislation, and under the very eye of a police supposed to be the most efficient in Europe? People talk, or rather used to talk, of some species of crime not being English—Alas! that England should now stand indelibly stained by guilt of so foul, so unnatural a blackness, that all other 'detested sins' which, when exposed, 'stood bare and naked, trembling at themselves,' compared with this, are blanched into the complexion of natural, perhaps generous impulses, culpable only in their misdirection and excess! It seems reserved for the British schools of anatomy to offer a premium for murder not prompted by passion, not provoked by injury, not justified even to the murderer by revenge, but premeditated with cold, diabolical, mercantile calculation, as to the price which will be given for the corpse of the victim.

The depravation of the actors of these crimes appears to us almost inexplicable. It has been said, that all are not men who bear the form of men; and the resurrectionist, in his horrid vocation, bears no alliance to humanity; 'the common damned shun his society;' but can we acquit of blood guiltiness, those who having authority to legislate on the subject, and knowing such practices to exist, try not every possible means, and we may almost say impossible ones, to prevent them? There existed formerly in Portugal an officer of state whose duty it was to ask pardon formally for every person condemned to death, whatever were the nature and number of his offences. It is recorded, that when the officer was interceding, as usual, in favour of a person condemned to die for his twentieth murder, the king refused the pardon asked, on the plea that the number of the crimes rendered the criminal an object unfit for mercy. 'He is as fit an object now,' replied the officer, as he was at first. He is only guilty of the first murder: your Majesty, by overlooking that, is responsible for all the others.'

The senseless clamour which was raised against Mr. Warburton's Bill, on account of the pain which it would cause to the feelings of a few paupers, provokes us to wish, that all those who excited it may be haunted with the anguish of that unutterable dread which led Mr. Hare to view the body of the murdered stranger boy, in the horrid expectation that it might be that of his lost son. In regard to the outrage on the feelings of the pauper, we suspect that, were a law to be enacted, giving the body of every pauper, not claimed by any relative, for dissection, it would have a very salutary effect

in thinning the workhouses of a number of paupers, who throw themselves on the parish as being too idle to work, and who would never think of entering a workhouse if they thought dissection was to be their fate after death.

We shall have occasion, in the progress of this work, to enter more fully into the important question of the great encouragement which is given to murder by the facility with which the corpse is disposed of to the hospitals and the dissecting-rooms; and therefore, for the present, we shall merely ask, whether a study carried on by means, which, setting the murders out of the question, deteriorate the moral sense, has prolonged life beyond the limits of human existence in the days of Galen and Hippocrates? Whether, if it have, a degree of science sufficient for general utility might not be obtained from those perfect representations in wax of the internal machinery of the human frame, such as are found on the Continent, and from bodies which might be legitimately obtained? And whether, if the answer be in the negative, the preservation of the perishable part of one being for a few days longer than it might otherwise enjoy or suffer, be not too dearly purchased by the depravation of the spirit which is to live for ever? Perish the science of prolonging life, if we are constrained to maintain it at such a cost!

From the day on which the Coroner's inquest terminated, to the 18th of November, Mr. Corder was most actively employed in obtaining that information which could trace the commission of the murder to the four men who stood charged with the crime; and, on the above day, they were brought to the Public Office, Bow Street, and placed at the bar, before Mr. Minshull, the presiding magistrate, who was assisted by Dr. Robinson and Mr. Mallard, county magistrates, and Mr. Swabey, late of Union Hall. The office was crowded to excess long before the examination commenced, and the greatest anxiety was exhibited to get a view of the prisoners, and hear the evidence produced against them. The bench was also crowded by gentlemen, many of whom were surgeons.

Mr. CORDER, who appeared on behalf of the Parish of St. Paul's, Covent-garden, said, he should, in the first instance, call evidence to show that the prisoners had not met in the manner they had described when before the Coroner's jury, and with this view he called

HENRY LOCKER, who deposed that on Friday, the 4th of November, instant, he was waiter at the Fortune of War public-house, in Giltspur-street. He knew the prisoners, who used to frequent that house. Bishop, May, and Williams called in between eleven and twelve o'clock on Friday morning, and had something to drink; they remained in the tap-room about an hour and a half, and then went away. They returned about three o'clock, and remained until it was dusk, when they went away again, and came back again at eight o'clock or past. They had with them a strange man, who appeared to be a hackney-coachman. They said they had had a ride, and went into the tap-room and had something to drink. Shortly after, the prisoner May came out of the tap-room and went to the bar. He had a handkerchief in his hand, which seemed to contain something. He poured some hot water on the handkerchief, and began to wipe its contents, which proved to be human teeth. Witness remarked that they seemed to be the teeth of a young person, and that they were worth something. May answered, that they were as good to him as two pounds. The prisoners and the other man soon after went away. On the following morning (Saturday), Bishop, Williams, and Shields called again, and had some beer to drink. Bishop asked what they should do for a hamper, and Williams said, there was one inside the railings of the hospital (Bartholomew's). The prisoner Shields went and fetched it, and all three went away.

Mr. MINSHULL asked the witness to describe May's dress when he first saw him.

WITNESS.—I do not exactly remember.

Prisoner MAY.—How can you tell the hour when you first saw me?

WITNESS.—Although I cannot speak to your dress, I am certain as to the hour.

The WITNESS, in reply to a question by Mr. Minshull, said, that when May was engaged in washing the teeth, he had on a dark-coloured smock-frock.

Mr. CORDER said, that as it was not intended on this examination to offer any evidence with respect to the exchange of clothes in Field-lane, it was not very material as to the dress of the prisoner. With respect to that circumstance, evidence would be produced on a future occasion.

JAMES SEAGROVE, the cabriolet driver, who gave evidence before the coroner, was again called forward. He stated, that on the Friday evening, about six o'clock, being at tea in a watering-house in the Old Bailey, he was called out to the prisoners Bishop and May. The latter asked him if he wanted a job, and added, 'I want you to carry a stiff un,' adding, 'we will stand a guinea for it.' Witness declined the job, and left the prisoners apparently making a bargain with a hackney-coachman.

Mr. MINSHULL asked the prisoners if they wished to put any questions to the witness.

MAY.—No: the man answers perfectly correct.

THOMAS TAVERNOR, the waterman at the stand in the Old Bailey, proved, that he was directed by two men to call out the last witness from the Watering-house: they said, they wanted to hire his cab. Witness, however, could not identify the man, as the night was dark.

Mr. MINSHULL asked, if the men were carrying anything, and whether the witness saw the coach in which they drove off?

The WITNESS replied, that the men were not carrying anything when he saw them, and he did not see in what manner they left the place, for he went away as soon as he had called the witness Seagrove.

GEORGE GISSING, a boy about fifteen, proved that he was the son of a publican, who lived in Birdcage-walk, Bethnal-green. On Friday evening, between six and seven o'clock, he was standing at his father's door, when he saw a yellow-bodied chariot stop at the corner of Nova Scotia-gardens. The prisoners, Bishop, May, and Williams, jumped out of it, and the two former went up Nova Scotia gardens; they were dressed in smock-frocks, and May had a pipe in his mouth. Williams, who had on a light fustian jacket, remained leaning against the fore-wheel of the chariot, in conversation with the coachman. Bishop and May returned in a short time, carrying a sack containing something heavy. May had the sack on his back, and Bishop was holding it up behind; the sack was placed in the chariot, and after the prisoners had taken their places, it drove off through Crabtree-row, in the direction of Shoreditch Church.

THOMAS TRADER, another boy about the same age as the last witness, gave similar evidence, having seen everything which Gissing had witnessed. Mrs. Cannell, who was also present, told witness that something strange was going forward, and she told him to go down the gardens and watch the motions of the two men (May and Bishop), but witness declined to do so.

ANN CANNELL corroborated the statement of the last witness, and added, that she saw two men jump out of the coach. They both wore dark smock-frocks, and one of them had a pipe in his mouth. (The witness was here directed to look well at the prisoners Bishop and May, and after doing so, she declared that she could not identify them as the two men whom she had so seen.) The last witness stood by, and she (witness) said to him, 'This looks strange; see where they are going so quick.' The lad replied, 'I am sure I won't go after them, for if I did, they would not mind giving me a topper.' The coachman never got off his box until the men returned, and this circumstance excited her suspicions the more.

JOHN CHAPMAN, having been sworn, stated that he was porter at Guy's Hospital. At seven o'clock on the evening of Friday, the 4th instant, the two prisoners, Bishop and May, drove to the Hospital in a hackney-coach or chariot. They came to his (witness') lodge, and he let them in. They had a sack with them, which the shorter man (Bishop) carried. Witness did not know what the sack contained: they went towards the dissecting-room.

By Dr. ROBINSON.—The sack appeared to contain something heavy. It is usual for coaches to draw up to the gate of the Hospital, and no questions are asked. I knew the persons of the men before, but did not know their names.

BISHOP.—Now, John, are you certain that it was I who carried the sack?

WITNESS.—Yes, I am.

MAY.—Why it was I who carried the sack, and not Bishop. It is a matter of no moment, but it only shows how careful men ought to be when on their oath.

JAMES DAVIS, the porter to the dissecting-room at Guy's Hospital, repeated the evidence which he gave before the Coroner, as to the body having been offered for sale to him, by Bishop and May, on the night of Friday; and after

he had declined to purchase it, Bishop requested him to take charge of it all night, which he did. Witness observed a human foot protruding from the sack, (a previous witness has sworn that it was the knee,) and from the size of the foot he concluded, that the subject was either a youth or a female. The body was removed from the Hospital on the following morning, James Weeks, the assistant porter, having delivered it to May and Bishop. Witness saw them both at the Hospital in the morning, in company with the prisoner Shields, and another man.

JAMES WEEKS, the person referred to, proved that he delivered the body to May and Bishop. When they were at the Hospital the previous night, May said, 'The fact is, the subject belongs to Bishop and not to me.' Witness was positive that when May and Bishop came for the body in the morning, the prisoners, Shields and Williams, accompanied them.

MAY.—When we were going to leave 'the thing,' did not Bishop say it belonged to him?

WITNESS.—No, not to my knowledge.

Mr. MINSHULL.—Had anything been said that you remember?

WITNESS.—Yes; May said, 'Don't let the subject go, unless I am here with Bishop.' Bishop said so likewise.

JAMES DAVIS recalled.—I don't recollect that May said, Don't let the body go; but some conversation having passed to that effect, the impression that it left upon my mind was, that the body was not to be removed from the Hospital, unless both prisoners were present.

JOHN APPLETON, porter to Mr. Grainger's Theatre of Anatomy, Webb-street, Borough, proved, that on Friday night, after May and Bishop had left Guy's, they came and asked if he wanted a subject. Witness answered in the negative, and they went away.

WILLIAM HILL, porter at the dissecting-room, King's College, repeated the evidence which he had previously given, and added, that after he had communicated with Mr. Partridge, and had offered Bishop nine guineas for the body, May, who appeared to be tipsy, said, they ought to have ten guineas. May then slipped aside, and Bishop, who appeared to be more

anxious to sell the body than May, said, 'I will bring it in for nine guineas; he (meaning May) is tipsy.' The witness then proceeded to state, that on the same afternoon, the four prisoners brought the body of the deceased in a hamper to the College, and after describing the appearances which it presented, and stating the suspicions which were excited in consequence, added, that Bishop wanted Mr. Partridge to give him whatever money he had in his purse, and said, they would call again for the remainder. While they were waiting to be paid, Bishop wished witness to give him but eight guineas in the presence of Williams, saying, that he wanted the other guinea for himself, and he promised witness half-a-crown for himself if he would do so.

BISHOP.—Yes, you get many a guinea in that way.

Mr. MINSHULL.—Is it customary for persons in your situation to receive such presents?

WITNESS.—Yes, sir, sometimes.

Mr. MINSHULL.—Did you perceive any marks of dirt upon the body, as if it had been scraped with a dirty sleeve, or smeared over with a hand?

WITNESS.—I did perceive such marks.

Mr. SWABEY.—Did they appear to have been made by design or accident?

The witness could not say; but in answer to a question by Mr. Corder, he gave it as his clear opinion, that the body had neither been laid out nor buried.

BISHOP.—It is impossible for you to tell that. You know nothing about raising bodies. Is there not a difference in soil? Besides could not clay have got into the coffin?

The witness went on to state, that when the body was taken from the sack, at the College, the left arm was doubled up. The hand also was clenched.

MAY.—When the body was laid on the floor, was the arm doubled up?

WITNESS.—Yes, and I unclenched the fingers myself, and observed that the limbs were very stiff.

BISHOP (smiling). The fact is, you are not in the habit of seeing fresh subjects, and you don't know anything about it. (Here Bishop and May both laughed.)

Mr. THOMAS suggested to the prisoners, that they had better be quiet, as they were doing themselves no good.

BISHOP.—I can do myself no harm at all events.

Mr. BEAMAN, the surgeon, who had minutely examined the body after death, was again called forward and re-sworn. He repeated his former opinion, founded on the *post mortem* examination of the body, that death had been produced by extravasation of blood in the spinal canal, an effect, which must have been produced by violence on the back of the neck. The violence might have been produced by a blow from a round stick or bludgeon, or even by the wrist of a strong man's arm. It was barely possible, certainly, that the injury might have been occasioned by a fall down stairs.

Mr. PARTRIDGE, demonstrator of anatomy at the King's College, agreed with Mr. Beaman in every particular, in regard to the causes which had produced death.

Mr. MINSHULL.—Is it your opinion, then, that the boy came to his death by violence—in short, that he was murdered?

Mr. PARTRIDGE.—I certainly do believe that the death of the deceased was effected by violence.

Mr. MINSHULL.—Is it from the state of the neck merely, or from other appearances, that you have come to that conclusion?

Mr. PARTRIDGE.—I believe the immediate cause of death to have been a blow on the back of the neck by some blunt instrument, but I judge of the violence which must have been used, from other circumstances, namely, the freshness of the body, the rigidity of the limbs, the swollen state of the face, the bloodshot eyes, and their perfect freshness.

In answer to a question by Mr. Swabey, the witness said that the superficial dirt on the thighs, belly and chest of the deceased, might have been done

designedly or by accident. Trailing the body along a dirty floor would leave such marks.

Mr. MINSHULL.—Could the deceased have committed suicide?

WITNESS.—It is just barely possible that a person might inflict a blow on the back of his own neck which would cause death. It was, however, exceedingly improbable, and almost impossible.

Mr. BEAMAN said, he could not see how suicide could be at all effected in that way. A man might certainly break the back part of his neck, by flinging himself from a height on a bar, but he could not, in his opinion, inflict the same injury on himself, by means of a stick or bludgeon.

Mr. THOMAS MILLS, a dentist, residing on Newington Causeway, having been sworn, stated, that on Saturday morning, the 5th of November last, the prisoner May came to his shop and offered him a set of teeth for sale, for which he asked a guinea. Witness observed that one of the front teeth was chipped, and said that it did not belong to the set: upon which May said, 'Upon my soul to God, they all belonged to one head, and that not long since, and that the body had never been buried.' He ultimately agreed to take twelve shillings for the teeth.

Mr. CORDER asked the witness, if he had not observed something peculiar about the teeth.

WITNESS.—Yes, portions of the gums were adhering to them, and part of the jaw-bone. There could be no doubt, but that the teeth had been forcibly removed immediately after death. I said to May, that from appearance the teeth belonged to a female. His reply was, 'the fact is they belonged to a lad about 14 or 15 years of age.'

While this witness was giving his evidence, the prisoner May appeared for the first time to change countenance, and lose that hardness of nerve, which distinguished him throughout the whole of the proceedings. He stared at the witness at first rather wildly, and compressed his lips while listening attentively to the evidence, and as soon as it was concluded, he endeavoured to resume his composure, and forced a laugh; but almost in a moment afterwards, his countenance underwent another change, and he muttered to himself, as he looked over to the witness, 'The b——y rascal.'

He then asked the witness, if he was quite sure of the exact words he had used, when he brought him the teeth, with regard to the body not having been buried.

WITNESS.—You said that the body had never been buried.

Mr. THOMAS, the superintendent of the police, was then examined, and repeated the evidence he had given before the coroner. He went to the house of the last witness, who gave him the twelve teeth now produced.

The hamper and sack which contained the body were here produced, the latter had stains of blood upon it.

HIGGINS, a police constable of the F division, produced a heavy iron instrument, one end of which was bent and nearly as sharp as a chisel, and the other thick and round. He also produced a brad-awl clotted with blood. A question arose as to the use to which the latter had been applied, when May at once said, 'I took the teeth out with that brad-awl.'

The other instrument was then handed to Mr. Partridge, who gave it as his opinion, that the sharp end might have inflicted the wound on the forehead of the deceased, and that the thick rounded end was likely to have inflicted the blow on the back of the neck, and which, in his opinion, was the immediate cause of death.

The witness Higgins said, that he found these instruments, together with a rope with a noose at the end of it (which he produced) at the house of Bishop. He also found the pair of breeches now produced, belonging to the prisoner, and he discovered the marks of blood upon them. He saw some fresh blood on the floor of the room, where he found the breeches.

MAY explained that the blood was that of a jackdaw, which cut its leg, and afterwards hopped upon the breeches.

Mr. THOMAS said, that, in fairness, he must say, that as the breeches were not found until a week after the prisoner was taken into custody, he thought that the blood was entirely too fresh to connect it with the murder.

KIRKMAN, a police constable, proved that he was in plain clothes, in the station-house at Covent Garden, on the evening of the 10th inst., when the

prisoners were brought there, for the purpose of appearing before the inquest, which was then sitting. He observed the prisoner Bishop reading a bill pasted upon the wall, announcing that a boy had been murdered, and was then lying for examination at the bone-house. As soon as he had read the bill, Bishop observed to May, in a low tone of voice, 'It was the blood that sold us.' He then got up and read the bill again, repeating the words 'Marks of violence on the body;' then turning to May again, he said, 'There were no marks of violence on the body, but only a few breaks in the skin;' and as he said so, he sat down, smiling.

BISHOP admitted that he had read the bill over, but denied the expressions imputed to him.

MARGARET KING, a decent-looking woman, in an advanced state of pregnancy, was then called forward and sworn. She stated, that on Thursday fortnight, about one o'clock, she was standing with her children in Birdcage Walk, near Nova Scotia Gardens, when she saw an Italian boy, whom she had frequently seen before in the neighbourhood of Bethnal Green, standing at the corner of Nova Scotia Gardens, with a little box slung before him. He stood about thirty yards from where she was standing. She never saw that boy since. He had his back to her, but still she was sure he was the same boy whom she had seen so frequently before. He had either a box or a cage with him.

Mr. MINSHULL.—Are you sure it was on a Thursday you saw him where you have just described?

WITNESS.—I am sure it was on a Thursday, because it was my washing day. It was on the Thursday before the 5th of November. I heard some gentlemen speaking about the awful murder that had been committed on the body of a poor Italian boy, and I immediately said, 'Dear me, I saw a boy such as is described, standing at the end of Nova Scotia Gardens a short time ago.'

Mrs. PARRAGALLI, who had been before examined, was again called forward, to prove that she knew the deceased, and had frequently seen him about the streets carrying a cage, with white mice in it. On the 1st inst. she saw him in Oxford-street, and had since seen his body at the station-house.

BISHOP.—Are you quite certain that the boy you saw in Oxford-street was the same boy whose body lay at the station-house?

WITNESS.—I have no doubt of it. He used to carry about his little cage, suspended in front by a string across his shoulders. At a distance, the cage might appear like a box.

Mr. CORDER was about to put in evidence the statements which the prisoners had severally made before the Coroner, when

Mr. MINSHULL said, that it would perhaps be better to defer receiving that evidence at present.

Mr. MINSHULL then, addressing the prisoners, told them that they would be remanded to that day week, when they would again be brought forward for further examination. He deemed it right to apprise them that other evidence would be produced against them, and said, if they wished to say anything, he was willing to hear them.

The prisoners declined saying anything, and were removed from the bar to the lock-up room at the back of the office, strongly guarded, and in custody of Dodd, the jailer.

The wife of Bishop, and Rhoda Head, alias Williams, wife of the prisoner Williams, were then brought forward, and remanded until the following Tuesday. Mrs. Bishop had been the wife of Bishop's father by a second marriage; so that his wife is also his mother-in-law. Rhoda Williams alias Head is Bishop's sister.

When the prisoners left Bow-street in the prison van, they were assailed by the groans of a large concourse of persons, who had been waiting for several hours to see them.

On the evening of the same day that the prisoners had been examined at Bow-street, an Italian, named Augustine Bruen, or Brin, the master of the ill-fated boy, arrived in town from Birmingham, with the view of identifying the body, for which purpose it was disinterred early on Saturday morning, the 19th. Although it was, of course, difficult to swear positively to a body which had undergone the operations of the surgeons, and was partially decomposed, the master appeared to entertain no doubt of its being

the remains of the boy whom he had brought from Sardinia, and whose name, he said, was Carlo Ferrair, or Ferrari. He spoke positively to the colour of the hair and eyes, and also as to the height of the body, which particulars corresponded exactly with the description of the boy, who had left his service about a year ago, and had since been wandering about town, exhibiting his cage of white mice. The master having satisfied himself as to the identity of the body, it was once more interred.

We understand that this Bruen, or Brin, is the master of a juvenile crew of poor, ragged, half-starved little urchins, who are brought to this country as matters of speculation; and the following curious particulars connected with this tribe of travelling mendicants to which Carlo Ferrari belonged, will, we have no doubt, prove interesting to our readers.

The haunts of these unfortunate beings are in Vine-street, Saffron Hill, Bleeding-heart Yard on Holborn Hill, Coal Yard in Drury Lane, and in the purlieus of Shoreditch. Whole houses are occupied by these wretched boys, who sleep eight or nine in a bed. Each boy's monkey is chained near him every night on going to rest, and the other curiosities are placed in situations appointed to the owners; so that, on starting out in the morning, each boy takes his own companion. On the ground floors reside the men, some Italian and some English, to whom the monkeys, &c., really belong; and they provide each boy with lodging at fourpence a night, with a basin of gruel in the morning, upon starting on their peregrinations, having first paid the master for the use of whatever curiosity they may take with them to exhibit. The following are the charges made by the proprietors upon the juvenile crew.

For a porcupine (very novel, there being only two) and an organ, 4s. per day, being 2s. 6d. for the porcupine, and 1s. 6d. for the organ.

For a monkey (undressed), 2s. per day.

For a monkey in uniform, 3s. per day.

For a box of white mice, 1s. 6d. per day.

For a tortoise, 1s. 6d. per day.

For a dog and monkey (the latter may be frequently seen in the street riding on the dog's back), 3s. per day.

For dancing dogs, four in number, including dresses, spinning-wheel, pipe and tabor, &c., 5s. per day.

For a box of wax figures of the Siamese twins, 2s. per day.

For an organ with figures waltzing, 3s. 6d. per day.

Some of these boys, by their artlessness of manner and gesticulations, it is said, obtain six or seven shillings a day, and some more. One of them being asked, what was the largest sum he ever received in one day, replied, fifteen shillings, which he accounted for in the following manner:—One day he was ambulating about the Marine Parade, at Brighton, with his dog and monkey on his back, when a gentleman offered him fifteen shillings to allow him to throw a stone into the sea for the dog to fetch. The boy consented, the stone was thrown, and away jumped the dog with the monkey into the sea; the monkey fastened tight round the dogs neck, and both reaching the beach in safety, the boy received the premium.

To return to our melancholy subject. It having been intimated to Mr. Minshull, that it would be advisable that the premises occupied by the prisoner Bishop, in Nova Scotia Gardens, Bethnal Green, should be strictly searched, and the garden ground dug up, Mr. Thomas, and some of his constables, together with Mr. Corder and Mr. Cribb, who was foreman of the coroner's jury, proceeded to the spot on Saturday morning, the day after the prisoners had been examined in Bow-street, when a strict search was commenced, first in the house, even the tiles of which were examined, and next in the privy, which is situate in the garden, and is detached from the dwelling. After some delay and much labour, several pieces of human flesh were raised from the soil, and also the scalp of a head, which was evidently that of a female, from the profusion of dark brown hair which was found attached to it. It was supposed that the body to which these discovered portions had belonged, was a subject stolen from a churchyard, and afterwards cut up, in order to dispose of the limbs and other parts separately for the purpose of dissection; a practice which, we understand, is not unusual with those who follow the trade of body-snatching, and who often obtain as high a price for a muscular and well-formed leg or arm as for an

ordinary body. Having made this discovery, Mr. Thomas directed his men to dig up the garden, in the hope that something more might be discovered connected with the horrible traffic in which the prisoners had been engaged, and possibly tending to throw additional light upon the case which is more immediately the subject of inquiry. Two constables were accordingly set to work with spades and other implements, and having dug up nearly the whole of the garden, without finding any thing of importance, that portion of it which formed a path from the house to the further end next attracted attention, from the circumstance that the clay, although much trodden, appeared to have been heaped together for some other object than merely the forming of a pathway. The two constables were then directed to dig up this portion of the garden; and an instrument called a searcher, having been made use of for the purpose, in consequence of the hardness of the soil, a child's blue jacket was dug up, and a pair of black cloth trowsers, corresponding in size, followed almost immediately after. The brace button-holes of the latter were torn, as if force had been used in pulling the trowsers from the body. Two pieces of riband, used as braces, were attached to the brace-buttons. The pattern of the riband is a white ground with red stripes. The jacket, which appeared to have been made for a boy of very tender age, and which was probably his first, was made of good blue cloth, with a double row of covered buttons on the left side. A shirt, corresponding in size with these clothes, was discovered. Having dug further, a coarse blue coat was next discovered, and also a pair of trowsers, made of coarse grey cloth, together with a striped waistcoat and an old shirt. These articles were apparently made to fit a boy of about fourteen or fifteen years of age. The trowsers were patched on the knees, and stains of blood were discovered on the waistcoat. The coat was of a peculiar cut, and resembled those worn by charity school-boys. After the discovery of these clothes, an application was made to Mrs. King, who, it will be remembered, had seen an Italian boy, with a cage slung before him, on the morning of Thursday, the 3d instant, in Nova Scotia Gardens; and her description of the coat which the boy wore agrees both in colour and cut with the one which was thus discovered.

These facts, with others that came to light in the course of the same day (Saturday), induced Mr. Thomas, and Messrs. Corder and Cribb, to wait on Mr. Minshull, at Bow-street Office, on Saturday night, for the purpose of requesting that, in consequence of the additional evidence received, a

special examination of the prisoners should take place at as early a period as possible.

Mr. MINSHULL, to whom the additional evidence was detailed, considered it of so much importance, that he expressed his willingness to send for the prisoners that night, in order to proceed with the investigation at once, or, if necessary for the ends of justice, he was willing to devote Sunday for that object. It was subsequently arranged that the examination of the prisoners should take place on Monday at twelve o'clock.

In consequence of the advanced state of pregnancy of Mrs. King, who, it will be seen, is a material witness in the case, it was at first supposed that the trial of the prisoners must have been deferred until after the Old Bailey Sessions next ensuing. To obviate this difficulty, Mr. Corder applied to Mr. Minshull, to have the deposition of Mrs. King taken specially, and certified, in which case, he said, it was ruled by the judges, that it might be admitted as evidence on the trial of the prisoners.

Mr. MINSHULL at once agreed in the propriety of the application, and gave directions accordingly.

Consistently with this arrangement, Bishop, May, Williams, and Shields, were brought forward on Monday the 21st, for the purpose of undergoing a special re-examination.

Mr. Minshull presided on the bench, and was assisted by Mr. Halls, Dr. Robinson, and Mr. Mallard. Lord Montford and other county magistrates were also present, and the office was crowded in every part. Several hundred persons were assembled in Bow-street, to learn the result of the examination and catch a sight of the prisoners.

Mr. MINSHULL directed Dodd, the jailer, to place the prisoners at the bar, and in a few minutes afterwards they entered the dock, and answered to their names. Bishop appeared to be considerably depressed in spirits, and as the examination proceeded and new facts came out against him, his countenance fell, and his eyes, which are full and prominent, assumed a glassy appearance, as he listened apparently with intense anxiety to the witnesses. The prisoner May appeared also to pay particular attention to the evidence, and it was observed, that during the examination, he displayed,

except on one occasion, none of that indifference and levity which marked his former conduct. Williams, who has evidently less nerve than either of his companions, betrayed a restless anxiety as the case proceeded, and on several occasions his colour changed, and his lips grew white and dry. As to the old man, Shields, who was placed rather apart from the others, and against whom no other evidence has yet been produced, except the fact of his having carried the body in a hamper to the King's College, with a full knowledge of its contents, he stood upright in the dock, in a sort of half stupor, without once changing his position during the three hours and a half which were occupied in the examination.

As soon as the prisoners were ranged at the bar,

Mr. CORDER said, that it would be merely requisite at present to produce such further testimony as would be necessary to fill up the links in the chain of evidence already brought forward.

JOHN ATKINSON was then sworn, and identified the hamper.

EDWARD CHANDLER deposed, that he was waiter at the King of Denmark watering-house, Old Bailey. On the evening of Friday, the 4th of November, he saw the prisoners May and Bishop, both of whom he had previously known, at that house. They came there about five o'clock, and witness served them with some tea. The witness Seagrove was there at the same time. The prisoners called for half a pint of gin, with which he (witness) served them. He drank a glass of the gin himself, and his fellow servant had another. May also drank a glass of the gin, and chucked a glass into Bishop's tea.

Mr. CORDER.—Did Bishop make any observation when the glass of gin was put into his tea by May?

WITNESS.—Yes, Bishop said to May when he did this, 'Are you going to hocus me, or burke me?'

Mr. MINSHULL asked the witness if he knew the meaning of the word 'hocus?' (This word has been erroneously spelt as *locus*.)

Mr. HARMER, who attended this and the former examination, to assist the prosecution, explained that the word was well known, in cant language, to

describe the act of putting a man in a state of stupidity.

WITNESS, upon being questioned more particularly as to which of the prisoners, May or Bishop, used the phrase which he had mentioned, ascribed it first to one and then to the other, upon which May and Bishop both laughed. The witness, however, who appeared somewhat confused, said that the words were used by Bishop when May poured the gin into his cup.

HENRY MANN, driver of the hackney-coach No. 985, was the next witness examined. He stated that he was in Bridge-street, Blackfriars, on the evening of the 4th of November, between the hours of five and six o'clock, when he was applied to by the prisoner May, to take up a fare in Bridge-street, and go to Bethnal-green.

Mr. MINSHULL.—Can you swear it was the prisoner May who applied to you? Look round and see if you can point him out.

WITNESS.—I know it was May, for I knew him before. There was another man in company at the time, but I cannot say it was one of the other prisoners.

Mr. MINSHULL.—Did they tell you where you were to go from Bethnal-green?

WITNESS.—No; they did not tell me where I was to go. I declined to go with them.

Dr. ROBINSON.—What was your reason for declining the job?

WITNESS.—My horses had not finished their corn, and I had not taken my tea. Besides, I had another reason—I knew what May was, and that was principally the cause of my declining to go with him.

MARGARET KING, who had on a former examination stated, that she saw an Italian boy standing close to Bishop's house, on Thursday the 3d instant, was again called forward, and her evidence having been read over,

Mr. MINSHULL asked her if she recollected how the boy was dressed, whom she had seen on the day in question? She replied, that she recollected no part of his dress, except that he wore a dark blue coat or jacket. [Another

female witness on the trial swore that it was a dark green.—Ed.] The boy's dress appeared to be shabby, such as other boys wore who went about the streets.

WITNESS did not remember whether the boy had a cap or a hat on.

Mr. MINSHULL then addressed the prisoners, saying, he had told them before, and now repeated, that they might, if they thought fit, put what questions they pleased to the several witnesses who appeared against them.

MAY said he was aware of that. The prisoners then declined to put any questions to Mrs. King.

JOHN KING, son of the last witness, stated, that he remembered his mother's washing-day before the last; it was on a Thursday. I saw an Italian boy standing at the corner of Nova Scotia Gardens, facing Birdcage Walk; I was looking out at our loft door at the time, and I asked my mother to let me see what the boy had in his cage or box. She refused to let me go and see.

Mr. CORDER.—Can you describe the way in which the Italian boy stood?

WITNESS.—He stood with his right foot turned out, and, I think, his arms were resting on the box or cage, which he carried before him. He wore a brown hairy cap.

Mr. CORDER.—Have you any recollection what sort of leaf or shade the cap had got?

WITNESS.—It was lined with green.

Mr. MINSHULL.—What time would it take you to go from where the boy was standing to Bishop's house?

WITNESS.—It would not take me more than half a minute.

Mr. MINSHULL.—Had you ever seen the boy before?

WITNESS.—I think I have seen him about before; he used to carry a doll with two heads in a glass case. I saw him about a month ago. He looked like the same boy. I have not seen him since the Thursday I saw him in the gardens;

he was then standing to see if any one would come and see what he had to show. I did not see him go away.

MARGARET KING being sworn, said, that her mother washed on a Thursday, but she was not sure whether it was on Thursday fortnight or the Wednesday that she saw the Italian boy in Nova Scotia Gardens. She could not describe his clothes, but remembered that he wore a brown hairy cap. She had seen the boy before that day; he was standing opposite Birdcage Walk, and had a box or cage slung over his neck by a sling. The cap which he had on was brown, hairy, and rough. She did not perceive how the shade of it was lined, because the boy had his back towards her. She never saw him since that day.

JOSEPH HIGGINS, a police constable of the F division, No. 35, was then sworn, and his former evidence having been read over, he stated in addition, that on Saturday last Mr. Thomas directed James Waddy and him to proceed to Bishop's residence, in Nova Scotia Gardens, for the purpose of digging up the garden. They went accordingly, and having tried the ground with an iron spit, it struck against some spongy substance in the earth, on the west side of the garden, and at a distance of about five yards from the door of the dwelling-house. They dug up the earth, and found a jacket, a pair of trowsers, and a little boy's shirt. Part of the suspenders, which were composed of yellow calico, were attached to the trowsers, some of the button-holes of which were broken. About a yard farther, the iron rod again struck upon something soft, which proved to be a blue jacket, or short coat, a pair of grey trowsers, and a striped waistcoat.

Mr. CORDER.—Did you perceive anything particular on the waistcoat?

WITNESS.—I perceived marks of blood on the collar, both inside and outside. I found in the pocket of the waistcoat a piece of a small-tooth comb; and I also found an old shirt, which was torn down the centre.

Mr. HARMER.—You swear that the shirt was torn, as it now appears, when you dug it up?

WITNESS.—I do.

Mr. MINSHULL.—Look again at the waistcoat, and say, whether those marks of blood were on the neck part when you took it from the ground?

WITNESS.—They were. They had more the appearance of blood when I took the waistcoat from the ground than now. I took particular notice of the marks; the colour appeared to be deeper, and the blood more fresh than now.

Mr. HALLS, having examined the waistcoat, observed, that it appeared to have been made for a grown-up person, and it had been taken in at the back, in order to make it fit to whosoever it last belonged.

Mr. THOMAS observed, that the waistcoat had been taken in with coarse worsted, and in a very rough manner.

Mr. MINSHULL said, that the fact of the waistcoat having been made for a man was important, and it might be the means of bringing forward the person to whom it originally belonged.

JAMES WADDY was then sworn, and stated, that he was a gardener and labourer, and assisted the last witness in digging up the garden. They began at twelve o'clock on Saturday, and kept on until four, when they came to a narrow border, close to the palings, and about five yards from the door of the house. The witness here identified the child's dress which had been first discovered.

Dr. ROBINSON.—How deep were they buried in the ground?

WITNESS.—About a foot deep. Having found these things, the last witness tried the ground again, and dug up the grey trowsers, waistcoat, and shirt, which have been produced. They were made into a bundle, and were wrapped up in the grey trowsers.

Mr. CORDER.—Had you any particular reason for trying the part of the ground where the articles were found?

WITNESS.—Yes; our suspicions were raised in consequence of seeing some ashes spread over the place, and also on perceiving that the ground was loose.

Mr. MINSHULL to the prisoners.—Have you any questions to ask either of the last witnesses?

BISHOP.—Nothing particular now.

Mr. THOMAS was the next witness examined. He stated that he went yesterday (Sunday) to Bishop's house, for the purpose of making a more rigid search. On examining the front parlour, he found among a heap of old clothes and dirty linen, the cap which he now produced.

Mr. HALLS.—In what part of the room did you find this cap?

Mr. THOMAS.—In a corner, where there was a heap of soiled linen and children's dresses.

Mrs. KING was recalled, and the blue coat last found submitted to her view.

Mr. MINSHULL.—Was that such a coat as the Italian boy had on, whom you saw in Nova Scotia gardens, on the day you have already mentioned?

WITNESS.—The coat is to all appearance exactly like the coat which the boy had on, but there is no mark about it to enable me to swear positively that it is the same coat.

Mr. MINSHULL.—You are not called upon to swear so positively to it, but only to the best of your knowledge and belief.

WITNESS.—All I can say is, that the coat is exactly like, as far as regards colour, size, and shape, and it has every appearance of the coat which the boy had on, when I saw him on Thursday.

JOHN KING, son of the last witness, was then recalled, and the fur cap produced by Mr. Thomas, having been placed in his hands, he was asked if it was like the one which the Italian boy had on, whom he saw near Bishop's house.

WITNESS.—It looks exactly like the cap which the Italian boy had on.

MARGARET KING, sister to the last witness, having also examined the cap, gave precisely similar testimony.

Mr. CORDER sworn and examined. I was present at the examination of the body of the deceased, at 3 o'clock in the afternoon of Saturday last, and I feel quite sure that the body so disinterred was that of the Italian boy, upon which a coroner's inquest had been held: this body was shown on Saturday in my presence to the witness Brun.

AUGUSTINE BRUN was then called forward, and Joseph Parragalli was sworn to interpret his evidence truly. He stated that he knew a boy named Carlo Ferrair or Ferrari, and that he brought him to this country two years ago, from Piedmont. He was a Savoyard. Witness took him from his parents. His father's name was Joseph Ferrari. Witness had the boy for nine or ten months, and then bound him over to another person for two years and one month. The last time the witness saw the boy alive, was about fifteen months ago. This was after he had been bound, and he then went with his new master towards Bristol, and witness left town in another direction. The boy, who was about fifteen, lodged about that time at the house of Mr. Elliott, No. 2, Charles-street, Drury-lane. Witness saw the dead body of a boy on Saturday, *but he could not identify the face*. The hair, colour of the eyes, and also the size of the body, corresponded with the description of the boy whom he had named. The *tout ensemble* agreed.

Mr. MINSHULL.—Ask the witness, whether he can swear, to the best of his knowledge and belief, that the body which he saw was that of Carlo Ferrari?

The interpreter having put the question, the witness replied, that 'The features were so disfigured by decay, that *he could not swear that the face was the same*.'

Mr. THOMAS desired the interpreter to ask, whether the witness remembered any warts on the left hand of the boy, Carlo Ferrari.

The interpreter answered, that 'The marks of identity on the hand were also obliterated by the green colour which it had assumed.'

Mr. CORDER said, that although the witness had properly given his evidence with so much caution, he appeared to be satisfied in his own mind of the identity of the body, for almost ever since he saw it he had been crying.

JOSEPH PARRAGALLI, the interpreter, was then sworn, and stated, that he remembered a boy named Carlo Ferrari, who lived with his master about eighteen months ago, at No. 2, Charles-street, Drury-lane. Witness examined the body of the deceased before the inquest took place, and was quite positive that it was the boy, Carlo Ferrari, whom he had so known. Witness saw him alive in the Quadrant, about twenty yards from the County

Fire Office, about a month or five weeks ago. It was a very wet day, and the poor boy looked cold and miserable. He had his cage suspended from his neck. Witness had seen him about a week before in Portland-place, and spoke to him then. He could not, however, describe the boy's dress on either occasion, which he accounted for by saying, he was too much occupied with his own business to observe it. The box which the boy used to carry was divided into a cage, which used to turn round with the mice in it, and they slept in the box part.

Dr. ROBINSON.—What opportunity had you for taking such particular notice of the boy, as to be able to identify him after death?

WITNESS.—I was present when the boy was bound over by the last witness to his new master, and had, besides, other opportunities of knowing the boy, for I was constantly at the house of his master. [It will be remembered, that when before the coroner, the Parragallis positively depose, that they do not know the name of the boy whom they saw in the Quadrant, and in Oxford-street. By what means they subsequently and so suddenly attained to the knowledge of it, so as to be able positively to swear, that the boy whom they saw in the Quadrant was an Italian, whose name they knew to be Carlo Ferrari, appears rather enigmatical, and is one of those contradictory circumstances, by which this most extraordinary case is distinguished.—Ed.]

In answer to another question, the witness gave it as his opinion, that the fur of the cap produced was *English*, but that the leaf was of *French* manufacture. When the boy first came to this country, he wore a cap, the leaf of which was similar to that of the cap now produced.

The evidence having arrived at this stage, Mr. CORDER said it was not intended to proceed further in the case that day.

Mr. MINSHULL then asked the prisoners if they wished to say anything.

BISHOP shook his head, saying, he had nothing to say then. The other prisoners also declined saying anything.

They were then about to be removed from the bar, when Mr. Thomas begged leave, before the prisoners were remanded, to request that Bishop

and Williams might be placed at the bar alone, as he meant to charge them with another murder.

Mr. MINSHULL.—Is it your wish, Mr. Thomas, that the other two prisoners should be removed from the bar before you make your charge?

Mr. THOMAS.—I am willing to make my charge in the presence of all four; but I have no wish that May and Shields should remain.

Mr. MINSHULL then directed Dodd, the jailer, to remove May and Shields, and leave Bishop and Williams at the bar.

Mr. THOMAS was then sworn, and stated, that he felt it his duty, as a public officer, to charge John Bishop and James Williams, alias Head, with the murder of another boy, whose name, for the present, was unknown. He was in possession of some evidence at present, and expected much more.

Mr. BURNABY, the clerk, asked Mr. Thomas, if he meant to produce any evidence now before the magistrates, in support of the charge against the prisoners at the bar?

Mr. THOMAS replied in the negative, and said, he meant to charge the prisoners generally for the present, reserving the evidence which he had now in his possession, and that which he expected to receive, for a future opportunity.

Mr. MINSHULL observed, that Mr. Thomas acted very properly, and directed the charge to be taken in general terms, as he wished it. The charge having been written down accordingly,

Mr. MINSHULL asked the prisoners if they wished to say anything touching this charge.

BISHOP answered, 'Nothing.'

Mr. MINSHULL then informed the prisoners that they would be brought forward for re-examination on this and the other charge, on the following Friday.

The prisoners were then removed in custody, strongly guarded.

On the day following the above examination, Mr. Corder applied to Mr. Minshull for the purpose of obtaining an order to liberate Sarah Bishop and Rhoda Head, alias Williams, who had been in custody for some days, charged with being accessories after the fact in the murder of the Italian boy. Mr. Corder observed, that as yet there was no evidence whatever against either of the women, and as they might be wanted by their husbands to procure them the means of defence, should their trial come on at the ensuing Old Bailey sessions, he considered that it would be but an act of humanity to release them from custody, particularly as there was no evidence to warrant their detention.

Mr. BURNABY, the clerk, said, that Mr. Thomas, upon whose charge the prisoners were detained, was desirous that they should not be liberated until after the trial; and as facts might arise between this and the sessions tending to fix the women with a guilty knowledge of the murder, it would, perhaps, be the better way to detain them for the present.

Mr. MINSHULL agreed in the propriety of detaining the female prisoners, at least until Friday next, when their husbands would undergo another examination. Besides, where were they to go if they were now liberated? The police were in possession of the house in which they had resided, and would, no doubt, retain it as long as there was any chance of procuring additional evidence.

The female prisoners, who had been brought from prison for the purpose of undergoing an examination, were then ordered to be placed at the bar; and on their appearance there,

Mr. MINSHULL told them, that he was in hopes he might have discharged them; but from what had been suggested, he felt it his duty to retain them until Friday, when they would be again brought forward.

The prisoners were then conveyed from the bar.

Two of Bishop's children were taken from the workhouse, where they had been placed on the apprehension of their mother, and lodged in the station house at Covent Garden, with a view to their giving evidence in the case, one of them, a little boy, having told another boy, before the murder was discovered, that he had some nice little white mice at home, and that his

father had broken up their cage to light the fire. From the tender age of the children, however, it was determined not to make witnesses of them; and they were accordingly sent back to the workhouse at Bethnal Green.

When Higgins, the police constable, was engaged in digging up the garden-ground on Saturday, Bishop's eldest son, a boy about twelve years old, was present; and when the officer looked suspiciously towards the raised pathway, beneath which, it will be remembered, the clothes were discovered, the little fellow told him to be cautious how he dug there, as the cesspool was under that part of the ground; and if he (Higgins) attempted to remove the earth, he would be sure to fall into it. This fact which was stated by the constable would lead to the belief that the child was aware of the clothes having been buried where they were subsequently found.

It is not improbable that the concealment of the articles took place immediately after Bishop and his associates were taken into custody.

It now became a subject of serious deliberation whether the case, as it now stood against the prisoners, with whatever evidence might arise in the interim, should be sent to the ensuing Old Bailey sessions, commencing the 1st of December, or whether it might not be advisable to await the issue of the second charge of murder which Mr. Thomas preferred against the prisoners, Bishop and Williams.

Mr. MINSHULL was in favour of keeping the case open for the reception of fresh evidence; and the Recorder of London waited upon Mr. Minshull to request that a case of such public importance might not be sent to the Old Bailey unless the evidence was as complete as circumstances would allow. The same anxiety was also, we understand, expressed at the Home Office.

The exertions of the police officers were now leading them to the discovery of another murder committed by the horrid wretches, Bishop and Williams; and which, perhaps, never would have been detected, but for the discovery of the murder of the Italian boy.

It will be remembered, that in consequence of the strict search which Mr. Thomas caused to be made at the residence of Bishop, a quantity of human flesh, together with the scalp of a woman's head, to which a considerable portion of long brown hair was attached, were found in the privy. It was at

first conjectured that these were portions of a subject which Bishop had procured from a churchyard, and that the limbs had been sold to the surgeons separately,—a practice by no means uncommon. Recent events, however, having raised a strong suspicion that the residence of Bishop has been the scene of more than one murder, Mr. Thomas, acting upon that impression, went yesterday (Wednesday 23rd) to Bishop's house, with the view of making a still further search, and appeared before Mr. Halls on the same day at Bow-street to communicate the result.

Mr. Thomas was accompanied by two females, mother and daughter, who lived in the neighbourhood of Bishop's house. The mother had stated to him, that about three weeks ago a daughter of hers had disappeared in the most sudden and mysterious manner, and under circumstances altogether unaccountable. She had taken tea with her mother and sister on the evening of her disappearance, and went out to execute some trifling errand. Her return was therefore expected every minute; but from that time to the present she had neither been seen nor heard of. There had been no previous quarrel to account for her absence; and her relatives were under the dreadful impression that she had been waylaid and murdered.

Mr. THOMAS added, that in consequence of his having made further discoveries that morning, in the house adjoining to Bishop's residence, the mother and sister of the missing young woman, who were now present, called upon him at the station-house, and upon showing them the hair which was previously found in the privy, they both of them declared it to be similar to that of the young woman, whose absence had given rise to such dreadful apprehensions.

Mr. THOMAS then called forward the mother and daughter, and asked the latter to describe her sister's hair. She replied, that it was of a dark brown colour, very long, and that it closely resembled her mother's hair.

Mr. THOMAS then drew the attention of Mr. Halls to the mother's hair, and observed, that it was exactly like the hair which had been found in the manner before described. He then added, from inquiries he had previously made, he was enabled to prove, that about the time when the young woman was first missed from her home, Bishop had sold two subjects, one of them the body of a young female, at Guy's Hospital. Having been engaged,

however, at the time he ascertained this fact, in the case of the Italian boy, he did not feel it necessary to make any particular inquiries respecting the two bodies he had mentioned, but he should now feel it his duty to cause such inquiries to be made.

Mr. HALLS observed, that the circumstances stated by Mr. Thomas had certainly a very suspicious appearance, and he told both mother and daughter, that they might rest assured that every means would be taken by Mr. Thomas to sift the matter to the utmost. The inquiry could not be in better hands.

Mr. THOMAS said it was not without good reason he had prayed for the detention of Bishop's wife and sister, for he considered it quite impossible that they could have been ignorant of what was passing in the house.

Mr. HALLS said he fully agreed in the propriety of detaining both women in custody, and he was quite sure that Mr. Minshull would not part with them until the latest moment that their detention might be necessary.

Mr. THOMAS then observed, that he had that morning deemed it expedient to examine the house immediately adjoining to that in which Bishop had lived, which had been empty for a considerable time, and until a week of Bishop's apprehension. The result was, that a woman's gown, shawl, a pair of stays, chemise, and a pair of stockings were discovered in the privy.

Mr. HALLS asked if the mother and daughter had seen the articles.

The mother replied, that she went to the place for the purpose of seeing them, in order to ascertain if they were her daughter's clothes, but she was not allowed a sight of them.

Mr. THOMAS said, he would furnish her with a written order to inspect the clothes, and at Mr. Halls' suggestion, he added, that he would send a constable with her, to ensure her and her daughter an immediate view of the articles.

Mr. HALLS then asked a question as to the situation of Bishop's house, observing, that he understood it lay in a very lonely situation.

Mr. THOMAS replied, that Bishop's house formed one of what he might almost call a colony of cottages, but although placed in the immediate neighbourhood of each other, they were each divided by a low wooden paling, enclosing a small space of garden ground, attached to the separate dwellings. Bishop and Williams resided together in the same house, for the last eighteen months, and as the house contained but three rooms altogether, and those were very small, he was quite convinced that all who were inmates in the house must have been aware of what was passing in it. Besides, as he had before stated, Bishop and Williams had the use of the adjoining cottage, and as the discovery he had made that morning proved they had taken advantage of the circumstance, in order more effectually to carry on their abominable traffic, there was no doubt of their having chosen this very situation expressly for the purpose.

Mr. HALLS asked if the garden adjoining Bishop's had been dug up?

Mr. THOMAS replied, that he had left some of his men engaged in turning up the ground; but Bishop and Williams might have had access to nearly fifty enclosed gardens besides that, as they had only to step across some low palings to get from one to the other.

Mr. HALLS observed, that it would be well to search the gardens of some of the other cottages, and he supposed the persons who owned that ground would have no objection.

Mr. THOMAS replied, that it would be an easy matter to do so, for the poor people who lived in the adjoining cottages were so panic-struck with the recent discoveries, that many of them had left, and others were following the example.

Mr. THOMAS soon after retired, for the purpose of sending a constable with the mother and sister of the girl who is missing, in order that they might obtain an immediate inspection of the articles of clothing which were found in the manner described.

The clothes were accordingly inspected by the parties, who at once declared that they were not the same which the missing girl had on when she disappeared. The following is an accurate description of the articles found, and their appearance justifies the belief, that to whatever unfortunate

woman they belonged, they had been violently torn from her body, either immediately after death or in a struggle with her murderers. A camlet cloak, a plaid gown torn up in front, a flannel petticoat also torn up in front, with two large patches of blood near the top, a shift torn up in front, a pair of stays cut up in front in a zigzag manner, and laced in the back in the usual way, an old muslin half handkerchief, a pair of black worsted stockings very coarse, black cloth pockets, a pair of female's shoes, the tops made of black twilled silk, and a pincushion of scarlet cloth.

These articles were found made up into a bundle. The garden ground was partly turned up, but nothing discovered. The house, it would appear, had been occupied by the prisoner Williams, before he married Bishop's sister.

On Friday, the 25th, the prisoners, Bishop, May, Shields, and Williams, were brought to the office, in Bow-street, for the purpose of being finally examined on the charge of murdering Carlo Ferrari, the Italian boy. Long before the hour appointed for the examination to commence, the street in front of the office was nearly blockaded by crowds of persons; and as the prisoners alighted from the van, at ten o'clock in the morning, they were again assailed by the groans and hisses of hundreds. The bench was crowded with magistrates, and the office itself was filled in every part.

At twelve o'clock the prisoners were brought in, guarded by a strong body of constables, and placed in front of the dock.

Mr. MINSHULL having intimated that he meant to confine the examination exclusively to the murder of the Italian boy,

Mr. CORDER said, he intended to produce five or six additional witnesses, for the purpose of strengthening the case, and completing the chain of evidence already made out at the previous examination. He then called

SARAH, the wife of John Trueby, who having been sworn, stated, that she was landlady of the cottage which Bishop had lately occupied. The houses Nos. 1, 2, and 3, Nova Scotia Gardens, belonged to her husband, for whom she collected the rents. In the month of July, 1830, she let the house, No. 3, to Bishop's wife. Bishop lived there until the 5th of November, 1831. About four months since, she let the house adjoining, No. 2, to the prisoner Williams, alias Head, and he lived there about two months. The house stood

empty for some time, but it was now in the occupation of a man named Woodcock. The gardens of the two houses were separated by a paling, about three feet high, and there was a gate which opened from one to the other. Witness had frequently seen Williams in Bishop's house and garden since he gave up the occupation of the house next door. She had also seen Williams's wife there without her bonnet.

Mr. MINSHULL.—The question we want you to answer is this—Have you seen the prisoner Williams residing at the house of Bishop?

WITNESS.—I have seen him frequently there, but I cannot positively say that he resided there.

Mr. THOMAS said, that he took Mrs. Williams into custody at the house of Bishop, where she appeared to be residing at the time.

Mr. MINSHULL.—Who paid the rent of Bishop's cottage?

WITNESS.—It was sometimes paid by Mrs. Bishop, and sometimes by Bishop himself. Williams paid his own rent, while he occupied the house next door.

Prisoner WILLIAMS.—She knows I took the house to work at the glass trade.

ROBERT MORTIMER, of Nova Scotia Gardens, tailor, was then sworn. About two months ago he was employed to turn a coat for the prisoner Williams, and frequently called upon him for payment at Bishop's house. He appeared to be living there, up to the period of his apprehension on the present charge.

WILLIAM WOODCOCK sworn.—I am a brass-founder, and occupy the house No. 2, Nova Scotia Gardens, adjoining Bishop's cottage. I went to live there on Monday, the 7th of October last. I had frequently seen Williams in Bishop's house. I remember the night of Thursday, the 3d of November. On that night I went to bed at half-past nine o'clock, and about three or four hours after, I was awakened by a noise in Bishop's house. I got up, and heard a scuffling or struggling.

Mr. MINSHULL.—Describe particularly the sort of noise you heard.

WITNESS.—It was like men's feet; I can swear to three men.

Mr. MINSHULL.—At what hour do you suppose this occurred?

WITNESS.—I went to bed at half-past nine; and I suppose I might have slept for about four hours, when I was awakened by the noise I have described.

Mr. MINSHULL.—You speak of the feet of three men;—how can you tell the number?

WITNESS.—I can account for it in this way. After I heard the scuffling in the house, I listened, and heard the gate shut, and knew, from the sound of the feet, that two men ran away through the gate, from Bishop's house. They came back again almost immediately; and while they were absent, I heard the heavy tread of only one man in Bishop's house.

Mr. HALLS.—When you heard the scuffle you describe, did you at the same time hear the voices of the men who appeared to be engaged in it? did they say anything?

WITNESS.—I heard the voices of men, but could not tell what was said. I can speak to the voices of two of the men, but cannot speak as to the third.

Mr. MINSHULL.—To the best of your belief, were there three men?

WITNESS.—There must have been three, for I distinctly heard two of them run from the house, and at the same time I heard the foot of the third man in the house. Everything was quite still at the time, and I could have heard a mouse stir.

Mr. CORDER.—Then it was before the two men ran from the house that you heard the struggle?

WITNESS.—It was when the two men returned to the house, that all was still.

Mr. MINSHULL.—How long was it before the two men returned?

WITNESS.—About a minute, I should think. I thought it had been a family quarrel, and that two of the party had gone to fetch the police.

Mr. MINSHULL.—Did you hear any female voices?

The witness replied in the negative, and added, that as soon as all was still, and finding that the noise was not in his own house, he went to sleep, and

thought no more about the matter.

Mr. MINSHULL.—Should you know the voices of the men again?

WITNESS.—I cannot positively say that I could swear to the three voices.

Mr. MINSHULL.—Are you familiar with the voices of the prisoners, May, Bishop, and Williams?

WITNESS.—I never heard the voices of either May or Bishop before that time, but I think I can swear to the voice of Williams. I have reason to believe that his was one of the three voices that I heard.

Mr. HALLS.—Did it strike you at the moment that you heard the voice of Williams?

WITNESS.—Yes, it struck me at the moment that it was the voice of Williams. Had I known that anything wrong was going on at the time, I might have put my ear closer to the wall, and might have heard everything that passed.

Mr. BURNABY, the clerk.—In what part of the house did you hear the scuffling?

WITNESS.—It took place in the front parlour, and my bed was in the front parlour of the house adjoining.

The prisoner Williams here observed, that on the Thursday night spoken to by the witness, Bishop kicked up a row, and broke his things.

WITNESS.—The row of which you speak, when Bishop broke his things, was on the previous Sunday night.

WILLIAMS.—No, it was on the Thursday; and I went for the policeman, who came with me to the palings, about two o'clock in the morning, but refused to go any further. I took care of my wife's bonnet and shawl, and also a looking-glass, to prevent Bishop from breaking them. The policeman was present at the time.

Mr. MINSHULL.—The explanation, prisoner, which you give is, that the row, as you call it, took place on the night of Thursday, and not on the Sunday

night.

WILLIAMS.—It was either Thursday night or Friday night. The women can say which night it was. (Here Bishop whispered Williams, and the latter said no more.)

WILLIAM WOODCOCK, aged twelve, son of the witness Woodcock already examined, was next called to prove that Bishop and Williams were joint occupiers of the house, No. 3, Nova Scotia Gardens. Witness remembered Saturday, the 5th of November, because it was Guy Fawkes' day; and two or three days before that he saw Williams smoking a pipe in Bishop's garden.

THOMAS WIGLEY, of No. 17, Cock Lane, Smithfield, was then sworn, and stated that he lived next door to the Fortune of War public-house, in Giltspur street, and was employed as porter at the Cross Keys Inn, Woodstreet. He remembered the night of the 4th of November. He went into the tap-room of the Fortune of War about half-past six o'clock on that night, and remained until half-past eight. About half-past seven, Bishop and May came into the room. Bishop sat next to witness, and May sat on the opposite side. Bishop said to May, 'What do you think of our new one? did not he go up to him well? I told you he was a staunch one. Don't you think he is a staunch one now?' (The face of Bishop became suddenly flushed as the witness repeated the words attributed to him.)

Mr. MINSHULL.—Did Bishop say anything more to May?

WITNESS.—Yes, he said to May, 'Do you stick by me, and I will stick to you. I know the other one is all right; he's nothing but a good one.' In about an hour after this, Williams came in, upon which Bishop said, 'I told you he would come; there's a good one.' (Here Williams laughed.)

Mr. MINSHULL asked the witness if May said anything in answer to what Bishop said.

The witness replied, that May said in reply to Bishop, 'I don't know what you mean.' Soon after, Bishop and Williams got up, and said they would go home. May said, 'I am going to stop a bit.' He then took up a newspaper, and Bishop and Williams left the room together.

Mr. CORDER.—Did you perceive that May, during this conversation, had anything with him wrapped up in a handkerchief?

WITNESS.—I saw that he had a handkerchief in his hand, which appeared to contain something, but I cannot say what. The handkerchief was wet.

The depositions of the witnesses previously examined were then ordered to be read over. When the evidence of Davis, the porter at Guy's Hospital, was read to him, he complained of a statement which, he said, appeared in the morning papers of the preceding day, and particularly in the Times.

Mr. MINSHULL told the witness, that if he had any addition to make to his evidence, he would willingly swear him; but he had nothing to do with what was published in the newspapers. If anything had been mis-stated, his proper course was to apply to the editors of the papers, who would, no doubt, willingly correct any error.

The reading of the depositions was then resumed, and having been concluded,

Mr. CORDER then read the statements made by the prisoners before the Coroner, and which had been committed to writing by order of the Coroner.

Mr. HALLS asked if it was in evidence that the body which was offered at the King's College was the same upon which the inquest was subsequently held.

Mr. HILL, of the King's College, who received the body there, and Mr. Thomas, to whom it was afterwards delivered at the station-house, proved that fact.

Mr. CORDER said, that the whole of the evidence was now gone through, as applying to the prisoners Bishop, Williams, and May. With regard to the prisoner Shields, it was not intended to offer any evidence against him.

Mr. MINSHULL then directed that the prisoner Shields should be removed from the bar, and brought round in front of the bench. The magistrate told him he was discharged from this offence, but that he meant to swear him as a witness. The oath having been administered to him, he went into a long statement as to the manner in which he met Bishop, who told him that he

wanted him to do a little job on the Saturday morning. He agreed, and went to Guy's Hospital, Bishop having previously procured a hamper, for the purpose of conveying the body from that place to the King's College. He accordingly carried it from Guy's Hospital to the latter place on the Saturday, but knew nothing whatever of what the hamper contained. Bishop was to have given him half-a-crown for the job, but he had not 'as yet' received the money.

Mr. CORDER observed, that the statement of Shields differed in several points from the account which he gave before the Coroner.

Mr. MINSHULL.—You say you were not aware of what the hamper contained; do you still persist in saying so?

SHIELDS.—Upon my word, your worship, I knew nothing of what the hamper contained. I carried it as I would any other job.

A MAGISTRATE.—Did you ever carry any load for Bishop or May before?

SHIELDS.—No, your honour, never.

Mr. BURNABY, the clerk.—You know, Shields, you have carried bodies repeatedly to the hospitals. You should remember you are now on your oath.

SHIELDS.—I mean to say, that I did not know what the hamper contained that May and Bishop hired me to carry.

Mr. MINSHULL.—Have you heard any conversation pass between the prisoners relating to this murder, during any time you may have passed in their company since they and you were apprehended?

SHIELDS.—None whatever, your worship, except that I heard Bishop say he got the body from the ground.

Mr. CORDER.—It is quite clear that this man cannot be believed on his oath, and therefore it would be useless to make a witness of him.

Mr. MINSHULL said, he certainly should not allow him to give evidence; for every word which he had as yet spoken went for nothing. If he discharged him now, it would be on the condition of his undertaking to communicate to

Mr. Thomas where he went to live, in the event of his removing from his present residence.

Mr. CORDER submitted, that Shields ought to be detained, at least for the present.

Mr. MINSHULL then told Shields, that as there might be a charge of another description against him, he certainly should not now consent to his discharge. He would take time to consider how he ought to be disposed of.

Shields was then removed in custody.

Mr. MINSHULL then addressed Bishop, saying, 'John Bishop, you have heard all the witnesses who came to give evidence against you. The whole of that evidence is now completed; and therefore, if you wish to say anything, now is your time, as this is the last opportunity you will have of appearing before me.

BISHOP.—No, Sir, I have nothing to say at present.

Mr. MINSHULL.—James Williams, alias Head, have you anything which you wish to say?

WILLIAMS.—Nothing, Sir.

Mr. MINSHULL.—John May, is it your wish to speak before you are finally committed?

MAY.—I have nothing more to say, Sir, than what I said already at the Coroner's inquest. This man, Bishop, can clear me of everything, if he likes to speak the truth. He knows I am innocent of the charge. The man says he got the body from the ground, but he don't like to say where, because he is loth to injure the two watchmen left to guard it. Things, however, are come to such a crisis now, that he ought to speak the truth, and I wish him to speak the truth—(he added, looking full in Bishop's face)—for I defy him to say anything to implicate me. I knew nothing of the body until I went to take it from Bishop's house.

BISHOP, in a low tone, said, I have said nothing against you. It is true what you say, you knew nothing of it till then.

MAY.—I did not; that is the truth.

Mr. MINSHULL.—Have you anything more to say?

MAY.—No, your worship, not now.

Mr. MINSHULL.—Prisoners, you will all be committed to Newgate, to take your trial at the ensuing sessions at the Old Bailey, commencing on the 1st of December next, for the Wilful Murder of CARLO FERRARI; and there will be another count in the indictment, charging you with the wilful murder of a person unknown. You are now committed accordingly.

The prisoners were then about to be removed, when Williams requested that his friends might be allowed to see him; adding, that he had nothing to say to any person that he would not be willing should be heard in the presence of the officers of the jail.

Mr. MINSHULL.—You will be lodged in Newgate, and whatever accommodations are customary there, will, I have no doubt, be afforded you. I have no power to interfere.

The prisoners were then removed from the bar, strongly guarded.

Mr. CORDER then, addressing the magistrate, observed, that he had done all he could to assist the prosecution, and on the part of the parish which he represented, he should, of course, proceed. He was, however, instructed to say, that the expense of prosecuting this case fell rather hard upon the parish, inasmuch as the body was not found in it; neither had the boy come by his death in the parish. He was aware that it was necessary that the body should have been removed, for safe custody, to the station-house, and therefore that, so far, the thing was unavoidable. The parish, however, was not in a very prosperous state, and he was fearful, from an interview he had had with a member of the government at the Home Office, that no pecuniary assistance was to be looked to from that quarter.

Mr. HARMER said, that being aware that the parish of St. Paul, Covent Garden, was not at present in the most flourishing condition, he had offered the parish officers his humble efforts gratuitously to conduct the prosecution.

Mr. CORDER said, he was bound to acknowledge the able assistance which he had received from Mr. Harmer.

Mr. HARMER said, that the difficulty of prosecuting such a case, in which there were so many witnesses, would be considerably lessened by the manner in which the evidence was taken and arranged by the clerk.

Mr. MINSHULL then directed the jailer to bring in the wives of Bishop and Williams.

They were accordingly brought forward, and Mr. Minshull told them they were discharged, and might go where they pleased. The cottage, however, in which they had lived was in the possession of the police; and, under all circumstances, he supposed they would not think of returning there.

Mrs. BISHOP said, they certainly would not.

They were then removed, and ordered to be taken care of by the jailer, and on no account to be allowed to go into the street while it was crowded by so large a concourse of people.

Mr. Thomas had previously told Bishop that his wife would be discharged that day. His reply was, 'I thank you, Sir. I hope you will look to her, and see that she is not insulted by the mob.' Shields was ordered to be detained for a similar reason; and it was not until late on the same night that he was liberated, after the crowds had left the street.

Notwithstanding the heavy rain that fell during the whole of the afternoon, the concourse of persons in Bow-street remained undiminished until the arrival of the van, when considerable difficulty was experienced by the officers to get the prisoners conveyed with safety into the vehicle. The yells and hootings which the mob set up on their appearance was deafening; and but for an additional guard of constables, the consequences might have been very serious. Williams and Bishop cowered down, as if to avoid at once the fury and the gaze of the assembled crowds. May, however, stood more erect, and jumped lightly into the van, which immediately drove off to Newgate, followed by the shouts and execrations of the people.

When May was removed to the lock-up room, after he was taken from the bar, he burst into tears, and declared solemnly to Dodd, the jailer, that he

knew nothing whatever of the boy's death, and never saw the body until Bishop showed it to him in the box. He then said, that an acquittal would almost be as bad as a conviction to him; for where could he find employment after this charge? Bishop and Williams, on the contrary, were by no means cast down. They appeared to rally their spirits, and assumed a levity of manner, which, however, was but of short duration.

On the prisoners being conveyed in the prison van from Bow-street to Newgate, they were followed by a mob of between two and three hundred persons, hooting and yelling. In order to evade the mob, the van drove out of Fleet-street, through Chancery-lane, towards the House of Correction, where two or three other prisoners were disposed of, whence the van proceeded towards the Old Bailey; and the mob still increasing, on arriving at Newgate, it was with the greatest difficulty that a number of officers could clear the way before the felon's door for the admission of the prisoners. The discordant yells were so tremendous as to frighten several horses in the different vehicles as they passed by.

It will be remembered that, previously to the final committal to Newgate of Bishop, Williams, and May, for the murder of the Italian boy, the entire dress of a woman was found in the privy of the house adjoining to that which Bishop and Williams occupied at the time of their apprehension. The articles so found were, on Saturday, the 26th of November, fully identified as having belonged to a poor woman named Frances Pigburn, who suddenly disappeared about six weeks ago; and a warrant, charging Bishop and Williams with her murder, was lodged in Newgate on the evening of that day. Mr. Thomas was since that time unremitting in his exertions to procure additional evidence; and on Monday night Michael Shields, the porter, who was discharged from custody on the previous Friday, came to Mr. Thomas at the station-house; and having declared that he wished to do all in his power to forward the ends of justice, made a voluntary statement, which Mr. Thomas took down in writing, and of which the following is the substance:—

He said he was employed by Bishop and Williams early in the morning of Sunday, the 9th of October last, to go, along with Bishop's sister (Rhoda Head, alias Williams), into the Borough to carry a trunk. Bishop and Williams called upon him at his lodgings in Eagle-street, Red Lion-square,

and called him up. He then accompanied them to Bishop's house in Nova Scotia Gardens, and when he got there, Bishop placed a trunk upon his knot. It was the same trunk which Mr. Thomas produced at Bow-street, in the late inquiry. They all left Nova Scotia Gardens together, namely, Bishop, Williams, Mrs. Williams and himself, and proceeded to St. Thomas's Hospital in the Borough. Bishop and Williams walked on one side of the way, and Mrs. Williams walked by the side of informant, carrying a band-box, tied up in a handkerchief, for the purpose, as informant verily believes, of giving the journey the appearance of a servant going to her situation. On arriving at St. Thomas's Hospital, he was joined by Bishop and Williams, and they entered the hospital together, while Mrs. Williams stopped outside. The trunk having been deposited in the hospital, they all went together to a public-house to have some refreshment. Bishop, not being able to sell the body at St. Thomas's Hospital, resolved on going to Mr. Grainger's dissecting-rooms, and he (Shields) walked with him, leaving the trunk behind. When they reached Mr. Grainger's anatomical theatre, Bishop held a private conference with Mr. Appleton, the porter to the dissecting-rooms, which lasted a few minutes. They then returned to St. Thomas's hospital, and fetched the trunk from thence to Mr. Grainger's rooms. On arriving there, Bishop took a body from the trunk for Mr. Appleton's inspection. It was that of a middle-aged female. It was a particularly fresh subject, and had not the appearance of a body taken from a grave. There was no dirt upon it, and informant observed, that the hair of the corpse was dark and short, and that the subject altogether was thin, and remarkably light in weight. Mrs. Williams was not present then, but remained at the public-house as a kind of pledge for what was drank, until the money should be procured. Mr. Appleton and Bishop bargained for some short time, and a price being agreed on, Mr. Appleton paid Bishop part of the money, and promised to pay the remainder on the following day. Gin was then sent for, and Mr. Appleton and all of them partook of it. Bishop, Williams and informant then went back to the public-house, and found Mrs. Williams crying, on account of her having been questioned about the reckoning. Bishop went into a great rage, and paid it, saying he never would enter the house again, nor should any of his friends. They then went away together, and returned over London-bridge as far as Bishopsgate-street, and had some gin at a public-house there, where coaches stopped. Bishop paid for the gin, and informant then went away.

Mrs. Williams still retained possession of the band-box, and it was just in the same state as when she took it from home. Bishop paid informant ten shillings for the job, and said if that did not satisfy him, he might have more to-morrow.

Shields, having made this statement, said he was so frightened when in custody, that he did not know what to say, and was fearful if he let slip any thing it might implicate himself. He now, however, wished to atone, as far as lay in his power, for the part which he had taken in that and the other transactions.

Mr. THOMAS, perceiving that the statement of Shields corresponded not only with the time of the disappearance of Fanny Pigburn, (she having been seen last alive on the night of the 8th of October, and Shields dating the above transaction on the 9th,) but also with the description of her age and personal appearance, as described by her sister, and other witnesses, felt that the information was important, and that Mrs. Williams was sufficiently implicated in the transaction to warrant her apprehension. He accordingly proceeded to Newgate on Tuesday the 29th of November, and having taken her into custody there, while she was waiting to see her husband, immediately conveyed her to Bow-street police-office, and charged her before Mr. Minshull, as an accessory after the fact, in the wilful murder of Frances Pigburn, adding, that he took the prisoner into custody, in the lodge at Newgate, about half an hour before; and that, on a future day, he expected to produce further evidence against her.

The prisoner wept bitterly while the clerk was writing down the charge against her, and when it was entered,

Mr. MINSHULL asked her if she wished to say any thing, at the same time cautioning her that whatever she said would be taken down in writing, and might be made evidence against her.

The prisoner replied, 'I thank you, sir, but I want to say what I know—I wish to speak the truth. She went on to say, that her father (meaning Bishop, but there must be here some mistake in the report, for Mrs. Williams is the sister of Bishop, not his daughter) called her up on Sunday morning at six o'clock, about six or seven weeks ago. They were then living at No. 3, Nova Scotia gardens. He asked her if she would carry a bandbox for him; she

asked in reply, where did he want her to take it? He replied to the Borough. She then went along with Bishop, her husband and Shields over London bridge, and when they got a little way over the bridge they came to a public-house, and Bishop told her to go in there and wait until they returned. They came again in about half an hour, and then they went together to another public-house, and had a pot of half and half, and some pipes. There was no money to pay the reckoning, and her father left her there, and told her to stop until he should return. He came back and paid for the beer, and then they all went to Bishopsgate-street, and called for some gin in a public house there. Shields then left Bishop, her husband and herself, and, after that, they all went home together. The prisoner added, that is all I wish to say. I have nothing more to add.

Mr. MINSHULL.—It will be my duty to commit you for further examination upon this charge, to this day fortnight.

Mr. THOMAS said, he thought he should be able to produce further evidence in a week.

Mr. MINSHULL.—Then let the re-examination of the prisoner stand for this day week. As the prisoner was about to be removed, Mr. Thomas said, he believed she had not had any food that day, and as she was now about to leave his custody, he hoped that she would be allowed some refreshment.

Mr. MINSHULL.—Most certainly; the jailer shall provide her with what is necessary. No prisoner shall want food, whilst I sit here as a magistrate.

The prisoner was then removed in custody.

While these proceedings were carrying on, the public alarm was increasing in every direction; the medical profession was visited with the most severe, and we think, unjust indignation, inasmuch as it was believed to be the secret encourager of a system by which human life was sacrificed with the most heartless indifference, and the detection of the crime became a matter of extreme difficulty, almost amounting to impossibility, on account of the secrecy with which the proceedings are carried on in the hospitals and the private dissecting-rooms. It is at once evident that, from the present mode of supplying subjects for dissection, no man's life is secure. The murderer may disguise his victim by laying out, and for a time burying the corpse, by

cutting off the hair, or by knocking out the teeth, and then his market is as safe as it is sure; or, if the assassin be more timid than usual, he has only to dismember the subject, and the sale by piecemeal will turn in an equal profit, and defy detection.

This is a state of danger to the public, the toleration of which would be criminal. The medical profession must arouse from its equivocal silence, and take such measures as may prevent its being, in a secondary sense, accessory to murder.

That the medical profession feel sore at the imputations which are cast upon them is not to be wondered at, and they very industriously throw the blame upon the existing laws, which, on account of their pretended impolicy, are themselves the cause of the different murders which have been committed, for the purpose of supplying the anatomical schools with subjects for the pupil. Thus Dr. Southwood Smith, in concluding that branch of his lectures on forensic medicine, which includes the extinction of life by intentional human agency, and illustrating the several points which demand the attention of the medical witness, on the examination of the body after death, from poisoning, drowning, hanging, strangulation, bruises and wounds, adverted to the real position in which the medical profession and the public are placed by the present state of the law relative to the study of anatomy, and after drawing a strong picture of the consequences that would result to the community, from the general neglect of this pursuit by the profession, spoke nearly as follows:—

'You dare not practise without a knowledge of anatomy,—you cannot prescribe for a patient, you cannot undertake the management of any surgical or medical case without a direct violation of the law, until you have adduced, before legally appointed authorities, evidence that you have studied anatomy with such effect, as to be able to stand a searching examination. But the same law that makes it imperative on you to study anatomy, in order to acquire a legal right to practise your profession, renders the possession of the means of pursuing the study illegal. Human anatomy cannot be known without the dissection of the human body, yet the possession of a body that has been exhumed, for the purpose of dissection (no body except that of the murderer being obtainable in any other mode) is penal. So that you are to be punished for not conforming to a law, which

you cannot qualify yourself for obeying without breaking! Did ever any civilized country witness such a situation as that in which the law has placed you and the public? It has contrived to raise the price of a dead body to such a height, as absolutely and appallingly to endanger the safety of the living. Of this danger, both the public and the legislature have been long and earnestly warned. Several years ago, before any instance of the actual perpetration of the crime had been discovered, the temptation and the consequent danger were fully brought to view in a pamphlet, entitled "The Use of the Dead to the Living." Investigation was set on foot, a parliamentary inquiry was obtained, the medical profession performed its duty in the fullest manner, and stated, without reserve, all the odiousness and all the danger of exhumation. It laid open the true character of the hardened and the desperate men engaged in this employment. It had not yet occurred to those men, that it might be more easy to murder the living than disturb the dead, but the possibility of the occurrence of such a thought, and the probability of their acting upon it, were distinctly foretold. Over and over again it was stated, that the price always to be obtained for a subject, from ten to fifteen guineas, was a temptation to murder not likely to be resisted, and with an earnest voice the profession implored that this risk might be no longer incurred. The administration was impressed—the public was excited—something was promised—a little was attempted, but nothing was done. Then came on the Edinburgh horrors; and now we are thrown into a state of intense alarm, lest the same horrors should be perpetrated, and are perpetrating, at our own doors. And knowing this, it is said, it behoves the teacher and the medical profession in general to be extremely cautious, to examine with the utmost vigilance, whether any thing suspicious appear, and if it do, to investigate it to the bottom; and that it is now become an imperative duty, there can be no more question than there can be that it will be faithfully and rigidly observed in all schools, and throughout the profession. But when you come seriously to consider what it is in the power of the anatomist and physiologist to do—when, from the preceding statements, you see the utmost they can do, the truth is not more true than it is dreadful. If then it be made worth while to pursue murder as a trade, it can be carried on to a prodigious extent without detection. But men, even the desperate men, called body-snatchers, will not murder without a motive; but they will murder upon system, and to an extent to which no limit can be fixed, if the temptation be great, and the chance of escape

considerable. It is in vain to look for protection to the law—no law can restrain them; no punishment will deter them:—the only effectual remedy is the removal of the temptation, the taking away of the motive, by rendering the dead body so cheap, as to be in fact without value as an article of sale; and the mode of doing this is simple. All that is necessary is, to repeal the existing law, which renders it illegal to possess a dead body for the purpose of dissection; and to enact a law, rendering the possession of a body for the purpose legal. Every thing would then be accomplished without exhumation, without danger, without any feeling being shocked, without any injury or indignity being done to any human creature. Those who from ignorance or childish prejudice—prejudice now confined to the highest and the lowest vulgar, raise a clamour against this and all similar expedients—assist and aid every future murder of this kind that may be committed, as really, though not as intentionally, as though they assisted at the strangulation.'

On this highly-interesting subject, and which now embraces the attention of all ranks of the community, we shall not be accused of diffuseness in giving the sentiments of another most celebrated surgeon, especially as many hints are there thrown out, by which the present system of obtaining dead bodies may altogether be exploded.

Mr. Brodie (for we ascribe the following remarks to him, although he has not affixed his name to them) says, 'Such is the importance of anatomy, that those who are engaged in the study of medicine and surgery will always endeavour to learn it, as far as it lies in their power to do so; and if subjects for dissection cannot be procured by decent and legal means, they will be procured by means that are indecent and illegal. The present system of procuring them by the robbery of churchyards, is attended with very great mischief in various ways. It disgusts and alarms not only the surviving friends, but the whole of society. Some are rendered miserable, because they know that the bodies of their friends have been stolen from the grave, and carried to the dissecting-room; and others, because they are apprehensive that the bodies of their friends may be served in the same manner. The men who are employed to exhume bodies are of the very worst description; they are outcasts of society, who being pointed at as resurrection-men, are unable to maintain themselves by any honest employment; and are thus driven to become thieves and house-breakers,

because, when not actually employed in stealing bodies, they can do nothing better.

'The price of subjects at this moment is as high as eight, ten, or twelve guineas, and it has been as high as fifteen guineas. But many a person has been murdered for a much smaller sum than the least of these. Here then is an inducement to commit actual murder; and in addition to the mere gain, there is this further inducement, namely, that the murder is committed under circumstances peculiarly calculated to effect its concealment: as the bodies in the dissecting-room soon become disfigured, so that they cannot be recognized, it is not to be supposed that the teachers of anatomy, except under peculiar circumstances, can distinguish the bodies of those who die a natural death. It may be observed further, that it is impossible for the teachers to spare, from their other occupations, the time necessary to make an accurate examination of each individual subject that is brought into the dissecting-room, and that if such examinations were made, they would have the effect of preventing the students making some of the most important and useful dissections afterwards. The subjects must be handed over to the students untouched; the teachers and senior students may and ought to be as vigilant as possible, but it is equally absurd and unjust to suppose, that an absolute responsibility can rest upon them.

'The commission of murder for the purpose of obtaining subjects for the anatomical schools, is now found to be no imaginary evil. But the public need not be surprised that it has occurred. It has been foreseen by medical men, whose attention has been directed to these inquiries for some years, and the danger has been long ago pointed out to many members of the legislature; nor can all the activity of the police, nor all the watchfulness of the teachers of anatomy, prevent it recurring some time or other, if there be no easier method of supplying subjects for dissection, than that which is now resorted to, and if they continue, in consequence, to produce the enormous sum which they produce at present.

'One effect of the existing difficulty of procuring subjects in this country is, that a large proportion of medical students visit the Continent, and reside in Paris, or elsewhere, for the purpose of dissection. It may not be very creditable to us as a nation, that we should not possess among ourselves the means of instruction in so important a branch of knowledge as anatomy; but

there is another and a stronger reason for lamenting the emigration of medical students. There is no class of society, in whose honour and integrity, and good principles, the public are so deeply interested, as in those of the medical profession. The members of it are admitted to a degree of confidence which is not given to any other individuals; circumstances are of necessity made known to them, which are not intended for the world, and the disclosure of which would, in many instances, destroy the peace of a family. They visit their fellow-creatures, labouring not only under the bodily, but the mental weakness of disease, and a depraved or dishonest person will easily convert those opportunities to some base purpose of self-advancement or self-gratification. We need not insult our neighbours by asserting that there is more vice in Paris than in London. Be that as it may, there is still good reason to suppose, that a number of young Englishmen are more likely to fall into vicious and dissipated habits in the former city than in the latter. Even if their parents reside in a distant county, they have in all probability relations, and at any rate they have acquaintance in London, and while in London, they are in constant communication with their families in the country, and they are in a greater or less degree under the *surveillance* of their friends. But while they reside in Paris, these restraints are removed; they are left entirely to themselves, and that at a period of life when temptations are new to them, when their passions are strong, and when good counsel and good example are of more importance than at any other period, either earlier or later. Can any one regard this as a favourable condition for young men, who, in the subsequent part of life, are to have such trust reposed in them, as necessarily must be reposed in medical practitioners?

'Anatomical knowledge is necessary to a right understanding both of medicine and surgery. But the law declares that the having a dead body in your possession is a misdemeanour; and the judges lay it down as a maxim, that there is only one legal way of possessing a body for dissection, namely, by procuring that of a man hanged for murder. The anatomical students are compelled to deal with people who steal bodies from churchyards, and who are liable to be punished for so doing. But the College of Physicians, the College of Surgeons, and the Company of Apothecaries, all require that those who present themselves for examination, should have attended anatomical lectures, and should have performed dissections. Thus it

appears, that the laws forbid the student to dissect, and the constituted authorities, under the sanction of the laws, require that he should dissect. The medical student, in the first instance, is persecuted on account of his endeavours to obtain knowledge; and afterwards, when he is engaged in practice, he is persecuted for not having obtained it, and, to make the inconsistency still greater, there is not an individual amongst those who make the laws, nor amongst those by whom they are administered, who hesitates, when his life is in danger, to apply for assistance to those individuals, who would not have it in their power to relieve him, if they had not devoted a considerable portion of their lives to these forbidden studies.

'But it is to no purpose to point out the evils which exist, unless it can be shown at the same time that those evils admit of being removed. The next question then is, how can a more abundant supply of subjects be procured, in a manner less offensive to the community?

'As the laws are now construed by the law authorities, the possession of a body for the purpose of dissection, is in itself a misdemeanour, except it be that of a person hanged for murder. The first thing then to be done, is to declare, by an act of the legislature, that dissection, for the purpose of procuring knowledge, that may be useful in medicine and surgery, is legal and proper.

'2. That a dead body should be dissected, is of no consequence to the individual who is no more, but a knowledge of it being so may be distressing to the feelings of the sorrowing friends and relations.

'This sufficiently points out what are the proper subjects for dissection; namely, the bodies of those who die without any friends or relations. In small towns and villages, probably, there are none who die under those circumstances; but in large cities, and especially in the metropolis, there are a great number. Whoever will take the trouble of referring to the Anatomical Committee, will find that, in London, the number of those amount to many more than would be required for the supply of all the anatomical schools. These bodies are now buried at the expense of the public; and, if authorised to do so, the churchwardens and overseers would, in most instances, readily give them up to the teachers of anatomy.

'But it may be argued, in opposition to the adoption of the plan proposed, that it may be considered as a very harsh and arbitrary measure on the part of the legislature to point out any particular class of society as furnishing subjects for dissection, while the other classes are exempt. This objection relates, of course, not to the sense and deliberate judgment, but to the feelings of the public; and it is easily answered. Let it be declared, not who are, but who are not to be dissected. Let it be enacted that dissection is lawful, but that no one is to be dissected contrary to the wishes of his friends or nearest relations. The result will be the same, but the offence to the public feeling, in this last case, will be none at all.

'It may be said also, that there are some individuals who have a horror at being dissected after death, and that it will sometimes happen that a poor man, dying in a workhouse, with no friends around him, will have his sufferings much aggravated, if he believes that his helpless and friendless condition is to lead, as soon as he has breathed his last, to his body being conveyed to an anatomical school. Undoubtedly such feelings ought to be respected. It would be cruel to disregard them; and it is very easy to meet the objection which arises out of them. Let it be declared further, that no one is to be made the subject of dissection who has declared, by his last will and testament, his wish to the contrary.

'Again—it may be considered as wrong, on religious grounds, that any individual should be denied the act of sepulture, and the performance of the funeral service after death. It may be answered to this objection, indeed, that these are mere human institutions, concerning which not one word is said in the Old and New Testament. But there is no occasion to meet it thus. After the body has been dissected, let the remains be inclosed in a coffin, and conveyed to the grave in the usual manner, and with the usual ceremonies; or the funeral service may be read over it previous to dissection.

'There may be some who will, probably, still urge another objection; namely, that the public feeling is so strongly opposed to dissection, and that the lower orders especially are so much prejudiced against it, that a general clamour will be raised if there be any kind of legislation on the subject. But those who argue thus, must have formed their opinions on what they have heard and seen in the country, in villages, and the smaller provincial towns,

and can know little of the state of feeling in the larger towns, and especially in London. The fact is, that in London there is no horror of dissection in the abstract. The thing has, in some measure, become familiar to the minds of the inhabitants, and especially of those who belong to the lower orders. Persons who reside in the neighbourhood of an anatomical theatre, continually see boxes and hampers taken into it, which they know to contain subjects for dissection; and such an occurrence scarcely causes an observation among them. It is only when the bodies of their friends and relatives are exhumed and dissected, that their feelings are excited; and, instead of being excited further, these feelings are likely to be allayed by the adoption of a plan for dissection of the unclaimed bodies, inasmuch as it would put a stop to the present traffic with the resurrection-men, and the robbery of the churchyards.

'Nor is the plan proposed to be regarded in the light of a mere experiment. It has been already tried in most parts of the continent of Europe, in Protestant countries as well as Catholic, and it has succeeded perfectly. And surely there is no such peculiarity in the English nation as ought to lead us to believe that that which has succeeded in nations so different as the French and Prussians, the Dutch and the Italians, would not succeed in England also.

'Of course these observations are founded on the supposition that dissection is carried on in a discreet and decent manner; and if it should be recognized by law, and a more abundant supply of subjects should be procured under the sanction of the state, some precautions may be necessary to prevent the evil which would arise from its being too openly practised, or being brought under the notice of the public in a disgusting or offensive shape. It will not be unreasonable to require of the teachers of anatomy that they should preserve a register of all the bodies which they receive for dissection, naming the source from whence they are obtained. It may be proper, on all accounts, to insist that those who undertake to be teachers of anatomy should prove their fitness for the office, by passing a rigid examination before the College of Surgeons of London, Edinburgh, or Dublin, or some other competent tribunal. This will, at any rate, limit the number of anatomical teachers in the best possible manner, namely, by the exclusion of uneducated and ignorant pretenders, and by confining this department of medical instruction to men of industry and science. It may be admitted as a

question also, whether, in addition to these measures, it will not be advisable to insist that no one should be permitted to open dissecting-rooms for the admission of students, without a license to do so from the Secretary of State, or from some person specially appointed for the purpose, to whom a satisfactory security must be given for the proper regulation and conduct of the establishment.

'Of the foregoing observations, there are, probably, very few which have a claim to the merit of originality; the subject having been so frequently discussed, especially among medical practitioners, with whom the present obstacles to anatomical instruction have long been a subject of serious anxiety.

'This last circumstance has led to a misapprehension on the part of the public. It is very generally believed that the members of the medical profession are a party concerned, and that they have an interest beyond that which others have in obtaining greater facilities of dissection. This is true, as far as it relates to the teachers of anatomy and the students; but the former are very few in number, and the latter are not of sufficient importance, and are too limited in their acquaintance and connexion for their sentiments to be much regarded, or even to be known. It is not true as to medical practitioners generally: they have laid in their store of knowledge; they rarely find it necessary to return to the labours of the dissecting-room; or if they wish to inspect the dead body for the purpose of satisfying themselves as to a particular point, they have ample opportunities of doing so in the *post mortem* examinations made for the purpose of ascertaining the cause of a patient's death.

'If the existing race of medical practitioners were so narrow-minded as to consult only their own private interests, they would be pleased to see the rising generation brought up in comparative ignorance, inasmuch as it would make it more difficult for themselves to be superseded in their practice as they advance in years. If they have been more active than others in calling the attention of the legislature to the subject, it has been on purely public grounds; not because they expect or can expect any benefit to themselves, but because their peculiar situation makes them more competent than other individuals can be to form a judgment of the mischiefs which may ultimately arise to the community, if nothing be done to remove the existing evil.'

It must be admitted that the foregoing remarks, emanating from so eminent a man as Mr. Brodie, cannot but possess, at the present juncture, considerable value, as the subject has been again brought before the legislature by Mr. Warburton, and no doubt now exists that, from recent circumstances, some enactments will be passed to legalize dissection, and to facilitate the procuring of bodies for the supply of the anatomical schools. As we shall have occasion to recur to the subject in a future part of our work, we shall now refrain from making any further comments on it, and proceed to the trial of the resurrectionists, for the murder for which they were committed.

The 2nd of December was the day fixed for the trial of the prisoners charged with the murder of the Italian boy; and as early as eight o'clock in the morning the court was crowded to excess.

We cannot but here speak in terms of reprobation of the vexatious conduct pursued by some of the city officers in regard to the admission of persons to the body of the court and the galleries, who, in some respects, had a title to be admitted. Personally speaking, when we presented ourselves at the gate, demanding entrance, as having the key of the box appropriated to the Committee of the City Lands, we were told, in the first place, that the box was full; this was at half-past eight in the morning. On remonstrating with the officer, and expressing our opinion that he was acting reprehensibly in refusing admittance to a person having the key of one of the committee to whom the box belonged, we were met by the objection, that it was by no

means improbable but that the common-councilman would come himself. This we declared to be almost an impossible case; for, as we were in possession of his key, it amounted to the proof that he had for that day relinquished his right, and that we were to be regarded, in every respect, as his substitute. Mr. Cope was then sent for, and he declared also that the box was full; that nine persons had obtained admission with *one* key, and that were he to admit us, we should not be able to find room. We then asked Mr. Cope, how he would act if the common-councilman appeared himself, demanding admittance, and whether he was invested with any power to refuse such an admission to an accredited member of the Corporation, who, as such, possessed a positive right to a seat in that box, of which it was not in the power of Mr. Cope to divest him. Still the plea of the fulness of the box was urged; and finding all remonstrance to be vain, we despatched a friend for the common-councilman himself to come and insist upon his right. In the interval, however, the gate was opened, as if by some talismanic power, and on our entering the box, we found the statement of its being full completely false—two out of the five benches were not occupied at all, nor during the whole of the day was the box ever full.

We have merely adverted to this circumstance, as it may operate as a warning to those who so unjustifiably took upon themselves the power of refusing admittance to a court of justice to individuals invested with an authority to exact admission, and by which act they were, in reality, setting themselves up in opposition, and in actual defiance of the very persons by whom they had been appointed to the offices which they hold.

At nine o'clock the deputy recorder, Mr. Sergeant Arabin, came into the court, when the prisoners, John Bishop, Thomas Williams, and James May, were placed at the bar; and the indictment having been read over, charging them, in one count, with the Wilful Murder of CARLO FERRARI, otherwise Charles Ferrier; and in another with the Wilful Murder of a male person, whose name was unknown. They severally pleaded Not Guilty.

The jury was then sworn, and a short case having been disposed of, at ten o'clock Chief Justice Tindal, Mr. Baron Vaughan, and Mr. Justice Littledale entered the court, with the Lord Mayor and Sheriffs.

The bench was crowded with persons of rank, amongst whom we perceived the Duke of Sussex.

The prisoners were again put to the bar. They seemed but little moved by the awful situation in which they were at that moment placed, and they encountered the inquisitive glances of the assembled crowd with a careless air. Their appearance rather indicated low cunning, than hardened ferocity. In the countenance of Williams, there was something unusually repellent, and on the Duke of Sussex taking his seat, and applying his glass to his eye, Williams appeared to direct his stare full upon his Royal Highness with all imaginable impudence, as if he were almost determined to stare him out of countenance.

Mr. BODKIN having opened the case,

Mr. ADOLPHUS proceeded to state the leading facts of it to the jury. In doing so, he said, that he did not feel it necessary to solicit their most serious attention to it, for he knew it would receive such attention from them, being a case in which the three prisoners at the bar stood charged with the foul crime of murder; and one of which, as persons living in society, they must have heard a great deal for many days past. After paying the usual compliment to the jury, on the ground of their respectability, which, by the bye, would be 'more honoured in the breach than in the observance,' and declaring, as usual, that he never had the honour of addressing a jury more competent by their talents and station in life, to deliver a true and conscientious verdict; he also, as usual, declared himself to be a very humble individual, and that he was fully impressed with the conviction, that a case of such great importance might have been entrusted to far more abler hands than his own. After this positive compliment to the jury, and the negative compliment to himself, the learned counsel proceeded to state, that he was fully aware that the jury knew this to be a case of the greatest and most important interest, and he felt certain, that the gentlemen of the jury required no suggestions from him to induce them to pay the strictest attention to all its details; and having alluded to the interest which it excited out of doors, he was sure that he need scarcely remind them, that they should not allow themselves to be at all swayed by any thing that they might have heard with regard to this case, previously to their entering that box, but that their duty there was merely to judge the case by the evidence

which should be laid before them. When he spoke on their deciding on this case according to the evidence which should be laid before them, he begged to say, that there was one point on which he was anxious to call their serious attention. In cases of murder, it often happened that the direct evidence of eye-witnesses could not be produced as to the blow which had been struck or the injury which had been inflicted, and the infliction of which constituted the crime; but it was settled by the constitution of this country, that, in all cases of this kind, a jury might select from the circumstances of the evidence laid before them, such facts as might produce a conviction in their minds as to the guilt of the prisoners charged with the offence. The application of the facts and circumstances of a case for such a purpose was, by the law of the land, vested in a jury constituted as they now were; and it was for them to decide according to the evidence which should be laid before them, as it appeared in their minds; and it was for them, after they had heard the great body of evidence which would be submitted to them in this case, to say whether the prisoners were or were not guilty of the heinous crime laid to their charge. If the facts which would be laid before them, should produce in their minds a conviction of the guilt of the prisoners, he was sure that they would, without hesitation, pronounce a verdict which would consign some, if not all of them, to a certain, speedy, and ignominious death; and he was equally sure, that if an opposite conviction was the result of the evidence, the jury would at once acquit the prisoners at the bar. Without further introduction, he would proceed to state to them the facts which had given rise to this painful and extraordinary inquiry, as he felt justified in calling it, for the murder, to which it had reference, did not appear to have been committed through any of those motives that have ordinarily occasioned the commission of such a crime in this country. It was not to gratify revenge for a wrong done, that the unfortunate victim in this case had been deprived of existence. The minds of his murderers were not stimulated by any passions of that description to the commission of the dreadful deed. Neither wealth nor the other common allurements which influenced the actions of wicked men under such circumstances had impelled them to perpetrate this crime. Nothing but the sordid and base desire to possess themselves of a dead body, in order to sell it for dissection, had induced the prisoners at the bar to commit the crime for which they were now about to answer before a jury of their countrymen. The learned gentleman then proceeded to detail the facts of the case, as they

were afterwards stated in the evidence subsequently produced. He dwelt in terms of well-deserved eulogy on the meritorious exertions of Mr. Thomas, the superintendent of police, and of Mr. Corder, the vestry-clerk of St. Paul's, Covent Garden, in prosecuting the inquiry which had led to the trial. He acknowledged that the case depended upon circumstantial evidence, but he contended that a large and well-connected body of circumstantial evidence was, in many cases, superior to the positive testimony of an eye-witness. The judgment of an eye-witness was, in several instances, liable to be deceived; but it was impossible that the jury, after putting all the circumstances of the case together, and weighing them seriously and deliberately, could be mistaken in their judgment. It was for them to say, after doing so, whether the prisoners at the bar were or were not guilty of the crime with which they stood charged. He concluded by repeating his confident expectation that they would give to this important case the deep and serious attention which it deserved, and by expressing his complete reliance on the integrity and good sense of a British jury, which a long life of practice had left him no room to doubt.

WILLIAM HILL, the first witness called, was then examined by Mr. Clarkson. The witness stated, that he is porter to the dissecting-room at the King's College. At a quarter before twelve o'clock on Saturday, the 5th of November, the bell of the dissecting-room having been rung, he answered it; and having opened the door, he found the two prisoners at the bar, Bishop and May, there. He had known the prisoners before. May asked him if he wanted anything, and he said 'Not particularly.' Witness asked him what he had got; he said, 'A male subject.' Witness asked him what size. He said, 'A boy about fourteen;' and he demanded twelve guineas. Witness said they could not give that price, for they did not particularly want it; but if he would wait, he would acquaint Mr. Partridge, the demonstrator of anatomy, with the matter. He accordingly went to Mr. Partridge, who said he would see them. Witness then went back to them, and told them to go round to the place appropriated for them. When he had got them into the room appropriated for them, Mr. Partridge joined them. They could not agree as to the price. Mr. Partridge said that he would not give twelve guineas for the subject. Witness then heard May tell him he should have it for ten guineas. Mr. Partridge then left them, and went into the dissecting-room. The prisoners then asked witness how it was to be, and whether he would have

the subject? Witness then followed Mr. Partridge, and, in consequence of what Mr. Partridge said to him, he returned to the prisoners, and told them that Mr. Partridge would only give nine guineas for the subject. May said, he would be d—d if it should come in for less than ten guineas. May was intoxicated at the time. On his going out to the door, Bishop, taking witness aside, said to him, 'Never mind May, he is drunk. It shall come in for nine guineas in the course of half an hour. They then went away. About a quarter past two o'clock on the same afternoon they returned, in company with the other prisoner, Williams, and a man named Shields. They had a hamper with them. Shields appeared to be employed as the porter for carrying it. May and Bishop carried the hamper into another room, while Williams and May remained where they were. On opening the hamper, a sack containing the body was found in it. May and Bishop remarked that it was a good one, to which observation the witness assented. May, being tipsy, then turned the body very carelessly out of the sack. The witness perceived that the body was unusually fresh; and, in consequence of what struck him with regard to the appearances of it, he went to Mr. Partridge. Previously to his doing so, he asked the prisoners what the subject had died of? They said, they did not know, and that it was no business either of his or theirs. Witness replied, that it certainly was not. The appearances with regard to the body with which he was particularly struck were these:—It appeared different from a body that had been laid in a coffin. The left arm was turned up towards the head, and the fingers of the hand were firmly clenched. In consequence of the opinion which he formed from the appearance of the body, he went to Mr. Partridge, and detailed to him what he had seen, and what he thought about the matter. Mr. Partridge accordingly returned to the room where the body was lying, to have an inspection of it. The prisoners had been removed from that room to the room into which they were originally introduced, and where the other two men were also. Mr. Partridge, without seeing them, after seeing the body, went to the secretary's office. In the mean time, several of the gentlemen connected with the College saw the body, and their suspicions were also excited. Mr. Partridge having returned to the place where the prisoners were, showed them a fifty pound note, and told them he must get that changed, and that then he would pay them. Mr. Partridge having pulled out his purse while speaking to them, and there being some gold in it, Bishop said, 'Give me what money you have, and I will call on Monday for the remainder.' May proposed that Mr. Partridge should give

him the fifty pound note, and he would go out and get it changed. Mr. Partridge, smiling, said, 'Oh, no,' and then left them. The prisoners remained waiting after Mr. Partridge had gone. In about a quarter of an hour Mr. Mayo, the Professor of Anatomy at the College, came down with Mr. Rogers, the Police Inspector, and a body of police, and the prisoners were all taken into custody. Before that took place, and while witness was in the room with Bishop, Bishop said to him, 'Pay me only eight guineas in the presence of May; give me the other guinea, and I will give you half-a-crown.' The body was then delivered by the witness to the police, together with the hamper and sack; and having accompanied them to the police-station, in Covent Garden, he saw them delivered into the hands of Mr. Thomas, the Superintendent of Police. Judging by his experience with regard to dead bodies, it was his opinion that this body had not been buried, nor laid in a coffin. He observed that there was no saw-dust about the hair of it.

Cross-examined by Mr. CURWOOD.—The first conversation he had was with May and Bishop only; Williams did not appear. Williams was in the College, but not in the same room.

Mr. RICHARD PARTRIDGE examined by Mr. BODKIN.—Witness is Demonstrator of Anatomy at the King's College. He was there on Saturday, the 5th of November. A body was brought there that day, and a communication was made to him about it by the witness Hill, about two o'clock in the afternoon. He accordingly went and looked at it. None of the prisoners were present at the time. The body externally exhibited some suspicious appearances, and it was those appearances that induced him to go for the police. The suspicious appearances were a swollen state of the face, bloodshot eyes, freshness of the body, and the rigidity of the limbs. There was likewise a cut over the left temple. The lips were also swollen. There was nothing else in the external appearance of the body that excited his attention. After he had examined the body, he did not recollect whether he went to the place where the prisoners were before he called in the police. He was certain, however, that he went for the police before the circumstance with regard to the fifty pound note took place. On returning to the College, after going for the police, he showed the fifty pound note to May and Bishop, where he found them at the bottom of the stairs, leading to the anatomical department. He then proposed to them that change should be

got for the fifty pound note, with the view to detain them until the police arrived.

The following day he made a more minute examination of the body at the police-station, in the presence of other medical men—the external appearances near the muscles were rigid, though less so than on the preceding day, and there was a superficial wound on the temple. Beneath the scalp and the bone there was some contused blood. On opening the body, he found the whole of the chest, breast, &c., in a healthy condition; the stomach was full. The spinal cord and brain were then examined—the brain was perfectly healthy. In cutting through the skin that covers the spinal cord, he found a quantity of coagulated blood in the muscles, and on removing the back part, blood was found on the membrane that envelops the spinal cord. The spinal marrow appeared to be perfectly healthy. From these appearances he thought the external marks of violence were sufficient to produce death. The violence exerted had had an effect on the spinal cord. The violence must have been on the back of the neck. A blow from a stick, he believed, would have caused the appearances he had described. The injuries might not produce instantaneous, but would cause a speedy death.

By Chief Justice TINDAL.—Witness believed that the appearances of external violence to the spinal marrow had been caused by a blow or some other species of violence inflicted on the back of the neck.

Examination continued by Mr. BODKIN.—It was the opinion of witness, that the blow of a stick at the back part of the neck might have caused such appearances. He would not positively say, that such an injury would produce an instantaneous death; but he believed that it would cause a very speedy one.

Cross-examined by Mr. CURWOOD.—On the external examination of the body, he could not discover anything that would have been sufficient to produce death. The extravasation of the blood in the spinal marrow might have produced death. He would not positively say that it did so, but his conclusion was, that it did. He could only arrive at belief, and not at certainty on the subject. He did not think that the appearances which he had mentioned could have been produced by pressure, or any other means

besides a blow. At the same time they might have been produced by a blow of something else as well as a stick.

Re-examined by Mr. BODKIN.—On examining the heart, he found it was empty, which was an unusual circumstance. The face too was swollen and flushed, and both these appearances, namely, the empty state of the heart, and the swollen state of the features, have been found in persons who have died suddenly, but not from violence. They have been found in persons who have met with a sudden but a natural death. But the appearances about the spinal cord, and the coagulated blood at the back of the neck, have not been found in persons dying a natural death.

Mr. GEORGE BEAMAN, Surgeon, examined by Mr. ADOLPHUS.—I am a surgeon to the parish of St. Paul's, Covent-garden. On Saturday night, 5th of November, I first saw the body of the deceased. I examined it with other surgeons. The weather, I should remark, at that time was very favourable to the preservation of dead flesh. The body appeared to have died very recently. I should judge that it had died within thirty-six hours. The face appeared swollen, the tongue was also swollen, the eyes prominent and blood-shot, and the tongue was protruding between the lips. The teeth had been all extracted, the gums bruised, and portions of the jaw-bone had been broken and removed with the teeth. There was also the appearance of blood having issued from the gums. Judging from all these circumstances, I should say, that the teeth must have been taken from the gums within two or three hours after death. I examined the throat, neck, and chest, very particularly, and I found no external marks of violence there. On this occasion I observed there was a wound on the forehead, over the left eyebrow: it was about three-quarters of an inch long, and it penetrated through the skin to the bone. A small quantity of blood had oozed from the wound, but that circumstance might have been occasioned by the body falling out of the sack after death. The blood was uncoagulated. I again examined the body on the following day (Sunday) about two o'clock in the afternoon, but I found no further marks of external violence. The limbs, which were decidedly stiff on Saturday night, were not so much so on Sunday. The appearances of the body were such, in my opinion, as to leave no doubt that it had not been regularly laid out. About eight o'clock on the Sunday evening, I examined the body, assisted by Mr. Partridge and others. I washed the throat and neck with a sponge and water carefully, but I found

no scratch or mark of violence there. On removing the scalp on the top of the skull, I detected some blood about the size of a crown. Such an appearance as that must have been produced by a blow, given during life. The brain was also examined, and its appearances were precisely such as Mr. Partridge has described. The body was then turned, for the purpose of examining the spinal marrow, and on removing the skin on the back part of the neck, a considerable quantity of coagulated blood, I should think from three to four ounces, was found amongst the muscles there. That blood must have been effused while the subject was alive. On removing a portion of the spine, for the purpose of examining the spinal marrow, a quantity of coagulated blood was found lying in the spinal canal, which, by causing a pressure on the spinal marrow, must have produced death. The bones of the spine were uninjured. The appearances which I have described would be likely to follow from a heavy contusion on the spine, or from the blow of a heavy instrument. There was about an ounce of blood found in the spinal canal. The heart was empty, which is an unusual circumstance, and one that, in my opinion, denotes a sudden death. I mean by a sudden, an instantaneous death, or nearly so, one that takes place in at least two or three minutes. The stomach contained a tolerably full meal, and the contents smelt slightly of rum. Digestion was going on at the time of death. I should think that death occurred about three hours after the meal. On examining the coats of the stomach, after removing its contents for the purpose of having them analyzed, I found them perfectly healthy. From the whole of my observations on the body, I ascribe the death to a blow given on the back of the neck. This observation I have seen verified from experiments which I have witnessed in animals, where the same appearances have followed that species of injury.

Cross-examined by Mr. BARRY.—I found no external appearances of violence at the back of the neck. It does not, however, necessarily follow, that the severe blow of a stick on the back of the neck would be followed by a contusion or external marks of violence. It would have produced such a mark if the boy had lived some time after the blow had been given. I agree with Mr. Partridge in the statement, that a flushed appearance of the countenance, and an emptiness of the heart, have been found in cases of sudden death, where no injury has been inflicted. In the course of my practice, I never found the heart empty after death. I do not think that any

blow on the top of the head would present the appearances which were found on the back of the neck. Any violence applied to the back of the neck itself, however, whether considerable or not, might produce it. I can hardly think that such appearances would be produced by the falling down of a person in a fit of apoplexy. I will not say that it would be impossible, supposing that his head fell against a hard projecting body. A fall on a hard projecting point might produce such appearances. I will not swear as to the time when the teeth were removed, but I think it highly improbable that twelve hours elapsed after death before their removal.

Re-examined by Mr. ADOLPHUS.—Forming my opinion as to the best of my judgment and experience, I would say that the teeth were removed within two or three hours after death. I have never seen a person die of apoplexy, in which the brain was not injured, but I believe that such cases have occurred in what is called serous apoplexy. There was no serum effused on the boy's brain, nor did it present any unhealthy appearance whatever. He was apparently about fourteen years old, and in no respect did he seem inclined to apoplexy.

By Mr. Baron VAUGHAN.—I have examined the bodies of many persons that have died of apoplexy, and have always found appearances to account for the death. There have been cases of serous apoplexy recorded, in which it is stated, that no such appearances could be discovered. If the subject, in this instance, died of apoplexy, it did not present any appearance of it.

Mr. FREDERICK TYRRELL, examined by Mr. Clarkson.—I am one of the surgeons of St. Thomas' Hospital. I have heard the evidence of Mr. Beaman with regard to what he found, and the conclusions that he came to, and in all material points I agree with him. I have never known a case of serous apoplexy in which the appearances on the brain did not sufficiently denote its occurrence. I have been always able to ascertain that a quantity of fluid has been effused in what is termed serous apoplexy, and that itself is sufficient to denote death. I am a lecturer on anatomy and physiology in St. Thomas' Hospital, as well as a surgeon to that institution.

By Mr. Baron VAUGHAN.—The appearances described in the spinal canal might have been produced by violence, without there being marks of violence on the skin.

JOHN EARLE ROGERS, examined by Mr. Bodkin.—I am an inspector of police. On Saturday, the 5th of November, I received the body and the hamper from the witness Hill, and gave them into the custody of Mr. Thomas, the superintendent.

JOHN WILSON, a police-officer, sworn.—I apprehended the prisoners at King's College. May resisted a great deal, and struck me, because I would not let him and Bishop talk together.

JOSEPH SADLER THOMAS, examined by Mr. Adolphus.—I am Superintendent of the division of police F. On the afternoon of Saturday, the 5th of November, from certain information I received, I despatched Rogers and Wilson to the King's College. They returned with May and Williams. Before them, Bishop and Shields were brought to the station-house. Rogers also brought the body, sack, and hamper. The body was placed in the back-room in the station-house, with the hamper. The prisoners were all together in the outer room. I asked May what he had to say, for he was charged with having come into the possession of the subject in an improper manner. He replied, 'I have nothing at all to do with it. The subject is that gentleman's, (pointing to Bishop). I merely accompanied him to get the money for it.' I then asked Bishop whose it was; and he said that it was his, and that he was merely removing it from Guy's Hospital to King's College. I then asked Williams what he knew about it. He replied, that he knew nothing about it, and that he had gone with them to the King's College to see the building. I asked Bishop, in the first instance, what he was, and his answer was, 'I am a b—y body snatcher.' I think that all the prisoners at the time, Bishop and May in particular, were labouring under the effects of liquor. May was carried into the station-house on all-fours, and with his smock-frock over his head. The body was taken out of the hamper in my presence, and placed on the table. It struck me as the body of a person that had recently died. I perceived that the teeth had been extracted from it. In consequence of information, I went, on the following Tuesday, to Mr. Thomas Mills, Newington Causeway, and I received twelve teeth, which I now produce. I also went, previously to my going to Mr. Mills, to No. 3, Nova Scotia Gardens, and on the back-room ground-floor found a trunk, now produced. On the 20th of November I went to the same cottage, and making a further search, I found a hairy cap in the front parlour, amongst some dirty linen. I now produce it. I also found a tin can there. Mr. Thomas also produced the

sack and hamper in which the body had been brought to the station-house in Covent Garden.

HENRY LOCK, examined.—I was, in November, waiter at the Fortune of War public-house, Giltspur-street. On Friday, November the 4th, I saw the prisoners there at eleven o'clock in the morning. They had some drink, and went away together about twelve o'clock. There was a strange man with them. About three o'clock in the afternoon of the same day they came again, and remained until about five, and then all three went away together. About eight o'clock on the same evening, they all returned with another man, who appeared to be a coachman. Before the coachman left, one of the prisoners said they had had a ride. About nine o'clock May went to the bar, with something in a handkerchief, which proved to be teeth. I saw him pour water upon the handkerchief, and rub it with his hands. He afterwards opened the handkerchief, and I saw the teeth. I observed to him, that they appeared to be young ones, and were worth two shillings. May said they were worth two pounds to him. The prisoners shortly afterwards left. On the following morning, about eight o'clock, I saw Bishop and Williams, accompanied by Shields. Bishop, addressing Williams, asked, 'What shall we do for a hamper?' Williams made no answer. Bishop requested Shields to go over to the hospital (St. Bartholomew's) to get a hamper, but he refused to go. Bishop then went himself for it, and shortly returned with a hamper. They then all left together, and I never saw them again until they were in custody.

THOMAS WIGLEY, examined.—I am a porter at coach offices. On the 4th of November, about half-past seven o'clock in the evening, I was in the Fortune of War public-house, when Bishop came in, and was followed, in a few minutes after, by May. I heard Bishop say, 'What do you think of our new one? did he not go up to him well, and collar him? was he not a game one?' May said, 'I don't know what you mean.' Bishop said, 'That's all right.' May saw me sitting in the corner of the room all the time. May got up, and went out, and in a few minutes returned, with a handkerchief in his hand, which he was rubbing with his hand. In a few minutes Williams came in, and Bishop observed, 'Here he comes; I knew he was a game one.' Bishop said to May, during the conversation, and before they went away, 'You stick to me, and I will stick to you.'

Cross-examined by Mr. CURWOOD.—I do not know what Bishop meant by saying to May, 'What do you think of our new one? was he not a game one?'

JAMES SEAGRAVE, driver of a cabriolet, sworn.—On the evening of Friday, the 4th of November, I was, with my cabriolet, on the stand in the Old Bailey. It was about six o'clock in the evening, and having put my nose-bag on my horse, I went into the watering-house to take my tea. I was called out, and saw May and Bishop. May asked me if I wanted a job, and said he had a long job. He took me on one side, and said he wanted me to fetch 'a stiff un,' which I understood to mean a dead body. I told him I did not know, but asked what he would stand? He said he would stand a guinea. I said, that I had not finished my tea, and that my horse had not done his corn. He said, that we would take tea together. I went into the public-house, followed by May and Bishop. They took their seats, and called for tea for two. Some person in the room jogged me by the elbow, and hinted that the men were snatchers, and I determined not to go with them. After tea I went out, and drove my cabriolet to the bottom of the rank. I afterwards saw May and Bishop going up the rank amongst the coaches, and I drove off, leaving them, apparently, making a bargain with the coachmen.

Cross-examined by Mr. CURWOOD.—I knew that the circumstances which I have mentioned took place on Friday, the 4th of November, because I had to attend on a summons that day, from ten o'clock till three, before the Commissioners in Essex-street. There were four or five persons in the parlour at the watering-house when May and Bishop were there.

Re-examined.—The conversation which I had with May took place outside the watering-house.

THOMAS TAVERNER, the waterman at the coach-stand in the Old Bailey, corroborated the evidence of the preceding witness, as to the application of the prisoners May and Bishop to him for the hire of the cab.

EDWARD CHANDLER examined.—I was, on the 4th of November, a porter at the King of Denmark public-house, in the Old Bailey. May and Bishop came in with Seagrave, the cabriolet driver, and they had some tea and a pint of gin together. I observed May put some gin into Bishop's tea, and Bishop asked him, are you going to *hocus* me, or *Burke* me? I cannot say

whether it was *hocus* or *Burke*. I knew May and Bishop before. I do not know what *hocus* means.

Cross-examined by Mr. CURWOOD.—I cannot say whether Seagrave had part of the gin or not.

HENRY MANN, hackney-coachman, examined.—On Friday, the 4th of November, about five o'clock in the evening, I was on the stand, in Bridge-street, Blackfriars; May and a strange man came to me; May asked, if I would take a fare, and go with him to Bethnal Green. I refused to go. I refused to go because I knew what May was.

GEORGE GISSING, a boy, examined.—I am twelve years old. I go to school and to church. My father keeps the Birdcage public-house, Crabtree Road, near Nova Scotia Gardens. On the evening of the 4th of November, about half-past six o'clock, I saw a yellow hackney-chariot draw up, opposite my father's house. It is very near Nova Scotia Gardens. I know Bishop's cottage in Nova Scotia Gardens. It is but a short distance from my father's house. I did not see who got out of the chariot. I afterwards saw the prisoner Williams standing on the fore-wheel of the chariot, talking to the driver. The chariot waited ten or fifteen minutes. The door was open all the time. Williams went down Nova Scotia Gardens, and in ten or fifteen minutes he returned, and got into the chariot; then I saw a strange man carrying a sack in his arms, and Bishop holding up one end of it, they put it in the chariot; Williams put out his hand to help it in. The sack appeared to be heavy, as if something heavy was in it. Bishop and the other man got into the chariot with Williams, and they drove up Crabtree Road, and towards Shoreditch Church, on the road to the city. The strange man was not one of the prisoners, but he had a smock-frock on. Bishop is believed to be Williams's father-in-law, and they kept their wedding at my father's house.

THOMAS TRAINER, another boy, corroborated the last witness's evidence.—He saw the prisoners, Bishop and Williams, who were both known to him, on the occasion mentioned. Two of the men had smock-frocks on. A woman, named Ann Channell, was present with witness at the time.

ANN CHANNELL examined.—I was passing by the Birdcage public-house, on the evening of Friday, the 4th of November. I saw a hackney-coach stop, and three men get out of it. They went down Nova Scotia Gardens. I did not

remain there. Two of the men had smock-frocks on. I did not notice them sufficiently so as to be able to know any of them again.

THOMAS DAVIS sworn.—I am porter to the dissecting-room, Guy's Hospital. On Friday evening, the 4th of November, about seven o'clock, May and Bishop came to the hospital, May carrying a sack. I knew them before, they asked me if I wanted to purchase a subject. I declined to purchase it, and they asked me if I would allow them to leave it in the hospital until the following morning. I acceded to their request, and locked the body up in a room during the night. Next morning, between the hours of eleven and twelve, I saw May and Bishop in the hospital. Having been out, I returned to the hospital, and ascertained that the body had been taken away. I had only seen a foot out of the sack, and I believed it was either that of a boy or a female; it was not large enough for that of a man. The sack produced is similar to that in which the body was.

Cross-examined by Mr. BARRY.—I only saw May and Bishop on that occasion. I never saw Williams until the other day.

JAMES WEEKS, assistant to the last witness, examined.—On Friday, the 4th of November, I saw Bishop and May bring the sack with a body in it to Guy's Hospital. The sack produced has a hole in it, and resembles that in which the body was brought. The sack was left at the hospital all night. The following morning Bishop, May, Williams, and Shields, came for the body, and I delivered it to them in the same state as I had received it. The night before, May and Bishop directed me not to let it go unless they were both present. They took it away in a hamper, which they brought with them. Shields acted as porter, and carried the hamper. I believe the hamper now produced to be that in which they carried the body away.

Mr. J. APPLETON, curator of Grainger's Anatomical Theatre, Webb-street, Borough, examined.—I know the three prisoners. On Friday, November 4th, about half-past seven o'clock in the evening, Bishop and May came and said they had a subject for sale. I asked what it was; they said that it was a fresh subject. I asked whether it was male or female. They replied a boy about fourteen years of age. I declined to purchase it. The next morning they called to make the same offer, but I again declined it. They had not the body with them.

Mr. THOMAS MILLS examined.—I live at No. 39, Bridge-house-place, Newington Causeway, and am a dentist. On the 4th of November, between nine and ten o'clock in the morning, May called and offered a set of teeth for sale; they were twelve human teeth, six for each jaw. I observed that one of the front teeth was chipped. He offered the set for a guinea. It was then that I observed that one of them was chipped, as that lessened their value. I said that I would give twelve shillings for them, and I remarked that they did not belong to one set. He said, "upon my soul to God, they all belonged to one head not long since, and that the body had never been buried." I gave him twelve shillings for the set. On examining them afterwards, I found that some part of the flesh of the gums was so firmly attached to them, that I imagined they had been violently taken from the head. I found great difficulty in detaching it from them. I remarked to May, that the teeth either belonged to a boy or a female. He replied that they had belonged to a boy, between fourteen and fifteen years of age. Those are the teeth now produced, which I delivered to the superintendent Mr. Thomas.

Cross-examined by Mr. CURWOOD.—I will swear that the expression used by May was not that the teeth were as fresh as if the body from which they had been taken never was buried.

AUGUSTINE BRUN (examined through an interpreter, Parragalli, who is also one of the witnesses) deposed, that he was acquainted with the Italian boy, Carlo Ferrari. Witness brought him to this country about two years ago. Carlo stayed with him but about six weeks. Has not seen him since the 28th of July, 1830. Was shown the body of a boy at Covent-garden station-house, on the 19th of November. Recognized it to be the body of the boy Carlo—that is, to the best of his belief. Could not swear positively, the face was so disfigured, and the absence of the teeth so altered the usual expression of the boy's countenance. The hair, size, and form, perfectly corresponded. Had not seen the boy alive since July, 1830; could not, if he was dead.

The last remark occasioned a laugh in the court; but it arose from the inaccurate manner in which Parragalli, the interpreter, put the questions to the witness. In several instances the questions, as put by Parragalli, were wholly different in sense and meaning to those given by the counsel, and thus a degree of perplexity and confusion arose in the answers, which gave an opposite character to the examination than was in reality intended. The

interpreter was frequently checked by the court, in consequence of the comments in which he indulged in the answers given by the witness, and in which he appeared to display a zeal, which broke out sometimes into a certain degree of impertinence and frivolity, not at all in character with the solemn investigation which was then pending.

AUGUSTINE BRUN was cross-examined by Mr. Curwood, when he said, that if he had not heard of the death of the boy, he should have given precisely the same evidence, namely, that he could have inferred from the general appearance of the body, and colour of the hair, that it was that of 'my boy' Carlo Ferrari. If asked at once to whom the body belonged, I should have experienced some difficulty in determining, in consequence of the disfigurement of the face.

JOSEPH PARRAGALLI, the interpreter to Brun, was then admitted as a witness. Obtained his livelihood by playing an organ and the pandean-pipes. Knew the boy Carlo for the last two years. Saw him alive at half-past two o'clock, in the Regent's Quadrant, on the Saturday four weeks before he saw him dead at the Station-house. Carlo had then a cage with two white mice about his neck; was sure that the boy, whom he saw dead, was the same whom he saw thus accoutred in the Regent's Quadrant (the cap was here put into witness's hands). Would swear that, to the best of his belief, it belonged to the boy Carlo.

Cross-examined by Mr. BARRY.—Witness did not know any Italian boys who obtained a livelihood in the manner of the boy Carlo.



MARY PARRAGALLI, wife of the last witness, also knew the boy Carlo Ferrari. Saw him last on Tuesday the 1st of November, in Oxford-street, at a quarter past twelve o'clock; he had a cage, like a squirrel-cage, with two white mice in it. Did not speak to him; he wore a cap. When shown a dead body at

Covent-Garden station-house, on the 6th of November, was positive that it was that of the boy Carlo.

ANDREW COLLA knew the boy Carlo by sight. Saw him in Oxford-street on Tuesday the 1st of November. On the following Monday saw a body at the station-house, Covent-Garden, which he believes to have been that of Carlo (a cap was here put into the witness's hands). To the best of his belief, it was the cap worn by the Italian boy when he met him in Oxford-street. Carlo had on him a blue coat and grey trowsers. The trowsers had a patch on the knee (a pair of trowsers was here shown to the witness). Believes them to be those worn by the boy Carlo. Is strengthened in his belief by the peculiarity of the stitching. Has not seen the trowsers since the day he met the boy in Oxford-street.

JOHN KING, aged ten in December, was acquainted with the nature of an oath.—Lived near Nova Scotia Gardens. On the Thursday before Guy Fawkes's day, saw a boy standing at the corner of the gardens. The boy had a cage suspended by a string round his neck. Had a brown hairy cap (a cap was put into witness's hands). Believes the cap to be that worn by the boy. Knew it by the green facing.

MARTHA KING, aged eleven years, sister of the last witness, gave evidence precisely to the same effect.

REBECCA BAYLIS lives at No. 1, Virginia-row, Bethnal-green. Her husband is a cabinet-maker. Remembers to have seen, on Thursday the 3d of November, an Italian boy, standing close to the window of her residence. Saw a box suspended from his neck, on the boy's arms. (The cap which had been shown to the preceding witnesses, was here shown to this witness.) Believes the cap to be the same with that worn by the Italian boy. In about a quarter of an hour after, had occasion to go out, I saw the Italian boy standing within two doors of Bishop's residence. The trowsers appear to be like those worn by the boy; could not speak with the same degree of certainty respecting the jacket. The colour was more inclining to the green than that now produced.

JOHN RANDALL, labourer, lived in Bethnal-green, near Nova Scotia Gardens. Remembers to have seen, on Thursday the 3d of November, an Italian boy standing under the window of the Bird-cage public-house, Nova Scotia

Gardens. The boy had a cage with two white mice in his arms. The cage had a box in one part, the other part went round like a squirrel-cage. The boy had on him a brown cap: the cap (here shown to witness) is like that worn by the boy.

SARAH TRUBY is wife of the landlord of the cottages, Nos. 1, 2 and 3, in Nova Scotia Gardens. On the part of her husband, she let in July, 1830, the cottage No. 3 to Bishop's wife. Bishop and his wife lived there since; let the cottage No. 2 to the prisoner Williams in July last. Williams then went by the name of Head. Williams lived there for six or seven weeks; let the cottage since to a person named Woodcock. There was a well in the garden attached to Bishop's cottage, with a passage to it from the other two cottages. There is a privy at the bottom of the garden of No. 3, which was not open to Nos. 1 and 2, but was to her (witness's) own residence. Has seen Williams frequently, since he left No. 2, in the prisoner's (Bishop's) cottage.

WILLIAM WOODCOCK, about twelve years of age, lived with his father at No. 2, Nova Scotia Gardens, next door to the prisoner Bishop's residence. Has seen Williams and his wife frequently of late, in Bishop's cottage; the last time he saw Williams there, was a couple of days before Guy Fawkes' day.

ABRAHAM KEYMAN keeps the Feathers public-house, Bethnal-green.—On Thursday night the 3d of November, at about a quarter before twelve, Bishop, accompanied by a man in appearance like the prisoner Williams, came to his house and took with him half a gallon of beer, and a quartern of rum: lent them a can to carry the beer; lives within two hundred yards of Bishop's residence (a can was here shown to witness); that was the can he lent to Bishop.

WILLIAM WOODCOCK went to reside at No. 2, Nova Scotia Gardens, next door to the prisoner Bishop, on the 17th of October last; lived there till the prisoners were apprehended, but not since; had reason to believe that the prisoner Williams lived along with the prisoner Bishop; does not recollect ever to have seen the prisoner Bishop till he saw him at Bow-street; but saw Williams on two Sundays. On one of these occasions witness was digging in the bottom of the garden attached to his residence No. 2, when he was accosted by the prisoner Williams, and recommended not to dig in that part of the garden, but in another which he pointed out. On the night of Guy

Fawkes' day, went to bed about half-past nine. Had been asleep about four hours when he awoke, and heard a noise in the adjoining (Bishop's) cottage. He then roused himself completely from sleep, and distinctly heard the sound of three footsteps. He did not rise, because the noise was not in his own house. He heard a scuffle which lasted for a couple of minutes, when all became silent. After the silence, and before he went again to sleep, he heard the side-entrance door to No. 3 open, and distinctly heard the footsteps of two persons run by his (witness's) window. He also heard the footsteps of one person in No. 3, before the other two returned. There elapsed but about one minute between their going out and return. He then recognized the voice of the prisoner Williams. The partition wall between the cottages was about four inches thick.

On cross-examination, the witness said that he had no particular reason for saying or believing that Williams lived with Bishop, other than he heard it reported, and because he knew him to be his son-in-law. When he heard the scuffle, he did not rise, supposing it to be some family quarrel, with which he had no concern.

ANNA WOODCOCK, wife of the last witness, gave evidence to the effect that the prisoner Williams was an inmate of Bishop's cottage.

JOSEPH HIGGINS (of the New Police) was sent by his officer to the cottage, No. 3, Nova Scotia Gardens, tenanted by the prisoner Bishop; and on searching it, found a chisel and some tools. He then went to the prisoner May's lodgings, near the New Kent-road, and found these awls and screws (here shown to the jury). On one of the awls he discovered drops of blood apparently fresh. He also found a pair of breeches, with marks of apparently fresh blood upon them.

Mr. MILLS, the dentist, was here recalled for the purpose of examining the awls and tools found at the prisoner May's residence. They were such as would serve to extract teeth in the coarse manner in which those sold to him had been evidently extracted.

JOSEPH HIGGINS'S examination resumed.—On the 19th of November, he again went to Bishop's residence, accompanied by another policeman. They minutely searched the premises, and with an iron rod probed the garden in several places. The rod met with resistance in one part of the garden, and on

digging they discovered a jacket, a pair of trowsers, and a small shirt. In another part they dug up a blue coat, a drab striped waistcoat, altered from man's size so as to fit a boy, and a pair of trowsers with the braces attached to them. The waistcoat had stains of blood on the collar and shoulders. They were buried about twelve inches under the surface, and were covered with cinders and ashes.

The clothes thus dug up were shown to the jury. The trowsers and coat sworn to by preceding witnesses as like to those worn by the Italian boy were part of them.

The evidence of this witness was corroborated by that of James Wadey, the police-officer who accompanied him in his search.

EDWARD WARD, a child aged six years and a half, was next called. He was previously to being sworn examined as to the nature of an oath. The child, with infantine simplicity, said that he knew it to be a very bad thing to tell a lie; that it was a great sin; and that he who would swear falsely would go to h—l, to be burnt with brimstone and sulphur. He was then sworn.—He stated that he lived with his father near to the Nova Scotia cottages. That a few days before Guy Fawkes's day, his mother having given him a half holiday, he went to Bishop's cottage to play with Bishop's children, three in number, a boy older than himself, a little girl, and a boy about his own age. As a toy, Bishop's children produced a cage, which went round, and which contained two white mice. He never before saw either a cage or mice with Bishop's children. On his return home, he told his brother, who is much older than himself, all the circumstances.

JOHN WARD, brother of the last witness, deposed to the fact of his young brother having told him that he had been playing at Bishop's cottage with Bishop's children, and that their toy was a cage containing two white mice, which went round and round.

Mr. JAMES CORDER (the vestry-clerk of Covent-garden) was apprised of the discovery of the body of an Italian boy at King's College, at five o'clock of the evening of Saturday on which it was brought there. At the instance of the parish, a coroner's inquest was held on the body, and proceedings instituted. At the inquest the prisoner Bishop was examined, and was told that he was not called on to criminate himself, to be cautious in his answers,

for that what fell from him would be taken down word for word, and might be used so as to affect his life. Witness here read the declarations of the prisoners Bishop, Williams, and May, as given at the coroner's inquest, to the following effect:—

'I dug of the body out of the grave. The reason why I decline to say the grave I took it out of is, that there were two watchmen in the ground, and they intrusted me, and being men of family, I don't wish to "deceive" them. I don't think I can say anything more. I took it for sale to Guy's Hospital, and as they did not want it, I left it there all night and part of the next day, and then I removed it to the King's College. That is all I can say about it. I mean to say that this is the truth. I shall certainly keep it a secret where I got the body. I know nothing as to how it died.'

'May said he wished to say what he knew, and would speak the truth. He then said his name was James May, and that he lived in Dorset-street, Newington. He went into the country on Sunday week, and returned on the evening of Wednesday, and went to Mr. Grainger's, in Webb-street, with a couple of subjects. On the following morning (Thursday) he removed them to Mr. Davis's, at Guy's, and after receiving the money he went away to the Fortune of War, in Smithfield, and stayed there about two or three hours. Between four and five o'clock, to the best of his recollection, he went to Nag's-head-court, Golden-lane, and there he stopped with a female until between eleven and twelve o'clock the next day (Friday). From Golden-lane he went to the Fortune of War again, and stopped drinking there until six o'clock or half-past. Williams and Bishop both came in there, and asked him if he would "stand any thing" to drink, which he did. Bishop then called him out, and asked him where he could get the best price for "things." He told him where he had sold two, meaning Guy's, and he (Bishop) then told him that he had got a good subject, and had been offered eight guineas for it. He (May) replied, that he could get more for it, and then Bishop said that all he could get over nine guineas he might have for himself. He agreed to it, and they went from thence to the Old Bailey, and had some tea at the watering-house there, leaving Williams at the Fortune of War. After tea they called a chariot off the stand, and drove to Bishop's house. When there, Bishop showed him the lad in a box or trunk. He (May) then put it into a sack, and brought it to the chariot, and conveyed it to Mr. Davis's, at Guy's. Mr. Davis said, "You know, John, I cannot take it: because I took two of you

yesterday, and I have not got names enough down for one, or I would take it." He (May) then asked him if he could leave the body there that night, and he said he might. Bishop then desired Mr. Davis not to let any person have it, as it was his subject, but to deliver it to his own self. He (May) also told Mr. Davis not to let the body go without him, or he should be money out of pocket. May then went on to say, that he went to his own house and slept there that night, and the next morning he went to Guy's, and Bishop and Shields came in with a hamper, which was taken to King's College, where he was taken into custody.'

'JOHN WILLIAMS stated, that in the first place he met Bishop on last Saturday morning (Nov. 5), in Long-lane, Smithfield, and asked him where he was going. He said he was going to the King's College. They then went into the Fortune of War public-house, and after that Bishop went to Guy's Hospital, and then to the King's College. May and the porter met them against the gate. Bishop went in, and he (Williams) asked him to let him go in with him. That was all he had got to say, except that a porter took a basket from the Fortune of War to Guy's Hospital, and he (Williams) helped him part of the way with it.'

WILLIAM D. BURNABY, magistrate's clerk at Bow-street, was present at the examination of the prisoners at Bow-street, and remembers that when the prisoner May was examined as to the use of the awl found at his residence, he stated that 'that was the instrument he usually employed to punch out the teeth from dead bodies.'

JOHN KIRKMAN (of the new police) was on duty at the station-house, Covent-garden, when the inquest was held there on the body of the Italian boy. Behind where the prisoners sat was a printed bill relating to the transaction. On seeing it the prisoner Bishop said in a low tone of voice to the prisoner May, 'It was the blood that sold us;' and looking at the bill again, said aloud, 'The marks of violence were only breakings out on the skin.'

Mr. THOMAS, the superintendent of police, deposed that on examining the body of the boy it appeared to him that there were marks on the left arm as if from the violent compression of fingers, and there was dirt on the chest. He also saw on the neck, from the forehead to the breast, the traces of blood but clumsily wiped away.

Mr. ADOLPHUS stated that this was the case for the prosecution.

The prisoners were then called upon for their defence.

Mr. CURWOOD, on the part of the prisoner Williams, said he felt it to be his duty to object to that person's being further proceeded with under the present indictment. That indictment distinctly charged Williams with being a principal in the murder, and he appealed to the Court whether the evidence at all went to bear out the indictment, so far as it applied to that prisoner. It might be that the evidence would go to show that he was an accessory after the crime, but that was quite another question from the present indictment, which distinctly charged him with being a principal.

Lord Chief Justice TINDAL could not admit the force of the learned counsel's objection. It would be for the jury to determine not only the fact of guilt or innocence, but the degrees of both.

Mr. CURWOOD bowed to the decision of the Court, and only performed what he conceived to be his duty in urging the objection.

JOHN DAVIS was then recalled for the purpose of showing that he had very recently purchased two subjects from the prisoner May. He brought them the day before the date of the murder.

The Court then informed the prisoners, that if they wished to address any observations to the jury on the evidence just given against them, that that was the time.

Three written defences were then read by the officer of the Court.

The prisoner BISHOP, in his defence, stated that he was 33 years of age, and had followed the occupation of carrier till the last five years, during which he had occasionally obtained a livelihood by supplying surgeons with subjects. He most solemnly declared that he had never disposed of any body that had not died a natural death. He had been in the habit of obtaining bodies from workhouses, with their clothes on, so that he could have no difficulty in procuring them after a natural death. The statement then went on to describe the localities of the prisoner's residence, in order to show that they admitted of great facilities of ingress and egress, to all persons resident in the neighbourhood. His garden and premises were open to them, and

theirs to him. With respect to the clothes found in his garden, he knew nothing. As to the cap, he should be able to prove that it was bought by his wife from a woman named Dodswell, who resided in Old Hoxton Town. The green cape he sewed on himself. The prisoner called upon the jury to divest their minds of all undue prejudices, and judge his case by the evidence alone. By so doing, they would be discharging their duty, and would acquit him of the crime then charged against him. In conclusion, the prisoner declared that neither Williams nor May knew how he procured the body.

WILLIAMS'S defence briefly stated, that he had never been engaged in the calling of resurrectionist; and had only by accident accompanied Bishop on the occasion of the sale of the Italian boy's body.

MAY, in his defence, admitted that, for the last six years, he had followed the occupation of supplying the medical schools with anatomical subjects; but disclaimed ever having had anything to do with the sale of bodies which had not died a natural death. The remainder of his defence was a recapitulation of his declaration at the coroner's inquest, to the effect that he had accidentally met with Bishop at the Fortune of War public-house, on the Friday on which the body was taken for sale to Guy's Hospital.

ROSINA CARPENTER, on behalf of the prisoner May, deposed, that she lived at Macbeth-court, Golden-lane; that she was acquainted with May for the last fourteen or fifteen years. That May came to her between four and five o'clock on Thursday, the 3d of November, and stayed with her till twelve o'clock next day.

On cross-examination, the witness stated, that she had slept several nights with the prisoner May before the 3d of November, and that nobody saw them together on that occasion.

SARAH TRUBY was recalled, in order to show that she had never, at any time, seen white mice in Bishop's possession.

The prisoner BISHOP.—What! did you never see any?

WITNESS.—No; never.

BISHOP.—Not about six months ago? Don't you recollect your cat having killed some in my garden.

WITNESS.—Never.

Mrs. MARY DODSWELL lived at 26, Hoxton Old Town: kept a second-hand clothes and sale shop. Knew the prisoner Bishop's wife. Sold a cap to her about two years ago. The cap was a cloth one, with a black leather cape.

[The cap found at Bishop's, and alleged to have been that worn by the Italian boy, was a brown hair one, with green leather front.]

The prisoner BISHOP.—Mrs. Dodswell, don't you recollect your having sold my wife two caps at the same time?

WITNESS.—No, I sold but one.

On behalf of the prisoner May, MARY ANN HALL and JANE LEWIS, who both admitted themselves to be in the habit of 'seeing gentlemen,' were called and examined, in order to show that they lived in the same street with May, and that the appearance of blood on his clothes was wholly owing to an accident which happened to a jackdaw, and which was followed by the loss of blood.

Mr. THOMAS (the Police Superintendent) here deposed, that he was inclined to believe, from the glutinous and fresh appearance of the blood on the prisoner May's clothes, that it was shed since his being taken into custody.

The CHIEF JUSTICE then proceeded to recapitulate the evidence to the jury, first warning them of the justice of founding their decision on the evidence then adduced, without being at all influenced by statements made elsewhere. The indictment contained two counts—one charging the prisoners at the bar with the murder of Carlo Ferrari, an Italian boy; the other with the murder of a boy, name unknown. The jury would learn from this circumstance, that it was by no means necessary that the name of the murdered party should be known, and that all that they need have to decide was, the fact itself. They accordingly would first direct their attention to the determining the fact, whether the body which the prisoners had proffered for sale had come by a natural death or not; and next, whether, if they were of opinion that it had not, the prisoners were the murderers, and to what

degree they were implicated. With respect to the first point, he thought they would experience but little trouble after the explicit evidence of the medical gentlemen who had been that day examined, and whose conduct, it was but justice to say, was an honourable rebuke to any calumnious imputations on the medical profession to which the present case may have given birth. The learned Judge then went through the evidence with the most pains-taking minuteness, commenting on those points which, in his mind, would enable the jury to determine the guilt of the prisoners, and their probable share in the crime. The jury had heard evidence which traced the Italian boy close to the premises of Bishop, at twelve o'clock of the 3d of November, on the night of which it was probable the murder was committed. They had evidence also to show, that on that night a scuffle took place in Bishop's cottage, in which Williams's voice was discernible. The evidence, however, to show that May was present, or participated in the actual offence, was by no means decisive; so that the jury would have to determine how far he was, or was not, a principal or accessory. It might be that they would arrive at the conclusion that Bishop alone, or Bishop and Williams, were the criminals, and in such case they would find a verdict of acquittal for May; or it might be, that they would find that all three were equally guilty, or that they were guilty, but not in an equal degree. Their verdict would be according to their decision on this point, rendering it incumbent on them to cautiously weigh those parts of the evidence which bore particularly on Bishop and Williams, and on the other prisoner. He left it to their unbiassed judgment to find according to the evidence which had been submitted to them.

At eight o'clock the jury retired to consider their verdict, and the prisoners were removed from the bar, and taken out of court. The interval between that and the return of the jury was a period of intense anxiety to every one in court; and, as is usual on such occasions, there were various conjectures hazarded as to what would be the verdict as to all the prisoners. That a verdict of 'guilty' would be returned against two of the prisoners—namely, Bishop and Williams,—none who heard the evidence and the summing up of the learned Judge, could entertain any rational doubt; but the same confident opinion by no means existed with respect to the fate of the prisoner May. The general opinion, as far as we could judge from what was passing around us, was, that the circumstantial proof not being, in his case,

so strong as it was in that of his fellow-prisoners, the jury would acquit him: but still there were many who thought the proof of a participation in the murder clear and perfect as to all the parties.

These conjectures and speculations were put an end to by the return of the jury at half-past eight o'clock.

The most death-like silence now prevailed through the court, interrupted only by a slight buzz on the re-introduction of the prisoners.

Every eye was now fixed upon them; but though their appearance and manner had undergone a considerable change from what they exhibited at being first placed at the bar, and during the greater part of the trial, they did not seem conscious of the additional interest which their presence at this moment excited. They scarcely raised their eyes as they entered, beyond a glance or two at the jury box.

Bishop advanced to the bar with a heavy step, and with rather a slight bend of the body; his arms hung closely down, and it seemed a kind of relief to him when he took his place to rest his hand on the board before him. His appearance, when he got in front, was that of a man who had been for some time labouring under the most intense mental agony, which had brought on a kind of lethargic stupor. His eye was sunk, and glassy; his nose drawn and pinched; the jaw fallen, and, of course, the mouth open: but occasionally the mouth closed, the lips became compressed, and the shoulders and chest raised, as if he was struggling to repress some violent emotion. After a few efforts of this kind, he became apparently calm, and frequently glanced his eye towards the bench and the jury-box; but this was done without once raising his head. His face had that pallid blueish appearance which so often accompanies and betokens great mental suffering.

Williams came forward with a short quick step; and his whole manner was, we should say, the reverse of that of his companion in guilt. His face had undergone very little change; but in his eye and his manner there was a feverish anxiety, which we did not observe during the trial. When he came in front, and laid his hand on the bar, the rapid movement of his fingers on the board, the frequent shifting of the hand, sometimes letting it hang down for an instant by his side, then replacing it on the board, and then resting his side against the front of the dock, showed the perturbed state of his feelings.

Once or twice he gave a glance round the bench and the bar, but after that he seldom took his eye from the jury-box.

May came forward with a more firm step than either of his fellow-prisoners; but his look was that of a man who thought that all chance of life was lost. He seemed desponding; but there appeared that in his despondency which gave an air of—we could not call it daring, or even confidence,—we should rather say, a physical power of endurance, which imparted to his whole manner a more firm bearing than that of the other prisoners. He was very pale, but his eye had not relaxed from that firmness which was observable in his glance throughout the whole of the trial.

Ordinary physiognomists who, without having seen the prisoners, had read the accounts of their examinations at the police-office,—of their habits and mode of living, and the horrible atrocities with which, there is now no doubt, they were familiar,—would have been greatly disappointed in the appearance of all of them as they stood at the bar. There was nothing in the aspect or manner of any of them which betokened a predisposition to anything like the outrage on humanity of which they stood convicted. Thurtell looked, as well as acted, the 'bold-faced villain.' Ings, and one or two others of the companions of Thistlewood, wore in their countenances, almost as strongly as they showed in their deeds, the bold daring of the reckless desperado; but nothing of this kind could be traced in the face of any of the three who were then at the bar. There was something of heaviness in the aspect of Bishop, but altogether his countenance was mild. Williams had that kind of aspect with which men associate the idea of sharpness and cunning, and something of mischief, but nothing of the villain. May, who was the best-looking of the three, had a countenance which most persons would consider open and manly. There was an air of firmness and determination about him; but neither in him nor his companions was there the slightest physiognomical trait of a murderer, according to the common notions on the subject. They were all those kind of vulgar men in appearance of which one sees hundreds every day, without being struck with any indication in them of good or evil disposition.

When the three prisoners were placed at the bar, the names of the jury were called over; and on being asked whether they had agreed to their verdict, they answered that they had.

The question was then put to them, as to each of the prisoners, and they returned as their verdict, that John Bishop, Thomas Williams, *alias* Head, and James May, were severally *Guilty* of murder.

The verdict was received in court with becoming silence; but in a moment it was conveyed to the immense multitude assembled outside, who evinced their satisfaction at the result by loud and continued cheering and clapping of hands. To such an extent was this expression of the popular feeling carried, that the windows of the court were obliged to be closed, in order that the voice of the Recorder might be heard in passing sentence.

The prisoners were then severally called upon to say why sentence of death and execution should not be pronounced upon them; but none of them availed themselves of this opportunity of saying anything.

The RECORDER then proceeded to pass the awful sentence of death upon them, but was for some moments again interrupted by the renewed shouts of the populace from without. Silence having been restored, the learned Judge proceeded. He began by eulogizing the patient and diligent attention bestowed on their case by the jury, whose verdict was just recorded; and of that jury he might state, what he often had occasion to remark of juries in that box, that nothing but the most satisfactory evidence, and a conviction of the solemn obligation they owed to their Maker and to their country, could induce them to pronounce a verdict which was to consign some of their fellow-men to a disgraceful death. He fully concurred in the verdict they had pronounced, which was supported by the most conclusive evidence.

The prisoner BISHOP.—By false evidence, my Lord.

The learned RECORDER went on, and addressing himself to the prisoners, observed, that he would not encroach, by any lengthened remarks, on the very short time that was to intervene between their sentence and their appearance in the presence of their Creator. A month had now elapsed since their first committal for this crime, and he hoped that that time had been employed by them in looking back on their past lives,—on the horrible agony which they had inflicted on the feelings of so many of their fellow-men,—and on the dreadful outrage on human nature of which they were now convicted. But, however they might have spent the time past, he

earnestly adjured them, by their hopes of mercy, to lose not an instant of the few hours which yet remained to them, in constant prayers to Almighty God for pardon through the merits of their Redeemer. After pointing out to them the spiritual assistance which would be afforded to them in prison, the learned Judge concluded by passing upon each of them the sentence of the law, which was, that each of them be hanged on the following Monday morning, and their bodies be delivered over for dissection and anatomization.

The prisoners heard their sentence, as they had heard the verdict, without any visible alteration in their manner. They stood at the bar, as if expecting that something more would be added. When ordered to be removed, May raised his voice, and, in a firm tone, said, 'I am a murdered man, gentlemen, and that man (pointing to Bishop) knows it.'

The prisoner Williams said, 'We are all murdered men.' He then addressed himself to one or two of the witnesses at the side bar, and said, that before three months they would suffer for the false evidence they had given against him.

Bishop made no observation, but retired from the bar even more absorbed by his awful situation than he had appeared before.

The prisoners were then removed, and in a short time after the crowd outside the court dispersed.

From a momentary forgetfulness on the part of the Recorder, when passing sentence of death upon Bishop, Williams, and May, these wretches nearly escaped the additional judgment of dissection. The Recorder, in the usual manner, had ordered them to be hanged on the following Monday, and was passing on to the end of his address, 'and the Lord have mercy upon your souls,' when Mr. Justice Littledale whispered to the learned gentleman, who then stopped short in the concluding sentence, and ordered their bodies to be given up for dissection.

On Saturday night, when the prisoners were removed each to his cell, attended by his watchman, the person who was placed over Williams saw him grow anxious and uneasy; towards midnight his agitation increased, and the vigilance of his keeper became more marked. Williams observed it,

and said, 'Don't be frightened, sir, I am not going to do anything wrong, but I wish to ease my mind. Let me see the Governor.' Mr. Wontner was then called from his bed, and the Rev. Mr. Cotton, the Ordinary, was also in attendance in a few minutes.

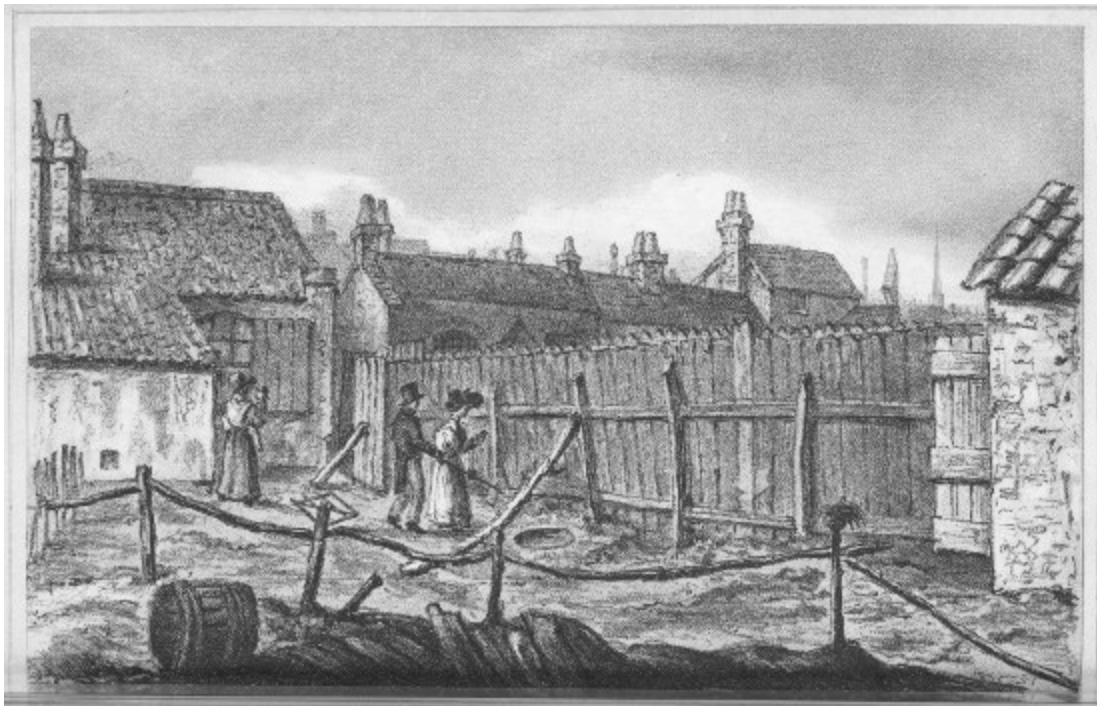
When these gentlemen came into the cell, Williams looking at them steadfastly for a moment or two, burst into tears and said, 'Gentlemen, I wish to unburden my mind; I know I am guilty, and I ought to suffer the utmost punishment of the law; I am a murderer, I confess it, but the witnesses were all mistaken as to its being the Italian boy.' He was then urged to relieve his mind as calmly and as coolly as possibly; and, after a strong effort, during which the mental agony which he endured was dreadful, he made a statement, of which the following is the substance:—

On Thursday the 3d of November, he was in the neighbourhood of Smithfield, when he saw a boy, whom he had often observed before, assisting in driving cattle to the market. This boy was about fourteen or fifteen years of age, and exactly corresponded with the description given of the Italian boy. He enticed him from the cattle, and took him to the Fortune of War public-house, and sent for Bishop, who was waiting at another public-house in the neighbourhood for the purpose of receiving communications from him (Williams) as to anything he might do. Bishop came, and they took the boy home to Nova Scotia Gardens, giving him some soup and potatoes by the way. When they got him there, they set him to play with Bishop's children until near dusk, when they gave him some rum, and he became stupified. They (Bishop and Williams) then took him into the garden, and on the way threw him down, and, pushing his head into the water-barrel, sunk into the ground (as already described) held him until he was suffocated. They then conveyed the body back to the house, 'kept it snug' till the next day, when May was applied to, to assist in disposing of it. May had nothing to do with the murder of that boy.

Here the statement concluded. Williams seemed greatly relieved after making his confession, and went to bed and slept soundly.

The Rev. Mr. Williams, according to his promise, also visited Bishop in his cell. The culprit appeared to be aware of his approaching dissolution, and though firm as when he appeared at the bar before the Court at the Old

Bailey, yet he appeared to be anxious to make a communication in favour of May. Bishop observed, that as he had no hopes of mercy here, he did not wish an innocent man to suffer for his crimes, and he declared that May was not concerned in the murder of which he had been convicted. He said he was ready to make a confession of the murders in which he had participated. After some hesitation, he admitted that he had been concerned in the commission of three murders, viz.—that of the Italian boy, the murder of Frances Pigburn, and of a drover, a boy who had come to London with cattle from Lincolnshire, which boy the witnesses on his trial had sworn was the Italian boy, to the best of their belief, though he had disposed of that body before.



Bishop entered into a minute description, most horrible in its details, of the mode by which he had perpetrated the inhuman murders, and then made the following confession:—

Newgate, December 4.

'I, John Bishop, do hereby declare and confess, that the boy supposed to be the Italian boy was a Lincolnshire boy. I and Williams took him to my house about half-past ten o'clock on the Thursday night, the 3d

of November, from the Bell in Smithfield. He walked home with us. Williams promised to give him some work. Williams went with him from the Bell to the Old Bailey watering-house, whilst I went to the Fortune of War. Williams came from the Old Bailey watering-house to the Fortune of War for me, leaving the boy standing at the corner of the court by the watering-house in the Old Bailey. I went directly with Williams to the boy, and we walked then all three to Nova Scotia Gardens, taking a pint of stout at a public-house near Holywell-lane, Shoreditch, on our way, of which we gave the boy a part; we only stayed just to drink it, and walked on to my house, where we arrived at about eleven o'clock. My wife and children, and Mrs. Williams, were not gone to bed, so we put him in the privy, and told him to wait there for us. Williams went in and told them to go to bed, and I stayed in the garden. Williams came out directly, and we both walked out of the garden a little way, to give time for the family getting to bed; we returned in about ten minutes or a quarter of an hour, and listened outside at the window to ascertain whether the family were gone to bed. All was quiet, and we then went to the boy in the privy, and took him into the house; we lighted a candle, and gave the boy some bread and cheese, and after he had eaten, we gave him a cup full of rum, with about half a small phial of laudanum in it. (I had bought the rum the same evening at the Three Tuns, in Smithfield, and the laudanum also in small quantities at different shops.) There was no water or other liquid put in the cup with the rum and laudanum. The boy drank the contents of the cup directly in two draughts, and afterwards a little beer. In about ten minutes he fell asleep on the chair on which he sat, and I removed him from the chair to the floor, and laid him on his side. We then went out and left him there. We had a quartern of gin and a pint of beer at the Feathers, near Shoreditch church, and then went home again, having been away from the boy about twenty minutes. We found him asleep as we had left him. We took him directly, asleep and insensible, into the garden, and tied a cord to his feet to enable us to pull him up by, and I then took him in my arms, and let him slide from them headlong into the well in the garden, whilst Williams held the cord to prevent the body going altogether too low in the well. He was nearly wholly in the water of the well—his feet just above the surface. Williams fastened the other end of the cord round the paling to prevent

the body getting beyond our reach. The boy struggled a little with his arms and legs in the water, and the water bubbled for a minute. We waited till these symptoms were past, and then went in doors, and afterwards I think we went out, and walked down Shoreditch to occupy the time, and in about three-quarters of an hour we returned and took him out of the well, by pulling him by the cord attached to his feet: we undressed him in the paved yard, rolled his clothes up, and buried them where they were found by the witness who produced them. We carried the boy into the wash-house, laid him on the floor, and covered him over with a bag. We left him there, and went and had some coffee in Old-street-road, and then (a little before two o'clock on the morning of Friday) went back to my house. We immediately doubled the body up, and put it into a box, which we corded, so that nobody might open it to see what was in it, and then went again, and had some more coffee at the same place in Old-street-road, where we stayed a little while, and then went home to bed—both in the same house, and to our own beds, as usual. We slept till about ten o'clock on Friday morning, when we got up, took breakfast together with the family, and then went both of us to Smithfield, to the Fortune of War. We had something to eat and drink there, and after we had been there about half an hour, May came in. I knew May, but had not seen him for about a fortnight before. He had some rum with me at the bar, Williams remaining in the tap-room. May and I went to the door, I had a smockfrock on, and May asked me where I had bought it; I told him "in Field-lane;" he said he wanted to buy one, and asked me to go with him; I went with him to Field-lane, where he bought a frock at the corner shop; we then went into a clothes-shop in West-street to buy a pair of breeches, but May could not agree about the price; May was rather in liquor, and sent out for some rum, which we and the woman in the shop drank together; May said he would treat her because he had given her a good deal of trouble for nothing. We then returned to the Fortune of War, and joined Williams, and had something more to drink; we waited there a short time, and then Williams and I went to the west end of the town, leaving May at the Fortune of War. Williams and I went to Mr. Tuson's, in Windmill-street, where I saw Mr. Tuson, and offered to sell him a subject, meaning the boy we had left at home. He said he had waited so long for a subject which I had before

undertaken to procure, that he had been obliged to buy one the day before. We went from there to Mr. Carpue's, in Dean-street, and offered it to him in the lecture-room with other gentlemen; they asked me if it was fresh; I told them, yes; they told me to wait. I asked them ten guineas, and, after waiting a little, a gentleman there said they would give eight guineas, which I agreed to take, and engaged to carry it there the next morning at ten o'clock. I and Williams then returned to the Fortune of War; we found May in the tap-room, this was about a quarter before four o'clock in the afternoon; we had something to drink again, and I called May out to the outside of the house, and asked what was the best price given for "things"—he said he had sold two the day before for ten guineas each, I think. I told him I had a subject; he asked what sort of one; I said, a boy about fourteen years old, and that I had been offered eight guineas for it: he said if it was his, he would not take it; he could sell it where he sold his for more. I told him that all he could get above nine guineas he might have for himself; we agreed to go presently and get a coach. I and May then went to the bar, had something more to drink; and then, leaving Williams at the Fortune of War, we went and tried to hire a cab in the Old Bailey; the cab-man was at tea at the watering-house, and we went in and spoke to him about a fare, and had also tea there ourselves. Whilst we were at tea, the cab-driver went away, and we found him gone from the stand when we came out; we then went to Bridge-street, Blackfriars, and asked a coachman if he would take such a fare as we wanted; he refused, and we then went to Farringdon-street, where we engaged a yellow chariot. I and May got in, drove to the Fortune of War, and (Williams joining us by the George, in the Old Bailey, on our way) at the Fortune of War we drank something again, and then (about six o'clock) we all three went in the chariot to Nova Scotia Gardens; we went into the wash-house, where I uncorded the trunk, and showed May the body. He asked, "How are the teeth?" I said I had not looked at them. Williams went and fetched a brad-awl from the house, and May took it and forced the teeth out: it is the constant practice to take the teeth out first, because, if the body be lost, the teeth are saved. After the teeth were taken out, we put the body in a bag and took it to the chariot; May and I carried the body, and Williams got first into the coach, and assisted in pulling the body in; we all then drove off to Guy's Hospital, where we

saw Mr. Davis, and offered to sell the body to him; he refused, saying that he had bought two the day before of May. I asked him to let us leave it there till the next morning; he consented, and we put it in a little room, the door of which Mr. Davis locked. Williams was, during this, left with the chariot: I told Mr. Davis not to let the subject go to any body unless I was there, for it belonged to me, and May also told him not to let it go unless he was present, or else he should be money out of pocket; I understood this to mean the money paid by May for our teas at the Old Bailey, (about four shillings) and the coach fare, which we had agreed with the coachman should be ten shillings. May had no other interest or right to the money to be obtained for the body, except for such payment, and for what he could get above nine guineas, as I had promised him. May paid the coachman ten shillings on our leaving the hospital, but before we discharged the coach, May and I ran to Mr. Appleton, at Mr. Grainger's school, leaving Williams with the coach. We offered the subject to Mr. Appleton, but he declined to buy it, and May and I then joined Williams, discharged the coach, and went to a public-house close by, and had something to drink. After this we got into a coach in the Borough, and drove again to the Fortune of War, where we had something more to drink; this was about eight o'clock in the evening. We all three stayed there about one hour, and then went out, got a coach in Smithfield, and went towards Old-street-road, stopped in Golden-lane with the coach and drank something, and then on to Old-street. At the corner of Old-street (the Star corner) May got out of the coach and said he was going home, and I and Williams drove to the corner of Union-street, Kingsland-road, where we got out and paid the coach-fare out of money lent us by May (he having advanced to each of us three shillings). We then walked home, and went to bed that night as usual. We had agreed with May on his leaving us to meet him at Guy's Hospital at nine o'clock the next morning (Saturday). I and Williams went at eight o'clock on Saturday morning to the Fortune of War, where we met Shields, the porter, and engaged him to go with us over the water to carry a subject. I asked him to go to St. Bartholomew's Hospital for a hamper which I had seen there; he refused, and I fetched it myself. We had a pint of beer there, and I, and Williams, and Shields, went to Guy's Hospital, Shields carrying the hamper. We met May there. Williams and Shields went to a public-

house, whilst I and May went to Mr. Appleton, and offered him the subject again. He again refused to buy it, stating that he did not want it. May and I then joined Shields and Williams, and had some drink, and then left them again, crossed the water in a boat to the King's College, where we inquired of Mr. Hill, the porter, if he wanted a subject; he said he was not particularly in want, but would speak to Mr. Partridge, the demonstrator. Mr. Partridge came, and asked what the subject was. May said, 'a male subject.' Mr. Partridge asked the price. May said, 'twelve guineas.' Mr. Partridge said he could not give so much, and went away. Mr. Hill asked us to stay a few minutes whilst he went after Mr. Partridge, to speak to him again. Hill returned, and said Mr. Partridge would give nine guineas. May said, 'he would be d—d if it should go under ten guineas.' He was in liquor, and on his moving a little way off, I took the opportunity of saying to Hill, that he should come in at nine guineas. I told May, directly after, that I had sold it for nine guineas, and that I would, out of it, pay him what I had of him, and give him something besides. We then got into a cabriolet, and went back to Williams and Shields, at the public-house, where all four had some beef-steaks and beer, and afterwards went to Guy's Hospital, packed the body in the hamper, and put it on Shields' head, telling him to take it to the King's College, where he went, Williams and Shields walking, and I and May riding part of the way in a cab. On reaching the King's College we carried the body into the theatre, and then into a little room, where we took the body out. Mr. Hill looked at it, and asked what it died of. May answered, that he did not know, and it did not concern him. Mr. Hill asked how a cut, which was on the forehead, came. I told him that it was done by May throwing it out of the sack on the stones, which was the truth. Hill told us to remain in the other room, and he would bring in the money. We went into the other room, and waited for some time, when Mr. Partridge came to us, and showed me a fifty pound note, and said he must go and get it changed, for he had not sufficient money without; and he pulled out his purse, and counted three or four sovereigns. I said he might let us have that, and he could give us the remainder on Monday. He said no, he would rather pay it altogether, and went away. We waited some time, when the police-officers came, and took us into custody.

'JOHN BISHOP.'

'Witness, ROBERT ELLIS.'

'I declare that this statement is all true, and contains all the facts, as far as I can recollect. May knew nothing of the murder, and I do not believe he suspected that I had got the body except in the usual way, and after the death of it. I always told him that I got it from the ground; and he never knew to the contrary until I confessed it to Mr. Williams since the trial. I have known May as a body snatcher four or five years, but I do not believe he ever obtained a body except in the common course of men in that calling, by stealing from the graves. I also confess that I and Williams were concerned in the murder of a female, whom I believe to have been since discovered to be Fanny Pigburn, on or about the 9th of October last. I and Williams saw her sitting, about eleven or twelve o'clock at night, on the step of a door in Shoreditch, near the church. She had a child, four or five years old, with her, on her lap. I asked why she was sitting there. She said she had no home to go to, for her landlord had turned her out into the street. I told her that she might go home with us, and sit by the fire all night. She said she would go with us; and she walked with us to my house, in Nova Scotia Gardens, carrying her child with her. When we got there, we found the family in bed; and we took the woman in and lighted a fire, by which we all sat down together. I went out for beer, and we all partook of beer and rum (I had brought the rum from Smithfield in my pocket). The woman and her child lay down on some dirty linen on the floor, and I and Williams went to bed. About six o'clock next morning I and Williams told her to go away, and to meet us at the London Apprentice, in Old-street-road, at one o'clock; this was before our families were up. She met us again at one o'clock at the London Apprentice, without her child. We gave her some halfpence and beer, and desired her to meet us again, at ten o'clock at night, at the same place. After this we bought rum and laudanum at different places, and at ten o'clock we met the woman again at the London Apprentice. She had no child with her. We drank three pints of beer between us there, and stayed about an hour. We should have stayed there longer, but an old man came in, whom the woman said she knew; and she said she did not like him to see her there with anybody; we therefore all went out. It rained hard, and we

took shelter under a doorway in the Hackney-road for about half an hour. We then walked to Nova Scotia Gardens, and Williams and I led her into No. 2, an empty house, adjoining my house. We had no light. Williams stepped out into the garden with the rum and laudanum, which I had handed to him. He there mixed them together in a half-pint bottle, and came into the house to me and the woman, and gave her the bottle to drink. She drank the whole at two or three draughts. There was a quartern of rum and about half a phial of laudanum. She sat down on the step between two rooms in the house, and went off to sleep in about ten minutes. She was falling back; I caught her, to save her fall, and she lay with her back on the floor. Then Williams and I went to a public-house, got something to drink, and in about half an hour came back to the woman. We took her cloak off, tied a cord to her feet, carried her to the well in the garden, and thrust her into it headlong. She struggled very little afterwards, and the water bubbled a little at the top. We fastened the cord to the palings to prevent her going down beyond our reach, and left her, and took a walk to Shoreditch, and came back in about half an hour; we left the woman in the well for this length of time, that the rum and laudanum might run out of the body at the mouth. On our return, we took her out of the well, cut her clothes off, put them down the privy of the empty house, carried the body into the wash-house of my own house, where we doubled it up, and put it into a hat-box, which we corded, and left it there. We did not go to bed, but went to Shields' house, in Eagle-street, Red-lion-square, and called him up; this was between four and five o'clock in the morning. We then went with Shields to a public-house near the Sessions House, Clerkenwell, and had some gin, and from thence to my house, where we went in and stayed a little while, to wait the change of the police. I told Shields he was to carry that trunk to St. Thomas' Hospital. He asked if there was a woman in the house who could walk alongside of him, so that people might not take any notice. Williams called his wife up, and asked her to walk with Shields, and to carry the hat-box which he gave her to carry. There was nothing in it, but it was tied up as if there were. We then put the box with the body on Shields' head, and went to the hospital, Shields and Mrs. Williams walking on one side of the street, and I and Williams on the other. At St. Thomas' Hospital I saw Mr. South's footman, and sent him upstairs

to Mr. South to ask if he wanted a subject. The footman brought me word that his master wanted one, but could not give an answer till the next day, as he had not time to look at it. During this interview, Shields, Williams, and his wife, were waiting at a public-house. I then went alone to Mr. Appleton, at Mr. Grainger's, and agreed to sell it to him for eight guineas; and afterwards I fetched it from St. Thomas' Hospital, and took it to Mr. Appleton, who paid me five pounds then, and the rest on the following Monday. After receiving the five pounds I went to Shields, and Williams and his wife, at the public-house, where I paid Shields ten shillings for his trouble, and we then all went to the Flower Pot, in Bishopsgate, where we had something to drink, and then went home. I never saw the woman's child after the first time before mentioned. She said she had left the child with the person she had taken some of her things to, before her landlord took her goods. The woman murdered did not tell us her name; she said her age was thirty-five, I think, and that her husband, before he died, was a cabinet-maker. She was thin, rather tall, and very much marked with the smallpox. I also confess the murder of a boy, who told us his name was Cunningham. It was a fortnight after the murder of the woman. I and Williams found him sleeping, about eleven or twelve o'clock at night, on Friday, the 21st of October, as I think, under the pig-boards in the pig-market at Smithfield. Williams woke him, and asked him to come along with him (Williams), and the boy walked with Williams and me to my house in Nova Scotia Gardens. We took him into my house, and gave him some warm beer, sweetened with sugar, with rum and laudanum in it. He drank two or three cups full, and then fell asleep in a little chair, belonging to one of my children. We laid him on the floor, and went out for a little while and got something to drink, and then returned, carried the boy to the well, and threw him into it, in the same way as we had served the other boy and the woman. He died instantly in the well, and we left him there a little while, to give time for the mixtures we had given him to run out of the body. We then took the body from the well, took off the clothes in the garden, and buried them there. The body was carried into the wash-house, and put into the same box, and left there till the next evening, when we got a porter to carry it with us to St. Bartholomew's Hospital, where I sold it to Mr. Smith for eight guineas. This boy was about ten or eleven years old,

said his mother lived in Kent-street, and that he had not been home for a twelvemonth and better. I solemnly declare that these are all the murders in which I have been concerned, or that I know anything of; that I and Williams were alone concerned in these, and that no other person whatever knew anything about either of them, and that I do not know whether there are others who practise the same mode of obtaining bodies for sale. I know nothing of any Italian boy, and was never concerned in, or knew of, the murder of such a boy. There have been no white mice about my house for the last six months. My son, about eight months ago, bought two mice, and I made him a cage for them. It was flat, with wires at the top. They lived about two months, and were killed, I think, by a cat in the garden, where they got out of the cage. They were frequently seen running in the garden, and used to hide in a hole under the privy. I and my wife and children saw one of them killed by a cat in the garden whilst we were at tea. Until the transactions before set forth, I never was concerned in obtaining a subject by destruction of the living. I have followed the course of obtaining a livelihood as a body-snatcher for twelve years, and have obtained and sold, I think, from five hundred to one thousand bodies; but I declare, before God, that they were all obtained after death, and that, with the above exceptions, I am ignorant of any murder for that or any other purpose.

'JOHN BISHOP.'

'Witness, ROBERT ELLIS,
Under-Sheriff.'

'I, Thomas Head, alias Williams, now under sentence of death in Newgate, do solemnly confess and declare the foregoing statement and confession of John Bishop, which has been made in my presence, and since read over to me distinctly, is altogether true, so far as the same relates to me. I declare that I was never concerned in, or privy to, any other transaction of the like nature—that I never knew anything of the murder of any other person whatever—that I was never a body-snatcher, or concerned in the sale of any other body than the three murdered by Bishop and myself—that May was a stranger to me, and I had never seen him more than once or twice before Friday the 4th of

November last—and that May was wholly innocent and ignorant of any of those murders in which I was concerned, and for one of which I am about to suffer death.

'THOMAS HEAD.'

'Witness, R. ELLIS,
'Newgate, December 4, 1831.'

'The above confessions taken literally, from the prisoners, in our presence,

'T. WOOD, }
 } Under-Sheriffs.
'R. ELLIS, }

In regard to this confession of Bishop, we may be allowed to offer a few cursory remarks, and particularly as we have, on another occasion, laid before the public the confessions of Holloway, two of which were given, as he himself expressly declares, for the express purpose of misleading the judicial authorities of the country, with the avowed aim of saving the life of his guilty accomplice, and in which, with shame be it spoken, he too well succeeded. A voluntary confession of a criminal, standing almost at the foot of the scaffold, ought to be received with the utmost degree of caution and distrust; but in the case of the confession of Bishop, the most singular feature of the case is, that part of it has actually been believed and acted upon, whilst another part is wholly rejected, and declared to be false, although no documentary evidence has been brought forward to prove it such. In regard, however, to confessions in general, it really appears to us, that every magistrate, who has a prisoner to examine, thinks it his duty to set himself, with all his skill, to prevent the discovery of the truth from the only person, who, although he may strive to disguise, knows completely the facts of the case. This custom has no sanction in law, is repugnant to common sense, and contrary to the practice of all other nations, whose criminal codes are, generally speaking, in a more perfect state, and are certainly much more humane than our own. A man charged with an offence ought not to be compelled to confession by the promise of pardon; but is there no difference between this and actually urging him to silence against

his will, as a method of escape, though he may have committed the offence? We are really sick of reading examinations, every part and portion of which are made up of injunctions to the accused, to do and say nothing whatever that can by any possibility injure his chance of eluding justice. The following, in our opinion, ought to be the practice:—All hints of advantage to the accused from confession—all recommendations to confess being cautiously abstained from; what he has to say, or chooses voluntarily to say, should be received in silence, and no obstruction thrown in his way; and, after all, what do these confessions amount to? They are but too frequently a tissue of falsehood and truth, calculated to mislead the jury, and cast a doubt upon the positive facts of the case. In all cases of confession, however, after conviction, the circumstances under which the confession is given should be particularly taken into consideration before any decisive opinion is formed as to its falsity or truth. From the nature of these circumstances a clue may be obtained to the motive which prompts the individual to make the confession, and on which depends, in a great degree, its claim to our credibility and confidence. The motive which prompted Bishop to make his confession could not have had any relationship with the hope of its saving him from an ignominious death; and it is not rational to believe that a man, under his circumstances, would make a confession for the mere purpose of deceiving, when he must have been fully conscious to himself, that not the slightest benefit could accrue to him. In the confession of Bishop there is an evident attempt to shake the verdict of the jury, to throw a doubt upon the administration of justice, and to agitate the public mind, and, as such, we would receive it with the utmost distrust; but the most striking peculiarity of the case is, that the main circumstances of it are corroborated by an accomplice, who could not have been actuated by any flattering motive to confirm the testimony already given, and who was actually ignorant at the time of the exact tenor of the circumstances detailed in the confession as given by Bishop. The confessions of Williams and Bishop were given to different individuals, in different places, but nearly at the same time, the chief question then to be decided is, had any previous agreement been entered into between these individuals as to the nature of the confession which they were to make? for unless such agreement had been entered into, the statement put forth by one of them, and corroborated in every particular by the other, supposing no previous collusion to exist, is certainly entitled to a great share of our belief. It is certain that the

confession of Bishop made a very strong impression on the public mind, and to qualify the effect of it, Mr. Corder put forth a written statement to the public, which will be given in another part of the work; and the aim of which was to demonstrate, that the last words of Bishop and Williams were false. The whole gist of Mr. Corder's statement rests on the following syllogism:—

Bishop confesses to the murder of a Lincolnshire boy,
No Lincolnshire boy has been missing;
Ergo—No Lincolnshire boy has been murdered.

Bishop, however, does not confess to the murder of the Italian boy, but he says, that the corpse which was taken, as it may be said, upon him, was not that of Carlo Ferrari, but of a Lincolnshire youth, who had been entrapped into their snares, as described both by Bishop and Williams. It must be also remarked, that the identity of the body of the Italian boy was never fully established; in fact, the chief witness who was brought forward to depose to the fact, declared positively that he could not swear it was the body of Carlo Ferrari, but that *it was very like it*. If we examine the majority of the confessions made by convicted criminals, we shall generally find them destitute of all truth. The confession of Fauntleroy was a confession of being *innocent* of almost all the forgeries he had committed; and it is rather remarkable, that the chief murderer of Mr. Steele, upwards of thirty years ago, was JOHN HOLLOWAY, and the most just verdict which was pronounced against him and his accomplice, Owen Haggarty, was attempted to be invalidated after their execution, on account of the confession made by the latter. A variety of opinions still exists in regard to the truth of Bishop's confession; but we shall here close our remarks, with the brief observation, that we do not perceive what right, in a Protestant Church, either priest or magistrate has to urge a convict to make a confession; for we are convinced, that if a confession before conviction be of little worth, the confession afterwards is almost universally false.

There was, however, one circumstance connected with the confession of Williams, which subjected the worthy Ordinary of Newgate to public

animadversion; and, subsequently, to an examination of his conduct before the Court of Aldermen.

It appears, that whilst Williams was making his confession to the Rev. Mr. Williams, of Hendon, the Rev. Ordinary stepped in, and put an end to all further disclosure from the mouth of Williams, which act was construed into one of supererogation on the part of Mr. Cotton, incompatible with his clerical character, and at variance with the promotion of the ends of justice. This circumstance was brought before the public in the following letter, addressed to the editor of a morning paper:—

'SIR,

'Can you inform me by what authority the Rev. Mr. Cotton interposed to suppress the confessions of the two murderers? Were they, in consequence, better qualified to receive from him that spiritual instruction which he professes to give, or had he any other motive by which his conduct was actuated?

'I am, Sir, your obedient servant,

JAMES STONE.

'Dec. 10.'

This letter produced the following one from Mr. Under-Sheriff Wood, addressed to the Editor of the same paper:—

'SIR,

'I read in your paper this morning a letter signed "James Stone," requesting to be informed "by what authority the Rev. Mr. Cotton interposed to suppress the confessions of the two murderers." That letter is dated December 10, but has not the address of the writer. Will you be so obliging as to furnish it to me, in order that the Sheriffs may ascertain upon what authority it was written, and whether there is any foundation for the imputation it is intended to convey? Till then, it must be obvious to Mr. Stone that he cannot receive an answer.

'I am, Sir, your obedient servant,

'THOMAS WOOD, Under-Sheriff.

'Little St. Thomas Apostle, Dec. 12.'

By the letter of Mr. Wood, he seemed to intimate that the Sheriffs were disposed to institute a solemn inquiry into the conduct of the Ordinary. If, however, they could suppose that person capable of acting the monstrous part imputed to him, surely they would not have wanted such aid as the unknown letter-writer could be expected to supply, in order to induce them to bring his merits before the proper authorities. At all events, it was no very handsome compliment paid to the worthy Ordinary.

In explanation, however, of the conduct of Mr. Cotton, the following letter appeared in the same paper, and on the same day, as that of Mr. Under-Sheriff Wood:—

'SIR,

'By way of elucidation, relative to the letter inserted in your paper of this day, demanding by what authority the Rev. Mr. Cotton interposed to suppress the confessions of the two murderers, and signed "James Stone," I beg to inform you, that whilst the Rev. Mr. Williams, of Hendon, was listening to the confession of Williams the murderer, Mr. Cotton went into the cell, and called out, "Come, come, Mr. Williams, what is all this about? I suppose you want to extract confessions with a view to publish them: let me converse with the criminal." Upon this unexpected and extraordinary interruption by the Ordinary, the Rev. Mr. Williams retired to another part of the room, and was much astonished. I am, Sir, your obedient servant,

'A READER.

'Paul's Chain, Dec. 12.'

Now there were but very few persons present when Williams is said to have been engaged in his confessions, and, of course, the writer of it could have been easily ascertained; but the publicity which had been given to the transaction induced the Court of Aldermen to institute an inquiry into the conduct of the Rev. Ordinary, and after a most minute investigation, he was fully exonerated from all the blame which had been imputed to him.

It may be here necessary to epitomize some parts of the confessions of Bishop and Williams, as it was on account of the concurrent testimony of those two individuals that a respite for May was ultimately obtained.

Bishop, during his interview with the Rev. Mr. Williams, had confessed to the commission of three murders, and he was proceeding to detail the particulars of a fourth, in which a black man, a negro, was the victim; and he was about to give the names of other parties who were implicated with him in the last-mentioned murder, when the interruption of the Rev. Ordinary already alluded to took place; nor could Mr. Williams, in the course of that interview, induce the convict to resume the thread of his narrative. The confessions, however, of Bishop and Williams both went to exculpate May from any participation in any of the murders. They both declared that May did not see the body, supposed to be the Italian boy, till the Friday evening, the day after the murder; they denied that their next door neighbour, Woodcock, could have heard any footsteps or scuffling, as he had described in his evidence; and they asserted, that, after hocussing the boy with laudanum in rum, he became as dead as a log. In that state they carried him to the well in the yard, and held his head under the water, till they were sure that he was completely suffocated. Previously to going into the yard for the above horrid purpose, they both took off their shoes.

They added, that, during the whole affair, there was no person in the lower part of the house, but themselves, Bishop and Williams, they having some time previously sent their wives to bed. The prisoners also denied the correctness of the medical testimony given on the trial. It will be remembered that the death of the boy was described in evidence, as having been occasioned by a blow inflicted during life on the back of the neck; whereas the prisoners asserted, that this appearance of a supposed deadly injury was occasioned by the twisting of the neck to force the corpse into the trunk, immediately after it was brought from the well. They also said that extravasation of blood, such as that described by the surgeons, always occurs when a body is thus doubled up while it is warm. Having received these confessions, and having heard the most solemn declarations from May of his innocence, the Rev. Mr. Williams and Mr. Wontner immediately waited upon Mr. Justice Littledale and Baron Vaughan, who had been present on the bench whilst the prisoners were tried by Lord Chief Justice Tindal, and who were still engaged in trying cases at the Old Bailey. On

hearing the statements made by Mr. Wontner and the Rev. Mr. Williams, Baron Vaughan felt inclined to suggest to Chief Justice Tindal, the propriety of recommending that a respite should be granted to May. Mr. Justice Littledale believed, on the contrary, that the verdict was correct in the case of May, as well as those of Bishop and Williams, and that the law ought to take its course. The Rev. Mr. Williams and Mr. Wontner then waited upon Mr. Chief Justice Tindal at his residence, and upon communicating to him the statements which they had previously laid before Baron Vaughan and Mr. Justice Littledale, the Chief Justice said, he would, as early as possible, see the Home Secretary on the subject. This learned judge appeared to agree in opinion with Baron Vaughan. It was next ascertained that Lord Melbourne was not in town; but as a Cabinet Council was to be held at two o'clock on Sunday afternoon, no doubt was entertained that his lordship would attend officially, and that shortly previous to that hour, the Chief Justice would have an opportunity of conferring with him on the facts of this extraordinary case.

During the whole of Saturday, the sheriffs, under-sheriffs and several other official persons were decidedly opposed to any mitigation of the punishment of May, and indeed to any delay of his execution; and it was expected that the applications that were being made on his behalf would be frustrated by the positive opinions and predilections of some influential individuals. But on Sunday morning the sheriffs visited all three of the prisoners in succession; and the under-sheriffs, who are very intelligent men, were engaged between three and four hours in taking down the statements of the convicts; the consequence was, we understand, that the opinions of both sheriffs and under-sheriffs underwent a decided change, as to May being implicated in the crime of murder. They were consequently desirous that *his* sentence should be mitigated. The result of all these investigations was, that on Sunday afternoon, at half-past four o'clock, a RESPITE during his Majesty's pleasure arrived at Newgate for May, and his sentence was commuted to transportation for life.

Shortly after the arrival of the respite at Newgate, Dr. Cotton and Mr. Wontner went to the room in which the three prisoners were confined for the day. The rev. gentleman opened the paper, and began to read it aloud. The most anxious attention was paid to its contents by all the prisoners; but the interest manifested by May, who must have known that the fate of his

miserable companions was sealed, but had felt that there was still hope for him, was quite painful to witness. His agitation was dreadful; but no sooner had Dr. Cotton repeated the words, 'that the execution of the sentence upon John May shall be respited during His Majesty's most gracious pleasure,' than the poor wretch fell to the earth, as if struck by lightning. His arms worked with the most frightful contortions, and four of the officers of the prison could with difficulty hold him. His countenance assumed a livid paleness—the blood forsook his lips—his eyes appeared set, and pulsation at the heart could not be distinguished. All persons present thought that he could not possibly survive; it was believed, indeed, that the warrant of mercy had proved his death-blow.

Mr. Wontner and Dr. Cotton, who have of course witnessed many scenes of dreadful agitation during their experience among capital convicts, declare that they never before beheld any human being so fearfully affected. It was nearly a quarter of an hour before May was restored to the use of his faculties. At last, when recollection returned, he attempted to clasp his hands in the attitude of thanksgiving, but his limbs shook so violently that he found even that was impossible. His lips moved, but nothing but inarticulate sounds came from his tongue. The parties present soothed him with assurances that they knew what he meant to say, and with earnest entreaties that he would calm himself, and not attempt to speak. When restored to something like composure, May poured forth his gratitude to God, and his thanks to the humane gentlemen who had interested themselves in his behalf. He then explained, that when the reverend ordinary commenced reading the warrant, he thought that all hope was at an end—that the ceremony was to signify to him that he must die—the sudden revulsion of feeling, when he heard the words we have quoted, caused him to swoon. He added, that on learning that he was to be spared, he felt as if his heart had burst in his bosom. He declared most solemnly, now that he was out of jeopardy, as he had done before, that he had nothing to do with the murder for which he had been condemned to die. He had never been concerned—either directly or indirectly—in any murder; but acknowledged he had committed many sins for which the Almighty might justly have left him to suffer on this occasion. He hoped now to lead a better life, and to evince his gratitude to God by sincere repentance.

It will hardly be credited that Bishop and Williams beheld this awful scene with an indifference approaching to apathy. The dreadful agitation of their less guilty associate seemed to have no effect upon them, though it was remarked that the contortions of May must have brought to their recollections the struggles of some of their murdered victims.

May (who is a tall, light-haired, and rather good-looking man, about thirty years of age) is the natural son of a barrister, who formerly had chambers in the New Inn. His mother was a laundress in the chambers; she was particularly fond of her son, and when he was about twelve years of age she used to lead him about, fearful that any harm should come to him. He was educated at a boarding-school, and received a tolerable education; he wrote an excellent hand, and at the age of fourteen he was employed in a professional gentleman's office, at No. 10, in the New Inn; but he was always of a wild, roving disposition, and whenever he could get away from his duties he was associating with the worst of characters about Clare-market. This appeared to be his sole delight until he neglected the office altogether, and was consequently discharged. He had at the same time some good friends, who felt an interest in his welfare, but nothing could induce him to break off with his associates; and instead of remaining a clerk, which he was well adapted for, he took a liking to be a butcher. The first place he got was at Mr. Roberts's, in Clare-market, with whom he lived some time: he afterwards lived with Mr. Price, in the same market; but he never remained long in one place. At last he took up the trade of a 'body-snatcher;' and in order to carry on the business with the greatest facility, took a lodging in one of the houses in Clement's-lane, Strand, the back of which looks into the burying-ground, situated in Portugal-street, at the rear of St. Clement Danes' workhouse. Here he commenced business, and was very successful; but like many others, flushed by success, he could not keep his own secret, and would brag of the number of bodies he had got out of the burying-ground at the back of his lodgings of a night, and what sums he had sold them for. He at first made no secret of his profession, and considered it meritorious, till at last he found that he was detested and despised by every person. He then left that part of the town, and got acquainted with Bishop and his associates. May was always considered a lively, interesting fellow, fond of jokes, and ready for any mischief; but his disposition was not naturally cruel, and no person who knew him a few years ago could believe

that he would be the accessory to take away the life of the humblest individual. May's mother is dead, but we believe his father is still living.

Williams was in custody not long since, charged with breaking into a house in a court situate near the Hackney-road, and stealing the corpse of a widow's son, a youth of sixteen or seventeen, who had died a day or two before. The poor woman had left her home for a short time only, and on her return found the corpse had, in the mean time, been stolen. Some of the female neighbours then recollected that while they were standing in the court shortly before, a man passed them with a basket containing something which smelt very offensively, and occasioned them to look particularly at the man, although they had no suspicion, until the alarm was given, that he was carrying off the corpse of the widow's son. A pursuit was immediately commenced, but without success. From the description given, however, a policeman apprehended Williams on the following morning, and he was identified by the females as the man whom they had seen near the house with a basket as stated. No trace of the body, nor of the manner in which it had been disposed of, could be discovered, nor any further evidence obtained, and, after an examination before a magistrate, the prisoner was discharged upon a recognizance. Williams was born at Highgate, and was apprenticed to a bricklayer; dissipation, however, led him to abandon his business and to become the associate of thieves; his conduct nearly ruined his mother; and after he had been repeatedly in custody on various charges of felony, about six year's since he was apprehended in Shoe-lane, selling a copper which he had stolen, and was convicted at the Old Bailey, and sentenced to seven years' transportation. Subsequently he was sent to the Penitentiary, which he left a few months since; and he then became a resurrectionist, and continued that horrid profession until apprehended. We understand he had only been married seven weeks previous to his apprehension.

The father of Bishop was a worthy and industrious man, who for some years kept an errand-cart between Highgate and London. On the 8th of November, 1816, he was unfortunately run over by one of Pickford's vans, the wheels of which passed over both his legs, and crushed them so dreadfully that amputation was necessary. He did not long survive the operation. The estimation in which he was held was evidenced by the fact, that immediately upon his decease the inhabitants of Highgate subscribed

upwards of three hundred pounds for the relief of the family. He left his widow far advanced in pregnancy. The money thus subscribed was placed in the hands of trustees, to be dispensed to the family as occasion might require. It was soon discovered that the objects of this liberal benevolence were unworthy of the exertions that had been made in their behalf, for the widow of the deceased and her son-in-law scrupled not to live together openly as man and wife. The money, however, had been raised for them, and the trustees who had no power to withhold it, were pestered with applications until the family had secured the whole. A great portion of it went into the hands of the widow, the son, and the daughter, who is now the wife of Williams, alias Head.

The conduct of both Williams and Bishop on the day previous to their execution was an intermixture of hardened indifference, and that agonizing restlessness which harrows up the soul of the criminal as the hour of his execution approaches.

Both the convicts slept during Sunday night, but awoke at intervals, and conversed with the officers of the jail appointed to watch them. Occasionally they entered into religious observances, but generally were averse to them. Once, when the person who sat up with Williams proposed to read to him some extracts out of religious books left with him by the Ordinary, Williams roughly declined the proposal, saying, 'I had religious talk enough during the day—I will have none of it to-night.' He then entered into conversation with the officer upon the subject of the offence for which he was going to suffer. He solemnly assured him that, up to the time of his marriage, he had never had any connexion with resurrection-men, and even added, that it was not until his wedding-night that he had any idea that Bishop got his livelihood by that horrible trade. He told the officer that on that night, shortly after he had got to bed, his wife conjured him not to have anything to do with the snatchers. This led to inquiries on his part, which terminated in a full disclosure, by his wife, of the practices by which her brother-in-law supported his family. No communication took place between himself and Bishop on the subject till some time afterwards, when he was suddenly thrown out of work. Bishop then gradually disclosed to him his mode of life, and asked him to become a partner in the trade. Williams assented. He then became a regular resurrection-man; but being tired with the difficulties and dangers of the trade, he proposed to Bishop, that, instead

of disinterring, they should murder subjects. He was then asked what led him to make such a proposal; and his reply was, 'The recollection of what Burke had done at Edinburgh.'

After some other facts, tallying with those in Bishop's account, he stated that on the Sunday after the murder of the woman Pigburn, they attempted to Burke a man whom they accidentally lured into their power. The laudanum, however, which they had mixed with his liquor was not strong enough, as Bishop said, to stupify him beyond resistance, and he was, therefore, allowed to escape, partly from a fear of his struggles, and partly from Bishop's arm being palsied by a similar feeling to that which palsied *Lady Macbeth's* arm in a similar situation,—namely, the feeling that the man whom he was about to despatch 'resembled *his* father as he slept.' Still bent on their murderous trade, they endeavoured, on the following Tuesday, to get another subject by the same means. Again was the laudanum inefficient; and in this case, as in the former, both the intended victims left the house in which they met these ruffians, without any idea of their having been exposed to such great and imminent danger.

Two men were appointed to sit up with each of the criminals during Sunday night. About half-past twelve o'clock, Williams, who had evinced during the evening a great degree of restlessness and feverish anxiety, became somewhat calmer, and said, 'I shall now go to bed for the last time.' He first threw himself upon his knees, and prayed for some time fervently, and then undressing himself, went to his couch, but continued in conversation with the men for more than an hour, during which time he wrote a note, of which we give a copy, addressed to the Rev. Mr. Russell, the chaplain to the Penitentiary, where he (Williams) was confined for about three years.

'Newgate, Dec. 4th, 1831.

'Mr. Russell,—If you will be kind enough to let my brother prisoners know the awful death which I shall have suffered when you receive this, it will, through your expostulations, prevent them from increasing their crimes when they may be liberated; and tell them bad company, and drinking, and blasphemy, is the foundation of all evil. Give my brotherly love to them, and tell them never to deviate from the paths of religion, and to have a firm belief in their blessed Saviour. Give my

love to John Edwards, John Justin, and John Dingle, and receive the prayers of the unfortunate and guilty

'THOMAS HEAD.'

Both prisoners rose at six o'clock in the morning, and were soon after visited by the rev. gentlemen who had before attended them. Williams, at times, appeared fervent in his devotions, and prayed earnestly; but at intervals he would pause, and seem as if his prayer was hopeless; again he would resume his prayer, and clasp his hands in great agony. Bishop also prayed; but he by no means showed the same fervour as his companion. There was a listlessness in his manner approaching to indifference, not merely to religion, but to everything passing around him. At one time, when urged on the subject of his hope of forgiveness, he said, he did hope and trust for mercy through Jesus Christ. He added, that he fully deserved what he was about to suffer, but that his case would be desperate, if some greater mercy were not extended to him in the world which he was about to enter.

We should here mention a fact, that has been communicated to us on highly respectable authority, that on Sunday, besides the Rev. Mr. Cotton and another gentleman, there were two clergymen present with the convicts. The two clergymen were instructing the men on doctrinal points, which Mr. Cotton thought unnecessary. He therefore advised that the prisoners should retire into different corners of the room, and pray silently to God. Mr. Cotton found it necessary to give this advice twice. On both occasions the men withdrew as desired, fell on their knees, prayed for a short time, and then burst into tears. Before this, both prisoners seemed agitated to a degree which it was most distressing to witness. As they prayed they became more composed. The Rev. Mr. Russell, and another clergyman, were with the prisoners early on Monday morning, and remained with them up to the time of their being removed into the press-room.

The applications made on Sunday to the sheriffs, by the nobility and gentry, to allow them admission to the interior of the prison to witness the preliminaries of the execution were beyond all precedent.

Many applications were also made for admission to the condemned sermon. None, however, was preached. In the case of murderers this solemnity is not granted. The tolling of the prison-bell, which adds so much to the horrors of

a common execution, by sounding the knell for the dead in the ears of those about to die, was also dispensed with. We never heard that any sufferer complained of the omission. We have seen many who were not murderers deeply affected by the funeral honour or compliment thus paid to them on their way to the scaffold.

During the whole of Saturday and Sunday, the lord-mayor and sheriffs, assisted by the city marshals, Messrs. Brown and Cope, were busily engaged in adopting precautions to guard against the possibility of accident at the execution. All the officers of the various wards in the city were ordered to attend; and besides the usual force of the city police, a large body of special constables were sworn in. An extra number of heavy barriers were erected in the Old Bailey, immediately contiguous to the space on which the gallows stands, at short distances, so as to prevent the crush of the multitude as much as possible; and the same precautions were adopted at either end of the Old Bailey, at the end of Newgate-street, Giltspur-street, and Skinner-street.

All the constabulary force received orders from the city marshals to assemble at five o'clock in the morning, and to take the stations appointed for them.

During the afternoon of Sunday groups of persons were congregated in different parts of the Old Bailey. Towards evening the crowds increased, and by midnight great numbers were assembled, who actually remained all night on the spot, in order to secure places near the scaffold on the following morning. The occupiers of houses, from the windows of which a view could be obtained of the execution, exhibited placards, announcing various prices for seats according to the proximity of the domicile to the spot, and though it was generally stipulated that such seats could not be kept for parties after six o'clock in the morning, they were eagerly sought for and secured at a guinea per seat and upwards. So much as ten guineas was given for a single window, and all these seats were occupied by those who had engaged them, at so early an hour as five o'clock, upon a cold, cheerless, and most uninviting morning. Shortly after midnight the gallows was brought from the yard, and the workmen proceeded to erect it in the usual place, opposite the debtors' door of Newgate. A large space around it

was barricadoed to keep off the crowd, and the inside of that space was subsequently nearly filled by constables and marshalsmen.

The crowd, as early as one o'clock, amounted to several thousand persons, and continued rapidly increasing. By five o'clock nearly two-thirds of the Old Bailey were filled with a dense mass of people. The continued buzz among the multitude at this time, the glare of light from the torches that were used for the purpose of enabling the workmen to proceed with their labours, and the terrific struggles among the crowd, altogether presented a scene which those who witnessed it will not soon forget. As the dawn of day approached, and with it the fatal hour that was to consign the wretched criminals to their well-merited fate, all the streets leading to the Old Bailey were thronged with people, chiefly of the working classes, hastening to the spot. Constant streams of population were pouring into the Old Bailey till they formed, around the scaffold and at the corner of every street from whence even a distant or a faint view could be obtained, a vast lake of life. Amongst the immense assemblage might be noticed several females, most of them of that *caste* whose attendance on such an occasion might be naturally expected, but some of them, we regret to state, of a class that decency, if not humanity, should have kept away from a scene so revolting to those delicate sensibilities that generally characterize females.

When the fatal drop was stationed in its usual place, it was observed that three chains were suspended from it. As soon as Mr. Wontner, the governor of Newgate, heard of it, he ordered an officer to remove one of them, May having been respited. This was done, and although it was then dark, it was instantly communicated throughout the vast assemblage, and a general cry of 'May is respited' was uttered. The announcement did not seem to excite much surprise, although a few individuals expressed their disapprobation by yelling and hooting.

About half-past six o'clock a body of city police, amounting to about two hundred men, came up the Old Bailey, but the crowd was so dense at this time that it was found impossible for them to proceed to their station, which was at the foot of the gallows. After several ineffectual attempts to pass on, it was arranged that they should be allowed to go through the prison. Several persons seized this as a favourable opportunity, by presenting constables' staves, to pass themselves off as belonging to the police; but Mr.

Browne, the marshal, suffered no one to pass whom he did not recognize either as belonging to the city police or as special constables. The pressure in the immediate neighbourhood of the scaffold was tremendous, in spite of the barriers; and many persons exhausted with fatigue, as early as seven o'clock, rescuing themselves with difficulty from the throng, were heard to exclaim, as they passed the outskirts of the mob, 'Thank God, I have got away!' Many who thus quitted the scene with torn clothes, and faces streaming with perspiration, had remained on the spot for hours. Indeed, the avenue from the house of Mr. Cotton, the ordinary, to the house of Mr. Wontner, the governor of Newgate, was so completely blocked up at an early hour, that Mr. Cotton, and another clergyman who accompanied him on his last visit to these unhappy convicts, were unable to force their way through the crowd, and could only obtain admittance into the prison by making a *detour* to the other end of the Old Bailey, and by entering it through the iron railings around the New Court.

As day began to break we had an opportunity of surveying the crowd from the top of Newgate, and we should think that at that time there were not less than from thirty thousand to forty thousand persons assembled. The tops of the houses, lamp-posts, and every station from which the most distant view of the execution could be obtained, were by this time occupied. In fact, from one end of the Old Bailey to the other, was one dense mass; and the streets in the neighbourhood, although not a glance could be had of the platform or the proceedings, were, from an early hour, rendered impassable by the throng of persons hurrying towards the scene of execution. The assemblage was the largest that has ever been witnessed on an occasion of the kind, since the execution of Holloway and Haggarty, upwards of twenty years since, when some fourteen or fifteen persons were trampled to death in the crowd. The following fact will convey some idea of the extent and densely-congregated state of the crowd on Monday,—namely, that even so far as St. Sepulchre's church, in Skinner-street, several individuals, whose screams for relief had induced the people to raise them up, were passed over the heads of their neighbours for some dozen yards before they could obtain a resting-place.

Notwithstanding the many precautions taken by the city authorities to prevent accidents, we are sorry to say that several occurred; and though no lives were lost, we fear that some of the injuries that were sustained were of

a very serious description. At the end of Giltspur-street, immediately opposite the Compter, a very heavy barrier was erected across the road for the purpose of counteracting the immense pressure of the mob, which in that direction extended to Smithfield. This barrier was fastened to two uprights, that were placed two feet in the ground, by iron hooping, which was by no means of sufficient strength for the immense weight of the timber to which it was attached. The consequence was, that at the moment the culprits were visible on the gallows, the barrier was forced down, and a number of persons of both sexes fell with it. The screams of the females, and the confusion that ensued, were truly alarming. One female of very respectable appearance, with her husband, were most dreadfully injured, the barrier having fallen upon their chests, and others of the mob pressing upon them. A city constable was also under the barrier, which rested on his abdomen, and his cries were most deplorable. In this dreadful situation did the sufferers remain for some minutes. A cry of 'Stand back; for God's sake, stand back!' was raised, but all was of no avail, and people in all directions were trampling upon each other.

At length some of the officers from the Compter came out, and with the assistance of several other officers, a space of ground was obtained, and the individuals were rescued from their perilous situation and carried to St. Bartholomew's Hospital, where they were promptly attended to by Mr. Birkett, the dresser to Mr. Vincent, the principal surgeon, who had been in attendance all night to receive any accident that might be brought in. Before nine o'clock, every bed in Colston-ward was occupied by persons who had been injured at the moment the barrier gave way, and many of them most seriously so.

As the hour of eight approached, the anxiety of the multitude became more intense, and every eye became directed towards the door through which the wretched criminals were to be led to the scaffold.

At half-past seven o'clock, the Sheriffs, accompanied by the Under-Sheriffs and several gentlemen to whom they had given permission to be present, entered the prison. The Sheriffs immediately proceeded to the condemned cells, where Mr. Wontner, the Governor, delivered the prisoners up to them for execution. The Sheriffs then proceeded to the Press-room, in which the strangers who had got admission to the prison were also admitted. The

prisoners were soon after introduced by the Sheriffs' officers. Bishop entered first. That kind of stupor which we already noticed when the verdict of the jury was pronounced, was still more strongly upon him. He advanced in rather a drooping manner, his eye fixed on the ground. His step was slow without being firm, and his whole bearing was rather that of a man unconscious of, than of one indifferent to, the dreadful scene through which he was about to pass. He had got more than half way to the upper end of the room before he looked around; when he did, a kind of half-suppressed groan escaped him, as from one who was for a moment roused to a quick sense of an approaching violent death. But it was only for a moment, for at once he seemed to relapse into his former stupor: his eye was again bent on the ground, and he moved mechanically up to the officer, who stood ready to tie his hands, and stretched forth his arms, the wrists being closely pressed together. When that part of the preparation was concluded, he turned round and allowed his arms to be pinioned. This done, he took his seat at a side-bench without uttering a word. There were many persons in the room who seemed to think that this calm and quiet manner showed great firmness, but if they had seen him before, or watched him more closely, they would have perceived that there was nothing of real firmness in the man. His eye was sunk and heavy, and seemed to shrink from the gaze of those around him. It was for the most part fixed on the ground. One of the Under-Sheriffs took a seat by his side, and in a low tone asked him (we understood) whether he had anything more to confess. His answer was, 'No, Sir, I have told all.' The Under-Sheriff remained with him for a few moments, but the only answers we could hear from him were to the effect that he had nothing more to tell.

Williams was next introduced, and came up the room with the same short hasty step, which we noticed at the time of his sentence. Since then, however, his whole appearance had undergone the most terrible alteration. That cunning and flippant look, which we noticed in him on his trial, had left him, and had given place to a wild and frenzied stare. His look, as he entered the Press-room, was one of downright horror—every limb trembled as he approached the officer by whom he was to be pinioned, and his hands shook to that degree, that one person was obliged to hold them up while another bound the wrists together. While submitting to this operation, he frequently ejaculated, 'Oh, I have deserved all this, and more!—oh, I have

deserved all that I am about to suffer!' One of the Under-Sheriffs now asked him whether he had anything more on his mind, or wished to make any further disclosure; he replied, 'Oh no, Sir, I have told all—I hope I am now at peace with God. What I have told is the truth.'

It was remarked that Bishop or Williams took no notice whatever of each other while they remained in the Press-room. Neither seemed to be conscious of the presence of the other, or to wish to avoid any recognition. The contrast in the manner of the two was very marked in this respect,—for Williams seemed relieved when any one addressed him, as if anxious to escape from his own thoughts, or to have his attention called off even for an instant, from the dreadful scene which approached him. Bishop, on the contrary, was sullen, and seemed rather desirous of avoiding any conversation. His answers, when addressed, were short, and delivered in a tone as if pained by any questions put to him.

After the operation of pinioning had been gone through, at a few minutes before eight, the Sheriffs, accompanied by their officers and the prisoners, proceeded towards the scaffold, the Ordinary reciting part of the funeral service. Bishop moved on in the same gloomy and desponding manner which we have already noticed. His appearance underwent no change as he approached to the foot of the scaffold. Williams became more and more agitated as he went on. Just as he came to the room which led out to the drop, he expressed a wish to see the Rev. Mr. Russell once more. That gentleman came forward, and while Bishop was led out, seated himself near him. Williams said something in a low tone, which we did not hear. Mr. Russell said to him, 'Now, Williams, you have but another moment intervening between you and death; and as a dying man I implore you, in God's name, to tell the truth. Have you told me the whole truth?'

WILLIAMS.—'All I have told you is true.'

Mr. RUSSELL.—'But, Williams, have you told me all?'

WILLIAMS (still evasive).—'All I have told you is quite true.'

This was the last remark he made, and in a few moments he ascended the scaffold.

We were glad to observe that the very absurd custom of the Sheriff taking leave and shaking hands with the prisoner was, in this instance, very properly dispensed with.

At eight o'clock the procession began to move from the press-room, and the appearance of the executioner and his assistant on the scaffold indicated that the last and awful ceremony was just at hand. A general cry of 'Hats off!' took place, and in an instant the immense multitude were all uncovered. Bishop was first conducted on the scaffold, and his appearance was the signal for the most tremendous groans, yells, and hootings, from all parts of the crowd. The wretched man came forward, apparently unmoved by the dreadful reception he experienced. The executioner proceeded at once to the performance of his duty, and having put the rope round his neck, and affixed it to the chain, placed him under the fatal beam. A terrific cheer from the crowd proclaimed their satisfaction at the completion of the preparations for his exit to the other world; but still, though placed on the brink of eternity, and about being launched into it, amidst the execrations of his fellow-creatures, the miserable criminal betrayed scarcely a symptom of fear. The same listless and sullen manner that had marked his conduct throughout appeared to be preserved by him to the last moment. Not a muscle seemed to be moved, not a limb shook, though he remained, during the awful interval of two minutes that elapsed before Williams was brought forward, exposed to the indignant hootings of the multitude. Williams next ascended the scaffold, on reaching which he bowed to the crowd, who returned his salutation with the most dreadful yells and groans. He appeared to labour under extreme anguish, and his demeanour altogether formed a complete contrast to that of his guilty associate. While the cap was being put over his eyes, and the rope adjusted by the executioner, his whole frame seemed convulsed by one universal tremour. The Rev. Mr. Cotton, having engaged the wretched men in prayer, in which Williams appeared to join fervently, wringing his hands and ejaculating aloud, gave the signal for the falling of the drop, when they were launched into eternity. Bishop appeared to die almost instantaneously, but Williams struggled for several minutes. The moment the drop fell, the crowd, which had been yelling all the time, set up a shout of exultation that was prolonged for some minutes.

Strangers who had been admitted were directed to retire, as the Sheriffs were going in to meet some friends at breakfast. We understand it is an old

custom at Newgate, that the Sheriffs should entertain the Under-sheriffs, the Chaplain, and other friends at breakfast in the prison, on the occasion of an execution.

The bodies, having been suspended for the usual time, were cut down at nine o'clock. That operation was performed by the executioner, amidst the shouts and cheers of the crowd, which still continued very great.

Immediately after, a small cart drove up to the platform, and the bodies of the culprits were placed in it, covered with two sacks. The cart then moved on at a slow pace, followed by the Sheriffs and City Marshal, and a large body of constables, along Giltspur-street, to the house of Mr. Stone, No. 33, Hosier-lane, the vast crowd yelling, and making other discordant sounds as they proceeded. On reaching Mr. Stone's house, it was with great difficulty the bodies could be removed from the cart, the crowd appearing anxious to get possession of them. The bodies were placed on a table, and in the presence of the Sheriffs (in conformity with their duty) an incision was made in their chests, after which they withdrew.

The bodies were removed the same night—Bishop to the King's College, and Williams to St. Bartholomew's, to be dissected.

Some of the manufacturers of 'last dying speeches and confessions' had, as usual, provided a plentiful supply of those veracious sheets for the gratification of peripatetic curiosity, and, as usual, some of them were sold even before the execution took place; but, unfortunately, the speculative typo, not being aware that May had received a respite, included him among the dying penitents, and an *elegant* wood-cut at the head of the paper represented the *three* culprits dangling from the gallows.

In regard to the breakfast which is given by the sheriffs on the morning of an execution, we will venture to recommend to the Court of Aldermen to take into their consideration the abolition of this most unfeeling and disgraceful custom; for it is such circumstances as these, although apparently trifling in their nature, which throw us so far back in the scale of civilisation, and verify the remark of the French philosopher, who says, that the English are the most voracious people in Europe, whether it be a wedding, a funeral, or an execution, eating and drinking are the leading features of the scene. There is something actually revolting to the feelings

in the idea, that whilst a human being is suffering the agonies of death on the scaffold, a number of functionaries should retire into a certain room, in which custom (which would be far more honoured in the breach than the observance) gives its sanction that they should be regaled with a sumptuous repast, and that they should only be obliged to rise from it when the summons arrives that it is time for the body of the unfortunate wretch to be cut down.

Connected with this subject, there is another custom equally repellent and revolting, and that is, that the office of giving the signal of death should devolve on the Rev. Ordinary. Is it in the least consistent with the functions which he has to perform, and with the general duties of the clerical character, that he alone should be selected, amongst the attendant officers, for the performance of so abhorrent an act? It is the duty of the sheriff to see the execution performed,—it is the duty of the clergyman to prepare the unhappy culprit, by his prayers and admonitions, for that awful change which in a few moments awaits him;—but there is something positively unchristian, unsacerdotal, degrading, and reproachful, to a minister of the religion of Christ, that he should be the acting attendant on the scaffold of the murderer, and that on his signal the moment is to be decided when his companion, the executioner, is to withdraw the fatal bolt. Why, after the clergyman has completed his religious duties, should he not retire from the awful scene, and the office of giving the signal devolve upon the Under-sheriff? or why should not the example be followed of the Scotch executions, in which the criminal gives the signal himself, before which, the minister has retired from the scaffold? It may have been conformable to the spirit of the church during the reign of popery, that the priest should assist at the executions, and, in the case of a heretic, be the first to apply the blazing torch to the pile of fagots. But the time, we hope, is not far distant when the custom to which we have alluded, and which is actually at variance with the purity and sanctity of the ecclesiastical character, will not longer be known to exist as a stigma upon the first city of the world.

We were induced to witness the execution of Bishop and Williams, under ordinary circumstances so distressing to contemplate, not solely in our editorial capacity, but from an intense curiosity to see in what manner individuals, burdened with guilt of such peculiar atrocity, would conduct themselves on the eve of appearing in the presence of their Maker; and we

felt convinced that none of those human sympathies incident to beholding the dying agonies of a fellow-creature would be excited by viewing the last struggles of those whose lives had been blackened past redemption by the commission of such barbarous and mercenary butchery.

Nor were we mistaken in this estimate of our feelings; for, so far from entertaining any sensation of pity for the criminals, we could scarcely resist the impulse to join in the exulting shout with which they might literally be said to be cheered into eternity. As we returned, however, from the place of execution, reflection succeeded to the previous excitement which we had experienced. We began to analyse the crime of the two malefactors whose exit we had just witnessed; and a careful examination of its characteristic features led us voluntarily to come to the painful conclusion that there might be found individuals, even in the higher spheres of life, who really appear almost, to use the language of Iago, to 'stand accountant for as great a sin.'

The man who commits one act of wilful murder, deservedly suffers the extreme penalty of the law, and no greater punishment is awarded to him who commits a hundred. Yet we well know that the abhorrence of society would be much the greater towards him who had perpetrated the offence the more frequently. And why so? Because, as all crimes, even the vilest, differ in degree, we feel that the man who has but once imbrued his hands in the blood of a fellow-creature, may have been prompted by a sudden impulse of rage or revenge, and may afterwards be touched with the deepest compunction for his crime; but repeated deeds of death prove that the perpetrator of them is actuated by selfish motives, and is wholly inaccessible to remorse.

It is the circumstance of Bishop and Williams having murdered their victims for the sake of lucre, that imparts a feature of peculiar horror to their crime. But it should be remembered, in a moral point of view the turpitude of the deed would not have been diminished had it been committed with a view to the ensuring any other selfish advantage or enjoyment, instead of procuring money, which, after all, they valued only as the means of obtaining selfish gratification. When Sir Robert Walpole said, that every man had his price, he, of course, did not mean that every man could be purchased by a greater or smaller portion of the current coin of the

realm; but he well knew that a riband or a harlot might buy many a man to whom disposition or circumstances would render money a matter of indifference. When the Hebrew monarch, in order to carry on without fear of interruption his adulterous intrigue, directed the treacherous murder of one of his bravest and most loyal subjects and defenders, he attained to a sublimity of wickedness to which no mere Burkite can hope to aspire.

If this idea be correct, then, we are justified in assuming, that the taking away the life of any fellow-creature or fellow-creatures, solely for the purpose of obtaining any selfish object, is equally guilty, whether that object be avarice, lust, or ambition; and not only he who actually commits the deed, but he who orders it—instigates it—exults in its completion—or even desires its perpetration, are all, in different degrees, criminal. We know of the existence of an attorney-general, and therefore policy and prudence both forbid us to enter into any personal application of this part of our subject. Certain circumstances are, however, too fresh in the recollection of the public to doubt for a moment as to the parties to whom we allude.

On the afternoon of the day of execution, we saw the body of Bishop at the Royal College, where it was publicly exhibited, and to which hundreds of persons thronged, as if they were hastening to a theatrical exhibition. A longitudinal incision had been made from the thorax downwards, and transversely on the pectoral muscles. A more healthy or muscular subject has not been seen in any of the schools of anatomy for a long period. The ligaments of the atlas indentatus were not broken, and he died of apoplexy, and not from the fracture of the vertebræ of the neck. The body presented a remarkably fine appearance across the chest. The deltoides were splendidly developed, and symmetrically beautiful. The biceps were also fully developed, and the pectorales, major and minor, were particularly displayed. The left side of the face, near the whisker, was cut deeply by the rope. The neck was short, and the eyes glassy, as when he was living. His height was about five feet seven inches; his limbs remarkably well formed, and the body unusually hairy and muscular. There were the marks of two scars on his face, near the chin; and both his legs had been broken some time or other.

A meeting of the professors and lecturers in anatomy took place on the same night, on the subject of the atrocities lately discovered as having been

resorted to for the supply of anatomical subjects. It was proposed and adopted by the meeting, after some discussion, that the professors and lecturers of the metropolis should discontinue their classes for the present, until some measure should be devised by Parliament for a supply of subjects under the sanction of law, and without the risk of giving encouragement to mercenary murderers. This resolution was accompanied with the condition that all the other anatomical schools throughout the kingdom should be shut up at the same time.

Mr. Baron Vaughan, one of the judges who tried Bishop and Williams, was present at the dissection of the body of the former murderer at the King's College. He was accompanied by Dr. F. Hawkins, one of the professors to the College. Previous to the body being opened, the professor of medical jurisprudence delivered a lecture on the appearances, external and internal, of death, by strangulation, drowning, and other violent means, to exhibit which the cavities of the head, chest, and abdomen of the murderer, were then carefully examined by the professor of anatomy. The brain presented an unhealthy appearance, a circumstance attributed to the great mental anxiety which Bishop underwent during his repeated examinations, and at the trial. It is intended to preserve the skeleton of Bishop in the King's College.

The disclosure by Bishop and his companions of the manner in which the anatomical schools were supplied, not even stopping short of murder, excited a ferment throughout the country, in which the surgical profession came in for the greater share of the odium. It, however, as is the case with all temporary evils, became the source of general good to the country, inasmuch as it led to the development of many plans for the better providing of subjects for the anatomical schools, amongst which, that of the voluntary grant, by particular individuals of their bodies after death, was not the least remarkable. We are, however, too well acquainted with the prejudices of the age, to expect that a system of that sort can ever become general; it may exist amongst a few noble, generous spirits, who can rise above those narrow-minded prejudices, while, at the same time, they more than share in the humanity of the times in which they live. Nothing can appear to us more laudable than this sacrifice of present personal repugnances for the future benefit of those in whose happiness we cannot participate, and to whose approbation we must necessarily be insensible.

After all we are aware that this must be only a scanty resource for the supply of subjects to our anatomical schools, and we hail the proposal not as the means of rendering a legislative measure unnecessary, but as a partial victory over those prejudices which made legislation itself dangerous or inefficient. When the subject has hitherto at different times been brought before the public, it has with mischievous industry been represented as a question not between the anatomical exhibition of the dead and the benefit of the living, but between the dissection of the poor and the exemption of the rich,—between the honoured interment of the latter, and the disgraceful mangling of the remains of the former. This clamour, after being echoed from one end of the country to the other two years ago, penetrated within the walls of Parliament and affected the majority of the House of Peers. It was then a common exclamation,—if anatomy be necessary to medical science, and if medical science be so useful to mankind, why do not the upper classes of society, why do not the wealthy and the enlightened consent to give their bodies for dissection as well as the poor, and why are the sacrifices for medical knowledge to be confined to those who have enjoyed the least of its benefits?

But admitting the merit of the examples of personal sacrifices, and allowing that they ought to influence the pretended sages who think themselves peculiarly entitled to be called the guardians of the poor, because they pander to their lowest passions, and foster their most unreasonable suspicions; we are still not of an opinion that they supply the strongest argument with the poorer classes, for abandoning their present antipathies to dissection and for giving their voluntary assent to a change in the existing law. That strongest argument is, that they at present afford nearly all the subjects for our anatomical theatres; that they are the chief sufferers by the imperfection of our surgical knowledge, and that they would be the chief gainers by an extension of medical skill.

When a clamour is raised against a proposition for giving up the unclaimed bodies of those who die in hospitals or poorhouses to be dissected, it is, of course, pretended, that at present the poor are exempted from the imaginary calamity. Now what is the real state of the case? Are not the poor as exclusively the subjects of anatomical examination now, as they could be under any change of the law? Whither do the body-snatchers go when they receive an order for the exercise of their repulsive contraband? Do they not

bargain with some gravedigger, or the porter of some charitable establishment, for the connivance in seizing bodies which belonged to the poorer classes? The rich are not often disturbed in their tombs by the unhallowed intrusion of the resurrection-man. They are allowed to slumber in their inaccessible vaults, while their poorer neighbours are raised and dissected for the benefit of posterity. If some Bishop or Williams, unable to supply the trade with the fruits of plundered churchyards, think of *making* subjects, whom do they entice into their den of murder? Not the affluent, the respected, or the known, but the poor unfriended wretches, for whom nobody is supposed to care, and whose loss nobody will deplore,—the very parties, in short, who would, most probably, be borne to their grave, at the public expense, from the wards of a hospital, or the cells of a poor-house. It is not likely, notwithstanding Sir Astley Cooper's remarks, that persons possessed of property more valuable than their bodies, would be killed to obtain their bodies. Neither an alderman, a bishop, nor a member of parliament, could be supposed to labour under any apprehension of being *Burked*; and, therefore, the source of supply, to whatever extent it proceeded, remained exclusively with the poor.

Nor could the poor avoid being almost the only sufferers by the deficiency of surgical skill, which an efficient supply of subjects for dissection would necessarily occasion. The wealthy can always purchase the best portion of knowledge and experience which is in the market. They are not likely to submit their limbs or organs to a bungling operator, or take advice from an unskilful physician; and if scientific medical practitioners cannot be educated at home, they can pay them for the accomplishments and knowledge which they must acquire in foreign countries; but the poor must be contented with ignorance and inexperience, if their prejudices debar the less wealthy portion of the profession from the means of acquiring anatomical science.

We, therefore, are of opinion, that it would be chiefly for the benefit of the lower classes themselves, that those who die in hospitals, in workhouses, in prisons, or in penitentiaries, and whose bodies are not claimed for interment by any relative, should be distributed amongst the anatomical schools, under such sanctions, and with such formalities, as religion and decency require; the supply of subjects from this source would be sufficient, and from none other.

We recommend the following letter of Sir J. Sewell, on this subject, to the attention of our readers in which other classes of supply are enumerated; although, we think, several provisions of his measure are unnecessary, and one or two would be injurious to his object.

The suggestion which he makes of giving up the bodies of suicides for dissection would be a good one, if anything like an adequate supply could be furnished by such a course; but as this would not be the case, a great injury would result from a plan which would aggravate the already existing prejudice arising from the intimate connexion in the public mind between dissection and ignominious punishment. We are further convinced, that the surrender of the body of the suicide to the anatomical schools will never become a part and parcel of the law of the land. It would encroach too much upon the higher stations in life; for where there is one pauper who destroys himself, we could enumerate a dozen in the most elevated ranks of society. If the law declared that the body of the wretched being, who, by the pressure of poverty or misfortune, had sought a remedy for his sorrows by the sacrifice of his own life, should be given up,—the same law ought to be made to apply to a Whitbread, a Romilly, a Castlereagh, and a Calcraft, all being, at the time of their death, legislators of the nation, from the assembly of whom is to emanate the very law which is to consign their bodies, in case of suicide, to the knife of the anatomist.

The following is the letter of Sir J. Sewell:—

'SIR,

'Having dined yesterday with some of my brother magistrates, I learned, upon information, which I have no reason to distrust, that beside the confessions published, another was made on Sunday, the 4th, which comprehended a catalogue of about sixty murders, and would have probably gone on to a much greater extent, but for the interference of the Ordinary.

'When to this is added the large supply which, by the published confessions, Bishop appears to have furnished for dissection, the great number of persons employed in the same way, the probable profligacy of such persons, and, as asserted, a great falling off in the number of burials, notwithstanding the increased population of this metropolis,

there is certainly but too much reason to believe that this system of murder amongst the poor which Bishop said he resorted to as both less expensive and less hazardous than collecting from cemeteries, is become extremely common; that it is in a state of progression; and that new and extraordinary modes, however inconvenient to the professors and students of anatomy, must be had recourse to for the prevention of such atrocious crimes.

'The plan which I now submit to your consideration is not offered as a perfect one, or as approaching to perfection; and the greater part of it is the result of reflection upon the subject, since receiving the information above-mentioned; but it may suggest improvements to those who are capable of making them, and though the process proposed will be necessarily attended, in the procurement of subjects, with difficulties and expenses which do not belong to the present course of practice, the aggregate charge will, I hope, very soon be diminished; and that a commerce, which is asserted, by the faculty in general, to be of very great public consequence, may be carried on to the satisfaction of all the parties interested, and without the commission of a crime in any of them.

Suggestions for a New Act of Parliament as to the Supply of Bodies for Dissection.

1. That from and after the —, the bodies of all persons convicted of felony, and who, in consequence of such conviction, shall die in any place of confinement, in the United Kingdom, may be sold for dissection. The sale to be by public auction, the proceeds to be paid to the treasurer of the county in which the prison shall be, and applied in aid of the county rates.
2. So also the bodies of all under commitment for felony, if not claimed within — hours after death.
3. So also the unclaimed bodies of those who die in hospitals and workhouses.
4. Suicides.
5. Unclaimed bodies of persons found dead.

6. To legalize the sale by persons while living, of their bodies after death.

7. To secure the due delivery to the purchaser on demand.

8. With certain exceptions, no dissections of the bodies of persons dying in Middlesex, or in certain parishes in Essex, Kent, and Surrey, to be permitted before the body shall have been exhibited at an appointed place, with evidence of name, residence, cause of death, &c. satisfactory to a magistrate assisted by a surgeon.

9. That the magistrate be one of the police magistrates in his turn, and that the attendance be every day at —— except Sunday, and for so long a time as may be needful in respect to bodies brought in before that hour.

10. That the magistrate give a certificate of his satisfaction as to the death, and a permit for removal and dissection.

11. That the body permitted be branded, or otherwise marked indelibly, upon the skin of every part which is commonly purchased by students who have not occasion for the whole.

12. That a register be kept of the name, residence, and cause of death, and of every person whose body is produced.

13. That the only exceptions allowed to this course be the *post mortem* examinations by dissection under the special directions of a coroner or other magistrate, or which are performed in the dwelling of the deceased, with the knowledge and consent of the family.

14. That whoever shall dissect a body, or any part of a body, as a separate portion, not being duly marked, or shall be possessed of them, shall be subject to ——.

15. That the forgery, or aiding or abetting, of the brand or mark, of the certificate or permit, shall subject the party to ——.

16. That similar provisions be made for other parts of the kingdom.

'I have the honour to be,
Sir,
Your very humble servant,
J. SEWELL.'

21, Cumberland-street, Portman-square, December 8.

In corroboration of the plan of Sir J. Sewell, the following very able remarks were addressed to the Editor of *The Times*.

'SIR,

'Having read Sir John Sewell's "Suggestions for a new Act of Parliament as to the Supply of Bodies for Dissection," I trust to your kindness in enabling me to express publicly my humble opinion on the same, conceiving them to be good and just in every respect excepting one, the idea of which I cannot but believe must disgust very many: I allude to the public sale of the body. Why, may I ask that gentleman, need it be sold at all, much less in so offensive a manner? Surely there can be no necessity whatever. Let, then, the bodies, as they ought in every instance, be presented gratuitously. Wheresoever the death may occur, or the inquest be held, let the coroner of the district be empowered to assign the body to the hospital of that district, or to bequeath it for the public good, according to any other satisfactory arrangement that may be concluded on the occasion.

'To Sir J. Sewell I would say, by presenting, instead of vending, you would go far towards annihilating the traffic of the "resurrection man" whose profits must thereby be materially diminished, as what hospital would they find anxious to purchase subjects of them at all, much less at the price they must necessarily demand, to compensate them for the risk encountered in procuring them, when these establishments can be sufficiently supplied in a lawful manner gratis?

'In conclusion, I humbly conceive that a law, based on Sir J. Sewell's "Suggestions," severally and collectively (save the one assumed to be offensive), would effect the utmost good; and if really so, ought accordingly to satisfy the people.

'It is, in every respect, such a plan as can alone defeat the sanguinary designs of body-snatching monsters; and once made law, would, no doubt, in a short time destroy their infernal commerce altogether.

'I am, Sir,
Your obedient Servant,
W. H. E.'

Saturday, December 10.

'P. S. With regard to Sir J. Sewell's suggestion as to the workhouse, in accordance with which the bodies of all such as have been maintained, and are about to be buried, at the parish expense, are to be given up for anatomical purposes, I am inclined to believe it would, if adopted, be productive of a twofold service, inasmuch as the practice might tend also to diminish the numbers of this class (who generally speaking prefer a life of degraded ease to one of honourable employment), by its inciting (which is likely) those most sensitive on the "subject" to work out an independent subsistence by their own assiduity; and with respect to such as cannot exist but by poor-house maintenance, their bodies, I should say, might nevertheless, in justice, be rendered serviceable after death, on the score of the important benefits experienced by them whilst living.

'W. H. E.'

On Thursday, the 15th, in the House of Commons, Mr. Warburton moved for leave to bring in a bill to regulate schools of anatomy. He reminded the House, that in 1829 he had introduced a bill of the same kind, which had passed this House, but had been rejected in another place. The political changes which had occurred since had occasioned him to defer the renewal of the attempt. The bill he now proposed to introduce differed in some respects from the other. It was more simple. Instead of requiring anatomical professors to obtain licenses, which had been objected to, he proposed the appointment of anatomical inspectors, by the Home Secretary, to whom returns were to be made, and who should inspect the schools. It had been objected to the former bill, that it made a distinction between the poor and the rich; his present bill was equally applicable to all; and he hoped, when it was considered what had been the enormous and necessary consequence of

the present law,—the law was one thing and necessity another,—prejudices would give way, and that schools would be supplied with the subjects necessary for the promotion of science, and at reduced prices.

Mr. Hunt said, that unless this bill was materially different from the last, he should oppose it to the utmost. He hoped that a clause would be introduced to legalize the sale of a person's own body, which was now the property of his executor.

Mr. Sadler said that so far from the repugnance referred to being a prejudice, it was a principle which pervaded the whole world, and could not be eradicated without injury to the best feelings of our nature. Let the Bill be confined to those who were liberated from those prejudices. The poor would not bear it; the Bill would be unpopular, and justly so, and would tend to close the houses of mercy. It was said that a neighbouring country had overcome those prejudices: then let the principle of free trade be called into action, and our schools of anatomy be supplied with subjects from abroad.

Sir R. Vyvyan observed that there was a want of a clause in the former bill, repealing the law which subjected criminals to anatomy; for till that law was repealed, the public never would endure that other bodies should be exposed to what was thus made an indignity. Whatever might be in the bill, he hoped there would be nothing to offend the prejudices of the poor. Those who died in a poor-house or hospital were equally entitled to have their bodies respected as those who died elsewhere.

Mr. Warburton said that his bill would apply equally to rich and poor: no body would be given for dissection without the consent of the person when alive, or of the nearest relative after death.

Leave was then given.

On the bringing in of the Bill, Mr. Perceval recommended, that the mere possession of dead bodies should be held to be felony. The knowledge of surgery, he said, could not be lost in the space of two years, and if they were to try an experiment for that time, he was sure that medical men would then resort to the dissection of animals, and obtain, while conducted under proper regulations, all the knowledge necessary for their profession.

We have before, in another work, had the satisfaction of exposing the folly of this fungus of a legislator, when he attempted to impose upon the fasting mechanics and labourers of this country, a religious fast-day, or a general propitiation to Heaven for all the sins and crimes which have been committed generally and individually, since the time that fast-days went out of fashion! We did then hope that we should have heard no more of him; but in Mr. Warburton's Anatomy Bill being brought in, we were again enlightened by the sagacity and profundity of his remarks. Mr. Perceval certainly forms a component part of the legislative wisdom of this country, and certain it is (poor man!) that he is a specimen of it, that will not tend much to exalt the character of it. His recommendation that the mere possession of a dead body should be held to be a felony, is a lamentable specimen of folly, which makes us heartily rejoice that all the framers of our laws are not of the same mind, with the *right* honourable and *downright* nonsensical member of whom we are now speaking. Suppose Mr. Perceval's good lady, or one of her children, were to die, does the poor silly man wish to make himself guilty of felony, for having the dead body in his possession, when, morally, he would not be one jot more of a culprit than he is at present? The latter part of the paragraph, from his speech, is equally remarkable for its absurdity. He gives it as his opinion, that the knowledge of surgery would not be lost in two years, if, during that period, its study were discontinued. The Honourable Member's opinion on this point is, we fear, the result of self-examination. He, perhaps, finds that his own stock of knowledge remains the same, whether he studies or not; he discovers, perhaps, that he does not know one jot more about legislation and civil policy than he did many years ago, when he first ornamented St. Stephen's Chapel with his presence, and enlightened the members of it with the profundity of his researches. He argues, that as he has not gained anything by study—and no one will be so rude as to contradict him—there is nothing to be lost by not studying; but we have some reason to suppose, that he is as much mistaken in this particular as he is in the very view which he seems to have taken of humanity. Dissection of dead bodies he opposes as a matter merely of feeling; and at the same time expresses a hope that the surgeons will take to cutting up animals, by the torture of which Mr. Perceval trusts that science will be equally advanced without resorting to the revolting practice of human dissection. Putting, however, out of the question the savageness of this proposition, how would it work in other respects, to the

end proposed by this most enlightened legislator. It would, he says, provide all the necessary anatomical knowledge; which in other words is saying, that there exists so strong an analogy between the anatomy and diseases of a man and a dog, that it is only necessary for the medical student to employ a Bishop or a Williams to burke a dozen of the canine species, and all the diseases incident to human nature will be fully developed, the treatment of them ascertained, and all the ends of science fully accomplished. Here again we see the danger of a person forming a judgment from his own individual self. It is the opinion of Mr. Perceval that, in point of utility, a beast is any day as useful as a man—consequently the honourable member regards the one in about the same light as he does the other. Alas! the consciousness of his own true value has made him exceedingly libellous upon the rest of the race to which he has the honour of belonging.

The hints which were thrown out by Sir John Sewell, in his letter to the editor of the *Times*, and inserted in a former part of this work, appear to have met with that serious attention which they so well merited. Still, however, in some respects, it must be owned that his plan is defective, and in consequence thereof, some strictures having been made in one of the public journals, Sir John addressed the following explanatory statement to the editor of the *Times*:—

'SIR,

'I am much obliged by your ready insertion of my letter of yesterday, as well as by your reference to, and observations upon it, in your own portion of the paper; in respect to which last I will beg leave to add a few lines in explanation of some parts of what I have already written.

'1. By suicides were intended only those against whom verdicts of *felo de se* may have been given, and they were introduced not as likely to furnish many subjects, but as something towards the demand, and as a cause which might operate with some towards the preservation of their lives.

'2. The appropriation of the proceeds of the sales to the benefit of the county, was to remove, as much as possible, all temptation to act with harshness to persons not claiming the bodies of their relatives within the exactly stipulated period.

'3. The sale of bodies may be made with equal convenience after having been examined and marked as before.

'4. The bodies being admitted both by the sellers and purchasers to be fresh at the end of forty-eight hours, will allow abundant time for the proposed course to be taken with them.

'5. The want of bodies, by the professors and students at hospitals, going, as is shown in the late case, beyond their own means of supply, a permission to dissect such as may die in them, without examination and the subsequent marks, would leave open a dangerous door for dealers in murder to continue their most abominable traffic.

'With a repetition of my acknowledgments, both on my own part and on that of the poorer part of the public, I have the honour to be, Sir, your very humble servant,

'J. SEWELL.'

'21, Cumberland-street, Portman-square, Dec. 10.'

The atrocities of Bishop and Williams appeared to endanger the peace of every family, and the public became naturally anxious that measures should be adopted for the purpose of supplying subjects for anatomical lectures, in a manner that might abolish the disgusting, unhallowed, and illegal trade of the resurrectionist, and remove for ever all temptation to the commission of that new and most horrible species of murder called burking. We may boast of the excellence of our legislative enactments,—and in the plenitude of our conceit, we may fancy that we are far superior to all other nations in the construction of our legislative code,—but in what other country than this, professing to be enlightened by civilization, was the crime of burking ever known?—and yet science has advanced as rapidly in those countries where it was never exemplified, as in that where it has been carried to an extent actually appalling to our nature, and disgraceful to the nation in which it has been practised. It is well known that many of the medical students of this country repair to the schools of France, on account of the greater facility which is there offered of perfecting themselves in anatomical science, by the readiness with which subjects are procured, without, at the same time, outraging the feelings of the living, or having recourse to the horrid crime

of murder. We merely throw out the hint, whether an establishment like that of La Morgue in Paris would not in itself furnish a regular and ample supply of subjects for all the anatomical schools of the metropolis? The suggestion of Sir John Sewell comes very near to the establishment of an institution like that of La Morgue, and it cannot be a matter of doubt that the same beneficial results would accrue to the interests of science in this country as have been so conspicuously displayed in the schools of France.

It is admitted on all sides that medical students must practise, or, at least, witness, repeated dissections of the human body, in order to obtain a competent knowledge of their profession; there can be, therefore, no question of the propriety of braving the absurd prejudices of weak-minded individuals, rather than permit the present deplorable system of violating the sepulchre, and even of murdering, for subjects to be continued. The choice of two evils is before us,—we cannot but choose the least of them. We have already described the means that have been proposed by several enlightened individuals for legally supplying lecture-rooms with subjects; but suffice it to say, in our estimation their most objectionable features are infinitely preferable to a continuance of the mode, now generally adopted, of obtaining dead bodies by the plunder of the churchyard; because the existence amongst us of gangs of degraded wretches, living by the infraction of the law, is of itself a monstrous evil, even putting the crime of burking altogether out of the question. Poaching and smuggling have long been notorious for their destructive influence on the morals of our provincial population. An indulgence in those comparatively trivial offences, together with the difficulty of obtaining honest employment when known as a smuggler or a poacher, too often lead to crimes of a deeper dye. How much more mischievous then must be the influence of the disgusting avocation of the resurrectionist upon those who are tempted by the high price given for subjects to steal the clay-cold corpse from the grave, at the dead of night? Accordingly we find, that among this class of men are some of the most desperate thieves and burglars of the metropolis. The life of a resurrectionist would be no mean acquisition to the knowledge of the human character in its most depraved and degenerate dispositions; for it may be affirmed, that no man ever took to the horrible avocation of exhuming the putrid corpse until his heart had been previously seared and cauterised by almost every species of crime incidental to humanity. Let us,

however, be so far candid as to state, that such is not the case with regard to *all* those persons from whom our anatomical schools obtain their subjects, for we could point to an individual, who now apparently moves in a respected station of society, who followed the horrible trade of the resurrectionist for a number of years, and having gained a sufficient competency to support him during the remainder of his life, retired from the *profession* to enjoy his *otium cum dignitate*. This, however, we must confess, may be an isolated case; but when we consider that, taking the calculation of Bishop, if his statement is to be credited, during the few years in which he followed his disgusting avocation, he disposed of nearly one thousand bodies, and that each body, upon an average, brought him ten pounds, we have here the almost incredible sum of ten thousand pounds realised by an individual in a few years, by an illegal and a horrid traffic, and which is in itself sufficient to show, that so long as such a temptation is held forth of acquiring such a property, the trade of the resurrectionist will be assiduously carried on, although the recent disclosures may, by putting the purchasers of the dead bodies more upon their guard, effectually stop the commission of murder. When, however, to the mischievous effects of holding out an inducement to a class of men to commit actions forbidden by the law—excusing the error on the plea that good may be derived from it, yet knowing, as we do, that one crime ever draws on another—we take into consideration the harrowing fact, that murder is actually committed for the purpose of obtaining the ten or twelve guineas given for a subject, the public have a right to demand the interference of the legislature, for the legal supply of the lecture-room, and the effectual suppression of the horrid trade of the resurrectionist.

It is impossible to read the confessions of the homicidal miscreants, Bishop and Williams, without feelings of the deepest detestation. We enter not at present upon the truth or falsity of those statements, for we shall advert hereafter to the anomaly which their confessions presented, of a partial credibility being attached to one portion of them, whilst every exertion was made to invalidate the truth of the other. We have at this moment only to do with the character of the men, and the influence of their crimes on the general interests of society; and it must be confessed, that the cold-blooded and calculating atrocity with which they sought their victims among the destitute, and friendless, and houseless wanderers in the public streets, and

tempting them at midnight by promises of shelter and refreshment, to go to that den from which they never were to emerge with life, is only to be equalled by the vampyre horrors that superstitious fancy has invented. Then followed the drugged drink—the retirement and carousal of the ruffians, till the potion had taken full effect. The deep slumber, the short bubbling in the water, and all was over. The cruel and cowardly task was done—the human carcase was prepared for sale! We will not ascribe to accident, the almost miraculous discovery by which these detestable butchers were brought to justice. The deep secresy of their proceedings—the extraordinary precautions which they appear to have taken, might well have promised a long career of impunity. But let us indulge the belief that an all-seeing eye was upon them. The circumstances of the discovery were indeed of an extraordinary nature; the bruise in the back of the neck of their last victim, combined with the freshness of the body generated suspicion, and although the medical witnesses appear to have been in error as to the cause of death—nay, although the identity of the corpse is yet doubtful, the fact of Bishop and Williams having committed murder, was brought home to them by a long chain of evidence as extraordinary, taken altogether, as it was conclusive. Had the wretches been less eager after the price of their crime, had they retained the corpse another day or two in their possession, and preserved it from being bruised after death, they would have escaped detection, and they might in that case have been engaged, at the very moment we are now writing, in the preparation of another human being for their next day's sale. But murder will out sooner or later,—'Whoso sheddeth man's blood, by man shall his blood be shed.' In spite of all their infernal cunning and midnight secresy, justice has overtaken these monsters, and never again may the annals of any age or nation be stained with such revolting criminality.

We were far from being sorry to hear that the exit of the miscreants from a world to which they were a disgrace, was marked by shouts of execration from the assembled thousands. It was an honest feeling that prompted men to rejoice in the destruction of beings, from the deep damnation of whose iniquity even a Thurtell might have shrunk appalled. The most profligate among the lower orders of the English people abhor the crime of murder,—even the daring gangs of thieves by whom the metropolis is infested, though they live by daily robberies, invariably refrain from destroying life. Ours is

not a blood-thirsty population; theft is unfortunately of common occurrence, and peculations of almost every description are continually practised amongst us; but happily murder is, comparatively, of very rare occurrence, and we have no doubt that all who witnessed the execution of these human boas rejoiced in their punishment. Nor ought mistaken pity nor affected sentiment to silence the expression of indignation to which we have referred. No man will say that the punishment of hanging was commensurate with the offences committed, according to their own confessions alone, by Bishop and Williams; but whilst we would not subject even such creatures to bodily torture, we cannot regret that the mental agony of their last moments was increased by the unequivocal tokens of detestation that assailed their ears on the scaffold. The great end of all punishment is example, to deter others; and surely the death of these cowardly murderers, signalized by the audibly-expressed hatred of all men, both good and bad, must operate as the most effectual warning that could possibly be devised, to prevent any other human being from imitating these atrocities, to die like them amid shouts of detestation, and to purchase an immortality of infamy.

We shall now proceed to the investigation of another part of this most horrid transaction, and we particularly allude to the acquittal of May, or, more properly speaking, to his being respited during his Majesty's pleasure. Connected, however, with this part of our subject, we will previously insert a sketch of the speech made by the Duke of Sussex to the Lord Mayor at the close of the trial,—which, although in some respects conferring high honour upon him, is not wholly borne out in its sentiments, by the result which afterwards took place.

After the trial had concluded, and the judges, nobility, and other visitors had retired to a private room, the Duke of Sussex (who had remained in Court the whole day, paying the most marked attention to the evidence) took occasion to express the gratification he had experienced at the manner in which the prosecution had been arranged and conducted. 'I have,' said his Royal Highness, addressing himself to the Lord Mayor, 'always made it a point of attending every trial of national interest that has occurred in the metropolis, and I have done so, not only from a desire to become acquainted, as far as I could, with the laws of my country and their practical application, but because in the station I fill, I feel it to be a sacred duty to

take a personal interest in everything calculated to affect the character or the security of the people of this country. I have never, my Lord Mayor, been present at such inquiries without increasing the admiration with which I regard the criminal jurisprudence of England;—the most perfect, the most intelligent, and the most humane system that human ingenuity or wisdom ever devised. Upon the present occasion, whatever pain I may have felt at the sad necessity for taking away the lives of the wretched persons whose crimes have excited so powerfully the indignation of the public, I cannot help feeling proud of being the native of a country where such a sentiment of indignation has been universally evinced, and where such disinterested exertions have been made to expose and bring to justice the perpetrators of crimes happily, I trust, rare amongst us. In what other part of the world, indeed, could such a scene be witnessed as that which we have this day contemplated? The judges of our land, the learned in our law, nobility, magistrates, merchants, medical professors, and individuals of every rank in society, anxiously devoting themselves, and co-operating in the one common object of redressing, as far as human power can do so, an injury inflicted upon a pauper child, wandering friendless and unknown in a foreign land. Seeing this, I am indeed proud of being an Englishman, and prouder still to be a prince in such a country and of such a people.'

In the first place, however, taking the respite of May into our consideration, some very serious reflections present themselves to our mind, and we are induced to give publicity to them, with the sole view of preserving the purity of our courts of law, and, by pointing out their existing errors and defects, remove that stigma, which certain persons are too prone to attach to them. We dispute not the integrity or the principles of the jury who pronounced the verdict of guilty upon May, but having ourselves paid the closest attention to the evidence during the whole of the trial, we were always led to draw the conclusion, that neither the commission of the crime, nor any participation in it, was actually so definitely brought home to him, as to render his life a sacrifice to the laws. We never could discover the reason of the distrust of the testimony as given by two females, who clearly proved an alibi on the part of May, on the very night in which the murder, as stated in the indictment, was supposed to be committed. Their questionable mode of life might have had some influence in throwing discredit over their testimony in the opinion of the court; but we enter our

protest decidedly against the deduction, that, because a female has been driven to prostitution for her support, her testimony is not to be believed on her oath. In some respects, indeed, the principle appears to be acted upon, that certain parts of the evidence of such witnesses may be received, whilst other parts are to be wholly rejected.

The stains of blood on the jacket of May, which was found in the lodgings of one of these women, was brought forward as corroborative of the participation of May in the act of murder, and it cannot be denied that it was a circumstance which had its weight in influencing the minds of the jury respecting the guilt of May. This woman in her evidence states the hours when May came to her lodgings, and which, if credited, would have gone a great way towards his entire exculpation; it was, however, impugned on the ground of *her profession*: and we cannot here conceal our censure at the manner in which these females were examined by Mr. Adolphus, who seemed to think that if he could extract from their own lips the confession that they lived by prostitution, it would follow as a natural conclusion that their evidence was unworthy of belief. It however, happened, that one of these women proved, and to the satisfaction of the court, the manner in which the blood came upon the jacket of May, which happened to issue from the wounded leg of a jackdaw; and Mr. Thomas himself mounted the witness-box, after the woman had given her evidence, and declared his belief, that in that particular the woman spoke the truth, for he was satisfied that the blood was too fresh to have been cast upon it previously to the committal of May. Thus one link in the chain of the evidence against May was broken; but our chief objection was upon the principle, that if credibility is to be attached to one part of the evidence of a witness, it should not be optional in the opposite party to reject any other part which is confirmatory of the innocence of the accused. We see no more cogent reason why the evidence of the woman respecting the cause of the stains of the blood should be believed, and if we may be allowed a mercantile expression, placed to the credit of May, than that her evidence ought not also to have been received touching the alibi. The question of immaculacy of character has little to do in the witness-box, for were that principle to be acted upon, we suspect that many witnesses, who are believed upon their oath, would never be put into it at all. It is a very probable case, that a poor unfortunate girl, whose only crime perhaps is her prostitution, may in her

mind be impressed with the solemn obligations of an oath, and the consequences which would result to her, morally and religiously, from the infraction of it; but it by no means follows, that because a blustering counsel has extracted from her the confession of the mode of life by which she gains her livelihood, that her testimony is to be wholly rejected or only partially received, especially when the life of a human being is dependent upon it. Station in life ought not to form any distinction in the exercise of these principles; but we could allude to many instances in which the evidence of titled demireps has been received, without the smallest disposition being shown to call into question its truth and credibility. It happened, however, in the case of the evidence of these women,—that from the confession of both Bishop and Williams, and on which the highest authority of the nation was called upon to act, such evidence was in fact substantially true, and that May was not in the company of those two sanguinary wretches when the murder was committed. With great truth might May write the following doggrel rhymes, which were penned on the Sunday morning previously to the arrival of the respite:—

'James May is doomed to die,
And is condemned most innocently;
The God above he knows the same,
And will send a mitigation for his pain.'

The paper on which the above rhymes were written, contained also some notes in the prisoner's hand-writing, which appeared to be private notes to assist the memory in some communications that he intended to make relative to the manner in which subjects are obtained at the hospitals, the conduct of watchmen, &c.

The evidence of May's guilt we never considered on the trial to be conclusive; and, in fact, so general was the opinion, that his acquittal was considered as put beyond a doubt. His subsequent escape from an ignominious death may, in reality, be ascribed to the joint statements of Bishop and Williams; and this leads us to the discussion of the justice of the punishment, which has been subsequently inflicted on May. We espouse his cause on the abstract principle of right and justice, and in accordance with that principle, we would punish the guilty, and pardon the innocent. The indictment against May stated, that, in conjunction with Bishop and Williams, he had murdered an Italian boy, of the name of Carlo Ferrari; and another count stated, that he had been an accomplice in the murder of some other person unknown. On this indictment he was found guilty, and sentenced to be executed. On the confession, however, of the murderers themselves, it appeared that May had no participation whatever in the crime, and that he was wholly ignorant of the manner in which the body of the boy had been procured, but supposed that it had been obtained by the usual method of exhumation. It was acknowledged that he assisted in the attempt to dispose of it, on the ground that he was enabled to obtain a higher price, and that, in the attempt to dispose of it at the King's College, he was apprehended, and finally committed to prison to take his trial as an accomplice in the murder. The sequel of that trial is already known; and his life was spared, it having been made evident to the competent authorities that he was neither a principal in the murder nor an accessory after it. The great question, then, is, and which involves a very important point in the administration of justice of this country, for what crime has May been

sentenced to the severest punishment, with the exception of death, which our sanguinary code exhibits, namely, transportation for life? He was either guilty or innocent of the murder,—the most cogent and valid testimony was adduced in favour of the latter, and it was considered so conclusive, that a respite was granted. In the eye of the law he therefore stood assoilized from the crime for which he was tried, and therefore not subject to any punishment. If it be urged that his participation in the attempt to dispose of the body of the murdered boy rendered him amenable to the laws, and, being taken in *delicto flagrante*, to the punishment attached to that act, we perfectly coincide in the proposition; but then, as the law now stands, the having a dead body in our possession is not a felony, but simply a misdemeanour, and punishable, as all other misdemeanours, by imprisonment, hard labour, or whipping. Of what crime then, we repeat it, has May been found guilty, to subject him to the punishment of transportation for life. The confessions of both Bishop and Williams distinctly negatived the fact that May had the slightest participation in any of the murders committed by them, and that he even did not know in what manner they had procured the body, in the attempted sale of which he gave his assistance. If the simple fact of rendering that assistance rendered him subject to punishment, how, then, comes it to pass, that no punishment has been inflicted on Shields, who, with the exception of negotiating with the purchasers of the body, was, setting the murder out of the question, as deeply implicated in the affair as May himself. The entire gist of this extraordinary business lies simply in the following question,—After the respite was sent to May, for the commission of what crime was he then detained in prison, for which he had been tried, or was yet to be tried? We know it may be urged that it is a rule, that if, through the royal clemency, the life of a criminal sentenced to death be spared, his punishment is commuted to transportation for life; but then these general cases do not apply to the individual one of May. The respited criminals still stand convicted of the crime for which, by the laws of their country, their lives became forfeit; and although the royal clemency steps in to prevent the sacrifice of human life, their offended country still demands their punishment, and the next severest to death itself is inflicted upon them. Those cases will not, however, apply to May. He was tried at the bar of his country for murder, and a jury of that country, on account of a long chain of circumstantial evidence, many of the links of which snapped in the attempt

to force them to their utmost influence, found him guilty of the crime charged in the indictment;—he received the usual sentence of death, and, according to all human calculation, his hours on earth were numbered. As it has frequently happened in the cases of criminals sentenced to death, a subsequent investigation took place in regard to the guilt of May, or, indeed, to any participation on his part in the murder of the individual for which he was indicted. From the coincident testimony of the real murderers, it was most distinctly made to appear that May was wholly innocent, not only of any participation in the crime, but that he was actually ignorant of the manner in which the body of the boy had been procured. The judge himself who tried the prisoners fully coincided in the propriety of granting a respite to May, founded on the confessions of Bishop and Williams; and his innocence was at length so strongly confirmed, that his life was spared. But we now come to the great question,—On what condition?—That he should be transported for life. Here, then, in the most enlightened nation of the world, whose courts of judicature are held up as the pattern for all surrounding nations—whose laws are boasted of as being founded on mercy, clemency, and truth,—here we have the example of an individual tried, condemned—found innocent, and respited—but still punished with the next severest punishment after death which the criminal code of his country could inflict upon him! May could not be deemed, in the eye of the law, innocent and guilty at the same time; but if he was declared to be the former, he had a right to expect all the benefits and advantages of that innocence. There was no intermediate state of guilt; he was either guilty of the murder, or not guilty; and as his innocence was made manifest, he ought to have been placed in the same situation as he would have been had the verdict of Not Guilty been pronounced upon him by his Jury.

It was owing to these sentiments operating so powerfully on our mind, that we were led to analyze a little more closely than we might otherwise have done, the speech of the Duke of Sussex, in which he enlarges in such laudatory terms on the enviable superiority of our courts of law, and the manner in which justice is administered in them; and all this on an occasion in which a man, afterwards discovered to be innocent, is condemned to death, and who would certainly have suffered but for the concurrent testimony of his associates, on which his innocence was established.

We are aware that not one of our contemporaries has taken this view of the case of May; and until we are informed of the crime which May committed, and for which he was tried and convicted at the bar of his country, we shall always consider that his transportation is an indelible stain upon the judicature of this country, and that an irreparable injury has been done to the individual, for which no after redress can be sufficient.

The public mind, in the mean time, was by no means at rest respecting the identity of the body of Carlo Ferrari; and as it involved some very nice points connected with the manner in which the prosecution was got up, Mr. Corder, on the 8th of December, appeared at Bow-street, before Sir Richard Birnie and Mr. Minshull, attended by Joseph Paragalli and Andrew Colla, the two Italian witnesses who gave evidence on the trial of Bishop, Williams, and May, at the Old Bailey, on Friday, the 5th instant, and stated, that in consequence of the confessions made by Bishop and Williams, denying that the body found and sworn to was that of the Italian boy, the two witnesses now present were most anxious to remove an impression which had gone abroad, in consequence of the confessions referred to, and wished to reiterate their firm belief that the body of the boy brought to King's College for sale was that of Carlo Ferrari.

Paragalli and Colla then came forward and reasserted their former evidence.

Mr. Corder said that there were strong grounds for believing that the confessions of Bishop and Williams, so far as related to their statement that the body found in their possession was not that of the Italian boy, was wholly untrue; and in consequence of the denial put forth in their confessions, which appeared in some degree to cast discredit upon the whole prosecution, the parish of St. Paul, Covent Garden, had determined to publish a statement in a few days of the whole transaction, in order to relieve the public mind from the doubts occasioned by the confessions of Bishop and Williams. He was perfectly satisfied, that when that statement was submitted to the public, there would no longer be any doubt upon the subject, and that the body found in the possession of Bishop, Williams, and May, was not that of the drover's boy, but the body of Carlo Ferrari.

Mr. Minshull said he had no doubt but such was the fact, and expressed his desire that the public mind should be set at rest with respect to the identity

of the body.

Mr. Corder said he would lose no time in drawing up the statement to which he had alluded.

He then retired, accompanied by the witnesses.

In a few days afterwards, Mr. Corder transmitted the following statement to the editor of the *Times*, but which still leaves the identity of the boy as mystical as before.

'SIR,

'Without travelling through a very long statement which has recently appeared in most of the public journals, purporting to be "the confession of the murderers," and signed "John Bishop," there are two points contained in it which appear to me to require some notice, and upon which the public have some right to be satisfied. The points are, first—"That the boy, supposed to be the Italian boy, was a Lincolnshire boy;" and second—"That the death of the deceased was caused by drowning him in the well, into which Bishop and Williams put him head-foremost, and where he remained about three-quarters of an hour." Upon the first point I beg to trouble you with one or two observations, and in reference to the second, I shall content myself with the written report, which the surgeons, who examined the body, both at and previous to the *post mortem* examination, have been kind enough, at the request of the prosecutors, to furnish, and which will be open to the opinions of all medical and scientific men, as to the probable cause of the death of the deceased.

'Regarding the identity of the deceased, his person, as Charles Ferrier, is positively sworn to by several witnesses of unimpeachable integrity, some of whom were his fellow-countrymen, and knew him intimately. Two of them had lived for some time in the same street with him, and one of them (Colla) had actually made the cage for him in which he carried about his white mice. All these witnesses saw the body of the deceased within two or three days after his death, and unhesitatingly recognized him as the same. Two of them had seen him alive and well the same week; and one of them accurately described the trousers worn

by the deceased, (which precisely correspond with those found in the garden,) before he was allowed to see them. In addition to this, we have it in evidence that an Italian boy with a cage and white mice was seen close to Bishop's house on the day of the murder; wearing a cap similar to the one found on the premises, and which Bishop endeavoured in vain to account for. We then find the white mice and cage at Bishop's house, in the possession of his children, on Friday, the 4th instant, the day after the murder, as proved by a very young witness, but who gave his evidence with all the simplicity characteristic of truth. And, lastly, we find the clothes of the deceased in Bishop's garden, the lower buttons being cut off the jacket, apparently to admit the revolution of his cage; the tapes also stitched to the lower part of the same garment for the passage of the strap or riband by which the cage was confined to his body. And against this body of evidence what is set up? The unsupported assertion of the wretched culprits, who, to the latest hour of existence, evinced no penitent or religious feeling, and who, during their short passage to the scaffold, on the morning of their execution, execrated the jury who so justly condemned them. A Lincolnshire boy! Where are his friends or relations? It is now nearly six weeks since the murder, and no inquiries are made for him. On the contrary, where is Charles Ferrier? Why does he not appear? It is a fact that the body of the deceased was recognized by at least a hundred persons as a poor Italian boy, whom they had seen carrying white mice about the streets of London. But were there any appearances to indicate that the deceased was a Lincolnshire drover boy? None. His hands were smooth and soft, and no horny substance upon them, as though he had been used to manual labour. These facts, and this evidence, together with the verdict of a jury, after a long and patient trial, before a humane and discerning judge, stand at present alone opposed by the statement of the murderers, and between them the public must judge.

'On the second point, as to the mode of death of the deceased, which is described in the confessions as that of drowning, it will be only necessary to read the following report which the surgeons have been requested to prepare on the appearances of the body, both at and previous to the *post mortem* examination, and it will then be for

medical and scientific persons to say whether it is morally possible that the heart should have been perfectly empty and contracted, and that the other appearances described should have manifested themselves, if death had been produced as the murderers allege.

'*Post mortem* appearances of the body of the Italian body, who was murdered late on the night of the 3d, or early on the morning of the 4th of November, 1831.

'The corpse was first seen by one of the undersigned, about two o'clock, P.M., of Saturday, November 5, and by the other at a late hour the same night.

'*External appearances.*—The body was four feet six inches in length, of rather stout make, face broad, hair light brown, dry, neither curled nor yet matted, eyes gray, general appearance that of a foreigner, judging more from the cast of features than the complexion, limbs rigid, and the upper extremities somewhat contracted, palms of the hands quite soft, face rather swollen, eyes bloodshot, teeth extracted, gums bloody, a wound three-quarters of an inch in length over the left brow; the neck and throat, together with the extremities, were attentively examined, but did not exhibit the slightest indications of violence.

'The dissection was conducted in the following order:—

'*Head.*—On turning down the scalp its vessels appeared a little fuller than usual; the wound over the brow extended to the bone, which was not, however, fractured, neither was there any blood effused around the cut; higher up, over the coronal suture, there was a patch of extravasated and coagulated blood between the scalp and bone; the brain and its membranes appeared perfectly healthy, and their vessels were not unnaturally full; the ventricles did not contain more than the usual small quantity of serum. The body was next turned on its face, the brain having been previously removed, and in so doing a quantity of fluid blood gushed out from the spinal canal at the occipital foramen. On cutting through the muscles at the back of the neck coagulated blood, to the amount of five or six ounces, was found extravasated among them; extending from the occiput to the

termination of the cervical vertebræ, and upon removing the arches of the vertebræ and that portion of the occipital bone which lies behind the foramen magnum, from one to two ounces of coagulated blood were discovered within the spinal canal (exterior to the theca) pressing upon the upper part of the medulla spinalis; a considerable quantity of fluid blood was likewise contained in the lower part of the canal; there was no blood within the theca, and the cord itself retained its natural appearance and firmness; there was no traceable injury either of the vertebræ or of their ligaments.

'*Chest.*—The pericardium contained about two drachms of serum. The heart was healthy, rather small, quite contracted, and its four cavities perfectly empty. This contracted and empty state of the heart struck us at the time as a very remarkable circumstance. Each bag of the pleura contained about one ounce of serum. The lungs were healthy and not congested; there was an old and partial adhesion between part of the right lung and the pleura costalis; the pharynx, œsophagus, larynx, trachea, and bronchi, were healthy and unobstructed.

'*Abdomen.*—The stomach was tolerably full of half-digested food, of which some fragments of potatoes formed the only recognizable part; its contents smelt lightly of rum, its coats were healthy, the small intestines were full of recently digested food; the whole of the alimentary canal, and all the abdominal viscera, were healthy, but the liver contained a little more than the usual quantity of blood.

'The urinary bladder was contracted and quite empty.

'It is for professional and other scientific men to judge, whether the appearances above described are compatible with the supposition of death having been produced by drowning, hanging, strangulation, or any other mode of suffocation.

(Signed)

'RICHARD PARTRIDGE.

'GEORGE BEAMAN.

'*December 10.*

'The foregoing report, it will be observed, is signed by Mr. Partridge, the Demonstrator of Anatomy to the King's College, and Mr. Beaman,

a Member of the Royal College of Surgeons, who, in addition to an extensive private practice, holds the appointment of Parochial Surgeon of St. Paul, Covent-garden; their report has been submitted to Mr. Tyrell, a Surgeon of St. Thomas's Hospital, and Lecturer on Physiology, Anatomy, and Surgery, to that Institution. His observations on that report are as follows:—

'SIR,

'According to your request, I have attentively perused the statement respecting the examination of the body of the boy, the subject of the late trial. I find that it perfectly agrees with the evidence given by Messrs. Partridge and Beaman on that occasion, of which evidence I, by the desire of the prosecutors, took notes. It is my opinion, that the death of the boy could not have been caused by any mode of suffocation, as drowning, smothering, &c. I have no doubt that injury to the upper part of the spine, which created the effusion of blood into the spinal canal was the immediate cause of death.

'Yours, respectfully,

'FREDERICK TYRELL.

'17, *New Bridge-Street,*
'*Blackfriars, Dec. 10.*

'I have thus endeavoured, as briefly as possible, to put together a few facts and observations on the two only points in 'the confessions' which appeared to me to call for notice. I consider Williams's confirmation of the truth of Bishop's statement of very little consequence, inasmuch as he was allowed to be present at the making of it, and nothing was easier than for him to say that he fully adhered to the statement made by his partner in crime. If separate 'confessions' had been made, and in the absence of each other, it is possible the wretched culprits might have furnished something more to the world.

'I have to apologize for the length of this communication, which has been hastily written. I hope the importance and anxiety with which the subject is viewed by the public may be pleaded in excuse, and also induce you to give it insertion in your columns. I may add, that I

should not have presumed to have addressed you on the subject, had not the circumstance of the management of the prosecution devolving upon me entitled me to be pretty fully acquainted with all the details of the case.

'I am, Sir, your most obedient servant,

'JAS. CORDER.

*'St. Paul, Covent-Garden,
Vestry Clerk's Office, Dec. 14.'*

On this statement of Mr. Corder we shall make but a very few comments. One part of it is, however, particularly deserving of remark, in which he states, that above one hundred persons recognized the body of the murdered boy, as being that of a poor Italian boy, whom they had seen carrying white mice about the streets of London. If this were actually the case, let us put this question to Mr. Corder—Why a tithe of the hundred persons was not brought forward on the trial to identify the body? The only persons on the trial, who spoke with the least assurance respecting the body, were the Paragallis; for Brin, or Brun, the man who actually brought the boy over to this country, could not speak to the identity of the body. But if, as Mr. Corder affirms, there were a hundred persons who really did recognize the body as being that of the Italian boy, he was certainly guilty of a dereliction of his duty, in not bringing forward some of them; as it would have been attended with the immediate good effect of tranquillizing the public mind, and dissipating every doubt as to the real individual who had been so inhumanly murdered.

It must also be fresh in the recollection of Mr. Corder, that the identity of the clothes as having been worn by the Italian boy, was not definitively established on the trial; on the contrary, by one witness it was deposed that the clothes found in Bishop's garden did not correspond in colour with those worn by the Italian boy, as seen by the witness on the day on which the murder was supposed to be committed. In other respects, however, the arguments of Mr. Corder may be considered as carrying with them a great degree of corroborative testimony, relative to the murdered boy being the Italian youth; and until some more conclusive evidence presents itself, the matter must be considered as resting on the established certainty of the

identity of the body, and, consequently, that the statements of Bishop and Williams were not founded in truth. Their statements, however, excited so extraordinary a sensation in the public mind that, on the 13th of December, Mr. Hunt brought the business before Parliament. The Honourable Member said, that he had a question to ask, calculated greatly to relieve the mind of the country. It was with respect to the persons lately executed for the crime of 'Burking.' According to a statement put forth in the newspaper, they, instead of confessing three or four murders only, on the day previous to their execution, confessed sixty; and were going on until stopped by the Ordinary of the prison. This might be a laughable subject, but it had greatly agitated the public mind; and was, he believed, at present, the source of much excitement. He, therefore, was desirous to know of Government whether the fact of this confession was true or not?

Mr. G. Lamb did not know on what authority the statement in the newspapers was put forth, but he (Mr. Lamb) was not aware of any other confession than that officially published.

Alderman Waithman had seen both the Sheriffs and the Under-Sheriff, and the latter had declared his most positive conviction, that these men had told every thing they knew in the confession, which he (the Under-Sheriff) had witnessed. He (Mr. Alderman Waithman) was, therefore, astonished to see the statements that had been circulated in the newspapers.

Mr. Hunt rejoined, that it was asserted that the confession was made to the Ordinary of Newgate. Now it did not appear that either the Right Honourable Secretary for the Home Department, or the worthy Alderman, had any communication with the Ordinary.

Mr. Lamb had intended to give a satisfactory reply. No communication had been forwarded to Government with respect to the confession in question, and in a matter of that importance, had there been ground for such a communication, it would undoubtedly have been made.

Alderman Waithman had communicated with the Ordinary, but had heard of no confession of the kind referred to.

We cannot close the subject of the murder of the Italian boy more appropriately than with the following lines, written by F. W. N. Bayley:—

Poor child of Venice! He had left
A land of love and sun for this;
In one brief day of tears bereft,
Of father's care and mother's kiss!
The valleys of his native home,
The mountain paths of light and flowers;
The Savoyard forsook, to roam—
For wealth and happiness in ours.

And pitying thousands saw the boy
Feeding the tortoise on his knee;
And beauty bright, and childhood coy,
Oft flung their mite of charity.
And as he rested on the stone,
His organ tuned to some old air,
Men paused at its familiar tone,
And left their little tokens there.

But now, though hundreds pass the spot,
At even time, or early day,
They shall not see the unforgot,
Whose music all hath pass'd away.
Still when they learn that he hath gain'd
No riches but a grave-stone here,
From gentle hearts, by mem'ry pain'd,
The thoughts of him will start a tear.

At the very time, however, when Bishop and Williams were suffering on the scaffold the last penalty of the law for the heinousness of their crimes, the neighbourhood of Golden-lane, Whitecross-street, and Chiswell-street, was thrown into the greatest state of consternation and alarm, in consequence of a fine healthy female child, about eight years of age, the daughter of an Irish labourer named Duffey, who resides in Broad Arrow-court, Milton-street, having been found, about ten o'clock on Saturday night, murdered, in a public privy in Cowheel-alley, Golden-lane. About nine o'clock on Saturday night, the 3rd of December, a woman, about thirty years of age,

named Bridget Calkin, was brought to the station-house in Bunhill-row, and given into the custody of Inspector Perry, of the New Police, upon the charge of Mrs. Duffey, No. 3, Broad Arrow-court, Milton-street, who stated, that her husband was a labourer, and she had a fine healthy girl, about eight years old, who was remarkably full-grown and tall for that age. The prisoner lodged within a door or two of her residence, and had known the child for the last three years, and appeared to be rather kind and attentive to her, and which in part won the child's affections. The prisoner, who is occasionally a char-woman, returned to her lodgings on Saturday night, about half-past four o'clock, and a little after five o'clock she was seen to leave the court with the child in her company, and to whom, it appeared, the prisoner gave a penny, for the purpose of decoying the child. All Mrs. Duffy wanted from the prisoner was, to know what became of, or where was her child. The statement of Mrs. Duffy, so far as the child having been seen to leave the court in company with the prisoner, was fully borne out by four or five other persons. The prisoner admitted her return to her lodgings about the time stated, but denied any knowledge of the child, and accounted for herself by stating where and in whose company she was from five o'clock until she was taken into custody. Inspector Perry, seeing the case at that period enveloped in much mystery, and well knowing the desperate characters with which St. Luke's is infested, despatched officers to where the prisoner stated she was, and on their return, they reported that the statement of the prisoner was altogether a fabrication; and one of the parties (Nurse Bryant, of St. Bartholomew's Hospital) admitted she knew the prisoner, but denied having been out with her on that evening. Upon searching the prisoner, Inspector Perry found a gentleman's small memorandum-book, with an account of daily expenditure, but no name or address, so as to trace to an ownership. In about an hour after, informations were given to Mr. Perry that the body of the murdered child had been discovered lying on the floor of a public privy in Cowheel-alley, Golden-lane, under the following circumstances:—It appeared, that about ten o'clock a little girl, the daughter of a green-grocer, went into the privy, and trampling on the murdered child, she became alarmed, and ran back in a fright, and apprised her brother (a young boy) of the circumstance. The boy got a candle, and went to see what had so alarmed his sister; and upon his opening the door of the privy, a man and a woman dashed out, and ran away in different directions, the man having first knocked the candle out of the

boy's hand; notwithstanding which the boy thought he should be able to identify him. In the meantime, Inspector Perry sent for Surgeon Leeson to examine the child, whose body was not then cold, and who thought it came to its death about half an hour before by being suffocated. The body of the child was then conveyed to its father's, where two police-officers were stationed in the same room; and as it became cold, marks of discoloration were very apparent round the neck and under the right arm.

On the following Monday Bridget Calkin was brought before the Worship-street magistrates, on a charge of being concerned in the wilful murder of a little girl, five years old, named Margaret Duffy. A man named Cattle, a noted resurrectionist, who had also been apprehended on suspicion, was placed at the bar on the same charge. The prisoners were brought from the police-station in Bunhill-row, in a hackney-coach, guarded by a strong body of the police, and followed with the most appalling yells by an immense mob, hundreds of whom had, no doubt, been witnesses of the awful exit of the murderers, Bishop and Williams, shortly before, in the Old Bailey. The female prisoner, who lived next door to the parents, was seen on the evening of the murder, with the child, whom she had called out of doors, in order to give her a penny to divide between her and her brother. The child could not afterwards be found; and shortly before nine, the prisoner, who denied all knowledge of her absence when questioned by the parents, was charged with stealing her; but while that charge was under inquiry at the police-station, the corpse of the deceased was taken there, having been found in the place before mentioned.

Dixon, a policeman, stated, that the prisoner Calkin, when brought to the station, before the body was discovered, declared that she left the child in the court where they lived, and never saw her again, and she accounted for the disposal of her time by saying that she went to a person (whom she mentioned) in Rotten-row, Old-street, and remained there till about seven, after which she walked about for upwards of an hour, and was part of the time in company with one of the nurses of St. Bartholomew's Hospital, named Bryant. Upon inquiry, both these statements were denied; and at the hospital, it was stated by the nurse herself, and the sister of her ward, that she had not been out of the place all that day, nor had she seen the prisoner for two days previously. A man, named Bailey, deposed that he was passing through the court on Saturday evening, and saw the prisoner Calkin come

from the privy where the deceased was afterwards discovered. It was somewhere about eight o'clock when he saw her. Mr. Twyford asked him if he was certain it was the prisoner? He said he had no doubt of it; he could not be mistaken, as he had known her for a length of time. A female, named Jennings, stated, that between seven and eight o'clock she saw the prisoner and the little girl about one hundred yards from that spot.

The female prisoner made a statement of some length, to the effect that she frequently took the child out, and admitted that she saw her in their court, as stated by the witnesses, and gave her a penny. She did not take her away from the place, but left her there, and never saw her again until she saw the corpse at the police-station. She herself went to Rotten-row, Old-street, and afterwards went towards Whitechapel and walked about, and during that time met with Nurse Bryant. The nurse came forward again, and expressed her astonishment at this statement, which she flatly contradicted.

The prisoner Cattle is known to be a resurrection-man, and lives close to the spot where the body was found. A man was stated to have run from the privy, and Cattle was taken on suspicion. The little boy said, that the man who knocked out his light was not the prisoner Cattle; and there being no evidence against the latter, he was discharged.

The prisoner Calkin was remanded, to await the decision of the Coroner's Inquest.

On the following Tuesday, at six o'clock, an inquiry was commenced, before Mr. Baker, Coroner, the Churchwardens and other officers of St. Luke's parish, touching the death of the little girl, Margaret Duffy. The facts were proved as above stated, with respect to the child being seen last alive in Broad Arrow-court, Milton-street, in company with Bridget Calkin, and the finding of the body some hours afterwards in a privy, situate in a court in Golden-lane; but the evidence as to the circumstances which then ensued was exceedingly discrepant, and the Jury after having been engaged between five and six hours, adjourned until the following Friday.

Accordingly on that day the inquest was resumed at the Golden Boot public-house, Milton-street. The privy in which the body was found is common to the inhabitants of several intricate passages, and as there appeared to be some confusion in the statements as to the localities and

other circumstances, Dixon, the policeman, procured an accurate plan of the neighbourhood. Upon the return of the Jury, who went in a body to view the spot, and compare it with the plan, the following evidence was adduced:—

Mr. JOHN LEESON, a surgeon in Chiswell-street, stated, that he was called in on Saturday to see the deceased at the Station-house. On going there he saw the body lying on the floor. On examining it he found the extremities quite cold, but some warmth remained in the body. There was no lividity or swelling of the face; no contusion or swelling of the tongue; or any other appearance but those indicating that she had died of suffocation or strangulation. The deceased was a fine healthy child. There was a mark on the neck, as also discoloration of the skin, which led him to believe that some violence had been applied to that part. The teeth were also clenched; and from these circumstances he imagined that the child had met its death by foul means, probably by suffocation, by stopping the mouth, and placing a thumb and finger behind the neck. There was a bruise on the right arm, apparently by the pressure of the thumb, done while alive. His opinion was that the child had not died of apoplexy or anything of a poisonous nature given to it.

In reply to the foreman of the Jury, the witness said there was a slight bruise upon one of the arms, which might have been done in a struggle. Coroner: 'And what time do you suppose it would take to destroy life by the means you have described?'—The witness said, he should think from three to four minutes.

Mr. W. BROOKS, surgeon, of St. Luke's, stated, that on Tuesday morning, in conjunction with Mr. Rance, he opened the body of the deceased. On opening the head, he found the vessels of the brain exceedingly turgid, quite sufficient to occasion death. Believed the deceased's death was not the result of natural causes, and his opinion was that it had been produced by violence. There was a discoloration from the neck downwards. It was not produced by decomposition. There was a pressure on the breast, which possibly might have produced the marks described. In his opinion the child had died from suffocation by closing the mouth.

CORONER.—In what time would strangulation be produced by placing the hand on the mouth and nose?

WITNESS.—That I won't take upon me to say—probably in four or five minutes.

Mr. RANCE, a surgeon in the City-road, deposed to having examined the body of the deceased externally and internally, and expressed it as his opinion that death had been produced by violence.

Mr. WHITTLE, a third surgeon, agreed in opinion with the two former witnesses. He perceived two marks on the neck, which corresponded with the large vessels which return the blood from the head to the heart, a strong pressure on which would produce death.

CORONER.—In what time would that take place?

WITNESS.—In four or five minutes apoplexy would be produced, which would occasion death independent of suffocation, which might be produced by pressure on the mouth.

WILLIAM DALTON, stated, that he knew Bridget Calkin, the woman who was in custody, and saw her about a quarter past seven, on Saturday, (yesterday se'nnight,) in Payne's-buildings, within a short distance of the privy where the child was found, and she then had a child about six years old with her; he had no doubt that it was Bridget Calkin.

ELIZA KENNY, the wife of a carter, stated, that about half-past five on Saturday evening, she was standing near Prospect-place, when Bridget Calkin and a female child passed her. She took particular notice, because she heard Calkin say to the child, 'Don't cry, my dear, we shall soon be at home.' She observed that the child had neither shoes nor stockings; she knew Calkin before; the child was crying, and Calkin seemed to be dragging her along.

MARTIN BAILEY, of Turk's Head-court, Golden-lane, labourer, said, that about eight o'clock on Saturday evening, he saw Bridget Calkin come out of the privy, and go through Payne's-buildings; she seemed to be in a hurry; he had known her for some months; he was certain that she came out of the privy; he was three or four yards from her when she came out, and saw her by the light of a gas-lamp that was near; he saw no child or other person near at the time; he could not speak to the time precisely; it might have been later than eight o'clock.

CATHERINE DEMPSEY, of 36, Payne's-buildings, stated, that a little after seven on Saturday evening, she saw Bridget Calkin, with a child about six years old, who was barefooted, and heard her say to the child, 'What ails you?' Witness knew her about three months ago, when she lived in the house immediately opposite the privy, and lodged with Mrs. Burns; she was in the same dress which she had on at Worship-street, on Monday, and witness had no doubt of her identity.

CORONER.—Have you seen the body of the deceased?

WITNESS.—Yes, Sir; but from the state in which I saw it, I cannot say it is the same, but it is very much like it.

JUROR.—Do you know the prisoner Calkin?

WITNESS.—Yes: about three months ago she lived next door to where I do, which is exactly opposite the privy where the deceased was found dead.

JUROR.—Do you know how she gets her living?

WITNESS.—No, Sir.

JUROR.—What dress had she on at the time?

WITNESS.—A light gown with flowers on it. The child had no bonnet on at the time.

ELIZA RENNY said, that on Saturday evening, about five o'clock, she saw the prisoner Calkin dragging the deceased by her door towards the privy. The child was crying at the time, and had neither shoes nor stockings on.

MARTIN CAILEY saw the prisoner Calkin, at about eight o'clock on Saturday evening, near the privy where the body of the deceased was found. She appeared to have come out of it, and walked out of the court in a hurried manner. She (Calkin) was in the habit of keeping bad company. Some of the persons she associated with he (witness) believed to be body-snatchers.

CATHERINE LAMPEER saw Calkin with a child, in Payne's-buildings, at about seven o'clock on Saturday evening. The child had neither shoes nor stockings on. She heard the prisoner say to the child, 'What ails you?'

ELIZA BRYAN, an assistant at St. Bartholomew's Hospital, was called, to contradict a statement which had been made by the prisoner, that she was in her company from five to seven o'clock on Saturday evening. The witness denied having seen her at all on that day.

Another witness deposed to the prisoner having lived for some time opposite to the privy in which the child was found. In reply to a question from a Juror, she said, that the prisoner Calkin was about nineteen years of age, and that her father kept a school in the neighbourhood of Islington.

NATHANIEL BIRNIE, a policeman, deposed, that about ten minutes before nine on Saturday night, the mother of the deceased came to him, and stated that Bridget Calkin had given a penny to her child at the door, and taken her away, and that as the child had not been brought back, she feared it had been made away with. Witness told Inspector Perry, and he went to Broad Arrow-court, and took the prisoner into custody; she denied having taken away the child, and appeared surprised at the charge; she admitted having given the child a penny at the door, but said she had not seen her afterwards. She said that she had been to Rotten-row in the evening, and the witness went there with her; the woman she had mentioned was out, and the prisoner then asked the husband, 'What time was I here this evening?'—The man replied, 'Not at all.' On the return of witness to the station-house, the body had been discovered and taken there.

JUROR.—Did she appear affected at the sight of the murdered child?

WITNESS.—Not at all; she appeared quite unconcerned.

Mrs. DUFFY,—the deceased's mother, was then brought before the Jury and examined. The poor woman appeared exceedingly distressed; she said that she had for some time known Bridget Calkin, who once before took the child away and kept her out some hours, and witness then desired her never to do so again.

ELLEN JENNINGS, a girl, stated, that about half-past five on Saturday evening, deceased was upstairs, playing with her, when Biddy Calkin came to the door and called for her; witness asked her what she wanted, but Biddy would not say, but took the deceased down stairs, and witness never saw her again. Bridget Calkin returned home about nine o'clock without the child.

The whole of the testimony of the witnesses having been gone through, it was thought advisable to have the prisoner Calkin present, to ask her if she had any witnesses which she might wish to have examined, or any explanation to offer.

The CORONER accordingly despatched an officer to Clerkenwell Prison for her, and the Jury adjourned for an hour, to await her arrival.

The officer, in about an hour, returned, and stated, that the prisoner declined appearing, saying, that she had no witnesses; nor did she wish to add anything to the statement which she made at Worship-street Police-office.

The CORONER summed up the evidence; and the jury, after deliberating for nearly an hour, returned a verdict of 'Wilful Murder' against Bridget Calkin; and the Coroner at once made out his warrant for her commitment to Newgate on the charge.

Since the examination of Bridget Calkin, on a suspicion of having been concerned in the murder of the little girl, Margaret Duffy, several other persons were taken up on suspicion, as it was sworn, that immediately upon the discovery of the corpse in Cowheel-alley, a man and woman rushed out of the privy, and ran off; and the witness to that important fact, a boy, twelve years of age, named William Newton, who was close to the spot with a lighted candle, gave a particular description of the man, who, he said, blew out his light, struck him upon his breast, and then ran off as hard as he could towards Golden-lane. Upon Calkin, when she was apprehended on the night of the supposed murder, a handsome Russia-leather memorandum-book was found, which, she said, had been given to her by Robert Tye, an ornamental glass-worker. The latter was brought before Mr. TWYFORD, at Worship-street, by Hanley, the Worship-street officer, who had taken him into custody upon hearing of his connexion with Calkin.

TYE admitted that she had the book from him, and he said that he found it in Old-street, a fortnight since.

William Shearing, William Dunkley, *alias* Boney, and —— Long, three resurrectionists, were afterwards brought into the office to be viewed by the witnesses, William Newton and Mary Kean, who, however, could not identify either of them or Tye, and they were all discharged.

DUNKLEY.—Before I go, I just wish to say, that Mr. Hanley ought not to mention my profession in this open manner. Why the people would tear us to pieces just now, if they're put up to it in this way.

HANLEY.—You know it is no secret. Why, I've heard you myself making a boast in public of your body-snatching.

Mr. TWYFORD told them to go about their business, as there was no further charge against them, and he desired Mr. Dixon, the Superintendent of Police, to take particular care of the boy Newton.

Shortly after these persons had been discharged, Police Inspector Perry came before the magistrate, accompanied by a gentlemanly-looking person, who identified the memorandum-book which Robert Tye, who had just been discharged, admitted that the prisoner, Bridget Calkin, had from him. It appeared, from this gentleman's statement, that he lost the book in question from a house at Cow-cross, on the night of the 5th of November, when the fire occurred in which several persons perished; but how the book was taken he could not tell.

At the same office Bridget Calkin was brought up, on the 13th, for final examination before Mr. Twyford, charged with the wilful murder of the child, Margaret Duffy, for which she already stood committed for trial upon the Coroners inquisition. The evidence before the Coroner's Jury, upon view of the body of the deceased, was taken in the absence of the prisoner, who was then confined in Clerkenwell Prison; and a messenger being despatched thither to ascertain if it was her desire to be taken before the Jury or offer any defence,—she returned for answer that she had no such wish, nor anything to add to the statement which she had already made before the magistrates at this office. Of her statement or the statements of the witnesses on that day, there was, however, no written evidence. It was now considered necessary to have the whole of the evidence taken at the Worship-street office, in order to her commitment by the magistrate, without reference to the proceedings before the Coroner; and one of the clerks was occupied the whole of one day in taking the necessary depositions.

On the 7th of January, Bridget Calkin was placed at the bar of the Old Bailey, upon an indictment, charging her with having by means of pressure

on the throat, chest, &c., murdered Margaret Duffy. She was also charged upon the Coroner's Inquisition.

The prisoner, who during the whole of the trial appeared to view the proceedings as an indifferent spectator, pleaded 'Not Guilty.'

Mr. ADOLPHUS having briefly stated the case, as subsequently developed by the evidence, called the following witnesses:—

MARY CANE deposed, that on Saturday night, the 3d of December, she found the body of a child in a certain privy in Hartshorn-court, Little Cheapside, having accidentally struck her foot against it in the dark. On her giving the alarm, several persons arrived on the spot, with a light; she then saw the body of the deceased lying on its back in a corner of the privy; one of its legs was doubled up, and its clothes were above the knees. No one could get to the place, but those who were acquainted with the premises, and knew how to open the door. The inhabitants of seven houses had a right of admission to the privy. Prisoner lived next door to witness.

WILLIAM NEWTON, a boy, twelve years old, stated that he resided at No. 7, Payne's-buildings, near Hartshorn-court; that on the night in question, the preceding witness told him what she had seen, on which he went to the privy with a light, and pushed the door, but did not succeed in pushing it quite back; that a man rushed out past him, jostling him against an opposite door, and extinguishing his candle. The man was lusty, wore a black coat and had crape round his hat; a 'littleish' woman also came out, who had on a light shawl, and a high cap or bonnet. Two men named Shookers and Nolan came up and took the body of the child out of the privy.

PATRICK NOLAN, who first took up the body, described the state in which he found it.

JOHN SHOOKERS, a costermonger, of No. 1, Hartshorn-court, proved that on the night alluded to, about ten o'clock, he heard Mary Cane scream, and hastened towards her in consequence; when he got to the privy he saw Nolan with a candle, and likewise perceived the body of the child; took the child to Mr. Smith, a surgeon, but life was quite extinct.

Cross-examined by Mr. CLARKSON.—It was witness, and not Nolan, who first lifted the child from the ground where it was lying.

JAMES DUFFY, father of the deceased, who lived in Broad-Arrow-court, deposed that his child was between five and six years of age, was very healthy, and had never been subject to fits since she had had the hooping-cough, two years before. Saw her last alive at half-past five o'clock on the 3d of December, when she was going out with the prisoner, who often nursed the child, and appeared to treat it with kindness. Witness next saw his daughter at the station-house, Bunhill-row, about a quarter before ten, but she was quite dead.

On being cross-examined, he added, that Calkin had always appeared uncommonly fond of children, and acted tenderly towards them.

ELEANOR JENNINGS, twelve years old, said she was playing with the deceased between five and six o'clock in the evening in question, in her (witness's) parents' room. The prisoner then came to the room and asked if Margaret Duffy was there; being told she was, the prisoner took her down stairs, and witness never saw her companion alive afterwards.

ELIZABETH KENNY, of No. 12, Prospect-place, Pump-alley, about five minutes walk from Hartshorn-court, stated, that on the night referred to, about half-past five, or a quarter before six, she saw the prisoner for the first time; she had on a light dress, a black bonnet, and a light shawl; the child had hold of her hand, walking by her side; the child was without shoes or stockings, and was crying: prisoner told her not to cry, for she would soon be at home; they were then going towards Hartshorn-court.

MARTIN BAILEY, a labourer, deposed that he saw the prisoner come away from the privy door in Hartshorn-court, shortly before eight o'clock the same evening; he was only a few yards from the privy, and Calkin was walking quickly towards Little Cheapside.

NATHANIEL BIRNIE, a police constable, stated, that on the night of the 3d of December, the child's mother applied to him, and in consequence of the representations she made to him, he apprehended the prisoner at about ten minutes before nine, in Broad Arrow-court, near her lodgings. On his asking her where she had left the child, she said she had not seen the little girl since she gave her a penny as she stood at her father's door. On their way to the station-house he asked her where she had been since she gave the child the penny; to which she replied that she had been at the house of

Mrs. Lea, in Rotten-row, for whom she usually washed. He accompanied her to Mrs. Lea's, where they found a man; in answer to her question upon the subject, the man declared that he had not seen her there that day before. Witness then took her to the station-house, and she afterwards mentioned that she had been in the room of a Mrs. Warren in the same house.

ELEANOR DUNFEY, with whom the prisoner stated she had lived, lent her on the evening before the 3d of December the same shawl which she had on when taken into custody. Being cross-examined, she said that Calkin had been absent from five o'clock till eight, from which hour she did not leave the house till her apprehension by the officer.

ANNE LEA, and MARTHA WARREN proved that the prisoner had not visited their lodgings on the 3d of December.

JAMES DIXON, superintendent of police, deposed to another story as to the manner in which the prisoner told him she was employed on the evening of the murder, and this account was also disproved by reference to the party with whom she pretended to have been in company.

MARY DUFFY, sister to the deceased, gave evidence of a conversation between her and the prisoner on the evening in question, relative to the absence of her sister, whom Calkin alleged she had taken to Old-street, after having left the court in which the privy was situate. Witness then said she must have made away with her, and threatened to give her in charge; and the prisoner told her in reply, that she was a 'b——y liar,' and that she did not care about being sent to the station-house, as she had a sovereign in her pocket to keep her until she could get out.

On cross-examination, the witness further stated, that there were many lanes and turnings about Hartshorn-court, in which a child of her sister's age might be lost.

BRIDGET MURRAY, confirmed the statement of Mary Duffy, relative to the angry conversation which had taken place between her and the prisoner when the child was first missed.

Mr. SMITH, the apothecary, who examined the child between nine and ten o'clock, deposed that the child, to the best of his judgment, must have been dead at least an hour and a half when he saw it; the body at that time was

not quite cold, with the exception of the arm, which had been exposed without covering.

On being further questioned by the COURT, he stated, that he could not give a positive opinion as to the length of time which might have elapsed; it might have been only half an hour, the retention of warmth depending, in a great degree, on the temperature of the atmosphere; nor could he say that a child put to a violent death would become cold sooner than one that died by the ordinary course of disease.

Mr. LEESON, a surgeon, living in Chiswell-street, stated, that he also saw the body about ten o'clock; the extremities were cold, but the body itself was warm; the warmth was as high as 83 degrees. He should have supposed that the child was dead about an hour, but it was possible he might be mistaken a full hour in his calculation. He found discolouration on the neck, which seemed to indicate violence, and the jaws were very firmly clinched. The father of the deceased was present at the time. On the same night, at nearly one o'clock, he saw the body again, and there was no perceptible alteration in the appearances. On neither occasion did he strip the child.

Mr. Justice J. PARKE observed, that he ought to have done so, and thoroughly examined the whole person.

On Tuesday morning the body was stripped, and underwent further examination, internally as well as superficially; other surgeons were present: the vessels of the brain were turgid from excess of blood; but the action of the stomach appeared to have been healthy up to the time of death. There were certain marks apparently caused by the pressure of fingers upon the neck, and he came to the conclusion that the child died by violence,—in his opinion by means of suffocation.

Mr. RANCE, a surgeon, residing in the City-road, stated, that he had made a *post mortem* examination of the body of the deceased on the 6th of December, in the presence of Mr. Brooks. Decomposition was then rapidly taking place, owing to the warm state of the weather: nearly the whole surface of the body was discoloured. There was a slight mark of pressure on the left arm, but on account of the discolouration, witness could not undertake to say whether there were any other marks of violence on the body. The tongue protruded about three-eighths of an inch between the

teeth, which were firmly closed upon and had indented the tongue. The muscles were rigid and firm, with the exception of those of the neck, which were in a flaccid state. The stomach was in a perfectly healthy condition. Digestion was going on at the time of death. On examining the thorax, he found the lungs collapsed to a degree that proved that the last act of respiration was that of expiration. The heart was healthy, but nearly void of blood. On opening the right auricle of the heart, a small quantity of blood issued from it. A portion of blood also flowed from the pulmonary veins leading to the left auricle of the heart. The vessels of the neck contained a little serous fluid, and a quantity of fluid blood escaped on dividing the jugular veins. The head exhibited no external marks of violence, but on removing the scalp and bone, the blood-vessels of the brain were found to be distended. These appearances must have been caused by pressure on the neck, preventing the blood from flowing back to the heart. On removing the bandage with which the jaws had been tied up after death, a quantity of serous fluid escaped from the nostrils. There was no appearance of fracture or dislocation of the neck, or laceration of the tendons. The death of the deceased was, in all probability, caused by external pressure, which produced suffocation.

Mr. BROOKS gave a similar account of the appearance of the body; adding, that, in his opinion, considerable violence had been used towards the child; and that no reasonable person could entertain a doubt that the cause of death was suffocation.

The last witness examined for the prosecution was Martin Lee, who swore that the prisoner was not at his house on the 3d of December, as she alleged to the officer she had been.

This closed the case on the part of the prosecution.

Mr. CLARKSON, who stated that he had been directed by the Sheriffs to conduct the prisoner's case, here made an objection to the manner in which the indictment was drawn up. He said that the prisoner was charged with causing the deceased's death, by squeezing and pressing about the neck. This description of the manner in which the murder had been perpetrated, he contended to be of too vague a nature, and in support of his argument referred to the 2d volume of Lord Hale's Pleas of the Crown, where it was

laid down, that if a wound was inflicted on the breast, arm, or head, it was bad to say that it was inflicted 'about the breast, &c.,' (*circiter pectus, super brachium, or, super manum*) for the particular part of the breast, arm, or hand, must be specified. He conceived that no distinction could be drawn with respect to this point, between a death caused by a wound and one by suffocation; and he was therefore of opinion, that the words in the indictment, 'about the neck,' did not fix with sufficient distinctness the part of the neck to which violence had been applied.

Mr. ADOLPHUS, in answer to the objection, said, that *circiter* had a particular meaning in Latin; but every person knew that 'about' was capable of two significations. The learned Counsel was prevented from proceeding further by

Mr. Justice J. PARKE, who said, that the Court was of opinion that the objection was not valid. The word 'about' in the indictment was to be taken in the sense of 'around,' death having been caused by pressing the hand around the neck. The learned Judge then informed the prisoner, that it was now the time for her to say whatever she wished in her defence.

The PRISONER, who, during the whole of the proceedings, had exhibited no signs of feeling much interest in a matter which affected her life, rose and answered with great indifference, 'I have nothing to say, except that I am innocent of the crime with which I am charged.'

Witnesses were then examined for the prisoner, of whom the first was—

JANE DUGGAN.—I am married, and the mother of twelve children. I live at No. 6, George-yard. My husband is a stone-mason. The prisoner lived with me as a nurse to one of my children. She is kind and affectionate to children, and has always borne that character.

Another witness, living in the same place.—I have known the prisoner for twelve months. She has always borne the character of being kind, humane, and fond of children.

ELIZABETH MARTIN.—I live in Golden-lane. I have known the prisoner for seven years. I should readily intrust her with the care of my children. I am a married woman.

JULIA COCHRANE, another married woman, deposed to the kindness and humanity of the prisoner.

MARY FLANAGAN, a person of the same description, gave similar evidence.

ELLEN MACDONNELL was examined to the same effect; as were MARY BRUCE, TERENCE DOUGHTY, PETER MACDERMOT, DANIEL MANNING, JOHN M'HUGH, CHRISTOPHER SUGGON, HENRY PRITCHARD, BRIDGET GROGAN, and several other witnesses.

No evidence as to facts were offered.

Mr. Justice JAMES PARKE said, it was then his duty to state to the jury the evidence that had been laid before them on the present trial, and to accompany it with such remarks as the circumstances of the extraordinary case suggested to his mind. The offence with which the prisoner stood charged was that of wilful murder, the indictment stating, that, with her hands about the neck of the deceased, she so grasped or squeezed the throat of the said Margaret Duffy, as by choking, suffocation, or strangulation, to occasion her death. If they were satisfied that the deceased came to her death in consequence of suffocation or strangulation, the particular mode in which that crime happened to be perpetrated was immaterial. It was immaterial, for example, whether the prisoner did it with her own hands, or was present when the crime was committed by some other person. He meant by being present, was in such a situation that she could see the act done, and was near enough to interfere for its prevention. If they believed that she committed the crime with her own hands, they would, of course, find her guilty; or if they thought that she was present, aiding and abetting at the time it was committed, they were by their oaths bound to find a verdict of guilty. If, upon a candid and dispassionate consideration of the evidence, they arrived at the conclusion that the evidence was not sufficient to sustain either of those charges, the prisoner was entitled to a verdict of acquittal. Before he proceeded to recapitulate to them the substance of the evidence which had been offered for their consideration, he could not refrain from earnestly requesting them to dismiss from their minds anything they might have heard or read on the subject. He begged that they would use their best endeavours to free their minds from all prejudice, and approach the solemn duty which they had to perform with minds as much as

possible freed from any prepossession whatsoever, and decide solely upon the evidence that day offered in Court. The evidence given on the trial was of the description called circumstantial, or indirect testimony; but it often happened, that some of the very greatest crimes were detected, exposed, and the offenders convicted upon indirect evidence. No doubt direct testimony was the most satisfactory, for that gave the Jury the advantage of hearing the facts sworn to in the plainest manner by eye-witnesses; and when their veracity could be relied upon, nothing, of course, could be better than testimony of this nature. It happened, however, that in some cases circumstantial evidence led the mind as directly to a conclusion as direct evidence; for facts were in such cases positively sworn to by such a number of witnesses as could seldom be obtained to testify directly, and were free from the suspicion of being actuated by a bad motive to give evidence against the party accused. The first point to which they would direct their attention was, did they believe the witnesses examined had spoken the truth? Secondly, could they reconcile the facts sworn to, with no other supposition, than that the prisoner at the bar was guilty of the crime of which she stood accused? If it was impossible for them to reconcile it with any other supposition in the ordinary course of human affairs, then were they bound to pronounce a verdict of guilty. There was another point of view in which they might consider the evidence—namely, that though the prisoner neither committed the murder, nor was present at its commission, yet that she might have spirited away the child with a view to its being deprived of life, and have delivered her over to others for that purpose. Should they take such a view as that of the evidence, the prisoner would be undoubtedly entitled to their acquittal; for then she would be in the eye of the law an accessory before the fact, and, as such, she could not be found guilty under the present indictment. He had further to call their attention to that which was the duty of jurors, in all cases, which was, to give the prisoner the benefit of any reasonable doubt which, upon a careful review of the evidence, presented itself to their minds; she was entitled to the full benefit of that doubt, and, if it existed, to be discharged from their bar; that there was, as they must fully remember, no direct evidence against the prisoner, proving that she actually committed the murder with her own hands—nay, it had been shown that she was of a humane disposition, and affectionate in her conduct towards children. Neither did it appear that she was under the influence of any feelings leading to the commission of a

crime of that nature; but, unfortunately, the experience they had had in that court enabled them to assign a motive of no very ordinary character—that of selling the human body to those who wanted it for dissection; or, as might possibly be the case with the prisoner, of delivering over the unfortunate child to those who would put an end to her existence for purposes of that nature. When he should have restated to them the evidence, they would say whether or not the prisoner had been actuated by such a motive. His lordship then recapitulated, most minutely, the whole of the evidence. When he got to the end of the first part, he observed, that he presumed they would not have much difficulty in saying whether or not the child died a natural death, or lost her life through violent means. If they were of opinion that she had been murdered, then they would consider whether or not the circumstantial evidence brought home the guilt of the offence to the prisoner then at the bar. There certainly was no direct positive proof, yet the prisoner was seen with the child at a time near to that at which she was murdered. Again, some child was seen with her still nearer to the important moment; and in the absence of all proof that she had in the interval taken up another child, the jury would say how far there was proof upon which to convict her. The learned Judge then proceeded to enumerate the leading facts of this point of the evidence, and to detail the conduct of the prisoner upon being taxed with the crime, observing, that doubtless the natural and proper course for all persons accused of such a crime was, if innocent, at once to explain the whole matter, by a full and candid statement of the truth; at the same time, it was by no means uncommon for ill-educated persons, when wrongfully charged with an offence, to endeavour to get rid of it by some false statement. He then proceeded to the evidence of the surgeons, and having thus gone through the whole case for the prosecution, he repeated, that if the jury could not reconcile that body of evidence with any other supposition than that she was not entirely innocent, they were bound to find the prisoner guilty. It was, he then said, the opinion of some of the surgeons, that considerable violence had been used, such a degree of violence as a female would not be likely to inflict. It was, therefore, probable that some other person was engaged in the atrocious transaction, and it was for them to say whether they considered the man and woman, whom the boy Newton swore to have rushed from the privy, to be the murderers. Finally, he had to tell them, that if they could reconcile the facts to any possible supposition but that the prisoner was a principal—that

is, was either the actual murderer, or present, aiding and abetting—then they must acquit her. Again, even though they might suppose her an accessory before the fact, she was still entitled to an acquittal, in a word, if they entertained any reasonable doubt whatever that she was according to the legal definition a principal, they could not find her guilty.

The Jury retired a few minutes to six o'clock, and did not return till half-past seven. In the mean time the prisoner was removed from the bar, maintaining her self-possession to the last. When the jury returned into Court, at the end of nearly two hours, the accused woman was again placed at the bar; in the interval she had become much paler than during the trial, and she was then attended by two men, one at each side, as well as by the female attendant of the prison.

Mr. Justice JAMES PARK and Mr. Baron BOLAND, who with the other Judge had retired, then appeared on the bench, and a verdict of *not guilty* was returned.

The prisoner was removed in custody.

On considering the actions which were committed by such men as Bishop and his colleagues, we cannot regard them in any other light than as human monsters, divested of every gentle feeling, and so immersed in brutality, as to hold no fellowship with their kindred. Revolting, however, as the spectacle must be which has been exhibited in this country by the atrocious acts of the London Burkers, doubly must our feelings be harrowed when the same spectacle is held before us, in which females are the principal actors, and who appear in many instances to have exceeded the other sex in the atrocity and cruelty of their acts. In the case of Calkin, although a jury has acquitted her of the crime with which she was charged, yet of the question of her actual guilt very little doubt remains in the mind of the public in general; and the universal regret is, that a delinquent of her stamp should have escaped the fate, so justly her due, through any of the technicalities or constructions of the law. It may be that the perpetration of the crime could not be brought so home to her as to warrant the jury in bringing in their verdict of guilty; and therefore Mercy and Humanity stepped in to give her the full benefit of the doubts. But to the cool and impartial observer, the

evidence against her must have appeared as conclusive and confirmatory of her guilt, as the intricate and, in many instances, inconsistent evidence which was adduced against Bishop and Williams. Her life has, however, been spared for the present; but from the criminal practices to which she has been long addicted, and her well-known connexion with the resurrectionists, it may be safely prognosticated, that the laws of the country will, ere long, claim her as one of their victims.

In point of atrocity, however, there is scarcely any act connected with the horrid practices of the resurrectionists which exceeds, in its cold-blooded ferocity, the murder committed by Mrs. Ross, alias Cook, alias Reardon, on the body of Mrs. Walsh, a woman of nearly eighty-five years of age. For some time she had been missing from her accustomed haunts; and some suspicion having been excited that she had come to an untimely end, a warrant for the apprehension of Mrs. Cook was issued; and on the 29th of October, she, with her husband, and their son (a lad about twelve years of age) were brought before Mr. Norton, by Lea, the officer of Lambeth-street Office, charged on suspicion of the Wilful Murder of Caroline Walsh.

The prisoners, who had been kept apart during the day, were then examined separately, and their accounts were of so conflicting a nature, as to add considerably to the suspicion of their having improperly disposed of the old woman. The boy said, that on the Friday night on which the missing female slept at his father's and mother's room, in Goodman's-yard, Goodman's-fields, they had had bread and cheese for supper; and they all, including the old woman, after partaking of it, went to bed at eight o'clock. The mother said, that their supper consisted of tea, bread and butter, and cold meat, and they went to bed at nine o'clock; while the father said they did not go to bed until eleven o'clock, and had had some hot meat for supper. There was also a great discrepancy in their account of the departure of the old woman from the house on the Saturday morning.

The female prisoner said, that she got up about half-past six o'clock, and prepared breakfast, and gave Walsh some tea and bread and butter. While they were taking breakfast, her husband, who had been out since five o'clock, came in, and had his breakfast. She then left her husband and Walsh together, smoking their pipes, and went out; and on her return, in about half an hour afterwards, the latter was gone. The husband, on the contrary, said,

that he came home to breakfast on the morning in question about eight o'clock, and found no person in the house but the old woman; and he was not certain whether he had left her there when he came away, or she had left before him; but he was satisfied that he had not seen his wife from the time he came home to his breakfast until he went away again.

A lad, who lodged in the same house with the prisoner, said, that on the morning of Saturday, the 20th of August, at five o'clock, he saw Mrs. Cook come up the stairs leading to a cellar, and closing a trap-door. This she positively denied, and said that she was not up before half-past six o'clock.

It was also stated that coffins had been frequently seen in Cook's room; and one witness swore positively, that in the month of July last, at two o'clock in the morning, he saw the three prisoners come down the Minories, the boy with a sack on his shoulders, with what appeared to him to be the body of a child of eight or ten years of age in it, and the mother assisting him to carry it, by holding it by the bottom; and they all turned into the court where they lived.

After an examination, which lasted for upwards of four hours, Mr. Norton remanded the prisoners until the following Wednesday, and at the same time gave strict injunctions that they should be kept apart in prison, and not allowed to have any communication with each other.

Accordingly, on Wednesday, the 2nd of November, they were brought up for further examination. The boy, since the previous examination, had made such disclosures to his fellow-prisoners at the House of Correction, as left no doubt of the guilt of his parents of the horrible offence alleged against them; but his statement, which was committed to writing, and which was handed to the magistrates, was unconnected and unsatisfactory. While in one of the strong rooms belonging to the office, Lea, the officer who had apprehended the prisoners, sent for the master and mistress of Aldgate Parochial School, at which the boy was in the habit of attending for two or three years past, and left them with him for some time, when he disclosed to them the outline of the appalling statement of the occurrence which he subsequently made on oath before the magistrates in the presence of his parents.

At three o'clock, Cook, and the female Ross, who had always passed as his wife, were placed at the bar, before the Hon. G. C. Norton, and J. Hardwicke, Esq.; and their astonishment on perceiving that their own child was about to be admitted as a witness against them, was quite apparent.

The magistrates asked the boy if he was quite willing to make a full disclosure of what he knew as to the disappearance of the old lady, Elizabeth Walsh, and he having answered in the affirmative, he was sworn, and made the following statement, which was taken down by Mr. Osman, the chief clerk:—'He recollected the old woman, Elizabeth Walsh, coming to his father and mother, at No. 7, Goodman's-yard, Minories. About ten o'clock on Friday morning (Friday the 19th of August last), and bringing some bread in a basket, a part of which she gave to him for his breakfast. She went away shortly afterwards and returned about tea-time in the evening, when she as well as himself and his mother had some coffee. His father was not present at the time, though he was when she came in the morning. They had coffee about half-past nine o'clock on the same night for supper. He, witness, took part of it, and it made him sleepy, but not sick. The old woman also took some of it, and it seemed to make her drowsy, as she shortly afterwards stretched herself on his father and mother's bed, and placed her hand under her head. She did not at the time complain of illness, on the contrary, she appeared in good health. Some time after he saw his mother go towards the bed, and place her right hand over the mouth of the old woman, and her left on her body. (The boy here burst into tears, and said he was sorry to be obliged to state such things against his own mother.) When his mother placed her hand on the old lady's mouth, her arm fell down, and she laid flat on her back on the bed. And his mother continued to keep one hand on her mouth, and the other on her person for at least half an hour. The old woman did not struggle much, but her eyes stared, and rolled very much. He (witness) stood by the fire at this time, and his father, who was in the room at the time, stood looking out at the window. His father stood so all the time, and he was sure he never once turned round to see what was going forward, and that he had nothing to do with it. In about an hour afterwards, his mother raised the body of the old woman from the bed, and carried it down stairs, but to where he did not know. The body was not undressed at the time. He and his father went to bed some time afterwards, and he could not say what time his mother returned, as he had not seen her

again on that night after she left the room with the body in her arms, nor did he see where she had taken it to. On the following morning he got up about seven o'clock. His father and mother were then up, and in the room. He had occasion, previous to his going to school at eight o'clock, to go into the cellar to the privy, and while searching through the cellar he saw the body of the old woman in a sack which was placed underneath the stair, a portion of the head was out of the sack, and the body appeared to be partly bent, and reclining against the stairs. There was sufficient light in the cellar for him to discern the colour of the hair, on the head. It was partly gray and black; but he could not say whether or not the body was dressed or otherwise. The sack which it was in was one belonging to a person named Jones, with whom his father worked. He had frequently seen it in their room, and he thought it was there on the night before. He went to school shortly afterwards, and never mentioned a word then or since about what had occurred, or his seeing the body in the cellar. On returning home at twelve o'clock in the day, he found his father beating his mother. He thought the cause to be that the latter had been out drinking with a young woman, the granddaughter of the old lady who had called to inquire after her. His mother, he believed, while his father was beating her, called him a villainous murderer, but he had no recollection of her threatening to give any information of him. He (witness), after getting his dinner, went out to play, and did not come home until late. Himself, his father, and mother, supped together on the Saturday night, and at about ten o'clock his mother left the room, and in about half an hour afterwards he was standing at the window, and saw her go past with the body in the sack on her shoulder. It was in the same state in which he saw it on that morning, except that the mouth of the sack was tied; the body appeared to be partly bent. (The female prisoner, in an audible voice, here exclaimed—'Good God! how could I have borne a son to hang me?') The lad again burst into tears, and said he could not help it; that he was telling the truth. He then proceeded with his statement. He did not know at what time his mother had returned on Saturday night, as he and his father, who remained in the room, went to bed, and he was asleep when she came in. On the Sunday morning his mother told him that she had taken the body to the London Hospital. The boy here, as in many parts of his statement, said his father had nothing whatever to do in the business. The magistrates examined him very minutely as to what had taken place on the Friday night, and what

conversation, if any, had taken place between his father, mother, or himself, previous to and after the horrid deed had been perpetrated. He said that no words or quarrel had taken place; the old woman and his father and mother were on good terms, and nothing particular had occurred during the evening, until his mother placed her hand, as he had before described, on the mouth of the old lady; nor did she say a word to him or his father, while she so held her hand on her mouth. He recollected she had been saying something to herself about taking the body to an hospital. He did not see his father lay a single hand on the old woman.

The magistrates expressed some surprise that the prisoner should for a whole day leave the body in the cellar of the house, which was accessible to all the inmates; but this was satisfactorily explained by the landlady, who said, that in consequence of it being so dark, and so infested with rats, the lodgers very seldom indeed entered it. This witness also deposed to having seen the old woman Walsh enter the house on the Friday, and go up to the apartment occupied by the prisoners. This was the last time she was seen alive.

Other witnesses deposed to the old woman taking her bed and bedding to the prisoners' room, and to the prisoners having solicited her to go and lodge with them for a length of time before she went.

It being now very late, and there being several witnesses to be examined, some of whom were not present, the magistrates remanded the prisoners to the following day. Previous to their being taken from the bar, they were asked if they had anything to state. The male prisoner declined saying anything at present; but the female with the most solemn imprecations declared her innocence, and said that the whole of the statement of her son was from beginning of to end a lie. She added that on the morning of Saturday, she had left the old lady and her husband (the other prisoner) after breakfast smoking their pipes at the fire when she went out, and from that time to the present she had not heard of her. They were then taken from the bar, and the magistrates gave directions that they should be kept separate as before.

On the following evening, Edward Cook, and the female Eliza Cook, alias Ross, were again brought up to Lambeth-street police-office, and placed

within the bar, before the Hon. G. C. Norton, and J. Hardwick, Esq., for final examination. When brought into the office, the female, who appeared as ferocious as a tigress, on perceiving her son, exclaimed, 'Oh Ned, I hope you are not going to hang your mother,' and seemed at the moment almost ready to dart at the boy, and tear him to pieces. He, however, was removed to a distance from her by the officers.

Previous to the examination being entered on, Mr. Norton said he understood that there were two gentlemen belonging to the London Hospital present, who wished to say something; and if so, the magistrates were ready to hear them.

Dr. LUKE, who as well as Dr. Hamilton, was in attendance, said, that in the report of the proceedings at this office on the day before, in the morning journals, it was stated that the body of the missing woman had been taken to the London Hospital. He (Dr. Luke) wished to deny the truth of such statement, and to say that no such body had been received at that institution. At the time at which it was stated that it had been brought there, on the 20th of August, the lecturing and dissecting rooms were under repair, and none but the tradesmen employed in doing such repairs entered them. He had besides made inquiries, and found that during the whole month of August not a single body had been received at the London Hospital.

Mr. NORTON observed, that so far as the Hospital was concerned, the statement of Dr. Luke was perfectly satisfactory; at the same time the representations in the newspapers as to the statement of the boy respecting his mother saying that she had taken the body to the London Hospital, were perfectly correct.

LYDIA BASEY, the wife of Thomas Basey, a boot-closer, residing in Long-lane, Smithfield, stated that she was granddaughter to the missing woman, whose name was Caroline, and not Elizabeth Walsh. On Friday, the 19th of August last, she went with her to the residence of the prisoners, in Goodman's-yard, Minories. She did not go into the room of the prisoners at the time; but she heard the voice of the female prisoner as the old lady went up stairs. It was between five and six o'clock in the afternoon. She understood her grandmother was going to stop there. She had nothing with her at the time but a small basket; and she had never seen her since.

ANNE BUTON, sister to the last witness, stated that her grandmother, Mrs. Walsh, had lived with her for six years, previous to August last. The last place at which she resided with her was in Red Lion-court, in the Minories. The prisoners at the time lived next door to her in the same court. Having given up her room in the beginning of July, the old woman stopped for some time with the prisoners, who took it; and she (witness) subsequently took lodgings for her at a Mrs. Shaw's, in Playhouse-yard, Houndsditch. Her invariable practice was never to go out before ten or eleven o'clock in the forenoon, and return at three or four o'clock in the afternoon, and sometimes much earlier. She was in the habit of selling tapes, threads, and other articles. The last time she saw her was about four o'clock in the afternoon of Friday, the 19th of August, at the house of Mrs. Shaw. She (witness) then told her that she understood she was going to Cook's to lodge, as she had seen her bed there in the course of the morning. The old woman said she was; upon which she remarked, that if she went to Cook's, they would cook her; that they were body-snatchers, and would put a pitch-plaster on her, and sell her body at some of the hospitals. The old woman seemed displeased and angry at her remarks, said that the Cooks were not so bad, and requested that she, witness, would accompany her to their house. This witness refused, but went part of the way; and on their parting at the end of Cutler-street, she told her that she was sure she should never see her more. She, however, told her not to stir out the next morning until she called on her, and that she would bring her some stockings, and other articles which she required. The old lady said she would not, and they parted. During the whole Friday night the witness could scarcely get any rest, such were her apprehensions about her grandmother; and on the following morning she went to the house of the prisoners, at about a quarter before nine o'clock. On reaching it, she found no one at home but the female. She asked her for the old lady, and she said she was just gone out. She appeared a good deal confused at the time. Witness expressed some surprise that she should go out so early, contrary to her usual habit, and more particularly as she must have expected her, and promised to wait at home until she called; on which the female prisoner said, that she was gone out early, in order that she might return early; and added, that whatever things she (witness) might have for her, she might leave them. The female prisoner was washing something at the time, which she said was a butcher's jacket. She said that her husband, Cook, was very partial to the old lady;

that they had a jolly good supper on the night before; and that Cook had treated the old lady to 'something short.' She next pointed to a sack which lay on the bed, and said that Cook had doubled it up on the night before, to put the old woman in it. Witness asked her what she meant by putting the old woman in a sack; and she replied, that he had doubled it up to place it under her on the bed. She also said that the old woman had no linen on. This witness thought somewhat extraordinary that she should have examined her so closely, and asked her how she came to do so; but she made no reply. Witness again expressed much uneasiness about her grandmother, on which the female prisoner told her that she had left her and her husband sitting by the fire when she went out to collect some cinders, and on her return she was gone. She (witness) asked the female prisoner to go out with her to have something to drink. She did so, and they went to two public-houses. While in one of them she earnestly inquired about the old woman, when the female prisoner observed, 'You speak as if you thought we had murdered or made away with her.' Witness observed that she had her suspicions that such was the case, but she did not wish then to express what her feelings were. Mrs. Cook pressed her (witness) afterwards to go home with her to have something to eat, but she refused to do so, and gave her some halfpence to get some bread and cheese with, but she did not return. Witness, after searching about for the old lady, went again to the residence of the prisoners. They were both at home, and Cook appeared in a most savage temper, and the female appeared to be dreadfully beaten. Her face was one mass of contusions. Cook shortly afterwards left the room, and the female told her, that he had given her a desperate beating because she had been out with her, and lest she should let anything drop about the old woman. Witness expressed some surprise that so quiet-looking a man as Cook appeared to be, should act so; on which the female observed, that he 'was the greatest murderer in Europe if the truth was known.' She (witness) had subsequently made inquiries at all the gaols, poor-houses, and hospitals in the metropolis, about her grandmother, but was not able to obtain the slightest intelligence about her. She had never recollected her stopping a night from home. Mrs. Cook had frequently solicited the old woman to go to lodge with her, and appeared most anxious to know if she (witness) was her daughter or any relation of hers. She, however, never told her that she was more than a friend, who had known her from her childhood, and as such she respected her. She had repeatedly warned her grandmother against

going to the house of the prisoners, by telling her what they were, and that they would be sure to put a black plaster on her, and dispose of her body, but she still had a good opinion of them. On the Monday night after the old woman was first missed, she went to the house of the prisoners: it was late in the evening, and Cook was in bed. Mrs. Cook pressed her very much to stop there all night, as she appeared tired, saying, that her husband would have no objection to her doing so. She refused to do so; and Cook desired her not to be so uneasy about the old woman, as in all probability she would hear from her at the end of the month. 'At this instant,' said the witness, 'I thought I heard the voice of my grandmother, as plain as ever I heard her in the course of my life, say, "Nancy, where is the use of your looking for me, when I have been suffocated in that bed of Cook's, by him and his wife?"' The circumstance, as well as her own fears to get out of the place, had such an effect upon her, that she was scarcely able to walk down stairs.

JOHN SHIELDS, a lad of about fourteen years of age, who lodged in August last in the same house with the prisoners, recollected one Friday night, about nine weeks since, having some words with his father, and being turned out of the room; he in consequence sat on the stairs. It was between ten and eleven o'clock at the time. Mrs. Cook came down stairs, and asked him if he had been again turned out through that wretch (meaning a woman who used to wash and clean for himself and his father). She said, that if she served her boy so, she would rip her from top to toe. She then requested him to go in; but his father not being in bed he could not, and he went into a dark corner of the stairs. Mrs. Cook passed, without seeing him, and remained for about half an hour at the street door, and then went up to her room. While he was in the corner, Cook was coming down stairs; but before he reached him, somebody called him back, and witness being called into his father's room, went to bed. As he was coming down stairs at five o'clock the next morning, he saw Mrs. Cook come from the cellar, and heard the cellar flap fall, and she asked him where he was going so early. He returned about six o'clock, and went into the cellar to get some eggs, as he kept some ducks and hens there. He felt about for some time for the eggs, and after getting them, brought them up stairs. The cellar was very dark, and he could not see the body if it was in a sack under the stairs. It might be there, without his observing it.



A witness named BARRY deposed to having seen the prisoners and their son one morning at two o'clock, in the Minories, in the month of June last. Their son had a sack on his back, in which she (witness) was satisfied was the body of a child. His mother helped him to carry it, and they turned into the court into which they resided.

Young COOK was here called and questioned, but he denied all knowledge of the transaction, and said, he never was out so late as two o'clock in the morning. He said that the statement of the day before was quite correct. In reply to a question from Mr. HARDWICK, he said that after the death of the old lady, his mother took her up like a baby in her arms, and carried her down stairs. This induced the magistrate to make some inquiries as to the person of the missing female, and it appeared, though she was very tall and a good figure, she was not very heavy.

LEA deposed to having apprehended the prisoners, and detailed at some length their contradictory statements. After their examination on the preceding evening, the prisoners were locked up in their different cells, the man in the centre, and the woman and boy on both sides; he heard the female call out to Cook to ask the boy who had told him to say all that he had against her, and why he did so? and on Cook asking the question, the boy replied, that no one told him, and that he said so because his mother did it.

The examination, after lasting nearly six hours, terminated here; and the prisoners, who contented themselves with a mere declaration of innocence, were committed for trial.

On Friday, the 6th of January, Edward Cook, aged fifty, and Eliza Ross, aged thirty-eight, were placed at the bar, indicted for the wilful murder of Caroline Walsh, on the 19th of August last. The female prisoner was charged with causing the death of the deceased, by violently squeezing her neck, breast, stomach, and nostrils, until suffocation ensued; and the male prisoner was charged with aiding and abetting in the said murder. They were also indicted for the murder of a person unknown.

The prisoner pleaded 'Not guilty,'

Mr. ADOLPHUS and Mr. BODKIN appeared for the prosecution; Mr. BARRY for the prisoner Cook; and Mr. CHURCHILL for the prisoner Cook.

Mr. ADOLPHUS said, that the case to which it was now his duty to call the serious attention of the Court and the Jury, was one of the most extraordinary in all its circumstances that had ever presented itself in the annals of crime. He was sorry to say, that it was not of late very extraordinary to find persons base enough to raise the hand of murder against their fellow-creatures without any previously-conceived malice against them,—without being stirred up by passion or ill blood, but solely impelled from the spirit of sordid gain,—a gain not to be derived from the possession of the property of their victim, but from the very being which God gave them; their object being to derive profit from the dead bodies to persons engaged in the prosecution of the science of surgery. This was not, however, the most extraordinary circumstance of the present case; but the many facts which he had to unfold to the Court formed one of the most imposing narratives which had ever fallen to the lot of any man placed in his situation to relate. The person about whose death they had met that day to inquire, was named Caroline Walsh, a native of Ireland, and at the time of her murder had reached the advanced age of eighty-four years. She had been living for some time in Red-lion-court, in company with her granddaughter, who took care of her. The old woman had no means of existence except the produce which she gained from selling tapes and thread in the streets, which she carried about in a basket, and from such alms as charitable persons chose to bestow upon her. Nevertheless, notwithstanding her advanced age, she was strong and hale, of considerable height, and commanding presence; and, what was remarkable in a woman of eighty-four years of age, she had a perfect set of teeth. They were all uninjured except one tooth, three from the centre, which was slightly broken, and in the cavity of which she used to place her pipe whilst smoking. The colour of her hair was black, mixed with gray. Her dress was also remarkable in many particulars. She wore a chip or willow hat (which had been broken by some injury), a shawl, the colour of which had been discharged by long use, a stuff petticoat, embossed with figures, and her apparel was, upon the whole, very clean for a person in her situation in the world. She had also on a pair of knit stockings, mended at the heels, with a linen shift, darned in many parts. This person had become acquainted with the prisoner at the bar. He understood that the female prisoner was not the wife of the male, but they had lived together as man and wife. They had a son, a pupil in a charity school, who lived at home, but was obliged to go out early in the morning.

The female prisoner made herself acquainted with Caroline Walsh, and frequently solicited her to come and live at her house, which the granddaughter of the old woman had always dissuaded her from doing. On the 19th of August, however, the old woman made up her bed in a bundle, went away, and carried it to Goodman's-yard, from which time all trace was lost of her, except through the medium of some very extraordinary circumstances. She was received by the two prisoners in their house in Goodman's-yard, in the presence of the boy, their son, and he now informed the Jury, that one of the many extraordinary things in this case was, that the judgment to which they might come with respect to the prisoners at the bar depended upon the evidence of that boy, for he was present during the whole of the transaction which was the subject of the present inquiry. That boy would have to come into court, and state facts under the solemn promise of his oath, which might endanger the lives of his father and mother. He hoped he was not insensible to the situation in which he stood, in having to call a son to impeach his own parents; and he was sure the Jury would bear in mind, that if one life had been lost by violent means, the lives of two persons (the prisoners at the bar) were committed to their care. The old woman was well received and kindly treated in the prisoners' house, and coffee was made about nine o'clock, an unusual hour for persons in the prisoners' situation to take that refreshment. Some of the coffee was given to the old woman, who immediately felt herself under the necessity of going to sleep, and she sat down on the bedstead. The woman at the bar then went near to her, held down the old woman's hand, which supported her head, and covered and oppressed her person until she destroyed her life. The man took no share in this transaction by manual operation, but, on the contrary, opened a window, and put his head out of it during the time. The Jury would, however, have to determine whether he, being present, could be unconscious of what was passing, and whether he did not, in fact, so sanction the murder as to make himself a principal in aiding and abetting. After destroying the life of the old woman, the female prisoner, who appeared to be a very strong woman, took the body up and carried it out of the room, and deposited it in the cellar of the house. This cellar was common to every person lodging in the house; but there was one part of it a good deal concealed, and in that part of it the body was placed. The prisoners' son had occasion to go into the cellar next day, and there saw a sack with a head hanging out of it, which he recognized as that of the

woman who was in the room with him the night before. The female prisoner was seen with the sack going down Goodman's-yard into the Minories; but what became of the body was not known. He had mentioned that the old woman had a grand-daughter, who had endeavoured to dissuade her relation from going to live with the prisoners. The grand-daughter had particularly desired her relation, when she went to the prisoners, not to leave the place next morning until she, the grand-daughter, called upon her. Accordingly, early in the following morning she went to the prisoners' house, and saw the female prisoner. Upon her inquiring for her grandmother, the female prisoner said that she had gone out; at which she expressed her surprise. The female prisoner added, that they had had a pleasant night of it, that they had had a good supper, and 'there,' she said, 'is the sack which we put the old woman in.' 'What do you mean?' said the grand-daughter. 'Why, we doubled it under her, and put her in the bedstead.' 'That is very extraordinary,' said the grand-daughter, 'for there is her own bed in a corner of the room.' The grand-daughter still pursuing her inquiries, the female prisoner at length turned round on her, and said, 'Do you think we have murdered her?' The grand-daughter replied that it really looked as if they had, and that some inquiry must be made. Some further conversation then took place, and the grand-daughter, whose name was Mrs. Butin, with the view of obtaining more knowledge regarding her relation, agreed to go to a public-house with the female prisoner, where they had some gin and beer; there the matter was a good deal more touched upon, but he would leave the witness herself to describe what took place. The female prisoner left her, and after a time Mrs. Butin went back to the prisoners' lodgings, and found that in the mean time the female prisoner had been very severely beaten. The woman said, 'My husband has beaten me for going to drink with you. He was afraid I should tell something about the woman;' adding something which, as it was not said in the presence of the male prisoner, he could not now repeat. These circumstances created considerable alarm in Mrs. Butin's mind as to the fate of her grandmother. The transaction took place in the month of August last, when there did not exist among the public so much anxiety with respect to a crime which has since obtained the popular name of 'Burking.' Mrs. Butin searched everywhere for her relation, but when she applied to the police-offices she did not meet with much attention; but afterwards, when the public attention had been more strongly directed to that species of crime which he had mentioned, she went to Lambeth-street

police-office, and there got the assistance of a clever officer, of the name of Lea, to aid her in her inquiries. All their efforts, however, to discover the old woman were in vain; but a very extraordinary circumstance turned up in the course of their investigation. They went about to the different hospitals, to ascertain whether any body answering the description of Caroline Walsh had been carried there, and they learned that, on the 20th of August, a woman was brought to the London Hospital in a state of great destitution and wretchedness, and that she died on the 2d of September. The name of that woman was Caroline Welsh. This was a very extraordinary coincidence, and was a circumstance with which it was his duty to acquaint the Jury, and of which the prisoners were entitled to all the benefit. The Caroline Welsh was an old woman, she had a basket with her, and bore so many resemblances to Caroline Walsh as, at first sight, seemed to make it difficult to distinguish between the two. But upon pursuing the inquiry further, it was found to be impossible that Caroline Walsh and Caroline Welsh should be one and the same person. The woman who died in the hospital was not at all of a decent appearance. She was found in the streets on the night of the 20th of August, by the beadle, in a state of almost utter destitution and starvation. She was taken to the workhouse of the parish, where she gave no account of who she was or where she lived, and her person was so filthy, and so overrun with vermin, that her clothes were obliged to be taken off and burned. She had on a bonnet, but not a chip or willow bonnet, like Caroline Walsh, but a silk or gauze one; and there were other material distinctions between the two women. When she came to the hospital, it was found that she had broken the cap of her knee, which misfortune rendered it difficult for her to walk, and, probably, tended to produce the disease of which she died. Caroline Walsh, on the contrary, was perfectly well in body, and walked without any infirmity. There was also another striking distinction between the two women: Caroline Walsh had, for a woman of her age, a fair, healthy, and florid complexion, while the person who died in the hospital was so extremely dark, as to make the persons about her believe that she was not of white blood, but of the African cast. He had already mentioned that Caroline Walsh had a regular set of teeth, while the other woman had only two canine teeth in the upper jaw, and none in the lower. Until Lea, the officer, lent his assistance, this inquiry was not efficiently pursued, but when he went to the hospital, he caused the woman's body to be dug up in the month of November, when there was still

enough of her remaining to show who and what she was. A great number of persons saw the face and skull, and were able to pronounce at once, that it was not the body of Caroline Walsh. He had already traced Walsh to the prisoners' house, on the 19th of August, since which time she had not been heard of. There was a circumstance which greatly tended to fix the guilt of having unfairly disposed of the old woman, on one or both of the prisoners. Rag-fair was situated in the neighbourhood of Goodman's-yard, and the prisoners were there observed to be offering for sale articles of dress exactly similar to those worn by Mrs. Walsh; and directing the purchasers 'not to let them appear, as they did not want the things to be looked at.' The female prisoner was also seen to sell the very basket which Mrs. Walsh used to carry about with her. It was also a remarkable circumstance, that the pocket worn by Mrs. Walsh, on the 19th of August, had been made by the granddaughter, and was tendered for sale by the woman at the bar; and he could prove, that the pocket was worn by Mrs. Walsh, not only from Mrs. Butin being able to swear to her own work, but in consequence of its having been seen on her person on the very day she went to the prisoners' house. It appeared, that on the way there she met with a child, for whom she felt much affection, and wishing to give the child something, she lifted her petticoat to get at her pocket, which was observed by a person near, who could swear to the pocket, in consequence of a mark of iron-mould upon it. He had now stated nearly all the facts which would be proved before the Jury. The fate of the prisoners was in their hands, and he had no doubt that, aided by that Providence which overlooked them all, and who seldom permitted deep crimes to go unpunished in this world, they would arrive at a just conclusion. The learned counsel then proceeded to call the evidence.

The first witness called was Edward Cook, the son of the prisoners. As he passed by the bar where they stood, they looked sternly at him, and the mother asked whether 'he had come to tell any more lies?'

EDWARD COOK examined.—Is in Aldgate Charity School; goes backward and forward to the school every morning and night, and comes home to his meals. The prisoners are his father and mother. In August last was living in Goodman's-yard, Whitechapel, in a single room, the garret. Previously lived in Red Lion-court, in the same neighbourhood. Knows Ann Butin; has seen an old woman, a relation of hers, in her company; believes the old woman used to sleep with Ann Butin. The old woman used to carry a basket about

the streets with matches in it. On a Friday in August witness saw the old woman in his father's room. Does not know the day of the month; remembers Ann Butin coming to inquire at his father's house; thinks Ann Butin came on the same day as the old woman; first saw the old woman in the afternoon at five, after returning from school; does not know whether the old woman had been in the house before. Witness's mother and father were in the room with the old woman. They were drinking beer, and some coffee was made about nine o'clock. The usual time of taking coffee or tea at home was five or six o'clock. The old woman took one cup of coffee, and afterwards went and laid herself on the bed. Did not notice whether she went to sleep or not. In about half an hour after saw his mother go towards the old woman, and clap her hand on her mouth, and keep it there, perhaps for half an hour. She put the other hand somewhere about the chest. His mother leaned over the woman at the time. Witness observed the woman's eyes rolling—he believed after this his mother took her hands off. He was certain it was when his mother took her hands off. Never saw the old woman speak or move after. Has seen two or three dead persons; the old woman appeared to him to be dead. Believes his father went to the window before his mother went up to the woman. The window was opened by his father, he believed, after the drinking of the coffee. Whilst witness was looking at his mother, he could also see his father. Witness had his back to the fire, and the window opposite him. The bed, which was not very high from the ground, stood between the fire and the window. Heard his mother say something about an hospital; does not know whether she spoke to the old woman or his father. Neither of them gave any answer. Did not hear his father say anything in the course of the evening. His mother carried the old woman out of the room, like a baby in her arms. His father came round the bed to the fire, about half an hour before his mother carried the old woman away. Witness went to bed about twelve o'clock, and did not see his mother any more that night. He awoke in the night and heard some screaming, but would not say whether this occurred on Friday or Saturday. He rose at seven o'clock. Saw his mother in the room, but does not recollect having seen his father. About five minutes before eight o'clock went down to the cellar. Some person had told him that there were ducks there, and went to look for them. Went to the part of the cellar where the stairs stand; it is rather darker there than in the other parts. There is a corner over which the stairs ran. Witness saw a sack in the corner, and some hair hanging out of it.

The sack appeared to be tied round the top with some string, but not tied close. The hair was black and grey. Saw his mother take a sack from under the bed; but is not sure whether that day or afterwards. Believes the sack he saw in the cellar was the same. On Saturday night saw his mother going down Goodman's-yard, between eleven and twelve o'clock. She was carrying a sack across her shoulders, with something apparently in it.

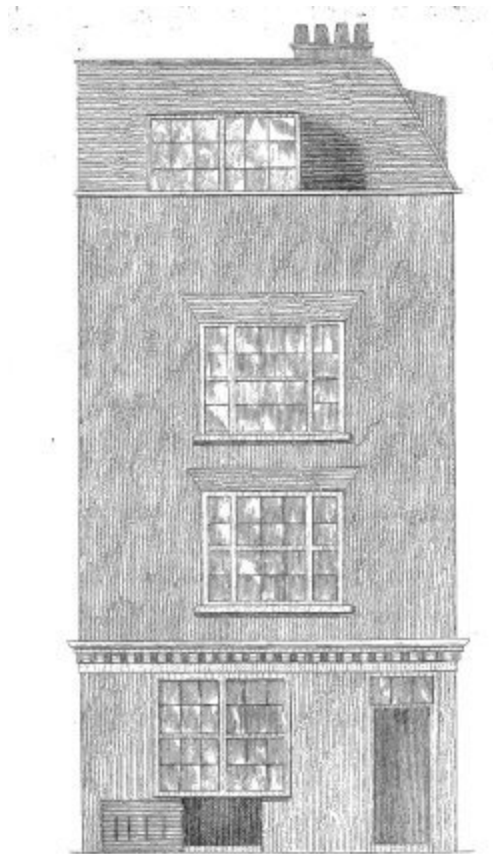
Cross-examined.—Witness was twelve years old last Christmas. Continued to attend the charity-school daily until November. Since being taken into custody, has continued at the House of Correction. Has not been questioned, respecting this matter, by any other person, excepting his schoolmaster, and Hawkins, and Steward, two prisoners. Believes no one else has examined him, excepting Mr. Lea, the officer, who asked him a few questions. Has been examined by four or five persons in a private room in the police-office. Cannot say how he recollected that this affair took place on a Friday in August. Never mentioned this matter to any person living in the same house. Does not know whether he had spoken on the subject to any person, previous to being taken into custody. Went to the school on Saturday morning, after having been in the cellar. Saw no other person in the room on Saturday, but his father and mother, and the old woman. Believes his mother fetched the coffee. Witness drunk a little white mugfull. Believes the old woman took a cupfull, but is not sure whether she took any. Does not recollect speaking to his father at all. Next morning witness went to the cellar for the purpose of using the privy, but did not use it. The place where the sack lay under the stairs was darkish, but positively swears that he could not see that the hair protruding from the sack was black and gray. He does not know where he was when he saw his mother carrying the sack in Goodman's-fields; but he believes he was at the window of his room, which was three stories high, and the hour was eleven at night.

Cross-examined by Mr. CHURCHILL.—The cellar and privy were common to every person lodging in the same house. Did not examine the sack.

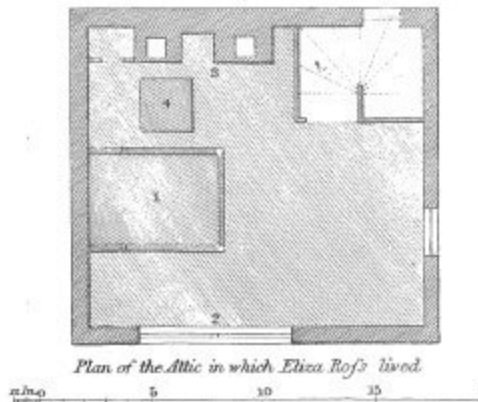
Re-examined.—Witness would not have seen the sack, if he had gone direct to the privy and back. The cellar is lighted by a window, which had a shutter to it. Thinks that the shutter was open when he went into the cellar.

Mr. Justice PARKE.—Did you not tell Mr. Lea, that you had all of you bread and cheese for supper that night?

Witness.—Does not recollect saying that; thinks he said coffee. Does not recollect saying to Lea that he went to bed at eight o'clock, nor that they all went to bed at that hour. Does not recollect saying that his father came to bed to him, and that the old woman made her bed in the corner. When his mother had her hand on the old woman, he thinks that the countenance of the woman appeared brown and yellow.



Elevation of Eliza Rof's House, Goodmans Yard.



Plan of the Attic in which Eliza Rof lived.

1. The Bed. 2. The Window. 3. The Fireplace. 4. The Table.

Mr. Justice PARKE.—You said that you had seen dead bodies before this Friday. Where did you see them?

Witness had seen two children, neighbours, lying dead.

By Mr. Justice JAMES PARKE.—Saw no difference in the appearance of the woman's countenance before or after the coffee. Witness did not use the privy when he went into the cellar, and thinks he told the magistrate so. Thinks he has given a different account of this occurrence before. Thinks he told the magistrate that the woman was alive on Saturday morning. He said so because he did not like to tell the truth.

Mr. HENRY REYNOLDS.—Is a surgeon living in Prescott-street. Has heard the account given by the preceding witness of the manner in which the old woman was treated. Such treatment was sufficient to cause death by suffocation. The motion of the eyes might be produced by suffocation. It is generally the last motion of life.

Cross-examined by Mr. CHURCHILL.—It is not a matter of course that there would be a change of countenance after suffocation: that is a circumstance modified by age. Generally speaking, a change takes place.

A plan of the room and cellar was handed to a surveyor, who swore that they were correctly drawn. The room was eleven feet eleven inches from the fire to the window, and lengthways thirteen feet. The bedstead in the room was six feet long and four feet two inches broad. The light thrown into the cellar by the window was obstructed by the stairs.

On cross-examination, the surveyor stated, that the place under the stairs was darker than in other places; but after being in the cellar, the eye became accustomed to the place, and could distinguish any thing lying under the stairs.

EDWARD COOK was recalled, and, in answer to a question, stated that he did not suspect what his mother was doing when she placed her hand on the old woman. Did not see his mother take any clothes off the old woman. Heard his mother say something about some hospital; but does not know what. Said before the magistrate, that his mother told him herself, on Sunday morning, that she took the body to the London Hospital. Witness still declared that his mother did tell him so on Sunday morning.

ELIZABETH JONES.—Is the wife of George Jones. In August last kept a house in Goodman's-yard, in which the prisoner lodged. The privy, in the cellar, was not much frequented, on account of the great number of rats. There was

another privy, not in the cellar, which was used by the inmates. The window of the cellar was generally opened about seven o'clock. Remembers an old woman coming to the house, at ten o'clock, on the 19th of August. She was a tall person; but witness did not see her face. She had on a dark stuff gown, a light blue shawl, and a black willow bonnet: her feet were through her stockings, and she wore shoes. Witness, on her first examination, described the shawl to be an old dark one; but upon recollection, knows that the colour was light blue. Witness took particular notice of the woman, on account of her looking poor. Supposed that she had come to lodge in the house, in consequence of her carrying a bundle. Everything behind the woman appeared tidy, but witness did not see her face. Afterwards saw Mrs. Butin—thinks the next morning; Mrs. Butin came to inquire after her grandmother.

Cross-examined by Mr. BARRY.—Witness slept at home on Saturday, the 20th of August.

ANN BUTIN.—Is a married woman. Her husband travels in the country. In August last had a grandmother of the name of Caroline Walsh. She was sixty-four years of age, and very tall. She was a robust and hearty woman. Witness had only known her to be ill one week during the last six years. She lodged with witness in July last, and got her living by selling tapes and laces, which she carried in a basket. She was very cleanly in her appearance. She last saw her on the 19th of August. She then wore a dark gown and light blue shawl, with part of the colour washed out; also a black willow bonnet, broken in the crown, and pinned with two pins. Her petticoat was made of figured stuff. It had the pattern of a leaf. She had an old shift, very much pieced, but of a good colour, also a pair of grey worsted knit stockings. Witness knitted those stockings, which were quite different from what are sold in shops. They were very much broken at the heel, and had been mended. She had on a small pair of men's shoes, which were too large for her, and by slipping wore out the stockings at the heel. Shortly before the 19th of August witness had obtained a lodging-for her grandmother at Mrs. Shaw's. Witness made a pocket for her, which she wore on the 19th of August. Witness saw her grandmother on the 19th of August, about twelve o'clock in the day. Saw her again at five o'clock, in the street, and then found out that she was going to Cook's. On that day witness had called at Cook's at twelve o'clock. Saw a bundle tied up in the

room, and found it to contain her grandmother's nightgown and night-cap, small mattress, a rug and sheet. Knows it was the 19th of August, because that was the day on which her sister's child went to nurse. Saw the boy Cook there. He was in the daily habit of seeing her grandmother. Left a message with the boy for her grandmother. At five o'clock met her grandmother in Cutler-street, and was angry with her for going to Cook's. Had tried to persuade her not to go there. Appointed with her to call at Cook's next morning, and told her not to go out till witness came. Her grandmother agreed not to go out. Mrs. Cook had frequently said that she wished witness's grandmother to come and lodge with her. She was very inquisitive. The prisoner knew her to be the granddaughter of Mrs. Walsh. Has never seen her grandmother since the time she parted from her in Cutler-street. Has a sister named Lydia Basy. At nine o'clock went to Mrs. Cook's. Saw the female prisoner in the room. Witness asked her where the old lady was; the prisoner told her that she had just gone. Witness said that she was very much surprised, as her grandmother expected her. Prisoner replied that the old lady had told her so; that she had gone out soon to be soon home, and that they all had a jolly good supper. Witness observed, that she was very glad they had enjoyed themselves, and should take the liberty of asking what they had. The prisoner answered, that they had potatoes and meat, and Cook went out to get something short, to make the old lady comfortable; that Cook seemed very partial to the old lady, and that she slept on the bedstead last night. Witness said that she was very much surprised, as her grandmother had her own bed to sleep on, and had never been in the habit of sleeping with any other person. Witness observed the bundle in the room lying in the same state in which she had left it. The prisoner said that Cook had doubled up that piece of sacking to put the old woman in last night. There was a coarse piece of sacking in the room. Witness expressed her surprise, and asked what she meant. The prisoner replied, that Cook doubled it up, and put it underneath the old woman. The prisoner also said that the old woman had got no shift on; but if witness brought one, she would wash it for the old woman. Witness said that she did not think her grandmother wanted a shift; but if she did, witness offered to give her one. A week before, witness had given her a clean shift and clean cap. Witness asked the prisoner how she came to know that her grandmother had no shift? and said, 'You must have examined her person very close to know that.' The prisoner afterwards said, that witness had a

coffee-pot, a frying-pan, and a tub, to give to the old woman. Witness said she would give them to her grandmother when she saw her. Witness and the prisoner then went to Bishop's, a gin-shop, at the corner of Goodman's-yard. They drank some gin and beer. Witness began again to talk of her grandmother. The prisoner observed, 'From what you say, you seem to think that we have murdered the old woman.' Witness said, 'I hope not.' The prisoner repeated, 'From what you say, you think we destroyed her at our place.' Witness said, 'Mrs. Cook, you put the words in my mouth; what I suspect I don't say now, but you shall know of it hereafter.' Prisoner wanted witness to go to her house to have something to eat. Witness refused: but prisoner asked so often, that witness gave her threepence-halfpenny to fetch a loaf and cheese, and promised to take some of it in the public-house. The prisoner went away, and never came back. Witness waited two hours in the public-house, and then went searching for her grandmother for about three quarters of an hour. Witness afterwards pledged a gown, in the name of Welsh, at a pawnbroker's, named Austin. Witness returned to Cook's lodgings about five or six o'clock; both prisoners were present. Witness asked whether the old woman had come home yet. The female prisoner gave no answer to the question; but put up her hand, and told her not to speak. The male prisoner had gone to the window, and this sign was made behind his back. The female prisoner then said softly, 'You must not tell Cook that I was in your company to-day.' The male prisoner in a few minutes after went down stairs. The female prisoner then told witness, that Cook had beaten her most unmercifully.—(She had marks of having been beaten.) The prisoner said that Cook had beaten her for having gone out with her; that Cook had said she had no business to go out looking for the old lady. Witness went several times to Cook's, to inquire for her grandmother; also went to the hospitals and poor-houses, and found nothing of her. Mrs. Cook went with her to one of the poor-houses. On the Monday night saw the man Cook at his house, between six and seven o'clock. The female prisoner was present at the time. Witness told them what she had been doing; and the man said that she had better wait till the month was up, and it was very likely that she might hear of her grandmother, dead or alive, then. The female prisoner asked witness several times to stay all night. The husband could hear what the woman said. The female prisoner said that she (witness) must be tired, and that she might sleep on her grandmother's bed; and perhaps, while she stopped there, her grandmother might come home.

Witness replied, that she had her sister's house to go to, and did not wish to stop at Cook's. Witness made some complaint to the police-office; but it was not till October that Lea, the officer, took up the matter. When the prisoners were at Lambeth-street police-office, witness heard the female prisoner say something about 'hot and cold.' What the prisoner said was heard by the magistrate.

Cross-examined.—While her grandmother was living at Shaw's, witness was in the habit of seeing her every other day. The female prisoner told witness that Cook had beaten her unmercifully for going out and getting drunk with her.

WILLIAM AUSTIN.—Is a pawnbroker, living in Houndsditch. He received a gown in pawn, in the name of Welsh, on the 20th of August.

JOHN DRAPER deposed that he took the child of Mrs. Butin's sister to Norwood to be nursed, on the 19th of August.

LYDIA BASY.—Is Mrs. Butin's sister. On the 19th of August went with her grandmother (Mrs. Walsh) between six and seven o'clock, to Mrs. Cook's room. It was on the same day that her child was taken to Norwood. Her grandmother wore a black willow bonnet, rather broken on the top, a blue shawl with a border, and the colour rather washed out, a black stuff gown, a purple-figured stuff petticoat, a pair of grey knitted stockings, and a pair of men's shoes, of a small size. Witness had a child in her arms when she accompanied her grandmother to Cook's. As they were going there, her grandmother put her hand into her pocket, and gave the child a biscuit. Her grandmother in doing so lifted up her petticoat, and witness saw the pocket. Witness's sister made the pocket. There was an iron-mould on the pocket, and a stain on the shoulder of the shawl. Witness left her grandmother at the door of Cook's room; and she had at that time her basket in her hand.

Cross-examined.—Witness's grandmother had never, to her knowledge, been a pauper in a workhouse. Never gave information to the magistrates of the absence of her grandmother.

Mrs. BUTIN recalled, and deposed that she gave information of the absence of her grandmother at the Mansion-house, about a week after the 19th of August.

—— LEA.—Is an officer at Lambeth-street. In consequence of information he received, he went, on Friday, the 28th of October, to White Horse-court, where the prisoners had removed to. He saw the female prisoner coming out of the court, and witness followed her to Rosemary-lane. Mrs. Butin was with the witness, and pointed her out to him. Witness went up to the female prisoner, and told her that she must go before a magistrate respecting an old woman. Then prisoner said, 'that the last she saw of her was on Saturday morning (witness had not previously mentioned the name of any person); that the old lady had given her some halfpence to buy sugar: that she had given the old lady her breakfast before her husband came home, that he might not know it. Witness asked at what time Cook got up? The prisoner replied, between four and five o'clock. She then said, 'Have you got Cook?' Witness asked her where Cook was. She answered, at a tea warehouse at St. Katharine Docks. Witness asked the prisoner at what time she went to bed on the Friday night? She replied, that they all went to bed at nine. Witness inquired what they had for supper? She said, cold meat and coffee. As they were going along, Mrs. Butin asked what they had done with the old woman? She observed, that if she had done anything with her, God burn her soul in h—l's flames; and added, that after giving the old woman her breakfast, she went out and left her and Cook smoking by the fire; and that when she returned she found the room swept up, and the old woman gone. Witness afterwards went to St. Katharine Docks with Mrs. Butin, and called the male prisoner out. Witness pointed out Mrs. Butin, and the prisoner acknowledged that he knew her. Witness told him he must go before a magistrate respecting an old woman who was missing. The prisoner said, 'Very well; it is very proper that it should be inquired into;' he admitted that the old woman was in his room on the Friday night, and said, that she made her bed in the corner of the room. Witness asked at what time he went to bed? He replied about a quarter past eleven o'clock. Prisoner added, they had hot meat and tea. He said, that he saw the old woman at breakfast next morning: he had got up early to go to look for work, and returned about seven o'clock, but he did not recollect whether the old woman was gone before or after he returned. Witness went and apprehended the prisoner's son. The prisoners were confined in three separate cells. A conversation took place between them while so confined. The woman began the conversation. She called out, 'Ned! ask little Ned who told him to say what he has been saying about me?' The man then called to the boy, 'Ned, your

mother wishes to know who told you to say what you have about her?' The boy answered, 'Nobody.' The man returned the answer to the woman. She again said, 'Ask Ned how he came to say what he has?' The question was repeated by the man; and the boy called out aloud, 'Why, because she did it.' The woman then said, 'Oh! that we should have to suffer for what we know nothing about.' The man said, 'God knows that I had no hand in it; never mind, there is nothing in this world that we should wish to live for; there will be forgiveness by God at the last moment.' That was the whole of the conversation which took place at that time. On other occasions, the male prisoner said to witness, 'You have had a great deal of trouble about this affair;' and the woman added, 'With all your trouble you have not found the old woman's body yet. All the things which I have sold, the granddaughter brought in a bundle to me.' She said, that that was the old woman (alluding to Mrs. Walsh) who had been taken to Bethnal-green workhouse. He also deposed to having found upon the premises, certain fragments of black stuff, which there was reason to believe had formed part of the apparel which had been worn by the deceased. The discovery was made nearly a month after the prisoners themselves had been taken into custody. He also described at length the depositions of the boy after his apprehension, which did not differ in any material particular, from those which were elicited at his examination in the police office.

MARY LABEL, a clothes-woman in Rosemary-lane, (Rag-fair) proved that the female prisoner had offered her various articles of wearing apparel, immediately subsequent to the date of the murder, and more particularly a pair of home-made lead-coloured worsted stockings, much darned in the heel, which she purchased for fourpence. Stay-laces, a plum-coloured petticoat, a cap, and a shawl, were among the items enumerated. Some were purchased by witness, and others by neighbouring dealers in a similar line of business. The prisoner testified great apprehension lest the goods which she offered for sale, should be seen at the time by any one but the purchaser.

SARAH COTTON, HANNAH CHANNEL, CELIA BURKE, WILLIAM THOMAS ELDER, MARY HAYES, SARAH BRADLEY, MARY GOLEBURGH, and ELIZABETH DUNHAM, respectively corroborated the testimony of the former deponent, all of them earning their livelihood by following the same vocation.

The articles purchased were then produced and identified by the granddaughter, as having constituted part of the personal property of the deceased.

At this stage of the case the counsel for the prosecution called a number of witnesses, for the purpose of showing that one Caroline Walsh, who died a pauper in the London Hospital at the period of the murder, was not the one suspected to have been destroyed by those described in the indictment.

JOHN SKEIG, a parish beadle, stated in evidence, that he found, on the 20th of August, an Irishwoman, named Caroline Walsh, lying on the steps of a hall-door in London-street, Fenchurch-street, apparently so exhausted by sickness and distress, that he resigned her to the care of the superintendent of Hoxton Workhouse, not being able to discover the residence which she mentioned to him as her temporary address.

The surgeon and several nurse-tenders in that establishment deposed, that the old woman so confided to their care, was in a state of such squalid filth and nastiness, that it was found necessary to dispose of all her raiment, by depositing it in the burying-ground. It was also ascertained that her hip-bone was fractured, whereupon she was transferred as a patient to the London Hospital, and shortly afterwards expired.

A professional gentleman and one or two domestics in that institution described minutely her personal appearance, which did not at all correspond with that of the deceased Caroline Walsh. The one was found in a state of loathsome squalidness, whereas the other was particularly cleanly and neat in her appearance. The one wanted her fore teeth, whereas those of the other were wholesome and un-decayed. The feet of the pauper were deformed by bunions and such-like excrescences, but the female supposed to have been murdered was entirely free from such a defect. The one was about sixty years of age, and the other upwards of eighty; and, to leave no doubt whatever upon the subject of identity, the body of the pauper was disinterred in the presence of the granddaughters, who, at once, denied that it bore any resemblance to that of their relation.

The case here closed on the part of the prosecution.

The prisoners, on being called on for their defence, severally put in written papers, asseverating their innocence of the crime with which they were charged, and maintaining that the evidence of their son was a tissue of unnatural and nefarious falsehoods.

Mr. Justice PARKE then proceeded to address the Jury, and summed up the whole of the evidence, having previously explained the state of the law affecting accessories and principals as it applied to cases of murder generally, and more particularly to that which it was their duty to decide upon.

The Jury retired for half an hour, and returned a verdict of *Guilty* against the female prisoner, acquitting her companion, who was detained for the purpose of being indicted as an accessory after the fact.

The woman was immediately sentenced to death by the Recorder, and ordered to be executed at the usual hour on the following Monday. She did not testify any such emotion as might have been expected, but persevered in protesting her innocence, without, however, offering any plea for the postponement of the execution of her sentence. This wretched woman is Irish, if we may judge by her accent, and her paramour is apparently a native of the metropolis.

Eliza Ross, was on Monday the 9th, executed for the wilful murder of Catherine, alias Caroline Walsh, in front of Newgate. The unhappy woman, though convicted on the evidence of her own son, persisted in asserting that she was innocent of the diabolical act for which she was about to suffer.

All necessary preparations had been made the night before, and a considerable number of constables sworn in to preserve the peace and prevent any accidents. The persons assembled, however, did not exceed the number on ordinary occasions. Shortly after six, the sheriffs and under-sheriffs arrived, for the purpose of visiting the criminal, who had declined all religious consolation from her priest, and begged the attendance of the Rev. Mr. Cotton, the ordinary.

On Sunday, she expressed her wish that Cook and her son should be allowed to visit her, which, however, from motives of prudence, was refused. She retired to rest at an early hour on Sunday night, two females having been placed in the cell with her, but her slumber was frequently broken by half-uttered ejaculations; one of which was—'Oh! Cook, you could have cleared me if you had liked;' another was, 'Oh my child, my deluded child, thus to hang her who suffered for you!'

Upon her being led into the bread-room on the morning of her execution, by Slarks, accompanied by the reverend Ordinary, to be pinioned, she in a firm tone of voice exclaimed, 'Oh, my God! am I going to be hanged for what I am innocent of!' She then walked firmly to the yeomen to be pinioned; and while they were engaged in their sad office, she said, 'Oh, my God! why did I leave my country to be thus treated! Oh, Mr. Wontner, I thought you were more of a Christian than to suffer a poor innocent woman to be hanged. I left my husband and boy sitting with the old woman, and I never saw her after. You have now in your custody one who can prove me innocent, and quite clear me of the charge. Oh, my poor, my deluded child!' Mr. Cotton, at the request of Mr. Sheriff Pirie, again addressed her with a view to elicit an admission of the justice of her sentence, but the only answer returned was, 'I am innocent: I never touched the old woman. Oh, my God, why did I leave my native country, thus to die in a foreign land for what I am guilt—innocent, I mean! Oh dear, oh dear!'

On arriving at the foot of the scaffold, she said to Mr. Cotton, 'Pray, Sir, am I going out in the street?' Mr. Cotton answered in the affirmative, and again conjured her, in the name of God, to make her peace with the Father of all mercies; 'All hope of mercy on this earth is past, and a few moments will place you in the presence of him who knows the secrets of all hearts.' She replied, 'I'm innocent;' which she persisted in declaring until the fatal drop fell. She died without a struggle.

A short account of the extraordinary life of this woman, who may with the strictest propriety be stigmatized as a human fiend, may not be without its attendant uses. Her ultimate fate may operate as a serious lesson to those who addict themselves to an indiscriminate use of spirits, for to that revolting and disgusting habit may, in a great degree, be traced all the crimes which the wretch committed, for rather than not satisfy her

inordinate passion for drink she would commit the pettiest theft, and she has even been known when her husband has brought her home an ounce of tea, to hurry off to some neighbour and dispose of half of it, in order that she might have the immediate means of purchasing a glass of gin.

She appears to have been early instructed in the crime of murder, for about twenty-six years ago we find her living in a brothel in East Smithfield, at which time a respectable tradesman, a master tailor was missing, and for some time no tidings could be obtained of him. Through the medium of one of the girls who frequented the house, some clue was obtained respecting the fate of the unfortunate man, and in searching the house, he was found dead in one of the cupboards. The master and mistress of the house, with Cook, the servant, were immediately taken into custody, and committed for trial for the wilful murder of the tailor. The trial came on at the Old Bailey, and the evidence, although entirely circumstantial, was so conclusive against the keepers of the brothel, that they were both condemned and executed. Cook was, however, acquitted, although at the time it was the general opinion that she assisted in the murder, and the circumstance of her being known to be in possession of some money immediately after the murder, was in some degree corroborative of her having partaken of the booty which was obtained from the murdered man, to obtain which, it was supposed that his life was sacrificed.

It did not appear on the trial, nor from any of the circumstances that transpired at the time, that this murder was committed with any view to the disposal of the body for the purpose of dissection, and yet little doubt exists that the anatomical schools have been supplied with subjects, the life of which has been forcibly taken away, long before the detection of Burke and his associates. It is not to be supposed that the act of strangling the unfortunate old woman, which led to the conviction and execution of the malefactor Burke, was the only murderous act which he had committed, tempted by the facility with which he could dispose of the bodies of his victims, and the great gain which flowed in upon him from such horrid practices. He himself admits in his confession to the murder of several individuals, all of which were disposed of to the anatomical schools, although the professional men, in an inquiry which was substituted in Edinburgh touching these occurrences, were exculpated from any criminal knowledge of the atrocities committed by Burke and Hare, and,

consequently, of the manner in which the subjects which were offered them came by their death. This, however, is not saying much for the value of *post mortem* examinations, nor for the accuracy of those conclusions to which professional men arrive respecting the cause of the death of an individual, and in which opinion, particularly in our courts of justice, the life of the prisoner is frequently made to depend. To say that the very freshness of the bodies supplied by the Burkers, is not in itself sufficient to excite suspicion, would be at direct variance with the most common experience; for it is at once a distinctive proof that the subject did not die of any mortal disease, nor that it had ever been interred. The idea of the subjects being bodies of suicides, cannot also be rationally entertained, as in that case some preliminary proceedings and an interment must have taken place, before such bodies could have found their way to the dissecting-rooms.

No one will, we presume, pretend to deny, that a burked subject is not more preferable for dissection, than one that has been for some time interred. The former die in the full vigour of the organic functions of life, which being in healthy play to the moment of expiration, leave the arteries, veins, lymphatic vessels and nervous economy so fully distended, that the demonstration of them must be greatly facilitated and more clearly traced than when injections are necessary, or the subject become flabby and on the verge of decomposition; not to mention other personal conveniences, of the absence of any unpleasant olfactory sensation, or the hazard of a scratch from the dissecting-knife, causing an incipient and sometimes fatal mortification, which has happened, we believe, in more than one instance. These circumstances considered, it is not surprising that the Edinburgh murders by Burking, and those which were committed in London previously to the detection of the murder of Carlo Ferrari, were undetected by the demonstrators' sagacity, who might have hoodwinked any suspicion by reflecting on the advantage afforded to the interests of science, as it is termed, but which does not remove from our mind the belief, that there must have been a most disgraceful culpability in anatomists in not having detected the villainous proceedings of the Burkers, by which those wretches furnished bodies for dissection; at the same time that it tends materially to call into doubt the pretensions of the medical profession being able to elucidate the cause of death from *post mortem* examinations; for if it cannot be perceived that a person had died from strangulation, or suffocation, what

hypocrisy must it be to profess they afford the means of ascertaining the remedies of diseases, when it appears that the cause of death cannot be really known. Had Cook, at the time of the murder of the tailor, been acquainted with the ready channel by which she could have disposed of the body, at the same time that it was attended with considerable emolument to herself, it is not probable that the body would have been allowed to remain in the cupboard, to have afforded the immediate instrument of detection, and thereby expose the perpetrators of the deed to an ignominious death.

It is not to be supposed that the particulars of the life of such an obscure individual as Cook can be easily traced out; it appears, however, that wherever she fixed her abode, she soon became the terror of the neighbourhood. Generally in a state of intoxication, any personal offence offered to her, whether real or supposed, was sure to draw upon the head of the offender the whole weight of her indignation. She would vent her anger in the most abusive language—threatening to scalp the object of her rage, and brandishing a knife in her hand, swear to skin him like a sheep—or to pull his skin over his ears—or to open him like an oyster—or to take his heart and lights out. In one instance, when she lived in St. Catherine's, the landlord of the Sampson and Lion offered her some offence, and she was determined to be revenged upon him: she waited for the opportunity when she could catch his cat, in which she no sooner succeeded, than she skinned the poor animal alive, and going into the public-house, when the landlord was standing behind the bar, threw it violently into his face. In whatever quarter she domiciliated herself, the cats gradually disappeared; and the manner in which she was detected in this cruel and barbarous practice is rather singular: she never lodged in a house in which there was not a dark cellar, and which, being seldom or never frequented by the other inmates of the house, was the theatre of her operations on the cats, which were so unlucky as to be entrapped by her. For some time it was observed, by her fellow-lodgers, that she frequently left the house early in the morning, carrying a bag with her, which appeared to contain some articles of weight, as it was sometimes with difficulty that she could carry her load. One of the female lodgers, prompted by curiosity, once followed her in one of these expeditions, and traced her to a scavenger's dust-yard, where she immediately repaired to one of the heaps, and began to grope amongst the rubbish, as if in search of some particular object. The person who was

watching her, judging that bones or rags were the object of her search, as she was frequently known to roam about collecting these articles, with the produce of which she immediately hastened to the gin-shop, desisted from any further attention to her motions; and the cause of her visits would, perhaps, have remained a secret, had not her frequent appearance in the yard excited the attention of the proprietor, who perceiving, contrary to the custom of the collectors of bones and rags, that she always came with her bag full, and left there with it empty, determined to watch her motions narrowly; but having some acquaintanceship with her character, he wisely forbore to enter into any personal rencontre with her, especially as she always took the opportunity of paying her visits to the yard, when the people who worked in it were absent at their meals. One day she was observed exceedingly busy, digging as it were a hole in the heap of rubbish, and having finished her task, very deliberately walked away. She was no sooner out of sight, than the proprietor repaired to the spot, and removing the rubbish, found, to his great astonishment, the bodies of six cats, which had evidently been skinned alive, there being no marks of violence about them indicative of a violent death. This circumstance no sooner transpired, than the whole neighbourhood rose up in arms against her, every missing cat was laid to her charge, and she was ultimately taken up, and carried before a magistrate, on the charge of stealing the animals. Here, however, as in many other instances, she again slipped through the meshes of the law; for although several individuals came forward to prove that they had lost their cats, still, in their skinned state, the identity of the animal could not be proved, and consequently the charge fell to the ground.

At the time of the murder of the tailor in the brothel, Mrs. Cook went by the name of Ross, but that was an assumed name, her real one being Reardon, her connexions in Ireland being rather respectable; but impelled, by the violence of her passions, and her proneness to drunkenness and vice, she emigrated from her native country, to prosecute her iniquitous actions in the great metropolis. About sixteen years ago we find her living in St. Catherine's, and shortly afterwards in Maypole-court, East Smithfield, in which place she was brought to bed of young Cook, who afterwards, as we have seen, was the chief evidence against her on the trial for the murder of Mrs. Walsh. At the time that this child was born, she was in the deepest possible distress—a half decayed mattress, thrown down in the corner of

her room, was the only bedding she possessed—destitute of all upper covering, and not another piece of furniture in the room but two broken chairs, which, with a piece of deal placed upon them, served her for a table. Not an article was prepared in which to wrap the child, and from the general dislike which was entertained against her in the neighbourhood, no person was ready to render her any assistance. Cook, the father of the child, had not then long left the Royal Marines, and worked as a labourer; whatever his earnings might have been, they were no sooner in the possession of Mrs. Cook than the gin-shop was her hourly resort, and unless Cook had been provident enough to secure to himself a few shillings secretly, the whole of the week was passed in a state of want and dependence on any casual circumstance that might arise by which a few pence could be obtained to satisfy the exigencies of the moment. Until the new police was established, Cook was a watchman in Aldgate parish, and it is conjectured, that it was whilst he was in this situation that he became acquainted with some of the resurrectionists, whose horrid avocations he afterwards followed, and, in some instances, with considerable success. In the woman, whom he had chosen as his companion, he found a most able coadjutor; and, in some cases, granting her assistance with a spirit which could only have lived in the heart of a fiend, and which, as appertaining to the female character, sets all description at defiance. She was as ready to assist in the extraction of the putrefying mass from its resting place as she was afterwards in the disposal of it, and then indulging in her brutal drunkenness, until she was called again by her desperate paramour to co-operate with him in the violation of the graves. On being dismissed from his situation as watchman, he obtained a scanty subsistence in the occupation of a porter in Thames-street and Billingsgate, but it was suspected that he adopted this line of life as a blind to his real occupation as a resurrectionist; and he was one of those men on whom the *fraternity* could rely in carrying their disgusting masses to the different hospitals and schools where they were to be disposed of. A few days before he was taken into custody, he was at work in the St. Catherine's Docks, and whilst he was there, apparently earning a very scanty and precarious livelihood, Mrs. Cook occupied herself with discovering the friendless and unprotected, who, on various excuses and subterfuges, she enticed to her lodgings, with the ultimate view of depriving them of life. If she met with an aged, houseless wanderer, she, with the show of the greatest kindness and humanity, would invite them to rest for the night in

her lodgings, which invitation was seldom refused; and it is conjectured that, in some instances, they never left those lodgings again in life.

In regard to the murder of Sarah Vesey by this inhuman wretch, little doubt can exist, although the actual fact could never be brought home to her; partly arising from the dread which the neighbours entertained of her, and the fear of giving her offence, and partly from the close and secret manner in which she carried on her proceedings. Suspicion had, for a considerable time, been most busy in pointing at her as being concerned in some deep and tragical actions; but no one dared openly to express it, as the consequences which would ensue were well known, were her violent passions to be aroused, stimulated by revenge, and a decided indifference as to the means which she might select wherewith to satisfy it.

It was during her residence in White Horse-court, Rosemary-lane, in November, 1830, that a girl, of the name of Sarah Vesey, was on a sudden missing, and no intelligence whatever could be procured of her. She was then about fourteen years of age, and lived in the capacity of a nurse girl in a tradesman's family, who resided in the vicinity. This girl was often observed to go into Mrs. Cook's room with the child which she had under her charge; and although the lodgers in the same house were well convinced that the design which Cook had upon the girl was base and wicked, yet their suspicion did not extend to the dreadful idea that the murder of the girl was in contemplation. The manner, however, in which the wretch worked upon the credulity of the unfortunate girl, is in perfect keeping with the general depravity of her character. She began to flatter the vanity of the girl, by her praises of the beauty of her features, and that, if she would only follow her advice, she would put her in the way of making her fortune, as well as providing her with the immediate means of obtaining some handsome clothes, in which to exhibit the neatness and beauty of her form. She further instilled into the mind of the girl a distaste for a life of servitude, representing it as one of constant drudgery, and in which a girl seldom finds a husband. Mrs. Cook soon found out that this poor girl was a friendless, unprotected creature, having been brought up in Whitechapel workhouse from the early age of twelve months, ignorant whether she had a father and a mother living, and neither friends nor relations, with the exception of two brothers, who have never seen her, nor have obtained any tidings of her, from the time that she was missed to the present period.

It was amongst such friendless creatures, such outcasts upon the world, that Cook sought for her victims; and, in fact, it is the line of conduct pursued by all the resurrectionists, who, rather than not supply the subjects required for dissection, have recourse to the dreadful crime of murder to satisfy the demand.

It is impossible for a person, even of the most limited observation, to perambulate the streets of this huge metropolis, without being struck with the number of miserable outcasts who appear to have no home, nor the means of providing for themselves a single meal. Hundreds daily present themselves to our observation, to whom death would appear as a blessing, and who, to outward appearance, have not a single object belonging to them to render life desirable. Creatures of this stamp and condition may suddenly disappear from their wonted haunts, and their absence occasion, perhaps, merely a casual inquiry, and the next moment, they are forgotten. With no one to interest themselves about them, it is immaterial as to the fate which has befallen them; and the friendless beings are enticed to the abode of a Bishop or a Williams, and, under the plea of kindness or humanity, are offered a dwelling for the night, from which they never again emerge as a living being.

We have been favoured with a computation, though for the truth of which no positive grounds have been adduced, that in the metropolis alone, on an average, there are above five hundred individuals annually of whom no information can be obtained as to their absolute fate, but who are supposed to have fallen victims to the horrid practices of the Burkers. It is at variance with all probability that the Italian boy was the only victim which had suffered under the murderous grasp of a Bishop, or that Mrs. Walsh was the only one that had breathed her last in the hateful den of Mrs. Cook. There are also some existing facts which have led to the conclusion, that although Burke in Edinburgh was the first person who was entrapped in the crime of butchering his fellow-creatures for the sake of gain, yet that it was a practice which was known amongst the resurrectionists long before his time; but, like the Greeks, who had no punishment for parricide, conceiving it a crime which could not be committed, we, even in the depth of our moral degeneracy, could not conceive it possible that a set of wretches could inhabit the same world, and breathe the same air as ourselves, who could attack the unprotected orphan, or helpless old age, for the avowed purpose

of personal profit, and without the instigation of any of the grosser passions of our nature, as hatred, revenge, or malice, deliberately deprive them of life, to be mangled by the knife of the dissector.

We may be allowed in this place to transcribe a few remarks contained in a pamphlet entitled 'Plain Reflections on Burking,' written by Mr. Andrew Sleight, and the chief argument of which goes to prove that an actual visual examination of the human body is not necessary to constitute a skilful surgeon; but, on the contrary, it is proved that, in many instances, surgical operations have been performed with success by individuals who have not been regularly educated, and who, perhaps, were never present during the whole of their life at the dissection of a human body. It is fair, in all cases, to hear both sides of a question; and although we cannot coincide with Mr. Sleight in every particular, yet there are in his arguments very valuable materials for the erection of a system contrary to that which is adopted at the present day, and which would certainly put an end at once to the horrible crime of Burking.

Mr. Sleight commences his arguments by saying, 'that the idea of the necessity for a visual anatomical study of the human body seems to have been very strong in the mind of the public generally, when, shortly after the discovery of the Edinburgh Burking transactions, a measure was introduced before parliament, enacting a sale of the dead bodies of the poor, at, we believe, ten shillings each, and authorising the establishment of a dissecting-school by any surgeon who might obtain a licence for that purpose, under the title of a Bill for Regulating Schools of Anatomy, which passed through the House of Commons without any public effort to impede the progress or alter the provisions of that, in my view, most gross legislative proceeding; and so snug was its progress, not a word that was said upon it, either *pro* or *con*, that I ever saw, was reported; so ashamed must the supporters of it have been, that they would not allow their sentiments on the subject to have publicity, as truly so nefarious a law it never entered into the heart of man to conceive since the world began, and that, too, in the professedly refined, civilized, humane, liberal, and philanthropic nineteenth century, when some writers were so inhuman, degraded, and debased in sentiment, as to advocate the passing of such a carnal and unchristian law.'

We must be allowed, in one or two instances, to correct Mr. Sleight in some of his remarks contained in the foregoing passage, which we wholly acquit him of having wilfully misrepresented, as the lawyers would call it, to bolster up his case. But in the bill alluded to by Mr. Sleight, and which was known at the time by the name of Warburton's Body Bill, no price whatever was stipulated at which the body of the pauper was to be sold. On the contrary, it was to be left to find its value in the market, according to the plenty or the scarcity of it, like any other article of trade or commerce. Obnoxious, however, and repellent to our amiable feelings as the clause of a bill may be, which not only authorises the sale of the corpse of a pauper, but actually makes it imperative on the parish authorities to dispose of the bodies of paupers, for the purpose of dissection, yet when it is taken into consideration that an antidote has been provided for the most objectionable part of the bill, by enacting in it that no corpse of a pauper shall be so disposed of without his previous consent being obtained during life, or that such corpse be demanded by any relative or friend, we candidly confess that the indignation manifested by Mr. Sleight is, in a great degree, groundless, and that he has raised up a shadow to fight with, which has neither substance nor tangibility.

In regard to the manner in which the bill was smuggled through the House of Commons, it is impossible to speak of it in terms of reprobation sufficiently strong. It was, however, one of those *common* bills, which the faithful representatives of the people were well convinced had no immediate reference to themselves, as not being likely to have their bodies sold as paupers from a workhouse, and therefore the merits or demerits of it were never canvassed, but it was suffered to steal through the house, whilst the representatives were enjoying themselves over a chop, and a bottle of Bellamy's *best*.

Mr. Sleight, however, proceeds to argue, 'That the committing of murder by Burking is horrible, no one will dispute; but its having occurred is no sound reason why any law should be made to sacrifice the feelings and sympathies of the poor and unprotected; nor would such a scheme ever be sanctioned by any christianized or liberal mind, which considers every man in the light of a brother of immortality, and whose hopes rest on the faith of the scriptures, that the resurrection of the body to eternal life will ultimately take place, which any law to sell dead bodies would be repugnant to, if not

entirely subversive of the belief in the grand doctrine of the Christian system, and which might lead to every sort of riot and debauchery, to a worse degree than they now exist, when it might be said in the words of the Apostle, "Let us eat and drink, for tomorrow we die." Neither is the existence of the crime of Burking a good ground, that another evil less palpable to the mind should be legalized to prevent it. Any person, if he possessed the feelings of a man, would make every exertion to suppress in the most effectual way, namely, *by discontinuing to dissect the human body*, if it could not be done but through the aid of so foul a deed, and by endeavouring to bring to justice the villains who might commit murders by Burking, as the assistant demonstrator at the King's College, to his everlasting honour, did.

'As it is a misdemeanour to possess a dead human body, it shews with what care Englishmen formerly revered the mortal remains of humanity; surely they would have had sense enough to perceive, if, as it is now asserted, dissections were necessary to qualify for the profession of surgery or medicine, and the preservation of health in their days; but as impediments were thrown in the way of the practice of anatomy, it is clear it was then considered proper to prevent, if possible, the violating the sanctuary of the dead, though they may now be called ignorant, prejudiced, &c. Still it may be fairly presumed, that they had as much common sense as the generation of this period have, and *I believe they had more*; for it is only since continental examples, and the pranks of Scotch philosophers have bothered the brains of Englishmen, that any such thing as legalizing anatomy was ever thought of, and it is only now intended, in my opinion, to gull the people into a notion, that unless a surgeon has dissected he is unable to practise his profession, which an instance or two I shall relate will show not to be the case.

'The occurrences of Burking in London having produced schemes for supplying the wants of anatomists by a compulsory appropriation of the poor, I, as an individual, protest against any law that would inflict so flagrant an injustice on those, who suffer enough already, without any further addition.

'A publication has been made of an Anatomy Bill, which I suppose to be a copy of that which has been brought into the House of Commons this

Session, under the auspices of the same member (Mr. Warburton) who introduced the former one. In the preamble to this Bill it is asserted, that the anatomy of the human body is necessary for the remedy of diseases, and the performance of surgical operations. Now, that this is unquestionable, some reasonable doubts may be entertained, as I conceive, that dissections do not confer any extraordinary medical skill to those who perform them, is proved by all antiquity, from the days of Adam to the present time, the generations of which, I dare say, enjoyed quite as good or perhaps better health than modern ones have done; for if surgery was not practised anciently, how were the conflicting campaigns of the Grecians, Romans, &c. conducted, when there must have been surgical aid afforded to the wounded, or who among them would have engaged in a warfare, when the fracture of a limb might entail a tedious agony, and loss of life? It is not my object, however, to go into the nature of diseases or remedies for them here; but I may instance Hippocrates, the renowned physician of Greece, as to what he is reported to have known of human anatomy, though his skill in the treatment of diseases is undisputed; if, therefore, dissecting dead bodies were necessary, would he have been so eminent for his attainments, and the first methodical practitioner of medicine? No such thing; he must have been a mere empiric, and not the ensample of medical knowledge for every subsequent age. Not to mention professional quacks, whose factotum medicines, I believe, are never compounded through their dissecting dead bodies; but which are asserted to be cures for any disease excepting restoring sight to a blind eye. It is well known in this town [we believe Mr. Sleight alludes to the town of Boston in Lincolnshire], that a bone-setter residing in it, who has had no professional education that I am aware of, is, in cases of simple or compound fractures and luxated bones, as efficient an operator as any surgeon, and can as ably effect a cure. As to professional skill, I recollect it was reported of a medical man having treated a pregnant woman as dropsical^[2]; so much did he know, it appears, about diseases. Again, in the *Encyclopædia Perthensis*, it is related, that a sow-gelder performed a Cesarean operation on his wife with success; that is, cutting the fœtus from the uterus, which from some impediment she was unable to give birth to, which operation saved her life. Now, what sort of an anatomist this sow-gelder was, if the relation be true, I need not say, as that will occur on the least reflection, but it shows he had sense enough to perform this most

difficult operation, in a way that not one in a thousand surgeons in country practice, I believe, would succeed in doing.

'In Cobbett's Register for April, 1829, or something about that period, a letter appeared under the signature of W. Hornsey, M.D. North Shields, on the subject of the infamous body-selling Bill, which, from what I can now recollect of its contents, strongly disapproved of that measure, and stated how little the pursuit of anatomy had improved the treatment of diseases, especially that of consumption. This is corroborated from the hubbub about the cholera morbus, as if it were a complaint that had never appeared in the world till just now, though it is well known to be a disease that has infested India for ages, and if it were of the pestilential character attributed to it, would have swept away the natives of that part of the universe from the face of the earth ages ago, nor should we witness now shoals of Europeans flocking thither to make their fortunes, if setting foot on Asiatic soil was next to instant death; nor is its progress in England any credit to the medical profession, some of whom are evidently grasping at it as a god send to benefit the faculty, by frightening the public out of their wits, and setting in action the machinery of Boards of Health, some of the members of which may know as much about cholera morbus, as the Chinese of Scotch philosophy. Pshaw! doctors of the north, with all your dissecting—cannot you control Nature's volcano, nor grapple with diarrhœa, puking and spasms, either of which you would be ashamed to allow it to appear you could not treat efficiently, if Nature had any strength. It seems, that part first of the cholera morbus farce has concluded at Sunderland, and the Board of Health dissolved. But why so, good ex-members of it? Is not *health* still to be dispensed, or has disease wholly vanished through your exertions? Happy must the people of Sunderland be, with such a miraculous invention as "A Board of Health," which throws the miracle-working German prince into the shade, and I suppose gives a hope, that the greatest of all the blessings of human life, an exemption from disease, are thus to be obtained! What need have we of anatomy or physic, when Boards of Health can be formed, and able to root out of the systems of mankind the horror of horrors, "*Cholera Morbus!*"

We admit that the foregoing remarks have no immediate relevancy to the subject under our discussion; but on the other hand, we consider that no opportunity ought to be allowed to escape, by which one of the greatest and

most prejudicial deceptions that has been practised upon the country, can be exposed in all its noxious and alarming consequences. If the cholera morbus question were confined, simply as a bugbear, to frighten a score of silly nervous people, it might pass over as wholly unworthy of any attention, and be suffered to live as long as a few unprincipled empirics found it their interests to keep it alive; but when it becomes a question, on which the actual welfare of the country rests, on which the ruin of thousands is made to depend; by which commerce is thrown into a state of stagnation, and the usual channels of industry so choked up, that misery and want stare us in the face, whithersoever we turn our eyes, and which are in themselves sufficient actually to produce, and to aggravate the very disease, which the sapient heads of the Board of Health have distinguished by the name of the cholera morbus—then it becomes the duty of every man, to use every exertion in his power to check the growing evil, to expose the infamous and selfish views of the propagators of the bugbear, and then leave them to the contempt and indignation of an offended and injured country. We should be justly accused of digression, were we here to enter into any further exposition of this subject; but we do hope that some spirited individuals will seriously and patriotically take up the matter, and so bring the unprincipled abettors of the cholera morbus plague before the tribunals of their country, that they themselves may no longer be allowed to be a plague, and that the *heads* of the heads of the Boards of Health may be consigned over to the executioner of Newgate, to be dealt with by him as seemeth best in his eyes.

'There is no occasion in my opinion,' Mr. Sleight proceeds, 'to argue for human bodies being hacked, and cut up piecemeal for students' improvement; as the carcasses and extremities of old horses, cows, bulls, &c., would do quite as well, for familiarizing them to the use of the knife in operations, which I believe to be the principal object; as well as those of sheep, dogs, cats, rabbits, monkeys, &c., are sufficient for demonstrating the action and economy of Nature, as its principles are the same in the human and the brute creation,—as to the pulsation of the heart, the circulation of the blood, nervous system, &c., which for illustrating physiology would be quite sufficient; but, if anatomists are determined to have none other than human subjects, they and their pupils should be sent to the Sierra Leone settlement, where they might perhaps obtain them in

abundance, and very cheap. Of all the world, this is the most proper place to locate the anatomical departments of the Scotch London University, King's College, and dissecting-schools; for at this pestilential place medical students would have to endeavour to preserve their own health, and I believe have to search more into the principles of sound medical treatment of diseases than they do in England; and thus be really useful in the cause of humanity to those of their fellow men, who are resident in that abode of death, as well as be prepared to cure diseases in a more skilful way than by the regimen of 'Buchan's Domestic Medicine,' which I once saw on a newly-commenced practitioner's table in a country village, a copy of which I bought for three shillings. As to replacing dislocated joints, there is not a tinker more bungling at mending a kettle, than some professional men are at setting them; nor is there a student who has passed his examinations, and is authorized to practise, who could use a knife, in the difficult case I have before mentioned, equal to the sow-gelder, but who if he attempted it, his hair would I dare say stand as erect as the quills of the fretful porcupine.

'The more dissections which students perform, can never make them expert operators, in cases of extracting a stone from the bladder, reducing a hernia with a knife, or cutting off a limb of a living subject; as their operations require, to become skilful at them, a more frequent practice than occurs in the course of a country surgeon's business, and when any do arise, the anxiety of the operator and array of professional attendance show what little confidence there is of success.

'The provisions of the "Anatomy Bill," as to an appropriation of subjects for dissection being *voluntary* is very proper, as any attempt to make a compulsory one would be sure to fail; for those of the community who see a necessity for anatomical study being prosecuted by the use of the knife on human dead bodies, might by bequeathing their mortal remains when dead, as it is to be expected the members of the medical profession, would be the first to volunteer, afford such a supply of subjects as would be sufficient for the London anatomical schools; this being extended to country towns is quite out of the question, as I believe they would not be endured. So incensed would the public be against them, if subjects were forcibly furnished, that they would be upset very quickly, unless guarded by a park of artillery, but a dissecting practitioner of medicine would soon find his loss in the account of business, as many poor persons, I conceive, would

rather suffer all that the pains of disease could inflict, than that their earthly remains should be compulsorily consigned to the dissecting-knife, for a little medicine. Vulgar prejudice cannot be pleaded as an impediment to those persons who think anatomy is necessary in promoting surgical skill, as no soul possessed of human feelings in any degree, would ever think of grasping, for anatomization, an individual who was averse from dissection, and selfishly reserve his body from the dissecting-knife, and allow the science of anatomy, so far as his good will to promote it extended, to go to the d—l; though this is precisely, I believe, the character of Scotch philosophy, to make anything subservient to its purpose, but is not disposed to make any sacrifice. I apprehend it is none but Scotch writers who, however intellectual or educated they may be, have had the insolence to invent the phrase, and call the aversion of the poor from dissection "a vulgar prejudice," and only select them as subjects for anatomists, as they have done to find out that the vitals of English labourers should be wasted by law and Gospel in providing means for sinecurists and titled pensioners to subsist on. Peasantry, indeed! They are not shot at like game, certainly; but if they can be induced to submit to be made brutes of, there seems to be no want of inclination in Scotch philosophy that they should; for so transfused does this villainous idea appear to be into the minds of some reading Englishmen, of "higher orders, lower orders, vulgar prejudice," &c., that a stupid fellow that I heard talking on the subject of Burking, who appeared to be what is called a gentleman farmer, said it was only from vulgar prejudice that the poor objected to be dissected; but when he was asked if he should like for his wife and daughter to be anatomized, he became silent, and stared as if he had been a Burked subject revived.

"The feelings which Britons have hitherto entertained, I hope will never be suppressed by a beastly indifference towards the disposing of the remains of the dead, to be cut up by beardless students, for the benefit of an anatomist's pocket, or to see, as I once heard one say, what *guts*, as he expressed it, are made of. The Anatomy Bill, however, will not, if it should become law, be what anatomists want, which is, subjects fresh, cheap, and by wholesale; though voluntarily this will never be the case, and is rather to prevent bodies being dissected which are murdered, by causing a certificate from a medical man—but I think any relative would be better—that the person deceased had died a natural death; for any one, unless he be an idiot, can

know this as well as a doctor; and which, I propose, should also distinctly state the consent of the person it might refer to, that his or her body, when dead, should be dissected; though, except repealing so much of former enactments as to the illegality of possessing a dead human body, this bill, in my view, will not facilitate anatomical study by dissection, but otherwise, as it appears that bodies of murderers are to be interred at a cross highway, instead of being dissected, which has been considered a proper part of the punishment for that crime.

'The Creator of the universe and Father of mankind, under whose peculiar care the Israelites were, gave no direction to Moses relative to any dissection of them; whose infinite wisdom gave the almighty fiat, 'Dust thou art, and unto dust thou shalt return,' and which has been responded in all ages, in the respect paid to the remains of departed life, and will continue to be so, as long as the feelings of human nature remain what they have been. Notwithstanding the discovery of Scotchmen, that it is only a vulgar prejudice, there have none come forward to authorise their brawny bodies to be dissected, nor ever will, so long as a parliament would create a law appropriating the poor. However, it would only be proper that any legislation compulsorily providing human subjects for dissection should be reserved for a reformed parliament, and let the country see how it will deal with the matter. But, come what may, it would be better that practical human anatomy should altogether cease; and rather would I see it to be the case, than that the feelings of the poor and friendless should be outraged, and they so degraded as to be reduced to a level with brutes; as ages after ages show that mankind can exist, and have existed equally as well as they do now, where anatomy was not practised at all, or even thought of, and that, too, in a period when the baiting a bull is considered as repugnant to humanity, and the thrashing of a horse or ass punished by fine or imprisonment.

'In concluding these brief reflections, I have just to observe, as to a publication purporting to be a memorial from the Council of the Royal College of Surgeons, (a pompous title truly!) to the Home Secretary of State, that it is sickening to read such a whining inuendo to his Majesty's government to make a dead body law; though I would say to those who appear to have signed it, never mind continental examples, of which we see enough of the evil of copying in the beggarly condition of the working

people, and an enormous national debt, &c., &c., to wish to imitate their brutal apathy to anatomy, or having our bodies sold for six or eight shillings a piece, as at Paris, but to make shorter work of it by proffering yourselves for dissection when departed this life, which, as a proof of your sincerity, will be worth a thousand stupid arguments; and this will be the way that I and hundreds more can only judge how far a necessity for the anatomy of the dead human body exists in your opinion, for while *you* keep aloof, how do you ever think that England will submit to be made subservient to the promoting of anatomical science, when those of the surgical profession, who are to be *sovereignly* benefited by it, wriggle and twist, argue and assert, rather than come to the practical point of showing example is better than precept. If students want subjects, get the carcasses of cattle for them, especially *calves* and *asses*, to cut up, and I'll warrant they will make just as good surgeons as if they had cut up human bodies; for, however they may smatter over descriptive anatomy at their examinations, they know as little about it a year after as the man in the moon; but if Englishmen will shut their eyes and open their mouths to swallow anything, and put an enemy in their skull to steal away their brains, why so be it, though I hope never to see this to be the case so long as I live; still nothing shall be wanting in my power to prevent it,'

So far we have given the arguments and opinions of Mr. Sleight on this interesting subject, without at the same time attempting to refute the one or uphold the other. We are certainly inclined to give Mr. Sleight all due credit for the humanity and feeling which have prompted him to enter the arena in support of a cause in which, as Sterne says, there is much to be said on both sides. That Mr. Sleight, however, has taken a wrong view of the subject in many points cannot be doubted; for the very circumstance of a surgical student obtaining a correct knowledge of the anatomy of the human frame by the dissection of a calf or an ass, is so utterly devoid of all sense and reason, that our surprise is great that any individual could for a moment entertain it, much less make it a part of his groundwork for an attack on the promotion and extension of anatomical science. We strongly suspect that, if Mr. Sleight were so unfortunate as to dislocate a joint, or fracture a limb, he would hesitate for some time before he entrusted himself for a cure to the care of an individual who had never dissected a human body in his life, but had always been practising his knife upon calves and asses. There exists

little or no analogy in the structure of the human frame and that of either of the animals alluded to, and the study of the anatomy of the horse and of man is as distinct and separate as two subjects can possibly be. Each of them forms a positive branch of human knowledge; and upon the same principle that a human anatomist would commit the most lamentable blunders were he to be guided in his professional career by his knowledge of animal anatomy, so would the veterinarian find himself completely at fault were he to attempt the case of a dislocation or a fracture on his mere knowledge of human anatomy. The great question, however, is—if it be decided, and we hesitate not to affirm that it has been decided, in the affirmative by the most competent and unprejudiced judges, that dissection is actually necessary to complete and perfect the education of a medical student—in what manner are human subjects to be procured, by which that desirable end can be fully obtained? It cannot for a moment be entertained, that any member of the profession would sanction or connive at the practices of the Burkers, in order that a constant and regular supply of subjects may be obtained for the education of the medical student; but as the law now stands, every obstacle is thrown in the way of the student perfecting himself in the science to which he has devoted himself, at the same time that the law is imperative upon him, that before he shall be allowed to practise publicly as a surgeon, he shall undergo the most strict and rigid examination as to his knowledge of anatomy, which knowledge is only to be acquired by dissection, and from which he must be necessarily shut out by the very difficulty of obtaining the means of acquiring it.

We have already, in a previous part of this work, given at large the arguments advanced not only by professional men, but others wholly unconnected with the science, in favour of the facility which ought to be granted in the procuring of dead bodies, and it is only fair that both sides of the question should be heard. It is only by a collision of opinions that truth can be elicited; and on a question of such vital interest, and which, in some of its features, has aroused the attention of the country in a manner unprecedented, it may not be without its uses to place all the arguments, as it were, in a state of juxtaposition, and thence be able to draw those results, which may ultimately prove of the greatest benefit to those who are so deeply concerned in the final establishment of the law, and in the removal

of those difficulties which at present press so heavily on the promotion and advancement of anatomical science.

The entire weight of the objections and the opposition which has been raised against the Anatomy Bill appears to rest on the outrage which some of its enactments would inflict on the poor and friendless, and we are free to admit that if it were by law made compulsory on the pauper to give his body after death to dissection, such law would be a scandal upon the country, and in direct opposition to the principles of humanity and Christianity. But the objection to the Anatomy Bill wholly dies away when it is expressly provided in it, that if the pauper consents not voluntarily to the anatomization of his body after death, that the overseers of the parish shall not be warranted in the disposal of the corpse of that pauper, but that it shall be buried according to the general custom. The only suspicion which rests on our mind in this case is, that were a pauper known to be wholly friendless, and without any relations, some clandestine work might be set on foot to obtain that consent surreptitiously,—inasmuch as the price which his body fetched would go into the hands of the parish officers; and thus a door might be opened to the introduction of many serious abuses, which might ultimately defeat every humane intention of the legislature, and give the anti-anatomists the most formidable weapons in their hands, wherewith to combat their doughty opponents, and it would then be an easy task to determine on which side the victory would be gained. Mr. Sleight suggests, in some measure to obviate this objection, that the certificate of the voluntary surrender by the pauper of his body for dissection shall not only be signed by a medical man but also by a relative; but we are putting the question that the pauper has no friend nor relative, which is, unfortunately, too often the case with the wretched inmate of the workhouse, and the law, having sanctioned the disposal of the body, it is in perfect keeping with the natural depravity of the human character, when gain and emolument are the objects to be obtained, to suppose that the most punctilious deference will be paid to the dying wishes of the pauper, or that some advantage will not be taken of his helpless and unfriended condition to induce him to subscribe to a document, at which, under any other circumstances, every feeling of his heart would revolt at. The very saving which would accrue to the parish arising from the expenses of the funerals, which, although taken individually, may be small, but if collectively, amount to a considerable sum

in the course of a year, would also operate on the mind of the parish functionaries to promote as much as possible the disposal of the body to the surgeons, for in the latter case it would be a positive gain—in the former, a positive loss.

It is naturally to be expected, that the whole medical procession will be in array against those who, by their writings, even dare to insinuate that the resurrectionists have not been induced to commit murder, on account of the great facility with which the body is disposed of, and the deep and almost impenetrable secrecy with which negotiations of that nature are carried on. The whole business, however, resolves itself into this simple question: is it, or is it not in the power of a professed surgeon, to whom a body may be offered for sale, to determine, on the very first view of it, whether the subject died a natural death, or whether force or violence has been used to effect the destruction of life? If the question be answered in the negative, that the surgeon has no means of arriving at a just conclusion, what then becomes of the boasted superiority of medical science over that which was possessed by our forefathers? and yet, it is not less true, that the medical profession must shelter themselves behind this shield of ignorance, if they are to stand wholly absolved in the eyes of the country for having secretly connived at the horrid practices of the Burkers. We remember that, on the trial of Bishop and Williams, Mr. Partridge was asked by what circumstance he was led to draw the conclusion that the body of the Italian boy had never been buried?—his answer was, that he was chiefly led to form that conclusion on account of there being no saw-dust in the hair! This information was a guide to all future Burkers, to take especial care that, in any future murders, that sign of inhumation should not be wanting; but it spoke very little for the extent of medical knowledge as to the appearance and symptoms of a violent death, that the conclusion of a murder should be drawn from a mere custom in no way connected with surgical science. It is undoubted, that the body of Mrs. Walsh and of Sarah Vesey were both of them disposed of to the anatomical schools; and in one instance, it was thought requisite by the head of one of our greatest hospitals publicly to deny the fact, that the body of the former had been purchased for the benefit of that institution. We have had before us, in the evidence of young Cook, the exact manner in which his mother deprived Mrs. Walsh of her life, and we have it also in evidence, that on the following day the negotiation for the

sale of the body commenced. Now, what opinion must be formed of the extent of the medical skill of those persons, and we forbear to mention their names, to whom that body was offered, if they could not distinctly and immediately perceive that it had not come to its death by natural means, but by an act of the most determined violence? It would be drawing too largely on the credulity of any one to suppose for a moment, that persons daily and hourly acquainted with every mark and symptom of a natural death, should not be able at one glance to determine, that such could not be the case with the body of Mrs. Walsh. As to the absence of the usual symptoms of burial, we are silent upon them, because it is well known, that the resurrectionists do not obtain *all* the subjects which they dispose of from the churchyard, but that they are indebted for a great number to the obliging civility of the keepers of the workhouses, particularly those who *farm* the poor. It is not every coffin that leaves a workhouse that contains *what it ought to do*, and although the keepers may know how to shelter themselves from the probability of a discovery of acting as principals in the business, yet there are well known methods by which they secretly connive at the stealing of a body, which being well known to be that of a friendless creature, is never likely to be inquired after, nor demanded from their hands to be buried in any other manner than at the parish expense; the absence therefore of the usual symptoms of burial, may not therefore be considered sufficient to excite the suspicions of the surgical professor, but if he be unable to distinguish on the inspection of a corpse, and even on the very first view of it, whether it came by a natural or a violent death, to what conclusion are we then naturally driven, but that medical science is one of the greatest humbugs of the day? It is allowed that the medical men, who gave their evidence on the causes which occasioned the death of Carlo Ferrari, were decidedly in error; it is true, they all agreed that he came by his death by violence; but of the manner in which that violence was committed, they were manifestly ignorant, that is if that part of the confession of Bishop is to be credited, wherein he relates the manner in which he was accustomed to dispose of his victims,—and to that part of his statement we never heard that any discredit was attached. We, therefore, revert to the original question, was the surgical professor, to whom the body of Caroline Walsh was disposed of, before it had scarcely become cold, so utterly ignorant of the general symptoms of a natural death, as not to discern immediately that no such symptoms did present themselves in the corpse then before him,

and consequently that he was morally and religiously bound, as in the case of Mr. Partridge and Mr. Hill, at the King's College, to institute a full inquiry into the causes of the death of the subject, and to hold the persons in custody who brought the corpse, until the requisite information had been obtained? We know, and it is a melancholy idea to entertain, that the improvement and knowledge of one of the most useful of human sciences, are made to depend on the services of a set of the most abominable miscreants who disgrace human society. It is certain that the proprietors of the anatomical schools, and even the heads of the hospitals, although in their hearts they detest the practices of the men, yet they are obliged to truckle and to display a degree of servile subserviency to them, or otherwise the means would be cut off by which their anatomical studies could be prosecuted. We have it from the authority of the proprietor of an anatomical school, that he dare not give offence to any of the resurrectionists, for that they have it in their power to ruin any anatomical school in the metropolis. This circumstance alone may account for that apparent indifference which has been exhibited by the heads of the hospitals, and the proprietors of anatomical schools, in ascertaining the causes by which a subject came by his death; for to express any suspicion that it was occasioned by violence, would be met by the most ferocious indignation, and accompanied perhaps by threats, not of the most pleasant nature. Subjects, say the anatomists, must be had, and we must not therefore give offence to those individuals, who are the only channel by which we can obtain those materials wherewith our studies can be prosecuted. We know of one instance, in which, subsequently to the execution of Bishop, a subject was taken to an anatomical school, and the proprietor proceeded to examine it, in order to ascertain the manner of its death, and having put some pertinent questions to the wretch who brought it, which were not very agreeable to *his feelings*, he with the most violent oaths, huddled up his nauseous load in his sack, swearing that he would never bring another subject to that school. Here, then, the medical men are placed in a state of great difficulty and embarrassment. With the consciousness that they have an important duty to perform, in investigating the cause of the death of the subjects which are offered to them, they also know that if such duty be performed, they have nothing more to do than to close the doors of their schools, or follow the advice of Mr. Sleight, and take to the dissection of calves and asses. One of the most celebrated resurrectionists of the present day, and who, we have

good reason to believe, was the chief instigator of all the annoyance which Mr. Hill of the King's College has received, has been heard to declare that he would be d——d if he would take a body to any place, where any questions were asked him; and this man, who possesses an uncommon degree of natural shrewdness, once retorted upon a professor, who put rather a significant question to him,—' Have you been studying to your time of life, and not be able to distinguish at once between a Burked subject, and one that has died a natural death? It is only the fool that asks questions.' Thus it is at once apparent, that some legislative enactment is imperatively called for, by which the professors and students of one of the most useful and liberal of human sciences may be released from this degrading and disgraceful state of dependence on a set of wretches, who are the very refuse of society, and their high and honourable feelings not daily and hourly wounded by being slavishly obliged to truckle to the miscreants, for the very materials by which their professional pursuits can be carried on.

We may be accused for this prolixity in our discussion on this interesting subject, but the public attention is so keenly alive to every circumstance connected with it, and to the adoption of those measures, by which a repetition of the horrors may be avoided, by which the metropolis of this country has been of late, to its great dishonour and infamy, distinguished, that we would not allow the opportunity to escape us, of treating the subject in all its various bearings, and from which, perhaps, may result the gradual removal of those difficulties which beset the promotion of surgical education.

We shall now return to the alleged murder of Sarah Vesey, from which we were led to digress by the foregoing exposition of the conflicting opinions relative to the supply of the anatomical schools, which, trammelled as they are at present by legal enactments, are wholly incompetent to furnish the instruction that is so much desired, and on which the safety and health of the whole community may be said to depend.

Mrs. Cook, unfortunately, found Sarah Vesey too ready to lend a willing ear to all her artful and villainous insinuations, and she ultimately so well succeeded as to induce the girl to quarrel with the mistress with whom she lived, and without giving her any notice, left her house at night, not even taking her clothes with her.

The sudden and mysterious disappearance of the girl excited a considerable sensation in the neighbourhood, and the most active inquiries were set on foot to discover the fate which had befallen her. Amongst others, Mr. Lea, of the Lambeth-street police-office, was instructed to make some inquiries; and learning that the girl was in the habit of frequenting Mrs. Cook's room, he repaired thither, and with the knowledge he possessed of the infamous and abandoned character of the wretch, his suspicions were strongly excited as to the manner in which the unfortunate girl had been disposed of. On questioning two of the people who lodged in the same house with Mrs. Cook, Mr. Lea was informed that they remembered the girl coming about the time that she left her place to inquire if Mrs. Cook was at home, and Mrs. Cook met her on the stairs, and said, 'Come up, we are just going to supper; we have got some herrings and potatoes.' It was one of the lodgers who lighted Sarah up stairs, and the following morning, about seven o'clock, the man was looking out of his window smoking his pipe. The room which was occupied by Mrs. Cook was above that occupied by this man, and on her looking out, and perceiving that her fellow-lodger was also looking out of his window, she exclaimed with an oath, 'What are you looking after? cannot you keep to your work?' The lodger, however, was not to be removed from his station by the obstreperous language of Mrs. Cook, but continued looking out at the window; and in a short time afterwards Cook was observed to leave the house with a sack on his shoulder, apparently containing something heavy. Cook being out of sight, Mrs. Cook called to the man below, saying, 'Now, you b——y snob, are you a bit the wiser for what you have seen? Can't a person remove a little rubbish out of their house, without having a set of devils to watch us?—Take care you are not caught in the trap some day or other.' From the natural dread which every one of the lodgers in the house entertained of this horrid woman, it was not deemed prudent to prosecute any inquiry into the circumstances of the conduct of Cook in carrying away a load, as it was termed, of rubbish from the house; for although the vicious and degenerate dispositions of Mrs. Cook were well known, it was not suspected that she went the length of murdering the unfortunate creatures whom she enticed within the precincts of her loathsome dwelling.

At the time of the disappearance of Sarah Vesey, she wore a particular kind of bonnet, made of brown silk, with a very flat crown; for some months

after the disappearance of the girl, Mrs. Cook wore a bonnet of the exact description of silk, and similar in the make, &c. When Mr. Lea questioned young Cook respecting Sarah Vesey, the boy said, that he perfectly remembered a girl exactly resembling the description of Sarah Vesey coming to his mother's lodgings, and one night in particular she slept on the stairs. The boy further stated, on his making some inquiries of his mother respecting the girl, that she had no father nor mother, that she had been brought up in Whitechapel workhouse, and that it was from a feeling of humanity and charity that she gave the girl a lodging for the night. Of the ultimate fate of this unfortunate girl no doubt now remains in the minds of those who, in an official capacity, have been employed to make the necessary inquiries after her, for no trace of her whatever can be discovered, subsequently to the last time that she was known to enter Mrs. Cook's lodgings.

We have good reason to suppose that the body of this girl, as well as that of Mrs. Walsh, did not go out of the parish, and a particular individual, whom we shall have occasion to mention hereafter, is strongly pointed at as having been the purchaser of both the bodies. Here then we have an instance of a healthy young woman, without the slightest indication of any disease about her, secretly murdered by a female fiend, and her body immediately sold for dissection; and the medical man, whose experience ought to have enabled him immediately to distinguish the manner in which the subjects came by their death, clandestinely purchasing the bodies, and thus conniving at and encouraging the horrid crime of murder. It is in vain to attempt to mystify the matter, or to throw over these transactions the palliation of their existence as necessary evils; the fact will still always remain uncontrovertible, that it is the great facility attending the disposal of their ill-gotten property, the great gain attending it, and the almost certain escape from detection, the buyer being almost as deeply implicated in the crime as the seller, that has brought the crime of murder in this country to a system, which appears to set at defiance the strong arm of the law, and of which the discovery of a few solitary cases, and the punishment which has been inflicted upon the criminals, have not wholly abolished.

The cellar in Mrs. Cook's house was generally selected by her as the place in which to conceal her victims; this place was always covered with straw, for as it was a place to which all the lodgers had access, it was requisite that

some material should be always ready at hand, wherewith to cover any subject that had fallen under her murderous grasp. In regard to herself, she would never allow a candle to be taken into this place, alleging the danger that might accrue from the straw taking fire; but the other lodgers demurred to this prohibition on the part of the hag, declaring that, from the extraordinary number of rats which infested the place, it was not safe to enter it without a light. One night one of the lodgers descended into the cellar, and to his great surprise found an old woman asleep in one of the corners of it. The man questioned her as to the manner in which she got admittance into the cellar, and the reason for secreting herself in such a loathsome and a dismal place, but to all his inquiries she either could not or would not give an answer. There was, however, little doubt that she had been enticed thither by Mrs. Cook, and that she was on that night to be included in the number of her murdered victims.

Keenly alive as the human mind is to every thing that is extraordinary and wonderful, yet in the cases of the murders committed by the Burkers, the crime appeared to be too great to be believed. It was treated by many as an idle tale, framed to feed the vulgar appetite for the marvellous, and too horrible for any credulity to be attached to it; nor need we wonder that the most credulous should have been startled by the recital of such atrocious cruelty, which far surpasses anything that is usually found in the records of crime. The offence of murder, dreadful as it is, is unhappily too familiar in our criminal proceedings; but such an artfully contrived and deliberate scheme, such a systematic traffic of blood as were disclosed on the trials of Bishop, Williams and May, of Calkin and of Mrs. Cook, were certainly never before heard of in this country. It is a new passage in our domestic history, it is entirely out of the ordinary range of iniquity, and stands by itself a solitary monument of villainy, such as would seem almost to mark an extinction in the heart of all those social sympathies which bind man to his fellow men, and even of that light of conscience which awes the most hardened by the fear of final retribution. In works of fiction, no doubt, where the writer to produce effect borrows the aid of his imagination, we have accounts of such deeds, perpetrated, perhaps, in the secret chambers of some secluded castle, or in the deep recesses of some lone and sequestered haunt. But the awful and striking peculiarity of the cases which we have been now exhibiting, lies not in the high-wrought scenes of romance, but in

the sober records of judicial inquiry; a den of murderers in the very bosom of civilized society, in the heart of our populous city, amid the haunts of business and the bustle of ordinary life, who have been, if we may so speak, living on their fellow-creatures, as their natural prey. Words would fail to convey an idea of the sensation that was excited in the court, as, in the progress of the trial, the horrid details of the murder of Mrs. Walsh were gradually unfolded, independently of the novel and extraordinary scene which was exhibited of the guilt of the mother being proved by her own offspring. At every view of this unhappy story, it assumes a deeper dye. What a fearful character does it present of cunning and violence, the true ingredients of villainy. From first to last we see the same spirit of iniquity at work to contrive and to execute. We witness no doubt, no wavering, no compunctious visiting of the conscience, nor any soft relenting, but a stern deliberation of purpose that is truly diabolical; and it is fearful to reflect that persons capable of such crimes should have been so long haunting our streets, mixing in society, and coolly selecting subjects for their sanguinary trade.

Amongst the other peculiarities of the present cases, we may remark that such acts of savage atrocity are rather out of place in so civilized a community as that in which we live. They are not in unison with the moral tone of society. Crimes of violence are generally supposed to be the natural product of barbarism. They grow up to frightful maturity in that congenial soil; and all savage communities are accordingly distinguished by cruelty, and the most profligate indifference to human life. As mankind improve, and as knowledge is diffused, those crimes disappear, and are succeeded by others sufficiently odious, no doubt, but still of a less atrocious nature. The same process by which we cultivate the intellectual faculties, would seem also to open the heart to more humane sentiments, and to more kindly feelings. But however we may improve society and diffuse instruction, there is still a vast expanse of ignorance, poverty, and vice, which we may lessen by active efforts, but which we cannot altogether remove; and it is in this intellectual desert, if we may so speak, where nothing that is humane, enlightened, or moral ever springs up to refresh the eye, that crimes are produced. Under the influence of ignorance, all the best affections of the human heart wither and lie dead; and it is chiefly from those who are within its sphere that the ranks of crime are recruited, and that occasionally such

wretches arise as Burke, Bishop, Williams, and Cook, who distance all competitors in iniquity, and shock the feelings of the age by their enormous crimes. It will generally be found that these criminals are not only wicked and immoral, but that they are uneducated and ignorant, living, no doubt, in a civilized community, and with certain habits of civilization, scarcely, if at all, raised above the level of savages. Hence the vast importance to society of the diffusion of knowledge, of bringing all ranks under some process of mental tuition, and of establishing schools where instruction and morality—for they go together—are retailed at a cheap rate. It is only in this way that we can insure the decrease of crimes, and more especially of such atrocious crimes as have been recently perpetrated.

It may appear paradoxical, but it is nevertheless true, that in proportion as civilization has advanced in this country, crime has risen in its enormity. The philosopher is at a loss to account for the existence of this anomaly; for if an effect be in direct opposition to the principles of the cause, there must be either something deficient in that cause, or that it has been erroneously selected as the means requisite to produce the desired end. The cosmopolite looks into the history of other nations, and comparing the extent of crime which took place whilst they were in a state of barbarism and ignorance, with that which is exhibited when they have emerged from their savage state, and the light of science and of learning has been diffused around them, he is struck with astonishment at the difference which is displayed, and is thence apt to draw his conclusion, that it would have been better for the interests of society if man had remained in his rude, uncultivated state, than, by enjoying the supposed advantages of civilization, have progressed in crime and villainy.

In regard to the principle that it is only the uneducated and the ignorant who are the perpetrators of the greatest crimes, our daily experience flatly contradicts it. May was by no means an uneducated man. And if we take a still further retrospective view, and investigate the character and condition of Burke, we are led still more decidedly to adhere to the opinion that the quantum of crime does not depend upon the extent or the deficiency of education. In fact, such is the strong tendency of mankind to revolt from the idea of such unnatural enormities being committed in aught of human shape, that when the system of traffic which had been practised by Burke and his associates first flashed in full disclosure on men's understandings,

not a few were inclined to search, in some extenuating circumstances of this kind, for a cause of palliation of this unparalleled wretch's iniquity. It was at least not an impossible supposition that the wretched man might have been labouring under a total insensibility of moral and even of intellectual feeling, arising from an entire want of education, from a mind dull and inert in its perceptions, originally, and not only in after life allowed to lie waste, but rendered still more callous and impassive every day by a constant contact with scenes of infamy. Could we, indeed, imagine that Burke had been left to have his character formed under an accumulation of influences fatal and awful to contemplate as these are,—that his life had been always spent in profligate habits and dissolute haunts,—that he had been born with a ferocious and indocile nature, and bred in situations which barred all progressive movements to good,—that, in short, he never had any ideas poured into his intellect, or any human feelings generated in his bosom,—then, perhaps, it might furnish matter of curious investigation to the metaphysician, whether he were not, after all, a case which called for deep sympathy. But a sufficiency of the history of this extraordinary man has transpired to show that he at least was not placed in any such deplorable predicament. His education and rank of life, instead of having been by any means of the lowest order, were such as, in the judgment of the world, and on the authority of experience, are held of necessity to humanize and inform the mind, and to communicate perfectly just conceptions of moral distinctions. It must also appear singular that the mind of Burke was by no means closed against the truths of religion. He was brought up in the Roman Catholic faith; but as a Catholic, he was considered wonderfully free from prejudice, frankly entering into discussions upon the doctrines of his church, or those of other sects, with whose tenets he showed some acquaintance. He read the Scriptures, particularly the New Testament, and other religious books, and discussed their merits. On a Sabbath especially, although he never attended a place of worship, he was seldom to be seen without a Bible, or some book of devotion in his hands. He attended the prayer meetings which were held on the Sunday evenings in the Grass-market, Edinburgh, and was for some time remarked as one of its most regular and intelligent members. He never omitted one of its meetings, and expressed much regret when they were discontinued. In addition to this, many people hold it to have been made out that Burke was a man of strong mind, and of an understanding much superior to his condition. When,

therefore, he stood convicted before his country as one who, for his livelihood, had been a wholesale dealer in human slaughter, he stood without the benefit of one single mitigating circumstance to weaken the profound sense of horror and indignation which pervaded all hearts.

We have touched upon this trait in the character of Burke, for the purpose of establishing the negative, that even religion is not sufficient to deter men from the commission of the most horrid crimes. We have recently had an instance in the case of Holloway, in whose mind the principles of religion were inculcated at an early period, and who professed to adhere to those principles whilst standing on the scaffold, that they were in themselves incompetent to deter him from the commission of one of the most horrid murders recorded in the annals of the country. If, therefore, neither education, civilization, nor religion be sufficient to effect the prevention of crime, to what other power are we to have recourse in order to bring about such a desirable benefit for the human race? We despair of giving a satisfactory answer to that question. The penal laws of the country have been found insufficient; in fact, notwithstanding their unexampled severity, and which is stigmatized as a national disgrace, the most heinous crimes continue to be perpetrated, as if there were no laws existing by which the criminal could be punished for his misdeeds.

It would occupy too much of our pages to enter here into any disquisition on the effect of capital punishments on the morals of the people; but we cannot forbear expressing our opinion that the legislators of this country appear to be the most ignorant of any of those nations professing to be civilized, in all matters on which the prevention of crime depends; and whilst they have before them such a splendid example of human wisdom as the code of Napoleon, they will still adhere to the customs of their forefathers, which assimilate not with the present state of society, and which have been found to be, and are declared wholly inefficacious as a remedy for the evil which they pretend to cure.

As a female, Mrs. Cook may be considered as one of the most atrocious murderers of the age in which she lived, or of any preceding one. Essentially, and in her real character, an ignoble, base, meanspirited wretch, this wholesale assassin, by the mere extinction or obliteration of every moral principle and feeling of her nature, now stands out in strong relief from the long and black catalogue of those who have most signalized themselves by their daring violation of the laws both of God and man. Ordinary homicides slay from passion or revenge; the murders they commit are the product of an ungovernable and overmastering impulse which hurls reason from her seat, and in the wild conflict of guilty passion, precipitates them into the commission of acts, which are no sooner done, than they would perhaps give the universe if they were undone. But Cook and her criminal predecessors possess the horrid and anomalous distinction of having, without the palliation of passion, or of any other motive which a just view of human infirmity can admit in extenuation, and from a base and sordid love of gain, and of acquiring the means of rioting in drunkenness, profligacy and iniquity of every sort, established a traffic in blood, upon principles of cool calculation, and an utter recklessness of either God or man, which would have done no discredit to Mammon himself. Hence it is that Bishop, Williams, and the others convicted of the horrid crime of Burking, are perhaps the only criminals who have died on the scaffold, not only without exciting an emotion of pity in a human bosom, but amidst the curses, both loud and deep, of the assembled thousands who witnessed the ignominious termination of their guilty career. The wild shouts of exultation which saluted them upon their appearance on the scaffold, and which rung in their ears with still fiercer acclamations when the world was closing on

them for ever, must have appalled even the hearts of ice within their worthless bosoms, and sounded as the knell of a judgment to come, where the spirits of the slain would rise up before them, to demand a just retribution.

Were we to select any of the most atrocious cases which are recorded in the Newgate Calendar, we could not perhaps select one more appropriate to warn the juvenile offender from the horrid vice of drunkenness, than the case which is now before us of Mrs. Cook. To her inordinate love of spirits may be traced almost all the crimes which she committed. Her first step, after obtaining possession of her ill-gotten wealth, was to the gin-shop; where, having drank to excess, she would take home with her an additional quantity, wherewith to plunge herself in all the loathsomeness of drunkenness.

Would that we could here read a warning lesson to those who indulge themselves in the horrid vice of drunkenness, as the certain precursor of their final ruin, and the destruction of all their earthly hopes. There is scarcely any vice which entails more complicated misery upon the unhappy wretch that is a slave to it, than intoxication. It gradually undermines the strength and vigour both of body and mind. We every day see the most deplorable effects of this most shameful vice in the ruined health, constitution, and fortune of vast numbers of our fellow-creatures. How many ingenious and industrious persons has this vice rendered useless and worthless! How many happy families does it daily reduce to beggary and indigence! How many innocent sufferers does it involve in its deplorable consequences! How many have we known who began life creditably and reputably, with a basis on which, through industry and virtue, to rear the structure of an ample fortune, by contracting these fatal and cursed habits, have ruined themselves and their families for ever; for of all vices, there is no one so incurable as this, when it is once contracted. Other vices leave us with age; this fixes its roots deeper, and acquires strength and firmness with declining years. It kindles an infernal spark, which is absolutely inextinguishable.

It was, however, against the juvenile part of the community that Mrs. Cook directed her thieving propensities, in order to supply herself with the daily means of satisfying her desire for spirits. It was about two years ago that

she decoyed a little boy from his home, by telling him that she would take him to see his aunt. She conducted him through several courts and alleys, from East Smithfield to Goodman's-yard; and then, having enticed him into one of the dark corners, took from him a quartern loaf, and the change of half-a-crown. She even took the frill off the child's neck, and then told him to stay until she returned. It is, however, surprising with what acuteness some boys are apt to watch the motions of others; and on this occasion all the actions of Mrs. Cook were strictly watched by a youth, as if a suspicion had taken root in his juvenile mind that some nefarious action was about to be perpetrated. He followed Mrs. Cook and her youthful victim to Goodman's-yard, and after having watched her departure, he joined the little dupe, who was anxiously awaiting the return of the 'good old lady,' and immediately took him home to his father, a jeweller, of the name of Harris, in East Smithfield, who made the boy a present of a silver medal for his good and meritorious conduct.

When Mrs. Cook was brought before the magistrates at Lambeth-street office, charged with the murder of Mrs. Walsh, she was identified as the person who had committed the theft on the unsuspecting boy. She, however, did not deny the charge, thinking it perhaps of minor importance, and seemed to treat it as a mere trifle, and wholly unworthy of her consideration. This, however, was by no means the only case which has come to our knowledge, in which this female fiend committed her depredations on the young and the helpless. About eight months ago, she was observed by a gentleman of the name of Chapman, from his back window in Prescott-street, which looks upon the Tenter-ground, playing with two children, and giving them cakes and apples. This lasted for about half an hour, when she ultimately succeeded in enticing them out of the ground. Mr. Chapman suspected that the woman had some evil design in view towards the children, as he judged, from the style of their dress, that they did not belong to her, and went into Prescott-street, for the avowed purpose of meeting her with the children. On coming up to her, he inquired if the children belonged to her; to which she answered, that, although they did not belong to her, she knew them very well, and was going to take them home; giving him at the same time to understand, that it would be as well if some people would attend to their own business, and not interfere with that which does not concern them. Mr. Chapman, however, was not to be

daunted by the rude and insolent conduct of the wretch; and on further inquiry he found that everything which she had said was false, and done with the intent to deceive him. Her real design was to decoy the children to her home, and there either to rob them of their apparel, and turn them shivering into the streets, or secretly to make away with them, to replenish her funds towards the support of her drunken habits. During the time that she was confined at Lambeth-street office, under the charge of the murder of Mrs. Walsh, Mr. Chapman came to the office, and identified her as the same woman from whose devices he had rescued the two children.

Mr. Lea informs us, that he is acquainted with five persons whom Mrs. Cook had attempted to entice to her lodgings to sleep, but who were saved by the suspicious nature of her proceedings, and the infamy of her character, which was so well known throughout the whole of the neighbourhood where she resided. One circumstance, however, deserves particular mention, as it will display the art and cunning with which this wretch carried on her nefarious practices, and against which the most wary could not be always upon their guard. There was an old woman, whom Mrs. Cook had selected as one of her victims, and into whose good graces she had tried, though in vain, to ingratiate herself. She had pertinaciously refused to accept of her frequent invitations to drink a cup of coffee with her, and to spend a *social* hour, as both of them had a great deal of time upon their hands, which might be agreeably passed over a cup of coffee; and perhaps she would be able to raise a sufficiency to purchase a quartern of gin wherewith to regale themselves before parting. Mrs. Cook soon found, that although no immediate attraction existed for the old woman in a cup of coffee, yet that there was something which could not be resisted in the glass of gin. She therefore began by throwing herself in the way of the old woman, who hesitated not to accept the invitation to enter the first gin-shop which presented itself; and Mrs. Cook began to rise many degrees in her good opinion, on account of the kind and liberal manner in which she treated her with her favourite beverage. Mrs. Cook soon perceived that the suspicions of the old woman were beginning to be lulled; and she at last admitted Mrs. Cook so far into her confidence, as to inform her of her place of residence; and it ultimately turned out, when almost in a state of complete intoxication, that the old woman confessed that she had for some time gained a precarious livelihood by robbing little children of their

apparel, or any valuables that might be about them. Mrs. Cook was, however, too much upon her guard to make the same disclosure; but she saw in the confession of the old woman a certain instrument of accomplishing the purpose which she had in view. She was therefore determined to watch the motions of the old woman more narrowly, not doubting that she should soon succeed in entrapping her in one of her petty thefts, and then the remainder of her plan was easy of execution. The opportunity was not long in presenting itself; for having once detected her in taking a coral necklace from the neck of a child, she quietly betook herself home, and in a few hours afterwards she repaired, apparently in the greatest bustle, to the lodgings of the old thief, informing her that the police officers were in search of an old woman, answering in every particular her description, who was accused of having stolen a coral necklace from a little girl; and although she did not mean to say that the theft had been actually committed by her, yet as it was by no means improbable, she considered that it was but acting the part of the friend, supposing her to be guilty, to warn her of the danger which impended over her; and in what manner could she show her regard more strongly than by offering her an asylum in her lodgings until the officers had slackened in their pursuit, or had wholly relinquished it as a fruitless task. The snare was deeply laid; but in this instance it was cunning arrayed against cunning, and the victim escaped by removing herself from the neighbourhood altogether; but she was afterwards detected in her thefts in another part of the town, and sentenced to six months imprisonment, and hard labour in the House of Correction.

In regard to the manner in which Mrs. Cook disposed of the bodies, a considerable degree of light was thrown upon it by an anonymous letter, received by the Hon. G. C. Norton, of Lambeth police-office, in which letter some dark insinuations were thrown out respecting a medical gentleman, who was in the habit of giving lectures within four hundred yards of Mrs. Cook's house. It was also stated in this letter that Mr. J——y was very fond of cheap subjects; and, in fact, intimating that his house was the receptacle of dead bodies, no matter by what means they were procured. In consequence of the receipt of this letter, Mr. Lea requested Mr. J——y to attend before Mr. Norton, as it was natural to suppose that some information might be elicited from him, which might supply some links that were wanting in the chain of evidence against Mrs. Cook; for it was not

improbable that the body of Mrs. Walsh might be actually traced into his possession. Mr. J——y, however, when before the magistrate, positively denied all knowledge of the body of Mrs. Walsh; and further, that he never knew the prisoner under the name of Cook, but under that of Ross; and that was merely from attending her in his professional capacity. At the time when she was under examination in the name of Cook, Mr. J——y almost took upon himself the character of her advocate; and he endeavoured very much to draw Mr. Norton's attention from the statement of young Cook, and even to discredit it altogether. He alluded particularly to that part of the statement which touched upon Mrs. Walsh having taken coffee with Mrs. Cook; as it was not to be supposed that a person of her character was not better acquainted with the anti-narcotic power of coffee, than to administer it to the person whose life she contemplated; and consequently the taking of the coffee would go in some degree to defeat the measure which she had in view. He himself, he said, always took coffee to keep him awake, whenever he had any nocturnal cases in hand; and there was no proof adduced that any soporific medicine had been administered to Mrs. Walsh, which, in all probability, would have been the case, had she committed the murder with which she was charged. He then proceeded to remark on the impossibility of the death of the old woman having taken place, according to young Cook's statement, without the most violent struggle; and further, that it almost amounted to an impossibility for Mrs. Cook to have committed the murder by her own individual power, without the assistance of some other person; nor was it likely that the father of the boy should be standing all the time that the work of death was going on, near the fireside, and withhold his assistance towards the accomplishment of the murder.

There is an old adage, which says, an injudicious friend is a dangerous enemy; and in this instance the warm and indiscreet manner in which Mr. J——y espoused the cause of Mrs. Cook, only aggravated the suspicions against her, at the same time that neither the private nor the professional character of the individual himself was exalted by the measure.

On leaving the office, Mr. J——y said to Lea, 'Some one will be let in for this by and bye;' an insinuation which had at the time its various interpretations; but the one to which the greatest probability was attached, was, that it had some reference to the collusion which existed between himself and the accused parties, relative to some previous transactions in

the disposal of dead bodies, all of which were supposed to find their way to the lecture-room of Mr. J——y.

At another examination of the prisoners, Mr. J——y attended voluntarily, as he alleged, to speak to the magistrates. The prisoners, it being then early in the forenoon, were not yet brought up for examination; and Lea informed Mr. J——y that, if he wished it, he might then communicate to the magistrates what he had to say, as, most probably, several hours might elapse before the prisoners would be brought up. Mr. J——y, however, declined the offer, saying he would wait until the prisoners came; and he did actually wait in and about the office for nearly four hours. That a conduct of this kind was calculated to excite suspicion, may be easily conceived; for an individual seldom enters into the defence or justification of an accused person, without some ostensible motive being displayed. Friendship, or a long acquaintance, or personal interest, may induce a person to come forward and exert himself to obtain the exculpation of the accused party; but in the present instance the question was asked, what connexion could possibly exist between Mr. J——y and the Cooks, to sanction the zealous manner in which he presented himself to espouse their cause, at the same time that, on a previous occasion, he had publicly stated that he knew nothing at all about them? Mr. J——y has been heard to declare that he could always get plenty of cheap subjects, if he had the means of paying for them; and it has been ascertained, that although Mrs. Cook may be regarded as one of the most finished Burkers of her time, yet that she never disposed of any of her victims in those quarters where it was supposed she would most readily apply, and where the greatest prices were to be obtained, namely, the hospitals and the anatomical schools. She appeared to be contented with almost any sum she could obtain, to satisfy the immediate necessities of the day; and therefore the probability exists that she did actually dispose of her victims in that quarter, where confidence was established, and where cheapness was a primary object.

On one occasion Mr. J——y presented himself to the magistrates during the time that the prisoners were under examination; and although he was very pointedly asked the cause of his thus presenting himself so voluntarily before the magistrates, yet he sheltered himself under the plea of a love of justice, and therefore that he considered himself bound to come forward and state, in common justice to the accused parties, that he knew nothing at all

about them, nor did he possess any knowledge of the manner in which they had disposed of the body of Mrs. Walsh. Having given this statement, Mrs. Cook turned to him, saying, 'Thank you, Sir; thank you, Sir.'

No doubt whatever exists that great suspicion attaches to this individual in regard to his dealings with the Cooks; for he was frequently heard to say, that he knew where to obtain cheap subjects, if he had but the means of purchasing them. In justice to him, it must, however, be stated, that no direct proof has ever been adduced of any of the victims of Mrs. Cook having fallen into his hands, nor during any part of the examination of Mrs. Cook or her husband was the name of this individual ever implicated. It is not to be supposed that at this remote period any clue will be obtained as to the actual disposal of the body of Mrs. Walsh, but of its ultimate fate, no doubt whatever rests on the public mind.

The police establishment of Worship-street had, however, scarcely finished their labours with Mrs. Cook and her associates, than the attention of the Worship-street officers was directed to other circumstances, which afforded strong grounds for suspicion that several Burking murders had been committed by some persons who had recently taken a house in Severn-place, Three Calfs'-lane, Bethnal-Green, described as a lonely spot near the fields between Bethnal-Green and the Whitechapel-road. A search-warrant was accordingly issued, and executed by the Worship-street officers, who apprehended three persons whom they found on the premises.

The prisoners, George Bradley, a young fellow about twenty years of age, Sarah Skinner, a young woman with whom he cohabited, and Louisa Covington, alias Carpenter, his sister, were placed at the bar for examination before Mr. Broughton; and Sarah Bradley, an elderly Irishwoman, mother of George, who had gone to the office to see the prisoners, was taken into custody, and placed at the bar with them.

Mrs. HANNAH SMITH, a respectable-looking, middle-aged widow, deposed that she lived at No. 6, Severn-place, and the two young women at the bar lived in the next house, No. 7. She had also seen a young man there, whom she believed to be the prisoner, George Bradley.

The prisoner, who wore a fustian jacket, was ordered to put on a white great-coat produced, and his hat, and the witness then said she was sure he

was the person whom she had seen go in and out of No. 7.

The witness proceeded to state, that they were very small houses, only one story high, and the partition between them so thin, that in her apartment she could hear any talking or noise in the next house. On Wednesday evening she was sitting at work in her lower room, close to the partition, and heard a female voice faintly but distinctly cry 'Murder, murder!' and she then heard one man say to another, 'Hold the b——h, hold her!' Some boys then tapped at the window of No. 7, and called out 'Burkers,' and a female went and opened the door, but they had ran away.

The prisoner Covington here went into hysterics, and the examination was suspended until she recovered.

The witness, in continuation, said, that after what she had already stated took place, all remained quiet until about half-past eight o'clock, and she then heard a noise in the same room, like persons cording a box, and after that there was a stamping noise upon the pavement before the door, which was then opened.

Mr. BROUGHTON.—Was it a stamping of feet, as of persons carrying a load, or by way of signal?

WITNESS.—It was the signal used by the persons who went to that house. They always stamped upon the pavement, instead of knocking at the door. She then heard them carrying something out, and she went to her own door and looked out, and saw a box put upon a lad's head. She could not positively say that it was the prisoner Bradley. Three men then came out of the house and went after him, and two women followed. Witness then went back into her room. She did not give any alarm.

Mr. BROUGHTON.—You appear to be a respectable woman, Mrs. Smith; but how did it happen, that, having heard the faint cries of 'murder,' and some hours afterwards the cording of a box, which you saw carried away, you did not take any measures for having the parties stopped, by alarming the neighbourhood, or calling the police.

The witness said she did not know what to do. She felt some alarm for herself, and did not like to venture out; and she had not heard or seen a policeman pass between the time of her hearing the cry of murder, and the

carrying off the box. Her niece, who lived with her, was at home at the time, and heard and saw the box, but had returned home after the cries of murder.

Mr. BROUGHTON.—You are badly off, indeed, in such a lonely situation, if you had no policeman pass all that time.

Mr. YOUNG, a police inspector, of K division, said that policemen were on duty, and must have been frequently past; but the witness might not have heard them, as they did not call the hour, like the old watchmen.

Mr. BROUGHTON.—Did you hear anything more of the people at No. 7 that night?

The witness said, that at nine o'clock, or shortly after, she heard a tap at the door, and the stamping of feet again; and looking out, she saw another box brought out, and put upon the lad's head by a tall man, who had on an old Witney white coat, and a dirty white hat. The box was followed by the men as before.

In reply to various questions, the witness said, she had reason to believe that the two young women at the bar occupied the room in which all this took place. They were at home, and in the room, that evening, for she heard and knew their voices; and it was the impression upon her mind that they were the two who followed after the box. They had lived there about a fortnight. The box appeared to her to be about a yard in length; but her niece saw it more distinctly than she did.

MARY HARDING, the niece, stated, that she lived with her aunt, and knew that the two young women at the bar lived at No. 7; and she had seen the young man go in and out, but did not know that he lived there. She had been out on Wednesday, and upon her return home, soon after four o'clock, her aunt told her that she had heard the cries of 'murder.' She afterwards heard the cording of the box, and saw it carried away as described by the last witness. She did not like to follow it. It was a larger box than her aunt described. She thought a person might be put into it. Three men and the two females followed it; and about an hour afterwards she saw a second box carried out in the same way.

Neither of the witnesses knew anything of Sarah Bradley, the mother.

JAMES BROWN stated, that he and the other officers went to No. 7, Severn-place, on Friday evening; and he, with another, got in by a back way, while Attfield went to the front. They found the three younger prisoners together. He produced two men's coats, with some other apparel, a very thick pair of men's shoes, and an old pair of women's shoes.

THOMAS EAGLES said that the prisoners made no explanation of any kind to him. He saw the produced coats lying upon a bed, and he found a long stout cord, and a bundle, containing some ragged articles of apparel, all tied up together.

WILLIAM ATTFIELD stated, that he went to the front door, which was opened by Sarah Skinner, and he asked if Mrs. Smith lived there? She said no. He afterwards asked the three prisoners where they had lived before they came there. Skinner said that they came there from No. 16, Foster-street, Whitechapel, but Covington said, from No. 10, Luke-street. He did not know where Luke-street was, and she would not tell him; but upon inquiry at the place mentioned by Skinner, he found it was three months since they lived there. He had heard that they came from No. 12, Thomas-street, Whitechapel, which they, however, denied. Upon searching up stairs, in a box were the clothes produced, and a bottle, labelled 'poison,' and containing oxalic acid in solution, which the prisoners said was for cleaning boot-tops. The box had no cover, and upon the top of the clothes in it was the drab-coloured hat produced, with a broad crape band upon it.

It was remarked in the office that it was precisely such a hat as the boy Newton had described to have been worn by the tall man whom he saw run from the spot where the body of Margaret Duffy was found in Cowheel-alley.

JAMES HANLEY produced a small tin box, which he found in the room with the prisoners. It contained six pawnbrokers' tickets; one of them for a shawl, and two for other articles of female apparel, all pawned on Wednesday, the day mentioned by Mrs. Smith.

Police-inspector YOUNG produced a small phial which, he said, had been found in the house that morning, by a constable who had been placed there, but was not now present. It contained some oil of vitriol.

It appeared that Mrs. Smith had intimated her suspicions to the police, and a constable had been placed in her house since Thursday, to watch the next, and a written statement made by her was now shown to the magistrate.

Mr. BROUGHTON recalled Mrs. Smith, and asked if she had seen any females at the house besides the prisoners, or seen or heard anything suspicious previously to last Wednesday.

She said, that on Monday week an old woman, leading a young person who was intoxicated, knocked at her door, and asked for Covington. She directed her to the next house, No. 7, and saw her go in there with the girl. She afterwards heard people going in and out, and thought at the time that they were fetching liquor from the public-house. The girl afterwards ran up stairs, and witness heard her run about the upper room, followed by a man. The girl said, 'Oh! you'll kill me, you'll kill me.' The old woman remained in the lower room, and the witness heard her say, 'Oh, my dear,' when the girl cried out, but she did not appear to move, or take any further notice. Witness heard the girl fall when she cried out. It was then late at night, and about two in the morning she heard a rustling in the passage, as if two persons were carrying something out.

Mr. BROUGHTON, after some further inquiries, had the prisoners placed at the bar separately, to hear if they wished to make any defence or explanation; but he repeatedly cautioned them that they were not obliged to say anything, and that if they did, it might be used against them.

They all protested very earnestly, that what Mrs. Smith and her niece saw carried out was nothing but a bedstead and a table, and other things, which had been carried away by night. The noises and crying out which she had heard were laughing, which ended in a quarrel; and an old woman, named Smith, who had lived with them, moved away in consequence. It appeared, in fact, that the prisoners had been shifting about, from place to place, and bilking their landlords.

The witness Harding being again questioned, declared that what she saw were boxes. She was near, and saw them distinctly, and was certain she could not be mistaken.

It was stated, that a daughter of Mrs. Smith's, who is married to a policeman, also saw the boxes, and she actually followed the party some distance; but seeing that they were going across the fields, she was afraid to proceed further. She was not then present, however.

Mr. BROUGHTON said, that from the positive swearing of the witnesses, he must believe that it was a box which they saw carried out; and it was exceedingly to be regretted that means had not been taken to stop the party, and ascertain what the box contained. God forbid that he should say that it did contain a body; but the circumstances stated by Mrs. Smith as to what had occurred on Monday week, when she heard the girl running about, followed by a man, and crying out, 'you'll kill me,' and her hearing the faint cries of murder on Wednesday, and seeing the box carried off some hours afterwards, made it a case of strong suspicion, and he would give ample time to search for further evidence.

Sarah Bradley was discharged, nothing having been stated against her. The other three prisoners were remanded for a week.

Accordingly, on that day, the prisoners were again brought up; but no conclusive evidence being adduced against them, they were discharged.

On taking a summary view of the chief subject connected with the crime of Burking, and which has particularly engaged our attention during our progress through this work, we are fully aware that we have, in several instances, laid ourselves open to the animadversions and the opprobrium of the surgical profession at large, inasmuch as we may have been supposed to attach to it a positive degree of stigma, as having been the encourager, and in some cases, the actual parent of the Burking system, which, without their co-operation and connivance, would never have been known in this country. In this respect, however, the charge against us is unfounded. We have adhered to a strict line of impartiality in recording the different arguments which have been adduced, publicly and privately, against the practices of the anatomical schools in general, and particularly in regard to the culpable ignorance which has been manifestly displayed by several persons connected with the purchase of dead bodies, in their discrimination between a murdered person and a corpse that has been exhumed. It would be an affected display of sensibility to condemn altogether the sale and purchase

of human corpses; for it is a practice which must and will prevail, so long as a knowledge of the anatomy of the human frame constitutes a part of the education of the medical student. Our great aim, however, has been, by a collision of arguments, and an impartial exposition of facts, to devise those measures by which the science of anatomy may be encouraged, facilitated, and maintained, without having recourse for its support to midnight murders, and to the reckless sacrifice of life, on account of the tempting gain which is held out to those whose consummate villainy can lead them to the commission of such dreadful crimes. It is on record in the preceding pages that several individuals have fallen under the murderous grasp of the Burker, whose bodies have been conveyed to the hospitals and the anatomical schools, and there disposed of with the utmost facility, and apparently without the slightest suspicion, as if they were the carcasses of so many pigs; whilst at the same time the experience of the purchasers of the subjects, leaving the extent of science out of the question altogether, should have enabled them at once to decide upon the manner in which the subject came by its death, or, in other words, whether it was violent or natural. In the illustration of this part of our argument, let us, for instance, take the cases of Mrs. Walsh and Sarah Vesey. It was proved in evidence, that on the morning after the murder of the former, her body was carried out of the house by the husband. Of its destination no doubt whatever can exist. What opinion, then, can we form of the surgical professor, who can have a human corpse offered to him before it is scarcely cold, destitute of all the distinctive marks of exhumation, and without any of the concomitant signs of corruption, coolly and deliberately purchasing the same, without instituting the slightest inquiry into the suspicious nature of the subject, and whether he was not himself actually abetting and encouraging a human wretch in the crime of murder? We have never been told by any of the surgical professors of the anatomical schools, that their science, or, more properly speaking, their knowledge, is still so far in its infancy, that they do not know of any criteria by which to judge of a murdered subject, and one that has undergone the ceremony of exhumation, and been torn from the grave by the resurrectionist. The public, however, must take it for granted that such ignorance on the part of the professor does actually exist; or what is the natural inference that must be drawn? that he must be conscious to himself that some deed of violence has been committed upon the body, so as to occasion death, but that it does not become him to institute any inquiry

into the business, as he is not supposed to entertain the slightest suspicion but that the body has been clandestinely obtained from the grave. We cannot designate this conduct by any other term than a bonus held out for the crime of murder; and it is on this account, and on this account only, that in our arguments we have dwelt particularly on the necessity of the interference of the legislature to devise those legal means, by which the science of anatomy may be supported, without being obliged to have recourse to the dreadful crime of murder, or even to the disgusting avocation of the resurrectionist.

It appears that, notwithstanding the greater facility which is offered in France to the surgical student in the prosecution of his anatomical knowledge, owing to the removal of many of the impediments which exist in this country in the procuring of human corpses for the purpose of dissection, yet that the attention of some of the most enlightened men of that country has for some time been directed to the devising of those measures, by which the human body may, in a great degree, be dispensed with, whilst, at the same time, the promotion of science is neither frustrated nor impeded. Amongst those men, who have chiefly signalized themselves in these laudable endeavours, stands conspicuously M. Auzouz, who, by perseverance, industry, and skill, has succeeded in the construction of an artificial skeleton, which promises to answer almost all the purposes of the human body. In the preparation of this extraordinary piece of mechanism, if it may be so called, he has been employed for several years. It has received the sanction and approbation of the principal medical professors of Paris, and it is now brought to this country as an exhibition, with the intent of promoting the science of artificial anatomy, and the removal of those abuses and inconveniences with which the dissection of the human body is attended.

We have been favoured with the pamphlet of M. Auzouz, descriptive of the uses and plans of his ingenious invention, as well as with the Report of the Royal Academy of Physic at Paris on its peculiar merits and advantages. We give the following translation of it.

'Since, in 1822, after a number of experiments, and several years of incessant application, I published my first work on artificial anatomy, a kind of excitement arose in the schools of medicine, and amongst those individuals who are supposed to guide the public opinion. Hitherto the

study of anatomy was confined to the amphitheatres; and it was not considered possible to perfect the study of it in any other manner. On the other hand, so many ineffectual attempts had been made to procure a regular and sufficient supply of subjects, that artificial anatomy became the subject of very contrary and dissimilar opinions.

'Some individuals, by a method of reasoning wholly divested of proof, beheld in artificial anatomy nothing less than the means of encouraging the idleness of the students, and a fallacious resource for the practitioner; whilst, on the other hand, others, exaggerating the benefits of it, beheld in it the means of dispensing with dissections; others, as is always the case when anything of a novel nature appears, declared the thing to be both impossible and impracticable; and the remainder were content with decrying it altogether, or they became the servile imitators of it.

'The academies, where judgment is always the result of profound deliberation, having announced the importance of this discovery, encouraged me to prosecute my plans and experiments, pointing out to me at the same time some imperfections in them. These learned societies scrupled not to place artificial anatomy above everything which had been hitherto done in France or in other countries, and to regard it as the means of facilitating the study of that particular branch of natural history.

'In the report which M. Le Baron Desgenettes made to the Academy of Medicine, on the 5th of September, 1823, he says, "If this work be continued, it cannot fail to be useful to those who devote themselves to the study of the medical science, and more especially to those who practise surgery and physic at a distance from the great cities."

'Professor Desruelles, in his report to the Medical Society, at their sitting on the 19th of November, 1823, says, "If we declare to you that a piece of artificial anatomy, placed in an amphitheatre, in exhibiting to the student the parts of which he is in search, as well as those which he ought to avoid, adjust, or even take away, may be useful to him, abridge his labour, and save him from many fruitless experiments; if we declare to you, that these pieces would be very advantageously placed in the studio of a painter; if we declare to you, that they might, more advantageously than books, remind the surgeons and physicians, not having the benefit of a corpse at hand, of

the relations of certain parts; and finally, if we finish by showing to you certain individuals curious to become acquainted with their own formation, studying it with success, in order to obtain a superficial knowledge of anatomy, without having recourse to the disgusting and afflicting spectacle of a corpse,—then, gentlemen, so far from censuring our eulogium, you will approve of it; you will applaud the zeal of M. Auzou, you will give encouragement to his efforts, and you will assist him to the utmost of your power, to enable him to succeed in rendering that perfect, which, under his hands, has already made such rapid advances to positive perfection."

'In the report made by Professor Dumeril to the Academy of Sciences, at its sitting on the 11th of April, 1825, he says, "No one is ignorant how great is the natural repugnance which is felt for the study of anatomy, and especially to the examination and inspection of those objects which form the subject of it, by all those persons who are not attached towards it by the necessary calls of their profession. It were desirable that general ideas of the organization of the human frame should be imparted to young people, and which ought to form a branch of their earliest education. Is it to be supposed that an educated man of the present day should be ignorant in what manner, and by what organs our motions are executed; in what consist the instruments by which our sensations and our principal functions are performed? Besides, it is indispensable that every skilful designer, who wishes to become a painter or a statuary, may be enabled, without applying himself to anatomical researches, to learn in what manner the forms are constantly modified in the motions by the organs by which they are either permitted or produced."

M. Alard, in his report, made to the Academy of Medicine on the 5th of July, 1825, thus expressed himself.—"We will not dilate any further on the great utility of these pieces, which, doubtless, will soon be generally felt. It may be sufficient to add, that they are competent, by a preliminary knowledge of the situation of the relations of the parts, greatly to simplify the study of anatomy, by facilitating the dissections which are indispensable to the study of medicine; from which will result the eminent advantage of rescuing a great number of students from those accidents which are caused by a protracted stay in the dissecting theatres,—further, that they are well calculated to supply the place of corpses in those places where it is not possible to procure them; and that, by the study of similar pieces, and the

dissection of certain animals, a knowledge can be acquired of the structure of the human body, sufficient for the majority of cases, and much more precise and indubitable than that which can be acquired by any other artificial means."

That celebrated man, M. Geoffrey St. Hilaire, says, in his report to the Institute on the 2nd of August, 1830, 'A general knowledge of the parts of the human body ought one day to constitute a part of natural history, and form an early branch of education amongst every class of society. Sooner or later, this study will be adopted in our schools; but this will never become, nor is it possible to be executed without the resources offered by the new branch of industry created by M. Auzouz.'

M. Richerand, one of the most celebrated professors of medicine of France, says, 'He who cultivates the science of human anatomy, resembles, in some degree, the chymist; in the same manner that the latter cannot attain to a correct knowledge of a substance without being able to decompose it, and to analyze it in all its parts, so the anatomist cannot obtain a perfect knowledge of the human body until, having studied separately, and with the greatest care, each of its organs, and each of the systems which are formed by a certain number of similar organs, he is able to assign to each of them its proper place—to determine the relations which they bear to each other, and the proportions into which they enter, in order to form the composition of this or that of our members.'

From these commendatory reports from some of the most scientific men of France, as well as from the opinion of a great number of physicians who were invited to give their opinion on the utility of his artificial skeleton, M. Auzouz drew the following results.

'1st. That these preparations differ totally from all others which have been hitherto made or constructed for facilitating the study of anatomy, and which have nothing further in common with them, than that their immediate tendency is the same.

'2nd. That they exhibit in the same subject, in a vertical attitude, all the parts which constitute the composition of the human body, with all the characters which belong to them.

'3rd. That the use of these pieces will considerably diminish the time which the students devote to the study of anatomy, and shorten their stay in the anatomical schools.

'4th. That they will possess the advantage of recalling the anatomical details to the memory of the students and practitioners in general, who have already devoted themselves to the science.

'5th. That they will render the study of anatomy possible in all seasons of the year, and in all countries in which the climate or prejudice is opposed to dissection.

'6th. Finally, with the assistance of these pieces, the study of anatomy may be made a branch of public instruction, and thereby become advantageous to every class of society, particularly to those who devote themselves to medicine, to the fine arts, to military science, or to navigation.

'Since the period that my first model appeared, artificial anatomy has been made use of in a great number of public establishments, for the purpose of anatomical illustration. Complete subjects have been sent to the following schools of medicine:—To Boston, to Martinique, Guadaloupe, Isle of France, College of Yale, (United States,) Metz, Strasburg, Lille, Val de Narre, the Museum, (Stockholm,) Evreux, Oxaca, (South America,) Louisiana, Vera Cruz, Cairo, Toulon, Turin, New Orleans, Harvard, (New England,) Charlestown, the Faculty of Medicine of Strasburg, &c. In regard to myself, many thousands of students have attended my lectures, or have studied in my cabinet. I have collected with great care all the remarks and observations that have been addressed to me; I have frequently, for the last eleven years, carefully revised, several times a day, all the parts of my labour; and I have introduced into them all the corrections which have been suggested to me; and finally, in order to render artificial anatomy more worthy of the success that it has obtained, I have constructed a new model, and thus many important modifications and numerous additions have been made to the subject of my labours.

'The augmentations do not consist of some minute details, nor of some additions of little or no importance. The former have been completely changed, and the incisions multiplied. The model published in 1825, consisted only of sixty-six regular pieces, and three hundred and fifty-six in

detail; whereas that which was made public in 1830, consisted of one hundred and twenty-nine regular pieces, that is, pieces which are capable of being separated, and eleven hundred and fifteen pieces in detail. The skeleton taken for the model, represents a man of an athletic constitution. I have given it the attitude of Antinous, to which it may be compared, on account of the beauty and exactitude of its forms. The left foot is fixed in a wooden socket, for the purpose of giving it a rotatory movement. All the parts united present a man, from whom the skin only has been taken. One half of the subject is represented entire; all the parts which constitute the other half may be detached; every muscle, every organ may be removed, one by one, from the skin to the bone, with the greatest facility, and replaced in the same manner. An order number, corresponding with a synoptic table, is made to indicate the name of the organ, and the extremity at which the displacement should be made.

'A few moments only are necessary to cover a table with the numerous pieces which enter into the composition of this anatomical imitation, and a few minutes are sufficient to put them together again, and to form the complete skeleton.'

So far may be considered as the report of M. Auzouz himself, relative to the advantages of his invention; and being afterwards submitted to the Royal Academy of Physic to pronounce upon its merits, the following report was made on the 10th of May, 1831. Dubois, Ribes, Adelon, Craveilhier, Breschet, Cloquet, and de Massy, were appointed by the academy to examine the invention of M. Auzouz, and the report is drawn up and signed by M. de Massy.

'It was in the year 1822, 1823, and 1825, that M. Auzouz submitted for your examination a number of pieces of artificial anatomy, adapted to represent the different parts which belong to the composition of the human body.

'It is by means of a particular paste that M. Auzouz executes his preparations. This paste, in a fresh state, is susceptible of being run into moulds, to take and preserve the most delicate impressions, and to acquire by desiccation a solidity equal to that of wood.

'In due course of time, you appointed Messrs. Dumeril, Berlard, Cloquet, Desgenettes, Breschet, Richerand, and Alard, whose well-known science

rendered them fully competent to give a correct opinion of similar works, to report to you on the labours of our associate, M. Auzouz; and they reported to you the importance of the discovery, and called upon you to bestow your commendations on the inventor. They also reported to you that he was deserving of the encouragement which the government bestows upon those who render a benefit to their country. Your reporter, M. Alard, says, that France at this time possesses the advantage of surpassing all other countries in the art of anatomical imitations.

'Your decision, gentlemen, has been fortified by the zeal and anxiety evinced by the public establishments of other countries to become possessed of similar anatomical subjects. Your commendations, and the anxious activity with which foreigners have applied for the works of our skilful associate, inspired him with fresh ardour and zeal to render his work still more perfect.

'We will here repeat with pleasure what was said by the Medical Society of Emulation in 1823. "It is with pleasure that we bestow upon M. Auzouz every encomium of which he is deserving, for his zeal for the promotion of science; for his patience, his ingenious attempts, and finally for the results which are due to his perseverance, and his correct knowledge of anatomy."

'After five years of the most persevering and obstinate labour, M. Auzouz submitted to the Academy, on its sitting on the 25th of May, 1830, a new piece of anatomy, for the examination of which you appointed Messrs. Dubois, Ribes, Adelon, Craveilhier, Breschet, Cloquet, and myself.

'It is not only to some slight modifications, or to some trifling additions, that our associate has directed his application and his skill; he has almost recommenced his labours, preserving only the *modus faciendi*.

'M. Auzouz has taken for his model the corpse of an adult of five feet six inches high, and he enforced upon himself the task of reproducing it in all its most minute details.

'This new model, compared with that previously made, even with the complete piece which was submitted for your examination in 1825, and which appeared to leave nothing further to desire, exhibits, however, these differences, which could not have been expected from the same individual.

The forms have been completely changed, the details almost doubled; and by means of some ingenious incisions or cuts, M. Auzouz has succeeded in reproducing everything which has any relation to the various branches of the science. It is not only the bones that have been reproduced with an exactitude and fidelity which, if we had not been aware of the circumstances, would have led us to consider the bones as real,—the most tender, the most delicate, as well as the most voluminous; the softest, as well as the hardest; the most superficial, as well as the most profound, all are represented with the most scrupulous exactness in their form and colour, their relations and connexions. We consider that it would be useless to lay before you an analysis of all those details, and will therefore only draw your attention to some particular facts to which your commissioners have principally directed their attention.

'The heart has been produced with the happiest success, by means of a particular cut. This organ is divided into two moieties, on each of which are two cavities, which may be opened in such a manner as to admit of a full inspection of the valves. All these parts are united with such extreme nicety and exactness, that the traces of the division are scarcely distinguishable; and when combined, they exhibit a heart of the natural size, from which the vessels arise which digress from it, or which terminate in it. All these vessels being produced from their origin to their termination, it becomes an easy task to study the branches which depart from it, the numerous anastomoses which they have between them, and their relations with the different organs.

'The preparation of the head, in which are found the head, the pharynx, the larynx, the nasal cavities, with the muscles, the veins, the arteries, the nerves which accompany those parts, or which are distributed about them, appears to your commissioners to exhibit a whole, which has never before been produced.

'This work is, however, not yet complete; even M. Auzouz himself admits that some errors may have crept in. Your commissioners have employed several sittings in the examination of this new preparation, and they have discovered some inaccuracies, some anatomical errors. These inaccuracies and errors were, however, no sooner pointed out, than they were rectified,

so great is the facility with which M. Auzouz can remove and replace every one of the parts.

'Your commissioners congratulate themselves on having announced to you the entire realization of the hopes which not only your former commissions and those of the Royal Academy of Sciences, and the Medical Society of Emulation have entertained, but also of several very able physicians who have been called on to give their opinion.'

In regard to the measures adopted in this country to legalize the sale of bodies, Mr. Warburton has succeeded in carrying his Bill through the House of Commons, extending the provisions of it to Ireland. It is supposed that some of the clauses of the Bill may have an injurious effect upon the private anatomical schools; but taking the general principle of the Bill under our consideration, we are convinced that, when certain prejudices are overcome, it will be found fully adequate to remedy the evil which has so long existed, to the odium and disgrace of the country, and that the general interests of science will be encouraged and supported by it.

THE END.

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FOOTNOTES:

[1] The Editor of this work, on once going the nightly round with the head-officer of the Queen Square police, was shown into a house of this kind in one of the most remote and obscure streets in Tothill Fields; and it is rather singular that Bishop, who has lately forfeited his life on the scaffold, was then in the house. A celebrated resurrectionist of that time, of the name of Alexander, was also present; and on the officer familiarly asking Alexander, if he had no particular business on hand that night, he answered, with the greatest *sang froid*, "No—I had a good drag last night;"—and shaking his

coat-pockets, added, "I have got a rare set of grinders here, all young and white." The countenance of this man bespoke his trade;—it had neither the sharpness nor the acuteness of Bishop's; but it would have served a Correggio for the model of the determined, resolute, and undaunted villain.

[2] We also know of a medical man who reversed the case by treating a dropsical woman as a pregnant one, as in the case of Johanna Southcott, by Dr. Reece, of Chemical-hall notoriety. Mr. Sleight must, however, be aware that the treating of a pregnant woman as a dropsical one, is by no means a rare case; it is of very frequent occurrence, and for reasons which need not here be stated. The *skill* of the professional man is in these cases wholly out of the question; it *must* be dropsy, or ——— *verbum sat*. It was the *interest* of Dr. Reece to declare the pregnancy of the immaculate Johanna. The Southcottonians flocked to him from all quarters, as the chosen man by whose obstetrical aid young Shiloh was to be brought into the world; it was a case of Interest *versus* Skill, and the latter was nonsuited. We should not, however, have entered into this exposition, had it not been to invalidate the argument of Mr. Sleight, that the mere treatment of a pregnant woman as dropsical, implies a want of professional skill; we have merely thrown out the hint, that *circumstances* determine the case. It is either dropsy or pregnancy, accordingly as the patient wishes or determines that it shall be.

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